

Version  
as at 30 April 2026



# Māori Land Court Rules 2011

(SR 2011/374)

Jerry Mateparae, Governor-General

## Order in Council

At Wellington this 10th day of October 2011

Present:

His Excellency the Governor-General in Council

Pursuant to section 95 of Te Ture Whenua Māori Act 1993, His Excellency the Governor-General, acting on the advice and with the consent of the Executive Council, and with the concurrence of the Chief Judge of the Māori Land Court and at least 2 of the other members of the Rules Committee, makes the following rules.

## Contents

|                               | Page |
|-------------------------------|------|
| <b>Part 1</b>                 |      |
| <b>Title and commencement</b> |      |
| 1.1 Title                     | 13   |
| 1.2 Commencement              | 13   |

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### Note

The Parliamentary Counsel Office has made editorial and format changes to this version using the powers under subpart 2 of Part 3 of the Legislation Act 2019.

Note 4 at the end of this version provides a list of the amendments included in it.

**These rules are administered by Te Puni Kōkiri.**

## Part 2

### Using these rules

|     |                                                              |    |
|-----|--------------------------------------------------------------|----|
| 2.1 | What these rules do                                          | 13 |
| 2.2 | Objectives of these rules                                    | 14 |
| 2.3 | What happens when there is doubt about how these rules apply | 14 |
| 2.4 | Complying with these rules                                   | 14 |
| 2.5 | Interpreting these rules                                     | 15 |
| 2.6 | Transitional, savings, and related provisions                | 18 |

## Part 3

### How Court works

#### *Court offices, hours, and sittings*

|      |                                                                                             |    |
|------|---------------------------------------------------------------------------------------------|----|
| 3.1  | Court offices                                                                               | 18 |
| 3.2  | Office hours                                                                                | 18 |
| 3.2A | Court holidays                                                                              | 18 |
| 3.2B | Sitting on Court holidays                                                                   | 19 |
| 3.2C | Emergencies                                                                                 | 19 |
| 3.2D | Closure of Court or offices in emergencies                                                  | 20 |
| 3.3  | Chief Judge must decide when and where Court sits                                           | 21 |
| 3.4  | Schedule of sittings: all districts                                                         | 21 |
| 3.5  | Court must sit in accordance with schedule                                                  | 21 |
| 3.6  | Deputy Chief Judge may exercise powers and perform functions of Chief Judge under this Part | 22 |
| 3.7  | Special sittings                                                                            | 22 |
| 3.8  | Adjournment, rescheduling, or cancellation of sitting                                       | 22 |

#### *Pānui*

|      |                                                                   |    |
|------|-------------------------------------------------------------------|----|
| 3.9  | Māori Land Court Pānui                                            | 23 |
| 3.10 | Form of Pānui                                                     | 23 |
| 3.11 | Compilation and publication of Pānui                              | 23 |
| 3.12 | General information                                               | 24 |
| 3.13 | Information required for sittings in month to which Pānui relates | 24 |
| 3.14 | Information relating to applications without notice               | 25 |
| 3.15 | Other information                                                 | 25 |
| 3.16 | Special Pānui for special sittings                                | 26 |
| 3.17 | Special Pānui for scheduled sitting omitted from monthly Pānui    | 27 |
| 3.18 | Chief Registrar must arrange for notification in Pānui            | 27 |
| 3.19 | Registrar's schedule of details of sitting                        | 28 |
| 3.20 | Distribution of Pānui                                             | 28 |

## Part 4

### Making an application

|     |                                         |    |
|-----|-----------------------------------------|----|
| 4.1 | How proceedings begin                   | 29 |
| 4.2 | Form of application or other proceeding | 30 |
| 4.3 | How forms may be used                   | 31 |

|      |                                                                                                                             |    |
|------|-----------------------------------------------------------------------------------------------------------------------------|----|
| 4.4  | Valuation                                                                                                                   | 31 |
| 4.5  | Details or evidence of whakapapa must be filed in certain cases                                                             | 31 |
| 4.6  | Plan of land must be filed in certain cases                                                                                 | 32 |
| 4.7  | How proceeding must be filed                                                                                                | 32 |
| 4.8  | Time when document filed                                                                                                    | 33 |
| 4.9  | Filing fees                                                                                                                 | 33 |
| 4.10 | Registrar may refuse to accept proceeding or other document for filing                                                      | 33 |
| 4.11 | Proceeding brought by minor                                                                                                 | 34 |
|      | <i>Notice and service</i>                                                                                                   |    |
| 4.12 | Interpreting rules relating to notice                                                                                       | 34 |
| 4.13 | Application must be notified to other parties and persons materially affected                                               | 35 |
| 4.14 | Exceptions to requirement of notice                                                                                         | 35 |
| 4.15 | What documents must be served                                                                                               | 36 |
| 4.16 | Directions as to notice or service                                                                                          | 36 |
| 4.17 | Examples of directions by Judge as to notice or service                                                                     | 37 |
| 4.18 | Notice to objecting owner of Māori land                                                                                     | 37 |
| 4.19 | Specific applications that do not require notification to other parties, notification in Pānui, nor appearance by applicant | 37 |
| 4.20 | Proceedings in which general rules as to service and notice excluded or modified                                            | 39 |
| 4.21 | Responsibility of applicant as to sufficiency of notice, etc                                                                | 39 |
| 4.22 | Method of service                                                                                                           | 40 |

**Part 4A**  
**Mediation**

|       |                                                              |    |
|-------|--------------------------------------------------------------|----|
| 4A.1  | Application of Part                                          | 42 |
| 4A.2  | Interpretation                                               | 42 |
| 4A.3  | Referral to mediation at request of party                    | 43 |
| 4A.4  | List of mediators available for appointment                  | 43 |
| 4A.5  | Availability of Judge to act as mediator                     | 43 |
| 4A.6  | Approval of person who is not Judge to be listed as mediator | 43 |
| 4A.7  | Appointment of mediator from list of mediators               | 44 |
| 4A.8  | Approval of mediator not on list of mediators                | 44 |
| 4A.9  | Conduct of mediator                                          | 45 |
| 4A.10 | Withdrawal from mediation                                    | 45 |
| 4A.11 | Mediator reports                                             | 46 |
| 4A.12 | Post-mediation steps                                         | 47 |

**Part 5**  
**Setting applications down for hearing**

|     |                                                   |    |
|-----|---------------------------------------------------|----|
| 5.1 | Registrar must set application down for hearing   | 48 |
| 5.2 | Rules that apply to setting down in certain cases | 48 |

|      |                                                                        |    |
|------|------------------------------------------------------------------------|----|
| 5.3  | Notification of applications that must be forwarded to Chief Registrar | 49 |
| 5.4  | Registrar must fix time, date, and place of hearing                    | 49 |
| 5.5  | Direction of Chief Judge required for setting down certain proceedings | 50 |
| 5.6  | Registrar must assemble file to assist Court                           | 50 |
| 5.7  | Registrar's duty to advance application                                | 51 |
| 5.8  | Notice of hearing                                                      | 51 |
| 5.9  | Notice of intention to appear                                          | 51 |
| 5.10 | Notice and service                                                     | 52 |
| 5.11 | Outstanding applications                                               | 52 |
| 5.12 | Judge's powers in relation to file forwarded under rule 5.11(3)        | 53 |

## **Part 6**

### **Conduct of hearing**

|      |                                                                                                                    |    |
|------|--------------------------------------------------------------------------------------------------------------------|----|
| 6.1  | Presiding Judge                                                                                                    | 53 |
| 6.1A | Court may appoint additional members with knowledge and experience of tikanga Māori or whakapapa to sit with Court | 53 |
| 6.2  | Conduct of hearing                                                                                                 | 54 |
| 6.3  | Court staff                                                                                                        | 54 |
| 6.4  | Court may sit without formal notice                                                                                | 54 |
| 6.5  | When Court may determine application for which no appearance is required                                           | 55 |
| 6.6  | Notification in Pānui of application made without notice                                                           | 55 |
| 6.7  | Form of notification in Pānui                                                                                      | 55 |
| 6.8  | Directions following notification of application made without notice                                               | 56 |

### *Adjournments*

|      |                                                            |    |
|------|------------------------------------------------------------|----|
| 6.9  | Court may adjourn hearing                                  | 56 |
| 6.10 | Notification of adjournment in Pānui and notice of hearing | 57 |
| 6.11 | Adjournment to another district                            | 57 |

### *Registrar's jurisdiction and powers*

|      |                                                                                                       |    |
|------|-------------------------------------------------------------------------------------------------------|----|
| 6.12 | Specified classes of case in which designated Registrar may exercise jurisdiction and powers of Court | 57 |
| 6.13 | Registrar's ancillary powers                                                                          | 58 |

### *Parties*

|       |                                                                            |    |
|-------|----------------------------------------------------------------------------|----|
| 6.14  | Court may strike out or add parties to application                         | 58 |
| 6.15  | Court may make directions for representation of person or class of persons | 59 |
| 6.16  | Litigation guardian                                                        | 59 |
| 6.16A | Procedure when person ceases to be incapacitated person                    | 60 |
| 6.16B | Procedure when minor attains full age                                      | 60 |

|                                                              |                                                             |    |
|--------------------------------------------------------------|-------------------------------------------------------------|----|
| <i>Change of parties by death, bankruptcy, or devolution</i> |                                                             |    |
| 6.16C                                                        | Proceeding not to come to end                               | 61 |
| 6.16D                                                        | Procedure on death, bankruptcy, and devolution              | 61 |
| 6.16E                                                        | New parties order                                           | 61 |
| <i>Evidence</i>                                              |                                                             |    |
| 6.17                                                         | Form of evidence                                            | 62 |
| 6.18                                                         | Further evidence                                            | 62 |
| 6.19                                                         | Who may take affidavit, declaration, or affirmation         | 63 |
| 6.20                                                         | Discovery                                                   | 64 |
| 6.21                                                         | Exhibit notes                                               | 64 |
| 6.22                                                         | Summons to witness                                          | 64 |
| 6.23                                                         | Witness summoned must comply with summons                   | 65 |
| 6.24                                                         | Taking evidence in another district                         | 66 |
| 6.25                                                         | Power of Registrar to take evidence                         | 66 |
| <i>Reference to Registrar for inquiry and report</i>         |                                                             |    |
| 6.26                                                         | Judge may make reference to Registrar                       | 67 |
| 6.27                                                         | Conduct of Registrar's inquiry                              | 67 |
| <i>Judicial settlement conference</i>                        |                                                             |    |
| 6.27A                                                        | Judicial settlement conference before hearing of proceeding | 67 |
| 6.27B                                                        | Judicial settlement conference during hearing of proceeding | 68 |
| <i>Withdrawal of application</i>                             |                                                             |    |
| 6.27C                                                        | Withdrawal of application                                   | 69 |
| <i>Dismissal</i>                                             |                                                             |    |
| 6.28                                                         | Court may dismiss application                               | 70 |
| <i>Strike out or stay of proceeding</i>                      |                                                             |    |
| 6.28A                                                        | Striking out or staying all or part of proceeding           | 70 |
| <i>Costs</i>                                                 |                                                             |    |
| 6.29                                                         | Security for costs                                          | 71 |
| 6.30                                                         | Form of bill of items for taxation of costs                 | 71 |
| 6.31                                                         | Procedure for taxation of costs                             | 71 |
| 6.32                                                         | Taxation of costs                                           | 72 |
| 6.33                                                         | Review of taxation of costs                                 | 72 |

## **Part 7**

### **Orders and records of Court**

|               |                                                                 |    |
|---------------|-----------------------------------------------------------------|----|
| <i>Orders</i> |                                                                 |    |
| 7.1           | Order must be documented in certain cases                       | 73 |
| 7.2           | Form of order                                                   | 73 |
| 7.3           | Orders in electronic form                                       | 73 |
| 7.4           | Order must be completed as soon as practicable after it is made | 74 |

|                         |                                                                                               |    |
|-------------------------|-----------------------------------------------------------------------------------------------|----|
| 7.5                     | Time for completion of order                                                                  | 74 |
| 7.6                     | How order must be signed and sealed                                                           | 75 |
| 7.7                     | Certain orders must include plans                                                             | 75 |
| 7.8                     | When Court may modify or dispense with requirement of survey plan                             | 76 |
| 7.9                     | Area of land provisional until definition by full survey                                      | 76 |
| 7.10                    | Amendment of orders, warrants, etc                                                            | 77 |
| 7.11                    | Retention of original order                                                                   | 77 |
| 7.12                    | Duplicate orders                                                                              | 78 |
| 7.13                    | Verification of duplicate order                                                               | 78 |
| 7.14                    | Duplicate copy of order for payment of money for transmission to District Court               | 78 |
| 7.14A                   | Duplicate copy of order for recovery of land for transmission to High Court or District Court | 79 |
| 7.15                    | Electronic transmission of orders                                                             | 79 |
| <i>Records of Court</i> |                                                                                               |    |
| 7.16                    | Sound recording of proceeding                                                                 | 79 |
| 7.17                    | Minutes of proceeding                                                                         | 80 |
| 7.18                    | Content of minutes                                                                            | 80 |
| 7.19                    | Permanent record                                                                              | 81 |
| 7.20                    | Custody of permanent record                                                                   | 82 |
| 7.21                    | Access to permanent record                                                                    | 82 |
| 7.22                    | Maintenance of permanent record                                                               | 83 |
| 7.23                    | Electronic form of permanent record                                                           | 83 |
| 7.24                    | Status of electronic form of permanent record                                                 | 84 |
| 7.25                    | Storage of permanent record in hard-copy form                                                 | 85 |

## Part 8

### Reconsideration of decision

#### *Review of determination of Registrar under section 113A or 235A of Act*

|        |                                       |    |
|--------|---------------------------------------|----|
| 8.1AAA | Review of determination by Registrar  | 85 |
| 8.1AAB | Decision on review by Judge on papers | 85 |

#### *Rehearing*

|                                                                  |                                                           |    |
|------------------------------------------------------------------|-----------------------------------------------------------|----|
| 8.1                                                              | Rehearing                                                 | 86 |
| <i>Application to Chief Judge to correct mistake or omission</i> |                                                           |    |
| 8.2                                                              | Application to Chief Judge under section 45 of Act        | 86 |
| 8.3                                                              | Chief Registrar or Registrar must make preliminary report | 87 |
| 8.4                                                              | Content of preliminary report                             | 88 |
| 8.5                                                              | Notice to persons affected                                | 88 |
| 8.6                                                              | Registrar must give notice of decision                    | 88 |
| 8.7                                                              | Procedure on cancellation or amendment of order           | 89 |

*Appeal*

|      |                                                                                          |    |
|------|------------------------------------------------------------------------------------------|----|
| 8.8  | Notice of appeal                                                                         | 89 |
| 8.9  | Filing of notice of appeal                                                               | 89 |
| 8.10 | Notification of appeal                                                                   | 90 |
| 8.11 | Chief Judge must take steps for hearing of appeal                                        | 91 |
| 8.12 | Powers and duties of Deputy Chief Judge in relation to appeals                           | 92 |
| 8.13 | Leave to appeal from provisional or preliminary determination                            | 92 |
| 8.14 | Leave to appeal out of time                                                              | 92 |
| 8.15 | Notification in Pānui                                                                    | 93 |
| 8.16 | Record on appeal                                                                         | 93 |
| 8.17 | Preliminary and interlocutory matters                                                    | 94 |
| 8.18 | Hearing of further evidence                                                              | 94 |
| 8.19 | When Māori Appellate Court may dismiss appeal without hearing                            | 95 |
| 8.20 | Māori Appellate Court may convene without formal hearing to<br>determine certain matters | 95 |
| 8.21 | Conduct of appeal hearing                                                                | 96 |
| 8.22 | Reinstatement of appeal                                                                  | 96 |
| 8.23 | Withdrawal of appeal                                                                     | 96 |

*Case stated*

|      |                                          |    |
|------|------------------------------------------|----|
| 8.24 | Procedure for stating case               | 96 |
| 8.25 | Responsibility for preparing case stated | 97 |
| 8.26 | Form of case stated                      | 97 |
| 8.27 | Case stated for High Court               | 97 |

**Part 9**

**Civil applications, injunctions, and other applications**

*Civil applications*

|     |                                                   |     |
|-----|---------------------------------------------------|-----|
| 9.1 | Types of civil application                        | 98  |
| 9.2 | Form of civil application                         | 98  |
| 9.3 | Notification and service of civil application     | 99  |
| 9.4 | Respondent may file notice of intention to appear | 100 |

*Injunctions*

|     |                                   |     |
|-----|-----------------------------------|-----|
| 9.5 | Application for injunction        | 100 |
| 9.6 | Urgent application for injunction | 101 |
| 9.7 | Order of injunction               | 101 |
| 9.8 | Enforcement of injunction         | 101 |
| 9.9 | Cancellation of injunction        | 102 |

*Other applications*

|      |                                                                                               |     |
|------|-----------------------------------------------------------------------------------------------|-----|
| 9.10 | Application to restore effect of lost instrument of alienation                                | 102 |
| 9.11 | Request for advice on, or application for determination of,<br>representation of Māori groups | 103 |
| 9.12 | Application to appoint receiver                                                               | 104 |

**Part 9A**  
**Determination of succession and trust applications by**  
**Registrar without hearing**

|      |                                                                                 |     |
|------|---------------------------------------------------------------------------------|-----|
| 9A.1 | Application of Part                                                             | 104 |
| 9A.2 | Practice notes                                                                  | 105 |
| 9A.3 | Who assesses and determines application                                         | 105 |
| 9A.4 | Assessment of whether application is simple and uncontested                     | 105 |
| 9A.5 | Determination of application by Registrar                                       | 106 |
| 9A.6 | Referral of application to Judge if application no longer simple or uncontested | 107 |

**Part 10**  
**Succession and related applications**

*Succession*

|      |                                                                                     |     |
|------|-------------------------------------------------------------------------------------|-----|
| 10.1 | Application for search of beneficial interest in Māori freehold land                | 107 |
| 10.2 | Application for succession under section 113, 117, or 118                           | 108 |
| 10.3 | Application for succession: steps to be taken by Registrar on filing                | 108 |
| 10.4 | Notice of application for succession                                                | 109 |
| 10.5 | Registration of succession order                                                    | 109 |
| 10.6 | Application to vest interest of deceased Māori in General land                      | 109 |
| 10.7 | Procedure in cases excluded from Part 4 of Act                                      | 110 |
| 10.8 | When succession order or determination as to entitlement may be made without notice | 110 |

*Related applications*

|       |                                                                                                   |     |
|-------|---------------------------------------------------------------------------------------------------|-----|
| 10.9  | Order in respect of additional land interests                                                     | 111 |
| 10.10 | Transmission of Māori land to administrator                                                       | 111 |
| 10.11 | Application for transmission of joint tenancy by survivorship or for termination of life interest | 112 |

**Part 11**  
**Applications relating to land: status, alienation, assembled**  
**owners, exchange, and representation**

*Status*

|       |                                                                                   |     |
|-------|-----------------------------------------------------------------------------------|-----|
| 11.1  | Application for change of status from General land to Māori freehold land         | 112 |
| 11.2  | Application for change of status from Māori land to General land                  | 113 |
| 11.2A | Application for change in status from Crown land to Māori customary land          | 115 |
| 11.2B | Application for change in status from Māori customary land to Māori freehold land | 116 |

*Alienation of Māori land*

|      |                                                            |     |
|------|------------------------------------------------------------|-----|
| 11.3 | Application for confirmation of instrument of alienation   | 117 |
| 11.4 | Application for exemption from providing special valuation | 117 |



|       |                                                                                                                         |     |
|-------|-------------------------------------------------------------------------------------------------------------------------|-----|
| 11.5  | Procedure for notifying preferred classes of alienees as to right of first refusal                                      | 118 |
| 11.6  | Requirement of right of first refusal: when Court may confirm alienation                                                | 119 |
| 11.7  | Exercise of right of first refusal                                                                                      | 120 |
| 11.8  | Confirmation on default by preferred alienee                                                                            | 120 |
| 11.9  | Application for approval of alienation by long-term lease                                                               | 121 |
| 11.10 | How instrument of alienation of interest in Māori freehold land must be signed and witnessed                            | 121 |
| 11.11 | Registrar's certificate of confirmation                                                                                 | 123 |
| 11.12 | Form of certificate of confirmation by Court or Registrar                                                               | 123 |
| 11.13 | Application for vesting order                                                                                           | 123 |
| 11.14 | Valuation in support of application for vesting order                                                                   | 124 |
| 11.15 | Notice of application for vesting order                                                                                 | 124 |
| 11.16 | Alienation of Māori freehold land must be entered in Māori Land Court title record or entered against memorial schedule | 125 |
|       | <i>Assembled owners</i>                                                                                                 |     |
| 11.17 | Application to call meeting of owners                                                                                   | 125 |
| 11.18 | Direction to summon meeting and notice to preferred classes of alienees                                                 | 125 |
| 11.19 | Notice of meeting and procedure                                                                                         | 126 |
| 11.20 | Application for confirmation of resolution of assembled owners                                                          | 127 |
| 11.21 | Application for confirmation of resolution passed at family gathering                                                   | 127 |
| 11.22 | Minutes of informal family gathering                                                                                    | 128 |
| 11.23 | Court may cancel order confirming resolution                                                                            | 128 |
|       | <i>Exchange orders</i>                                                                                                  |     |
| 11.24 | Application for exchange order                                                                                          | 129 |
|       | <i>Representation of owners of Māori land</i>                                                                           |     |
| 11.25 | Application for certificate under section 181(2) or 183(2) of Act                                                       | 130 |
| 11.26 | Form of notice under section 181(3) of Act                                                                              | 130 |
| 11.27 | Notice under section 181(3) of Act must be dealt with as application                                                    | 130 |

## **Part 12**

### **Trusts and incorporations**

#### *Trusts*

|      |                                             |     |
|------|---------------------------------------------|-----|
| 12.1 | Application to constitute trust             | 131 |
| 12.2 | Application to constitute putea trust       | 131 |
| 12.3 | Application to constitute whānau trust      | 132 |
| 12.4 | Application to constitute ahu whenua trust  | 133 |
| 12.5 | Application to constitute whenua topu trust | 133 |
| 12.6 | Application to constitute kai tiaki trust   | 134 |

|      |                                                                                   |     |
|------|-----------------------------------------------------------------------------------|-----|
| 12.7 | Remuneration of trustees                                                          | 134 |
| 12.8 | Application to appoint, remove, or replace trustees, or change number of trustees | 134 |
| 12.9 | Application for payment of monies held on trust                                   | 135 |

*Incorporations*

|       |                                                                                        |     |
|-------|----------------------------------------------------------------------------------------|-----|
| 12.10 | Application for incorporation                                                          | 135 |
| 12.11 | Application for inclusion of owners of additional Māori freehold land in incorporation | 136 |
| 12.12 | Application for amalgamation of incorporations                                         | 137 |
| 12.13 | Application for removal from office of member of committee of management               | 137 |
| 12.14 | Application for winding up                                                             | 137 |

**Part 13**

**Applications that create or affect title to land**

*Partition*

|      |                                                                              |     |
|------|------------------------------------------------------------------------------|-----|
| 13.1 | Application for partition order                                              | 137 |
| 13.2 | Application for partition order: directions and notice                       | 139 |
| 13.3 | Preliminary hearing                                                          | 139 |
| 13.4 | Court may direct applicant for partition order to obtain subdivision consent | 139 |
| 13.5 | Documents that applicant must file on grant of subdivision consent           | 140 |

*Amalgamation and aggregation*

|      |                                    |     |
|------|------------------------------------|-----|
| 13.6 | Application for amalgamation order | 140 |
| 13.7 | Application for aggregation order  | 141 |

*Easements and roadways*

|       |                                                              |     |
|-------|--------------------------------------------------------------|-----|
| 13.8  | Application for easement                                     | 142 |
| 13.9  | Application for order laying out roadway                     | 143 |
| 13.10 | Application for easement or roadway: directions and notice   | 144 |
| 13.11 | Applicant may be required to submit draft order              | 144 |
| 13.12 | Application for order vesting closed road in adjoining owner | 144 |

*Access to landlocked Māori land*

|       |                                                          |     |
|-------|----------------------------------------------------------|-----|
| 13.13 | Application for access to landlocked Māori land          | 144 |
| 13.14 | Registrar must refer application to Judge for directions | 145 |

*Occupation orders*

|        |                                                 |     |
|--------|-------------------------------------------------|-----|
| 13.15  | Application for occupation order                | 146 |
| 13.15A | Application to amend or cancel occupation order | 147 |

*Survey of Māori land*

|       |                                                     |     |
|-------|-----------------------------------------------------|-----|
| 13.16 | Application for survey of Māori land                | 147 |
| 13.17 | Order for survey of Māori land                      | 148 |
| 13.18 | Charging order for costs of survey <i>[Revoked]</i> | 148 |

**Part 14**  
**Title registration and improvement**

|      |                                                                    |     |
|------|--------------------------------------------------------------------|-----|
| 14.1 | Maintenance of ownership list                                      | 148 |
| 14.2 | Registrar may apply to Court for order to determine status of land | 149 |
| 14.3 | Application for declaratory consolidated order                     | 149 |

**Part 15**  
**Jurisdiction under miscellaneous Acts**

*Protected Objects Act 1975*

|      |                                             |     |
|------|---------------------------------------------|-----|
| 15.1 | Proceeding under Protected Objects Act 1975 | 150 |
|------|---------------------------------------------|-----|

*Fencing Act 1978*

|      |                                                            |     |
|------|------------------------------------------------------------|-----|
| 15.2 | Claim, dispute, or question arising under Fencing Act 1978 | 150 |
|------|------------------------------------------------------------|-----|

*Local Government (Rating) Act 2002*

|       |                                                                                                                     |     |
|-------|---------------------------------------------------------------------------------------------------------------------|-----|
| 15.3  | Application for charging order for unpaid rates                                                                     | 150 |
| 15.3A | Application for determination by Registrar that rating units derive from same original block of Māori freehold land | 151 |

*Maori Commercial Aquaculture Claims Settlement Act 2004*

|      |                                                                             |     |
|------|-----------------------------------------------------------------------------|-----|
| 15.4 | Request for advice or non-binding ruling in relation to aquaculture dispute | 151 |
| 15.5 | Application for determination of aquaculture dispute                        | 152 |

*Maori Fisheries Act 2004*

|      |                                                                                                             |     |
|------|-------------------------------------------------------------------------------------------------------------|-----|
| 15.6 | Request for advice or non-binding ruling in relation to fisheries dispute                                   | 152 |
| 15.7 | Application for determination of fisheries dispute                                                          | 153 |
| 15.8 | Application by Te Ohu Kai Moana Trustee Limited to deny or suspend recognition of mandated iwi organisation | 154 |

*Maori Vested Lands Administration Act 1954 and Maori Reserved Land Act 1955*

|      |                                                                             |     |
|------|-----------------------------------------------------------------------------|-----|
| 15.9 | Memorial of assignment by way of security over vested land or reserved land | 154 |
|------|-----------------------------------------------------------------------------|-----|

*Property Law Act 2007*

|       |                                                                              |     |
|-------|------------------------------------------------------------------------------|-----|
| 15.10 | Applications relating to Māori freehold land                                 | 155 |
| 15.11 | Referral of proceedings or question to High Court or District Court by Court | 155 |
| 15.12 | Referral of proceedings or question to Court by High Court or District Court | 156 |

*Family Protection Act 1955*

|       |                                                                            |     |
|-------|----------------------------------------------------------------------------|-----|
| 15.13 | Application relating to Māori freehold land                                | 156 |
| 15.14 | Referral of proceedings or question to High Court or Family Court by Court | 156 |

|       |                                                                                       |     |
|-------|---------------------------------------------------------------------------------------|-----|
| 15.15 | Referral of proceedings or question to Court by High Court or Family Court            | 157 |
|       | <i>Government Roding Powers Act 1989</i>                                              |     |
| 15.16 | Applications relating to Māori land                                                   | 157 |
| 15.17 | Referral of proceedings or question to District Court by Court                        | 158 |
| 15.18 | Referral of proceedings or question to Court by District Court                        | 158 |
|       | <i>Law Reform (Testamentary Promises) Act 1949</i>                                    |     |
| 15.19 | Application relating to Māori freehold land                                           | 159 |
| 15.20 | Referral of proceedings or question to High Court or Family Court by Court            | 159 |
| 15.21 | Referral of proceedings or question to Court by High Court or Family Court            | 159 |
|       | <i>Local Government Act 1974</i>                                                      |     |
| 15.22 | Application relating to Māori land                                                    | 160 |
| 15.23 | Referral of proceedings or question to District Court by Court                        | 160 |
| 15.24 | Referral of proceedings or question to Court by District Court                        | 161 |
|       | <i>Plant Variety Rights Act 2022</i>                                                  |     |
| 15.25 | Interpretation                                                                        | 161 |
| 15.26 | Notice of appeal                                                                      | 161 |
| 15.27 | Filing of notice of appeal                                                            | 162 |
| 15.28 | Duties of Chief Registrar on receipt of notice of appeal                              | 162 |
| 15.29 | Chief Judge must take steps for hearing of appeal                                     | 163 |
| 15.30 | Leave to appeal against Māori Plant Varieties Committee decision out of time          | 164 |
| 15.31 | Record on appeal                                                                      | 164 |
| 15.32 | Preliminary and interlocutory matters                                                 | 165 |
| 15.33 | When Māori Appellate Court may dismiss or allow appeal without hearing                | 165 |
| 15.34 | Māori Appellate Court may convene without formal hearing to determine certain matters | 166 |
| 15.35 | Conduct of appeal hearing                                                             | 167 |
| 15.36 | Reinstatement of appeal                                                               | 167 |
| 15.37 | Withdrawal of appeal                                                                  | 167 |
| 15.38 | Powers and duties of Deputy Chief Judge in relation to appeals                        | 167 |

## Part 16

### Special Aid Fund

|      |                                                               |     |
|------|---------------------------------------------------------------|-----|
| 16.1 | Appointment, etc, of persons to be paid from Special Aid Fund | 168 |
| 16.2 | Court appointment of barrister or solicitor                   | 168 |
| 16.3 | Court appointment of other persons                            | 169 |
| 16.4 | Provisional appointment                                       | 169 |
| 16.5 | Role of Registrar in finalising appointment                   | 169 |
| 16.6 | Application for order for payment from Special Aid Fund       | 169 |

|      |                                                                               |     |
|------|-------------------------------------------------------------------------------|-----|
| 16.7 | Request under section 98 for payment from Special Aid Fund                    | 170 |
| 16.8 | Court may issue practice note as guide to reasonable fees and expenses        | 170 |
| 16.9 | Registrar must forward orders and applications for payment to Chief Registrar | 171 |

## **Part 17**

### **Revocation and transitional provisions**

|      |                                     |     |
|------|-------------------------------------|-----|
| 17.1 | Maori Land Court Rules 1994 revoked | 171 |
| 17.2 | Transitional provisions             | 171 |

### **Schedule 1AA**

### **Transitional, savings, and related provisions**

|                   |     |
|-------------------|-----|
| <b>Schedule 1</b> | 174 |
| <b>Forms</b>      |     |

## **Rules**

### **Part 1**

### **Title and commencement**

#### **1.1 Title**

- (1) These rules are the Māori Land Court Rules 2011.
- (2) These rules are also known as Nga Ture O Te Kooti Whenua Māori 2011.  
Compare: SR 1994/35 r 1

#### **1.2 Commencement**

These rules come into force on 1 December 2011.

### **Part 2**

### **Using these rules**

#### **2.1 What these rules do**

These rules set out—

- (a) how the Court works—when and where it sits, its management of documents, and how the proceedings in the Court are publicly notified; and
- (b) how proceedings in the Court are dealt with, from making the initial application through to its conclusion; and
- (c) how appeals are heard by the Māori Appellate Court.

**2.2 Objectives of these rules**

- (1) The objectives of these rules are to—
  - (a) facilitate access to the Court; and
  - (b) secure the just, speedy, and inexpensive dispatch of the business of the Court.
- (2) These rules must be applied in a way that best furthers their objectives.
- (3) Any proceeding or procedure before the Court or the Māori Appellate Court for which these rules do not provide must be dealt with in a way that best furthers the objectives of these rules.

**2.3 What happens when there is doubt about how these rules apply**

- (1) If a person is in doubt about how these rules apply,—
  - (a) that person may at any time apply to the Court for directions; and
  - (b) that person need not give notice of the application; and
  - (c) a Judge or the Registrar may give directions.
- (2) A Judge may also give directions on his or her own initiative in a proceeding or on a review under rule 2.3(4).
- (3) Directions given under this rule must be consistent with the other rules and with the Act.
- (4) If a person has obtained directions from the Registrar and is dissatisfied with them, that person may require that the directions be reviewed by a Judge.

Compare: SR 1994/35 rr 6, 56

**2.4 Complying with these rules**

- (1) The Court must ensure compliance with these rules.
- (2) However, in a particular case the Court may excuse compliance with a rule if it is satisfied, having regard to the matters listed below, that compliance would be oppressive or otherwise inappropriate:
  - (a) the purpose of the rule;
  - (b) the consequences of the non-compliance for a party or any other person affected by it;
  - (c) the fairness of requiring compliance or otherwise.
- (3) Non-compliance with a rule does not in itself invalidate any proceeding or step in a proceeding, or document, decision, or order issued or made, under these rules.
- (4) Unless the Court has excused non-compliance with a rule, the Court may at any time in a proceeding—
  - (a) set aside the proceeding for non-compliance; or
  - (b) make any other appropriate order for addressing the non-compliance.

- (5) Nothing in this rule prevents an application or an appeal to a court of competent jurisdiction or an application to the Chief Judge under section 45 of the Act challenging the validity of an order of the Court on the ground of non-compliance with these rules.

Compare: SR 1994/35 r 2(3)

## 2.5 Interpreting these rules

- (1) In these rules, unless the context otherwise requires,—

**Act** means the Act known both as Te Ture Whenua Maori Act 1993 and as the Maori Land Act 1993

**application** includes a proceeding

**Chief Judge** means the Chief Judge of the Court appointed under section 8(1) of the Act

**Chief Registrar** means the person appointed as Chief Registrar by the Ministry of Justice

**contact address** means an address where service may be made or notices sent, and may include an email address

**Court** means, as the case may require, the Māori Land Court or the Māori Appellate Court, or both

**Deputy Chief Judge** means the Deputy Chief Judge of the Court appointed under section 8(1) of the Act

**district** means a Māori Land Court district constituted under section 15(1) of the Act

**electronic communication** means a transmission by electronic means; and includes an email but excludes a text message

**electronic seal** means an electronic form of sealing a document in a way that—

- (a) adequately identifies the party attaching the seal; and
- (b) is as reliable as is appropriate given the purpose for which, and the circumstances in which, the seal is required

**electronic signature** means an electronic form of signing a document that—

- (a) adequately identifies the person signing the document; and
- (b) is as reliable as is appropriate given the purpose for which, and the circumstances in which, the signature is required

**file**, in relation to any document or form, includes doing so by electronic means

**form** means a form contained in Schedule 1

**information system** means a system for producing, sending, receiving, storing, or displaying data or processing electronic communications, and includes any electronic system supporting the operation of the Court and its registry

**Judge** means a Judge of the Māori Land Court; and includes the Chief Judge and the Deputy Chief Judge

**Māori Land Court Pānui** or **Pānui** means the document described in rule 3.9

**Minister** means the Minister of Māori Affairs

**notice**, in relation to giving notice, includes doing so by an electronic communication or on an Internet site maintained by the Court

**notify** includes doing so by an electronic communication

**party**—

- (a) means any person who—
  - (i) has made an application to the Court; or
  - (ii) is named as a respondent or party to the proceedings; or
  - (iii) is a person materially affected who elects to take or does take part in the proceedings; and
- (b) includes a trustee in respect of a person referred to in paragraph (a)

**person materially affected** means any person whose rights or interests in any property may be materially affected by a proceeding

**preferred alienee**, in relation to any alienation (other than an alienation of shares in a Māori incorporation), means a member of the preferred classes of alienees in relation to that alienation

**proceeding** includes any step for obtaining a decision of the Court or a Registrar

**Registrar** means a Registrar of the Māori Land Court, and, unless the context otherwise requires, includes the Chief Registrar and a Deputy Registrar

**roll valuation** means a current roll valuation evidenced by a copy of the current rating roll or by other evidence satisfactory to the Court

**seal** includes an electronic seal

**sign**, in relation to any document or form, includes signing by use of an electronic signature

**signature** includes an electronic signature

**special Pānui** means the document referred to in rule 3.16 or 3.17

**special sitting** means a sitting referred to in rule 3.7

**special valuation** means a valuation made under section 158 of the Act

**survey** means a survey that—

- (a) complies with Part 5 of the Cadastral Survey Act 2002; or
- (b) has been approved under rules or regulations in force before the commencement of that Act



**survey plan** means a cadastral survey dataset, as defined in section 4 of the Cadastral Survey Act 2002, that—

- (a) complies with Part 5 of the Cadastral Survey Act 2002; or
- (b) has been approved under rules or regulations in force before the commencement of that Act

**writing** includes the text in an electronic communication or in a document or form transmitted or accessed by electronic means, and **written** has a corresponding meaning.

- (2) Any term or expression that is defined in the Act and used, but not defined, in these rules or the forms in Schedule 1 has the same meaning as in the Act.
- (3) A reference in these rules to a numbered form is a reference to the corresponding numbered form in Schedule 1.

Rule 2.5(1) **chief executive**: revoked, on 30 April 2026, by rule 4(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 2.5(1) **contact address**: amended, on 30 April 2026, by rule 4(2)(a) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 2.5(1) **contact address**: amended, on 30 April 2026, by rule 4(2)(b) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 2.5(1) **electronic communication**: amended, on 30 April 2026, by rule 4(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 2.5(1) **electronic seal**: inserted, on 30 April 2026, by rule 4(6) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 2.5(1) **electronic signature**: inserted, on 30 April 2026, by rule 4(6) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 2.5(1) **file**: inserted, on 30 April 2026, by rule 4(6) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 2.5(1) **form**: amended, on 30 April 2026, pursuant to rule 90 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 2.5(1) **information system**: amended, on 30 April 2026, by rule 4(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 2.5(1) **Māori Land Court Pānui** or **Pānui**: replaced, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 2.5(1) **notice**: inserted, on 30 April 2026, by rule 4(6) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 2.5(1) **notify**: inserted, on 30 April 2026, by rule 4(6) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 2.5(1) **Registrar**: amended, on 30 April 2026, by rule 4(5) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 2.5(1) **seal**: inserted, on 30 April 2026, by rule 4(6) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 2.5(1) **sign**: inserted, on 30 April 2026, by rule 4(6) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 2.5(1) **signature**: inserted, on 30 April 2026, by rule 4(6) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 2.5(1) **special Pānui**: replaced, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 2.5(1) **working day**: revoked, on 30 April 2026, by rule 4(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 2.5(1) **writing**: inserted, on 30 April 2026, by rule 4(6) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 2.5(2): amended, on 30 April 2026, pursuant to rule 90 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 2.5(3): amended, on 30 April 2026, pursuant to rule 90 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## 2.6 Transitional, savings, and related provisions

The transitional, savings, and related provisions set out in Schedule 1AA have effect according to their terms.

Rule 2.6: inserted, on 30 April 2026, by rule 5 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## Part 3 How Court works

### *Court offices, hours, and sittings*

#### 3.1 Court offices

- (1) The Court must have an office in each district.
- (2) Each office of the Court must be situated at the place determined by the Minister.
- (3) The Court may establish a separate office for the Chief Registrar.

Compare: SR 1994/35 r 7(1), (2)

#### 3.2 Office hours

Each office of the Court must be open from 10 am to 4 pm on every day that is not a Court holiday.

Rule 3.2: replaced, on 30 April 2026, by rule 6 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### 3.2A Court holidays

- (1) The following are **Court holidays** for the Court and the offices of the Court:
  - (a) the period beginning on Good Friday and ending on Easter Monday:
  - (b) the period beginning on 24 December and ending on 2 January:
  - (c) Saturdays and Sundays:
  - (d) the Sovereign's birthday:
  - (e) Anzac Day:
  - (f) Labour Day:

- (g) Waitangi Day:
  - (h) if New Year's Day falls on a Saturday, the following Monday and Tuesday, being 3 and 4 January:
  - (i) if New Year's Day falls on a Sunday, the following Tuesday, being 3 January:
  - (j) if Anzac Day or Waitangi Day falls on a Saturday or a Sunday, the following Monday:
  - (k) Te Rā Aro ki a Matariki/Matariki Observance Day:
  - (l) the anniversary day of the region in which the office of the Court is situated:
  - (m) in each place where the office of the Court is situated, any day which is in that place—
    - (i) a public holiday; or
    - (ii) a proclaimed holiday.
- (2) The Holidays Act 2003 overrides rule 3.2A(1).
- Rule 3.2A: inserted, on 30 April 2026, by rule 7 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### 3.2B Sitting on Court holidays

- (1) The Court may sit on a Court holiday if a Judge considers it desirable to do so to dispose of business.
- (2) However, the Court may only sit on a Sunday, Christmas Day, New Year's Day, or Good Friday if a Judge is of the view that the business to be disposed of is extremely urgent.
- (3) If the Court sits on a Court holiday, it may—
  - (a) authorise the receipt or issue of any document complying with these rules; and
  - (b) authorise the service of any document received or issued under rule 3.2B(3)(a).

Rule 3.2B: inserted, on 30 April 2026, by rule 7 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### 3.2C Emergencies

- (1) For the purposes of these rules, an **emergency** exists in relation to a place if,—
  - (a) in relation to that place,—
    - (i) a state of emergency is declared, or a transition period is notified, under the Civil Defence Emergency Management Act 2002; or
    - (ii) an emergency is declared under other legislation; or
    - (iii) an epidemic notice is in force under section 5 of the Epidemic Preparedness Act 2006; or

- (b) the Chief Judge, being satisfied of the following, gives notice that an emergency exists in relation to that place for the purposes of these rules:
  - (i) that a situation exists that is the result of any happening, whether natural or otherwise, including, without limitation, any explosion, earthquake, eruption, tsunami, land movement, flood, storm, tornado, cyclone, serious fire, leakage or spillage of any dangerous gas or substance, technological failure, infestation, plague, epidemic, failure of or disruption to an emergency service or a lifeline utility, or actual or imminent attack or warlike act; and
  - (ii) that the situation affects, or may affect, the operation of the Court or any office of the Court.
- (2) A notice is given for the purposes of rule 3.2C(1)(b) when it is advertised in the manner the Chief Judge directs.
- (3) The Chief Judge must—
  - (a) keep a notice given for the purposes of rule 3.2C(1)(b) under review; and
  - (b) revoke the notice when satisfied that the emergency has ended.
- (4) Rule 3.2C(3)(b) does not limit the Chief Judge's powers to revoke a notice sooner.
- (5) For the purposes of rule 3.2C(1), **place** includes the whole of New Zealand.
- (6) *See also* sections 24 and 24A of the Epidemic Preparedness Act 2006 if an epidemic notice is in force.

Rule 3.2C: inserted, on 30 April 2026, by rule 7 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### 3.2D Closure of Court or offices in emergencies

- (1) Despite rule 3.2, the Chief Judge may order that the Court or 1 or more of its offices be closed for a period not exceeding 1 week specified in the order if an emergency exists in the place where the Court or 1 or more of its offices is located.
- (2) The Chief Judge may make orders under rule 3.2D(1) for consecutive periods of time.
- (3) A Registrar must ensure that an order made under rule 3.2D(1) is immediately advertised in the manner the Chief Judge directs.
- (4) Nothing in this rule, or any other provision of these rules, relating to the powers of a Judge for a proceeding in circumstances in which an emergency exists is intended to limit the Court's inherent powers.
- (5) The Court may sit despite an order under rule 3.2D(1) if the Chief Judge or Deputy Chief Judge is of the view that the business to be disposed of is urgent.

Rule 3.2D: inserted, on 30 April 2026, by rule 7 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **3.3 Chief Judge must decide when and where Court sits**

- (1) In September of each year, the Registrar of each district must, after consulting the Judge or Judges for that district, compile a schedule of the proposed sittings of the Court in that district for the next calendar year, containing—
  - (a) the times and dates when the Court will sit; and
  - (b) the place or places where the Court will sit; and
  - (c) the closing dates for each monthly Pānui.
- (2) The Registrar of each district must forward a copy of the schedule for that district to the Chief Judge and the Chief Registrar not later than 30 September.
- (3) Before 20 October in each year, the Chief Judge, after consulting the Chief Registrar, must finally decide the following:
  - (a) the schedule of sittings for each district; and
  - (aa) the sitting dates on which applications under section 45 of the Act (applications for exercise of special powers) will be heard; and
  - (b) the sitting dates for the Māori Appellate Court.

Compare: SR 1994/35 r 9(1), (4)

Rule 3.3(1)(c): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.3(3)(aa): inserted, on 30 April 2026, by rule 8 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **3.4 Schedule of sittings: all districts**

- (1) The Chief Registrar must prepare a schedule that contains,—
  - (a) for all districts, the times, dates, and places of sitting as decided by the Chief Judge under rule 3.3(3); and
  - (b) the closing dates for each monthly Pānui; and
  - (c) the sitting dates for the Māori Appellate Court.
- (2) The Chief Registrar must ensure that the schedule is published with or included in all Pānui issued in the 12-month period beginning with December following the Chief Judge's decision under rule 3.3(3).

Compare: SR 1994/35 r 30(1)

Rule 3.4(1)(b): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.4(2): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **3.5 Court must sit in accordance with schedule**

- (1) Ordinary sittings of the Court must be held in accordance with the schedule prepared and published under rule 3.4, except where a sitting is adjourned or otherwise rescheduled or cancelled under rule 3.8.

- (2) The Chief Judge, after consulting the Chief Registrar, may direct that additional ordinary sittings be held, in which case the times, dates, and places of those sittings must be included in the monthly Pānui.

Rule 3.5(2): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **3.6 Deputy Chief Judge may exercise powers and perform functions of Chief Judge under this Part**

The Deputy Chief Judge may exercise the powers and perform the functions of the Chief Judge under this Part if authorised to do so by the Chief Judge.

### **3.7 Special sittings**

- (1) A Judge may at any time fix a time, date, and place for a special sitting of the Court to hear and decide any 1 or more applications.
- (2) The time, date, and place of a special sitting of the Court must be notified in at least 1 Pānui published before the date of the sitting unless,—
- (a) under rule 4.14 or 4.19, notice of the sitting is not required; or
  - (b) a Judge has directed under rule 6.10 that notice in a Pānui is not required; or
  - (c) the sitting is notified in a special Pānui published in accordance with rule 3.16.

Compare: SR 1994/35 r 9(5)

Rule 3.7(2): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.7(2)(b): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.7(2)(c): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **3.8 Adjournment, rescheduling, or cancellation of sitting**

- (1) At any time before a sitting of the Court or of the Māori Appellate Court, a Judge may—
- (a) adjourn the sitting to a time, date, and place to be decided; or
  - (b) reschedule the sitting for a specified, time, date, and place; or
  - (c) cancel the sitting.
- (2) Any person authorised to do so by the Chief Judge or the presiding Judge may open or adjourn any sitting of the Court.
- (3) After the commencement of a sitting of the Court or of the Māori Appellate Court, the presiding Judge (or, if the presiding Judge is absent, any officer of the Court authorised by the presiding Judge to do so) may adjourn the sitting, or part of the sitting, or part or parts of the business notified to be dealt with at the sitting, to—

- (a) a time, date, and place to be decided; or
  - (b) a specified time, date, and place.
- (4) The Registrar must—
  - (a) ensure that the relevant parties and any other materially affected persons are notified of an adjournment, rescheduling, or cancellation under this rule by direct notice, publication in the next available Pānui, or other appropriate means; and
  - (b) comply with any directions given by a Judge in that regard.

Compare: SR 1994/35 r 10

Rule 3.8(4)(a): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### *Pānui*

Heading: amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## **3.9 Māori Land Court Pānui**

The Māori Land Court Pānui (the **Pānui**) is a monthly schedule of applications, appeals, and other matters to be heard at all Māori Land Court and Māori Appellate Court sittings in the month to which the Pānui relates.

Rule 3.9 heading: amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.9: amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## **3.10 Form of Pānui**

- (1) The Pānui must contain the information set out in rules 3.12 to 3.15.
- (2) The Pānui must be in printed form and may also be published by electronic means.

Rule 3.10 heading: amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.10(1): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.10(2): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## **3.11 Compilation and publication of Pānui**

- (1) The Chief Registrar must ensure that there is published a Pānui for each month of the year.
- (2) The Pānui must be published and distributed not less than 15 days before the date of any sitting of the Court that is notified in it.
- (3) The Pānui may be published in conjunction with, or may be incorporated in, any other publication.

Rule 3.11 heading: amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.11(1): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.11(2): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.11(3): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### 3.12 General information

The Pānui must contain the following general information:

- (a) a list of each Court sitting separately under the name of the district responsible for the sitting;
- (b) the location of each Court and the hours that it is open.

Compare: SR 1994/35 r 6

Rule 3.12: amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### 3.13 Information required for sittings in month to which Pānui relates

The Pānui must include, for sittings in the month to which it relates, the following information about each application and appeal to be heard at those sittings:

- (a) the name of the applicant or appellant;
- (b) the name of any other party named in the application or appeal;
- (c) the name of any land or block that is the subject of an application for change of status;
- (d) the name of any land or block that is the subject of an application (other than an application for change of status) except that where there are multiple blocks at least one block must be named and that name may be followed by the words “and other blocks”;
- (e) in the case of succession, the name of the deceased person;
- (f) in the case of an application for the appointment, replacement, or removal of a trustee, the name of the trustee;
- (g) in the case of an application for vesting or confirmation of alienation, the names of the alienor and alienee;
- (h) a brief description of the purpose or effect of the application or appeal;
- (i) in the case of an application, a citation and brief summary of the statutory provision under which the application is made;
- (j) in the case of an application for which a hearing has been set, the time, date, and venue of the hearing;



- (k) the location and hours of business of the Court office where the application or appeal and any supporting documents are available for inspection:
- (l) any other information directed by the Court to be included in respect of the application or appeal.

Rule 3.13 heading: amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.13: amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### 3.14 Information relating to applications without notice

The Pānui must also include the following information in relation to applications made without notice:

- (a) the information required to be notified in the Pānui under rules 6.6 and 6.7:
- (b) where directed by the Court, the particulars of an application made without notice.

Compare: SR 1994/35 r 37

Rule 3.14(1): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.14(1)(a): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### 3.15 Other information

- (1) The Pānui must also include the following information:
  - (a) in a separate list and under the heading “Applications not ready for hearing”, details of each application received by the Court before the closing date of the current Pānui that has not been set down for hearing or otherwise notified in a Pānui:
  - (b) a list of any applications for succession, whānau trust, or kai tiaki trust as provided for in rule 5.2:
  - (c) details of applications referred to in rule 5.3 in accordance with that rule:
  - (ca) a list of disputes that have been referred to a mediator under rule 4A.3(1) and (3) and section 98L(1)(a) of the Act:
  - (d) details of any application since the closing date of the previous Pānui that has been dismissed under rule 6.28 for failure to prosecute:
  - (e) notice to owners of Māori land of the most recent schedule compiled under rule 5.11 and advice on how to access it on an Internet site maintained by the Court:
  - (f) details of any special Pānui in accordance with rules 3.16(5) and 3.17(3):
  - (g) any other notices relating to the work of the Court that the Chief Judge directs must be published in the Pānui.

- (2) An application referred to in rule 3.15(1)(a) (other than an application to the Chief Judge) that has been notified in a Pānui is not required to be notified again in a Pānui unless—
- (a) a hearing has been set; or
  - (b) a Judge so directs.
- (3) For a dispute referred to in rule 3.15(1)(ca),—
- (a) the information that it has been referred to a mediator must be included in the Pānui as soon as reasonably practicable following the date of the referral; and
  - (b) in the case of a dispute arising from a proceeding, the information must identify that proceeding.

Rule 3.15(1): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.15(1)(a): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.15(1)(b): amended, on 30 April 2026, by rule 9(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.15(1)(c): replaced, on 30 April 2026, by rule 9(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.15(1)(ca): inserted, on 30 April 2026, by rule 9(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.15(1)(d): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.15(1)(e): amended, on 30 April 2026, by rule 9(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.15(1)(f): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.15(1)(g): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.15(2): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.15(3): inserted, on 30 April 2026, by rule 9(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **3.16 Special Pānui for special sittings**

- (1) This rule applies when a Judge has fixed a special sitting under rule 3.7.
- (2) If the special sitting is required to be notified but cannot be notified in a monthly Pānui, the Registrar must ensure that there is published a special Pānui giving notice of the sitting.
- (3) A special Pānui must—
- (a) be in printed form and may be in electronic form; and
  - (b) state the Court in which the special sitting will be held; and
  - (c) state the time, date, and place of the special sitting; and

- (d) contain as much of the information that is required by rule 3.13 as relates to the matter or matters to be heard at the special sitting.
- (4) Subject to the directions of a Judge, the Registrar must distribute the special Pānui to all persons interested in, or who may be materially affected by, the matter or matters to be heard at the special sitting.
- (5) Details of the special Pānui, including the information specified in rule 3.16(3), must be included in the first available monthly Pānui after the special Pānui is issued.

Compare: SR 1994/35 r 33

Rule 3.16 heading: amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.16(2): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.16(3): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.16(4): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.16(5): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **3.17 Special Pānui for scheduled sitting omitted from monthly Pānui**

- (1) This rule applies where for any reason a scheduled sitting is not included in the next monthly Pānui.
- (2) The Registrar of the Court in which the sitting is scheduled must—
  - (a) compile a special Pānui that contains as much of the information specified in rule 3.13 as relates to the sitting; and
  - (b) distribute the special Pānui in accordance with rule 3.16(4).
- (3) Details of the special Pānui must be included in the first available monthly Pānui after the special Pānui is issued in the same manner as provided in rule 3.16(3).

Rule 3.17 heading: amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.17(1): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.17(2)(a): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.17(2)(b): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.17(3): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **3.18 Chief Registrar must arrange for notification in Pānui**

The Chief Registrar must arrange for all applications received in the office of the Chief Registrar to be notified in the Pānui in accordance with rule 5.3

and for each application to continue to be so notified until it is disposed of or notified for hearing or for inquiry and report.

Rule 3.18 heading: amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.18: amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **3.19 Registrar's schedule of details of sitting**

- (1) The Registrar of the Court in each district must, following the closing date for any sitting in that Court, compile a schedule that—
  - (a) lists all applications set down for that sitting under rule 5.4, adjourned to that sitting, or otherwise set down for that sitting; and
  - (b) contains as much of the information specified in rules 3.12 to 3.15 as relates to that sitting.
- (2) The Registrar must forward the schedule to the Chief Registrar within 10 working days after that closing date.

Rule 3.19(2): amended, on 30 April 2026, by rule 10 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **3.20 Distribution of Pānui**

- (1) The Registrar of the Court in each district must compile, maintain, and regularly update a Pānui mailing list for that district.
- (2) The Chief Registrar must compile, maintain, and regularly update a Pānui national mailing list that incorporates the Pānui district mailing lists.
- (3) The Chief Registrar must distribute the Pānui to—
  - (a) all persons whose names appear in the Pānui national mailing list; and
  - (b) any other person who requests the Pānui under rule 5.8(2).
- (4) The Chief Registrar may distribute the Pānui by electronic means at the option of the recipient.
- (5) The Chief Registrar must distribute by mail or electronically sufficient copies of the Pānui to the following:
  - (a) each office of the Court:
  - (b) the Māori Trustee:
  - (c) Te Puni Kōkiri:
  - (d) Land Information New Zealand:
  - (e) other bodies representative of Māori including rūnanga, trust boards, urban Māori authorities, the Māori Women's Welfare League, and the New Zealand Māori Council.

Compare: SR 1994/35 r 35

Rule 3.20 heading: amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.20(1): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.20(2): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.20(3): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.20(3)(a): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.20(3)(b): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.20(4): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.20(5): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 3.20(5)(e): amended, on 30 April 2026, by rule 11 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## **Part 4**

### **Making an application**

#### **4.1 How proceedings begin**

- (1) Every proceeding in the Court must begin with the filing of an application in any office of the Court and in accordance with rule 4.7(1).
- (2) The following proceedings must be forwarded upon receipt to the office of the Chief Registrar without delay:
  - (a) a request under section 26B of the Act for advice or a non-binding ruling in relation to a dispute under section 182(2) of the Maori Fisheries Act 2004 (*see* rule 15.6):
  - (b) an application for the determination under section 26C of the Act of a dispute under section 182 or 187 of the Maori Fisheries Act 2004 (*see* rule 15.7):
  - (c) an application under section 26C of the Act by Te Ohu Kai Moana Trustee Limited to deny or suspend recognition of a mandated iwi organisation in accordance with section 185 of the Maori Fisheries Act 2004 (*see* rule 15.8):
  - (d) a request under section 26P of the Act for advice or a non-binding ruling in relation to an aquaculture dispute in accordance with section 54(2) of the Maori Commercial Aquaculture Claims Settlement Act 2004 (*see* rule 15.4):
  - (e) an application for the determination under section 26Q of the Act of a dispute under the Maori Commercial Aquaculture Claims Settlement Act 2004 (*see* rule 15.5):

- (f) a request under section 30(1)(a) of the Act for advice on the representation of a class or group of Māori (*see* rule 9.11):
  - (g) an application under section 30(1)(b) of the Act for determination of the representation of a class or group of Māori (*see* rule 9.11):
  - (h) an application under section 45 of the Act to the Chief Judge for the correction of a mistake or an omission (*see* rule 8.2):
  - (i) notice of an appeal under section 58 of the Act (*see* rule 8.8):
  - (j) an application for leave to appeal out of time (*see* rule 8.14):
  - (k) notice of an appeal under section 71 of the Plant Variety Rights Act 2022 (*see* rule 15.26):
  - (l) an application for leave to appeal against a decision of the Māori Plant Varieties Committee out of time (*see* rule 15.30).
- (3) *See* rule 5.3 for requirements for notifying applications listed in rule 4.1(2)(a) to (h).

Rule 4.1(1): replaced, on 30 April 2026, by rule 12(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 4.1(2): amended, on 30 April 2026, by rule 12(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 4.1(2)(k): inserted, on 30 April 2026, by rule 12(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 4.1(2)(l): inserted, on 30 April 2026, by rule 12(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 4.1(3): inserted, on 30 April 2026, by rule 12(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## 4.2 Form of application or other proceeding

- (1) An application or other proceeding must be filed by using the appropriate form set out in Schedule 1.
- (2) The general form of application (*see* form 1) must be used if these rules do not require a specific form to be used.
- (3) The form must be—
  - (a) completed as indicated on the form; and
  - (b) signed by the applicant or party bringing the proceeding, or by that person's solicitor on his or her behalf.
- (4) The Court must provide the form in English, and may also provide the form in Māori or a combination of Māori and English.
- (4A) The applicant or party bringing the proceeding may complete the form, and provide any documents or information accompanying it, in Māori or English or a combination of Māori and English.
- (5) The application or other proceeding must—

- (a) comply with the specific requirements of the Act and these rules relating to the type of application or other proceeding in question; and
- (b) be accompanied by the documents or information that are required by these rules.

Rule 4.2(1): amended, on 30 April 2026, pursuant to rule 90 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 4.2(4): replaced, on 30 April 2026, by rule 13 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 4.2(4A): inserted, on 30 April 2026, by rule 13 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **4.3 How forms may be used**

- (1) A form that must or may be used under these rules may be amended to fit the circumstances of a particular case.
- (2) The Court may provide reformatted versions of the forms for general use and to be received for filing (for example, versions with different type sizes or fonts or that reposition information or notes).

Compare: SR 1994/35 r 5

Rule 4.3(2): inserted, on 30 April 2026, by rule 14 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **4.4 Valuation**

Unless the context requires otherwise, a requirement under these rules that a valuation be filed means,—

- (a) if a special valuation is stipulated, that a special valuation must be filed, unless an exemption from filing a special exemption has been granted; or
- (b) if a special valuation is not stipulated, that a special valuation or a roll valuation must be filed.

#### **4.5 Details or evidence of whakapapa must be filed in certain cases**

Unless the Court orders otherwise for reasons of confidentiality, the applicant in the following proceedings must file with the application sufficient details or evidence of whakapapa:

- (a) a proceeding in which the claim before the Court or the jurisdiction of the Court to decide the proceeding is founded on relationship through whakapapa:
- (b) a proceeding in which the Court is required to determine whether any specified person is a Māori or the descendant of a Māori:
- (c) a proceeding in which the Court is required to determine whether any person is a member of any of the preferred classes of alienees specified in section 4 of the Act:

- (d) a proceeding for determining questions of succession under Part 4 of the Act;
- (e) an application under section 151 of the Act for confirmation of an alienation of an interest in Māori freehold land where an alienee claims to be a member of the preferred classes of alienees;
- (f) an application for a vesting order under section 164 of the Act;
- (g) an application for an exchange order under section 310 of the Act.

#### **4.6 Plan of land must be filed in certain cases**

- (1) The applicant in the following proceedings must file a plan of land:
  - (a) a proceeding where a plan of land is necessary for understanding the nature and effect of the application;
  - (b) an application under section 24 of the Act for relief against encroachment;
  - (c) an application for a partition order under Part 14 of the Act;
  - (d) an application for the grant, cancellation, or variation of an easement under section 315 or 315A of the Act;
  - (e) an application for an order laying out a roadway under section 316 of the Act;
  - (f) an application for an order of reasonable access to landlocked Māori land under section 326B of the Act;
  - (g) an application for an occupation order under section 328 of the Act;
  - (h) an application for an order by the Court under section 338 of the Act that a Māori reservation be set apart.
- (2) The plan must, if the application relates to part of a block of land, show the location of that part within the block and its dimensions.
- (3) In any proceeding where a plan of land has been filed, the Judge may direct that a better or more comprehensive plan be filed.

Rule 4.6(1)(h): amended, on 30 April 2026, by rule 15(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 4.6(2): replaced, on 30 April 2026, by rule 15(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **4.7 How proceeding must be filed**

- (1) An application or other document must be filed—
  - (a) in hard copy form by delivery or post to an office of the Court; or
  - (b) in electronic form, by means of an electronic communication, to the official electronic address of an office of the Court; or
  - (c) on an Internet site maintained by the Court.



- (2) A Judge may direct that the original of any document filed under rule 4.7(1)(b) or (c) must be lodged in the office of the Court.
- (3) The Court may, without notice, dismiss any proceeding where a direction under rule 4.7(2) has not been complied with.

Rule 4.7: replaced, on 30 April 2026, by rule 16 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **4.8 Time when document filed**

- (1) An application or other document in hard-copy form is filed in an office of the Court when, during the Court's normal opening hours, it is actually received at the office of the Court.
- (2) An application or other document in electronic form is filed in an office of the Court—
  - (a) when it is received during the Court's normal opening hours by the Court's electronic information system; or
  - (b) if it is received by the Court's electronic information system outside the Court's normal opening hours, at 10 am on the next working day.
- (3) However, a document must be treated as not having been filed if the Registrar refuses to accept it under rule 4.10.

#### **4.9 Filing fees**

- (1) If an application fee is payable, the application must be accompanied by the fee or an application must be made to reduce or remit the fee.
- (2) *See* regulation 7, and the Schedule, of the Māori Land Court Fees Regulations 2013.

Rule 4.9(1): amended, on 30 April 2026, by rule 17(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 4.9(2): inserted, on 30 April 2026, by rule 17(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **4.10 Registrar may refuse to accept proceeding or other document for filing**

- (1) A Registrar may refuse to accept for filing a proceeding or other document for any of the following reasons:
  - (a) it is illegible:
  - (b) if in electronic form, it cannot be opened:
  - (c) it does not comply with a requirement of these rules:
  - (d) it is not in the correct form:
  - (e) it is not accompanied by the prescribed fee:
  - (f) it is not accompanied by other information or documents required by these rules to be filed with it.

- (2) The Registrar must advise the person filing the proceeding or other document that it is refused and must state the reason for the refusal.
- (3) The party or person filing a proceeding or other document that has been refused for filing by the Registrar may apply in writing for the review of the Registrar's decision by a Judge, and a Judge must then determine the matter.

#### **4.11 Proceeding brought by minor**

- (1) A proceeding brought by a minor must be brought on the minor's behalf by a next friend who is not a person under any legal disability and whose interests are not adverse to or in conflict with those of the minor.
- (2) An application for the appointment of a next friend may be made—
  - (a) in writing in form 1; or
  - (b) orally in court.
- (3) A Judge may decline to make an appointment if the Judge is not satisfied that the proposed next friend has the capacity and ability to properly represent the minor.
- (4) The provisions of these rules relating to notice and notification in the Pānui do not apply to an application for the appointment of a next friend.
- (5) A next friend who brings a proceeding on behalf of a minor must complete and file—
  - (a) the proceeding in the name of the minor; and
  - (b) an undertaking in form 2 to pay any costs ordered against the minor that the minor fails to pay.
- (6) On the minor attaining the age of 18 years, the former minor may elect to continue the proceeding by—
  - (a) filing a written notice of election to continue the proceeding; and
  - (b) serving a copy of the notice on each of the other parties to the proceeding and on the next friend.
- (7) An election by a person under rule 4.11(6) frees the next friend from any liability for costs in the proceeding incurred after the election is made.
- (8) If the minor does not make an election when entitled under rule 4.11(6), the next friend may seek the leave of the Court to discontinue the proceeding.

Rule 4.11(2)(b): amended, on 30 April 2026, by rule 18 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 4.11(4): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### *Notice and service*

#### **4.12 Interpreting rules relating to notice**

- (1) The following rules relating to notice—

- (a) have the purpose of informing owners of Māori land and other parties materially affected of a proceeding under these rules and all stages of it; and
  - (b) recognise the difficulty in some cases of informing all the owners of Māori land owned by multiple owners; and
  - (c) must be interpreted in the light of rule 4.12(1)(a) and (b).
- (2) A proceeding, or an order made in a proceeding, under these rules is not invalid merely because an owner of Māori land or other party materially affected has not been given notice of the proceeding or any step in the proceeding.

Rule 4.12(1)(c): amended, on 30 April 2026, by rule 19 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **4.13 Application must be notified to other parties and persons materially affected**

- (1) The applicant must notify the application to every person named in the application as a party and any other person materially affected by service on that person.
- (2) Service must be made in accordance with rules 4.15 and 4.22.
- (3) However, service by an applicant is not required—
- (a) in relation to any person who consents in writing and without conditions to the granting of the application, unless a Judge directs that the person must be served; or
  - (b) to the extent that a Judge directs otherwise; or
  - (c) to the extent that any of the exceptions to notice and service in rules 4.14, 4.19, and 4.20 apply.

#### **4.14 Exceptions to requirement of notice**

- (1) Notice of an application under rule 4.13 is not required if,—
- (a) under these rules, the application can be made or heard without a formal hearing or notice; or
  - (b) the application is an application to which rule 4.19(1) applies; or
  - (c) the application is subject to specific rules that exclude or modify the provisions of this rule (*see* rules 4.20 and 6.4); or
  - (d) a Judge is satisfied that—
    - (i) there are special or urgent circumstances that require that notice need not be given; or
    - (ii) notice would cause undue delay or other serious detriment to the applicant; or
    - (iii) the application concerns and affects only the applicant and does not affect the interests of any other person; or

- (iv) the application is a matter of routine; or
  - (v) the person in respect of whom the application is made cannot be found.
- (2) A Judge may direct that an affidavit or a declaration be filed in support of the application.
- (3) The Court may, in dealing with an application for which notice is not required, exercise any of its powers under these rules, make any direction, or adopt any procedure that is necessary for appropriately dealing with the application and for satisfying the principles of natural justice.
- (4) A Judge may direct that an order made without notice must be served on the persons specified by the Judge.

#### **4.15 What documents must be served**

- (1) The applicant must serve on each person who must be served—
  - (a) a copy of the application and any supporting documents; and
  - (b) a notice to accompany service in form 3 duly completed.
- (2) However, if the persons who must be served are persons materially affected and are not named as a party to the application, the applicant may as an alternative to compliance with rule 4.15(1) serve those persons with a notice of application in form 4.
- (3) The applicant must without delay, on request by a person served with a notice of application in form 4, supply that person with a copy of the application and any supporting documents.
- (4) If a Judge or Registrar considers it appropriate, the Court may serve the documents under rule 4.15(1) in place of the applicant.

Rule 4.15(4): inserted, on 30 April 2026, by rule 20 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **4.16 Directions as to notice or service**

- (1) An applicant may apply for directions from the Court as to any aspect of notice or service.
- (2) A Judge or a Registrar may give directions as to notice or service, except where these rules require or envisage that the directions be given by a Judge.
- (3) An applicant must apply for directions from a Judge if the applicant is unable, after making proper inquiry, to establish the addresses of a significant proportion (judged according to the nature of the application) of the persons who must be served.
- (4) If a person has obtained directions from a Registrar and is dissatisfied with them, that person may require that the directions be reviewed by a Judge.

#### **4.17 Examples of directions by Judge as to notice or service**

- (1) Without limiting the general power of a Judge to give directions, a Judge may give the following directions:
  - (a) in the case of an interlocutory application made without notice under rule 4.19, a direction that the application must be made on notice and served:
  - (b) a direction that an application must be served on the appropriate marae komiti or trustees, rūnanga, or other body representative of Māori:
  - (c) a direction that takes into account any notice given or consents obtained as part of any consultation under rule 4.21:
  - (d) directions as to notice in the media.
- (2) A Judge may in any event give directions—
  - (a) in addition to the requirements of rule 4.15:
  - (b) waiving or amending those requirements:
  - (c) substituting other requirements for notice and service as the Judge thinks fit.

#### **4.18 Notice to objecting owner of Māori land**

- (1) This rule applies if an owner of Māori land, in the course of consultation, had objected to an application or voted against it at any meeting.
- (2) The applicant must serve, in accordance with rule 4.13, notice on that Māori land owner of the time, date, and place of the hearing of the application.

Rule 4.18(2): amended, on 30 April 2026, by rule 21 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **4.19 Specific applications that do not require notification to other parties, notification in Pānui, nor appearance by applicant**

- (1) Subject to a direction by the Court or the Registrar otherwise, the applications set out in rule 4.19(2) may be considered and determined without notice in the Pānui (except to the extent that it must be notified under rule 6.6), without notice to any party, and without any appearance by the applicant.
- (2) Rule 4.19(1) applies to the following applications:
  - (a) an application under section 25 of the Act (application for order to restore effect of lost instrument of alienation) if rule 9.10(4) applies:
  - (b) an application under section 43 of the Act (application for rehearing) if rule 8.1(3) applies:
  - (c) an application under section 59 of the Act (application for leave to appeal from provisional or preliminary determination) that complies with rule 8.13:
  - (d) amendment of an order under section 86 of the Act (*see* rule 7.10):

- (e) an application under section 87 of the Act (application to amend name of land owner):
- (f) an application under section 98 of the Act for payment from the Special Aid Fund (*see* rules 16.1 and 16.6):
- (g) an application under section 111 of the Act (application to vest interest of deceased Māori in General land) that complies with rule 10.6:
- (h) an application under section 112 of the Act (application for transmission of Māori land to administrator) that complies with rule 10.10:
- (i) an application under section 113 of the Act (application for succession) if rule 10.8 or 10.9 applies:
- (j) an application under section 128 of the Act (application for declaratory consolidated order) if rule 14.3(2) applies:
- (k) an application under section 131 of the Act (application for order to determine status of land) if notification is not required under rule 14.2(2):
- (l) an application by consent under section 133 of the Act (application for change of status from General land to Māori freehold land) if rule 11.1(2) applies:
- (m) an application under section 158 of the Act (application for exemption from providing special valuation) that complies with rule 11.4:
- (n) an application under section 173 of the Act (application to call meeting of owners) that complies with rule 11.17:
- (o) an application under section 183 of the Act (application to appoint agent of owners) to which section 182(3) of the Act applies:
- (p) an application under section 242 of the Act (application for order for payment of money held in trust) that complies with rule 12.9:
- (q) an application under rule 4.11 (application for the appointment of a next friend):
- (r) an application under rule 6.11 (adjournment to another district):
- (s) dismissal or reinstatement of an application under rule 6.28:
- (t) an urgent application for an interim injunction where rule 9.6(3) applies:
- (u) an application for cancellation of an injunction where rule 9.9(2) applies:
- (v) an application under rule 10.11 (application for transmission of joint tenancy by survivorship or for termination of a life interest):
- (w) an application to replace or remove a trustee on death or resignation (*see* rule 12.8(2)).

Rule 4.19 heading: amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 4.19(1): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 4.19(2)(w): amended, on 30 April 2026, by rule 22 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **4.20 Proceedings in which general rules as to service and notice excluded or modified**

The following rules exclude or modify the general rules as to notice and service:

- (a) rule 8.2 (application to Chief Judge under section 45 of the Act):
- (b) rule 8.10 (notification of appeal):
- (c) rule 9.3 (notification and service of civil application):
- (d) rule 9.5 (application for injunction):
- (e) rule 9.11 (application for advice on or determination of representation of Māori groups):
- (f) rule 9.12 (application to appoint receiver):
- (g) rule 10.4 (notice of application for succession):
- (h) rule 10.6 (application to vest interest of deceased Māori in General land):
- (i) rule 10.9 (order in respect of further land interests):
- (j) rule 11.20 (application for confirmation of resolution of assembled owners):
- (k) rule 11.21 (application for confirmation of resolution passed at family gathering):
- (l) rule 11.24 (application for exchange order):
- (m) rule 12.1 (application to constitute trust):
- (n) rule 13.2 (application for partition order):
- (o) rule 13.10 (application for easement or roadway: directions and notice):
- (p) rule 13.15 (application for occupation order):
- (q) rule 15.4 (request for advice or non-binding ruling in relation to aquaculture dispute):
- (r) rule 15.5 (application for determination of aquaculture dispute):
- (s) rule 15.6 (request for advice or non-binding ruling in relation to fisheries dispute):
- (t) rule 15.7 (application for determination of fisheries dispute):
- (u) rule 15.8 (application by Te Ohu Kai Moana Trustee Limited).

#### **4.21 Responsibility of applicant as to sufficiency of notice, etc**

- (1) This rule applies when, on an application under the Act or these rules, the Court must be satisfied as to any or all of the following matters:

- (a) that sufficient notice of the application has been given to the owners of the Māori land in question;
  - (b) that there has been a sufficient opportunity for the owners of the Māori land to discuss and consider the application;
  - (c) that there is a sufficient degree of support for the application among the owners of the Māori land.
- (2) It is the responsibility of the applicant to satisfy the Court as to the matters referred to in rule 4.21(1).
- (3) A Judge, if an applicant has failed to satisfy the Court as to the matters referred to in rule 4.21(1), may—
  - (a) direct the applicant or the Registrar to call a meeting of the owners of the Māori land to discuss and consider the application; and
  - (b) make such other directions to address the matter as the Judge thinks fit; and
  - (c) direct that the meeting be held immediately before the hearing of the application or during any adjournment of that hearing.
- (4) The notice calling the meeting must, unless a Judge directs otherwise, include a brief description of the nature of the application and a copy of any plan or other diagram filed in support of the application.

#### **4.22 Method of service**

- (1) A proceeding, notice, or other document that must be served on a person under the Act or these rules may be served in any of the following ways:
  - (a) by personal service; or
  - (b) if the person to be served or the applicant has provided or filed a contact address for themselves that indicates a means of communication (for example, email or post), by that means; or
  - (c) if the person to be served or the applicant has not provided or filed a contact address, by post or email addressed to their usual or last known residence, place of business, or email address.
- (2) However, rule 4.22(1) does not apply to the extent the Act, these rules, or a direction of the Court requires that service be made by way of personal service.
- (3) In the case of service by post under rule 4.22(1), service is treated as being made on the date that the proceeding, notice, or other document would have been received by the person to be served in the normal course of the post, whether that person actually received it or not.
- (3A) In the case of service by email under rule 4.22(1), service is to be treated as—
  - (a) dispatched at the time the electronic communication first enters an information system outside the control of its originator; and
  - (b) received,—



- (i) in the case of a party or person being served who has designated an information system for the purpose of receiving electronic communications, at the time the electronic communication enters that information system:
  - (ii) in any other case, at the time the electronic communication comes to the attention of the party or person being served, or the solicitor or other agent of that party or person.
- (3B) When a proceeding, notice, or other document is sent by email on a day that is not a working day, or after 5 pm on a working day, it must be treated as served on the first subsequent working day.
- (3C) Rule 4.22(3A) and (3B) applies whether or not the person actually receives the email.
- (3D) When a proceeding, notice, or other document is served electronically under this rule, the party or person served must, as soon as is reasonably practicable after receiving it, give to the person who served it, or that person's solicitor or agent, an acknowledgement in writing—
  - (a) that it has been received; and
  - (b) of the date and time of receipt.
- (4) A person who files or serves a document by electronic communication is taken to have provided or filed, for the purposes of rule 4.22(1)(b) or (c), the sender's email address as a contact address that may be used by the Registrar or any other person involved in the proceedings.
- (5) In this rule, **information system** means a system for producing, sending, receiving, storing, displaying, or otherwise processing electronic communications.

Compare: SR 1994/35 r 20

Rule 4.22(1)(b): replaced, on 30 April 2026, by rule 23(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 4.22(1)(c): replaced, on 30 April 2026, by rule 23(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 4.22(3): amended, on 30 April 2026, by rule 23(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 4.22(3A): inserted, on 30 April 2026, by rule 23(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 4.22(3B): inserted, on 30 April 2026, by rule 23(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 4.22(3C): inserted, on 30 April 2026, by rule 23(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 4.22(3D): inserted, on 30 April 2026, by rule 23(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 4.22(4): amended, on 30 April 2026, by rule 23(4)(a) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 4.22(4): amended, on 30 April 2026, by rule 23(4)(b) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 4.22(4): amended, on 30 April 2026, by rule 23(4)(c) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 4.22(4): amended, on 30 April 2026, by rule 23(4)(d) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 4.22(5): inserted, on 30 April 2026, by rule 23(5) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## Part 4A

### Mediation

Part 4A: inserted, on 30 April 2026, by rule 24 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### 4A.1 Application of Part

- (1) This Part applies to all matters over which the Māori Land Court has jurisdiction except for the following matters:
  - (a) a matter to which section 26B or 26C of the Act applies (which relates to the Maori Fisheries Act 2004):
  - (b) a matter to which section 26P or 26Q of the Act applies (which relates to the Maori Commercial Aquaculture Claims Settlement Act 2004):
  - (c) a matter to which section 30(1) of the Act applies (which relates to the Court's jurisdiction to advise on or determine the most appropriate representatives of a class or group of Māori).
- (2) Nothing in this Part affects or is affected by rule 6.27A or 6.27B relating to judicial settlement conferences.
- (3) See Part 3A of the Act, which sets out the Court's dispute resolution jurisdiction.

Rule 4A.1: inserted, on 30 April 2026, by rule 24 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### 4A.2 Interpretation

In this Part, unless context otherwise requires,—

**chief executive** means the chief executive of the Ministry of Justice

**dispute** means any disagreement between 2 or more people regarding an issue in a matter to which this Part applies, whether or not proceedings have been filed or are contemplated

**list of mediators** means the list of mediators recorded and maintained by the chief executive under rule 4A.4

**mediator** means—

- (a) 1 mediator; or
- (b) if 2 mediators are—

- (i) nominated, both of them:
- (ii) appointed, both mediators acting together

**people** means any person, group, or body of persons (incorporated or unincorporated).

Rule 4A.2: inserted, on 30 April 2026, by rule 24 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **4A.3 Referral to mediation at request of party**

- (1) A party to a proceeding may request a Judge to refer a dispute to a mediator under section 98L(1) of the Act.
- (2) A request under rule 4A.3(1) may be made orally in court or using form 4A.
- (3) A party to a dispute for which proceedings have not been commenced may apply to the Registrar to refer a dispute to a mediator under section 98L(2) of the Act.
- (4) A request under rule 4A.3(3) must be in form 4A.
- (5) *See* section 98L of the Act which also allows the referral of disputes to mediation at a Judge's initiative.

Rule 4A.3: inserted, on 30 April 2026, by rule 24 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **4A.4 List of mediators available for appointment**

- (1) The chief executive must record and maintain a list of persons who are available to be appointed as mediators, being—
  - (a) Judges available to act as mediators under rule 4A.5; and
  - (b) persons who are approved to be mediators under rule 4A.6.
- (2) The list of mediators must be—
  - (a) held by the Chief Registrar; and
  - (b) available for inspection by the public.

Rule 4A.4: inserted, on 30 April 2026, by rule 24 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **4A.5 Availability of Judge to act as mediator**

- (1) The chief executive must consult with the Chief Judge at least annually as to which Judges are available to be appointed as mediators.
- (2) A Judge available to be appointed as a mediator must be included in the list of mediators.

Rule 4A.5: inserted, on 30 April 2026, by rule 24 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **4A.6 Approval of person who is not Judge to be listed as mediator**

- (1) The chief executive may approve a person to be included in the list of mediators if the person—

- (a) has the skills and experience to mediate the issues they are likely to have referred to them; and
  - (b) is not a Judge.
- (2) When considering whether a person has the skills and experience to be included in the list of mediators, the chief executive may have regard to any relevant professional standards for mediators and the ability of the person to conduct a mediation in the Māori language or in accordance with tikanga Māori.

Rule 4A.6: inserted, on 30 April 2026, by rule 24 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **4A.7 Appointment of mediator from list of mediators**

- (1) On receipt of a referral to mediation from a Judge or Registrar, the office of the Court must—
  - (a) contact all parties to the mediation by email or letter; and
  - (b) provide the list of mediators to the parties, but not include any Judge hearing the proceeding in which the dispute has arisen; and
  - (c) seek the parties' agreement to the appointment of a mediator.
- (2) The parties to a dispute may notify the Registrar that they—
  - (a) agree to appoint a mediator from the list of mediators; or
  - (b) agree to appoint a mediator under rule 4A.8.
- (3) If the parties cannot agree on the appointment of a mediator, the Judge or Registrar who referred the issue to mediation must—
  - (a) consult with the parties; and
  - (b) appoint a mediator.
- (4) If the parties agree to appoint a mediator under rule 4A.7(2) from the list of mediators or a Judge or Registrar indicates an intention to appoint a mediator under rule 4A.7(3), the office of the Court must—
  - (a) contact that mediator and confirm their availability to mediate the dispute; and
  - (b) if the mediator is available, confirm their appointment as a mediator; and
  - (c) notify the parties that the appointment has been confirmed.

Rule 4A.7: inserted, on 30 April 2026, by rule 24 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **4A.8 Approval of mediator not on list of mediators**

- (1) Despite rule 4A.7, the parties to a dispute or the Judge or Registrar who referred the issue to mediation may agree to appoint or indicate an intention to appoint (respectively) a person to act as mediator who is not on the list of mediators under section 98M of the Act if the requirements of that section are met.

- (2) The office of the Court must then contact that mediator and confirm their availability to mediate the dispute.
- (3) If the nominated mediator confirms their availability to mediate the dispute,—
  - (a) if the appointment of the mediator was agreed by the parties, the Judge or Registrar who referred the issue to mediation and the chief executive may approve the appointment; or
  - (b) if a Judge or Registrar indicated an intention to appoint the mediator, the Judge or Registrar may confirm that appointment if the chief executive also approves the appointment.
- (4) In approving the appointment of a mediator under rule 4A.8(3), the chief executive must consider whether the nominated mediator has the skills and experience to be approved as a mediator and, in doing so, may have regard to any relevant professional standards for mediators and the ability of the nominated mediator to conduct a mediation in the Māori language or in accordance with tikanga Māori.
- (5) If the nominated mediator is approved, the office of the Court must confirm that appointment with the mediator and the parties to the dispute.
- (6) If the nomination is not approved, a mediator may be appointed under rule 4A.7.

Rule 4A.8: inserted, on 30 April 2026, by rule 24 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### 4A.9 Conduct of mediator

- (1) A mediator who is appointed under this Part, and who is not a Judge, must act in a professional and ethical manner in accordance with relevant professional standards.
- (2) For the purposes of this rule, **acting in a professional and ethical manner** includes—
  - (a) acting in an impartial and fair manner; and
  - (b) actively disclosing conflicts of interest or matters that may result in a perception that the mediator lacks independence; and
  - (c) preserving the integrity of the mediation process including maintaining confidentiality and parties' privacy.

Rule 4A.9: inserted, on 30 April 2026, by rule 24 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### 4A.10 Withdrawal from mediation

- (1) A party to a mediation may withdraw from the process by following rule 4A.10(2) to (5).
- (2) A party who intends to withdraw from mediation must, before doing so, notify the mediator of their intention (and, in the event of 2 mediators acting together, notice need only be given to one of the mediators).

- (3) The mediator must, without delay, inform the Judge or Registrar who referred the dispute to mediation that the party has notified them they intend to withdraw from that mediation.
- (4) The mediator may, on notification of a party's intention to withdraw from mediation, meet with the party or other parties to discuss that intention.
- (5) A party who is withdrawing from a mediation must advise the mediator (and, in the event of 2 mediators acting together, advice need only be given to one of the mediators) that they confirm they withdraw from the mediation, either—
  - (a) following any mediation hui held in accordance with rule 4A.10(4); or
  - (b) if no mediation hui is scheduled or held, at any time.
- (6) The mediator must notify the Judge or Registrar that referred the dispute to mediation that—
  - (a) a party has withdrawn from mediation; and
  - (b) the dispute remains unresolved.

Rule 4A.10: inserted, on 30 April 2026, by rule 24 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **4A.11 Mediator reports**

- (1) A mediator must provide to the Registrar—
  - (a) a written report following every mediation hui at which substantive matters are mediated; or
  - (b) if multiple hui are convened to discuss a particular issue, a written report at the conclusion of that series of hui.
- (2) A mediation report under rule 4A.11(1) must include the following information:
  - (a) the date or dates of each mediation hui:
  - (b) the venue or venues of each mediation hui:
  - (c) details of who attended each mediation hui:
  - (d) the duration of each mediation hui:
  - (e) whether each mediation hui was held in person, via teleconference, or via video conference.
- (3) If a dispute is resolved by agreement, the mediator's final report—
  - (a) must include the terms of the resolution agreed by the parties; and
  - (b) must include a declaration from the mediator that they consider that the dispute was resolved in compliance with section 98I(b) and (c) of the Act; and
  - (c) may include the mediator's recommendations for any order, direction, or other action from the Court to give effect to the resolution.
- (4) If a dispute is not resolved, the mediator's final report—

- (a) must, in the case of a dispute for which proceedings have been commenced, include a statement of the issues that are unresolved; and
  - (b) may, in the case of a dispute for which proceedings have not been commenced, include a statement of issues that are unresolved if the parties agree to that inclusion; and
  - (c) may include, if the parties agree, any other relevant information that the mediator considers beneficial to record, including any areas of agreement reached by the parties.
- (5) The Registrar may provide a report under rule 4A.11(1) to a Judge presiding over any further step in the proceeding or a relevant proceeding that is subsequently filed, including for the purpose of a substantive hearing of the proceeding.
- (6) All reports provided under this rule relating to any dispute for which proceedings have been commenced or that form a part of a proceeding commenced in the future are part of the permanent record.
- (7) All other information produced or provided in writing or orally only for the purpose of mediation is not admissible and does not form a part of the permanent record unless agreed to by the parties participating in the mediation.

Rule 4A.11: inserted, on 30 April 2026, by rule 24 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **4A.12 Post-mediation steps**

- (1) If a dispute that was referred to a mediator is resolved by agreement, the mediator's report filed under rule 4A.11 and any recommendations for orders to be made by the Court must be referred to a Judge, and the Judge may make any orders necessary to implement the agreement if the Judge is satisfied that the granting of those orders is in accordance with the matters set out in section 98I(b) and (c) of the Act.
- (2) If a dispute that was referred to a mediator following a request under section 98L(2) of the Act is not resolved, any party may make an application under section 98R(2).
- (3) The application must be filed within 90 working days of receipt of the mediator's report.
- (4) If no application is filed within the period specified in rule 4A.12(3), the Registrar may treat the dispute as having been concluded.
- (5) Nothing in rule 4A.12(4) affects a party to a dispute's ability to commence proceedings relating to that dispute at any time.

Rule 4A.12: inserted, on 30 April 2026, by rule 24 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## Part 5

### Setting applications down for hearing

#### 5.1 Registrar must set application down for hearing

- (1) The Registrar of the Court in which an application is filed must—
  - (a) set the application down for an initial hearing in that Court; or
  - (b) if in accordance with rule 5.1(2) or 5.2 the application must be set down in another Court, transfer the application to that Court.
- (2) An application must, except when it is set down for hearing under rule 5.2, be set down for an initial hearing—
  - (a) in the Court in the district in which there is situated some or all of the land that is the subject of the application; or
  - (b) if the application does not relate to land, in the Court that a Judge directs as the most appropriate.
- (3) The Registrar of the Court in which the application is set down must notify the hearing in the appropriate Pānui.
- (4) Where hearings in a district are conducted at separate venues according to regions or rohe, an application must be first advertised in the Pānui for the region or rohe where the land or the subject matter of the application is situated.

Compare: SR 1994/35 r 16

Rule 5.1(3): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 5.1(4): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### 5.2 Rules that apply to setting down in certain cases

- (1) This rule applies to the following applications and modifies rule 5.1 in respect of those applications:
  - (a) an application under Part 4 of the Act (which relates to the administration of estates):
  - (b) an application under section 214 of the Act to constitute a whānau trust:
  - (c) an application under section 217 of the Act to constitute a kai tiaki trust:
  - (d) an application under section 239 of the Act to add to or reduce the number of trustees, or to replace 1 or more of the trustees, for a whānau trust or kai tiaki trust (*see* sections 214 and 217 of the Act, respectively).
- (2) An application to which this rule applies may be set down for hearing in the Court in which it is filed or the Court requested by the applicant for hearing if—



- (a) sufficient details to inform interested persons of the application, the Court in which it is set down, and the time, date, and place of hearing are at the same time notified in the Pānui under the Court in the district in which most of the land that is affected by the application is situated; and
  - (b) the notification is in accordance with rule 5.2(3).
- (3) For the purposes of rule 5.2(2)(b), the notification must—
  - (a) appear under the heading “Applications for succession, whānau trust or kai tiaki trust to be heard in other Court districts”; and
  - (b) contain the following explanatory statement: “The following applications affecting land in this district will be heard under rule 5.2 of the Māori Land Court Rules 2011 in the Court districts notified below”.
- (4) A Judge must not make an order on an application that has been set down for hearing in accordance with this rule unless the Judge is satisfied, having regard to the nature and circumstances of the application, that there has been appropriate notice or consultation with members of the whānau affected by the application.

Rule 5.2(1)(b): amended, on 30 April 2026, by rule 25(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 5.2(1)(d): inserted, on 30 April 2026, by rule 25(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 5.2(2)(a): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 5.2(3)(a): amended, on 30 April 2026, by rule 25(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 5.2(4): amended, on 30 April 2026, by rule 25(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **5.3 Notification of applications that must be forwarded to Chief Registrar**

- (1) The applications and requests referred to in rule 4.1(2)(a) to (h), which must be forwarded to the office of the Chief Registrar, must each be notified in the next available Pānui and in all following Pānui until the application is disposed of or notified for hearing or for inquiry and report.
- (2) Those applications must be notified—
  - (a) under the heading “Applications forwarded to the office of the Chief Registrar”; and
  - (b) in each case, under a subheading stating the section under which the application is filed.
- (3) The notification must specify, in each case, the date the application was filed.

Rule 5.3: replaced, on 30 April 2026, by rule 26 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **5.4 Registrar must fix time, date, and place of hearing**

- (1) The Registrar of the Court in which an application is filed must—

- (a) fix the time, date, and place for hearing the application and do so no later than 3 months after receipt of the application and all supporting documents required under these rules or as directed by a Judge; and
  - (b) set the hearing down for that time, date, and place.
- (1A) However, rule 5.4(1) does not apply if otherwise directed by a Judge, or the Act or these rules provide otherwise.
- (2) The place of initial hearing must be in accordance with rule 5.1(2) or 5.2.
- (3) The hearing must be set down for a date that falls in the first appropriate regular sitting of the Court after the closing date of the next available Pānui.
- (4) The Registrar must refer an interlocutory application made without notice to a Judge as soon as practicable, unless the application can be dealt with by the Registrar.

Rule 5.4(1): replaced, on 30 April 2026, by rule 27 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 5.4(1A): inserted, on 30 April 2026, by rule 27 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 5.4(3): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## **5.5 Direction of Chief Judge required for setting down certain proceedings**

The following proceedings must be set down for hearing in accordance with a direction of the Chief Judge (or the Deputy Chief Judge acting with the authority of the Chief Judge):

- (a) an appeal:
- (b) an application or request referred to in rule 4.1(2)(a) to (h).

Rule 5.5(b): replaced, on 30 April 2026, by rule 28 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## **5.6 Registrar must assemble file to assist Court**

- (1) As soon as practicable after an application is filed, the Registrar must undertake a search of the Court records and place on the file as much of the following information or material as the Registrar, having regard to the nature of the application, considers will assist the Court:
- (a) details of title and ownership of land that is affected by the application, including memorial schedules and historical records:
  - (b) current land transfer searches of land affected by the application:
  - (c) minutes of the Court:
  - (d) derivational searches.
- (2) The Registrar must then without delay give the file to the Judge hearing the application together with any plans, documents, and other files relating to the application.

- (3) If an application questions the integrity of the records of the Court, the Registrar must—
- (a) compile a report, for inclusion in the file, that addresses the issue of the integrity of the Court records in question; and
  - (b) incorporate any details from the Court title record that are necessary to compile the report.
- (4) A Judge may make directions modifying the requirements of this rule.
- Compare: SR 1994/35 r 17(2)

### **5.7 Registrar's duty to advance application**

The Registrar, acting in accordance with these rules and any direction given by a Judge, must deal with an application so that it is processed and heard as expeditiously as possible.

### **5.8 Notice of hearing**

- (1) The Registrar must send written notice of the time, date, and place of the hearing of an application to the following persons:
- (a) the applicant;
  - (b) each other party;
  - (c) at the discretion of the Registrar, but subject to any direction by a Judge, any person appearing on the face of the application to be materially affected by it;
  - (d) any person who has filed a notice of intention to appear at the hearing;
  - (e) any person who has notified the Court of his or her interest in the application;
  - (f) the solicitor on the record for any party.
- (2) Each notice must contain advice that the recipient is entitled to ask for a copy of the Pānui in which the hearing is notified, and the Registrar must without delay send a copy of that Pānui to any person who requests it.
- (3) Notice may be given by—
- (a) ordinary post; or
  - (b) any of the means specified for service in rule 4.22.

Compare: SR 1994/35 r 26

Rule 5.8(2): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **5.9 Notice of intention to appear**

- (1) Any person who is not named as a party to an application and who wishes to appear and be heard in connection with an application must file in the Court and serve on the applicant a notice of intention to appear that complies with rule 5.9(2).

- (2) The notice must—
  - (a) be in form 5; and
  - (b) state whether the person supports or opposes the application; and
  - (c) state the grounds for supporting or opposing the application; and
  - (d) be given not later than 5 working days before the application is to be heard.
- (3) The Court, in awarding costs in the application, may take into account a failure to file and serve a notice of intention to appear.

Compare: SR 1994/35 r 36

#### **5.10 Notice and service**

- (1) Notice or service may be given to or effected on any person or party in accordance with rule 4.22.
- (2) The Court may require that evidence of notice or service be produced to the Court, including, where notice or service is by electronic communication, a copy of the electronic record establishing the time and date of the notice or service and the address of the recipient.
- (3) Where any time is fixed for notice to be given or service effected, a Judge may extend or shorten that time on such terms (if any) as the Judge thinks fit.

Rule 5.10(2): amended, on 30 April 2026, by rule 29 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **5.11 Outstanding applications**

- (1) The Registrar of the Court in each district must as soon as practicable prepare a quarterly schedule for the last day in February, May, August, and November—
  - (a) listing the applications that were filed in that Court 6 months or more before the date of the schedule and that have not been finally determined; and
  - (b) containing the following information for each of those applications:
    - (i) the date of filing; and
    - (ii) the details of the application specified for inclusion in the Pānui under rule 3.13; and
    - (iii) a brief summary of the reason or reasons why the application has not been finally determined.
- (2) On completing the schedule, the Registrar must—
  - (a) send a copy of it to each of the Chief Judge, the Judge of the Court in the district in question, and the Chief Registrar; and
  - (b) arrange for a copy of it to be posted on an Internet site maintained by the Court.

- (3) The Registrar must also forward to the Judge of the Court in the district in question the files for applications that were filed more than 2 years before the date of the schedule and that have not been finally determined, except the files for those applications that have been set down for a fixed date of hearing or are subject to fixed time limits.
- (4) For each file that the Registrar forwards under rule 5.11(3), the Registrar must include as appropriate a report on progress or a submission and recommendation for steps for the final determination of the application.
- (5) Nothing in this rule limits the power of the Registrar at any time to contact and arrange with the parties to an application for the application to be set down for hearing.

Compare: SR 1994/35 r 38

Rule 5.11(1)(b)(ii): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 5.11(2)(b): amended, on 30 April 2026, by rule 30 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **5.12 Judge's powers in relation to file forwarded under rule 5.11(3)**

The Judge to whom a file has been forwarded under rule 5.11(3) may—

- (a) make directions or exercise any of a Judge's other powers under these rules to advance the application; or
- (b) if appropriate, dismiss the application for want of prosecution under rule 6.28.

## **Part 6**

### **Conduct of hearing**

#### **6.1 Presiding Judge**

At a hearing of the Māori Land Court with 2 or more Judges sitting, the presiding Judge is the senior Judge or the Judge nominated by the senior Judge to preside.

Compare: SR 1994/35 r 41

#### **6.1A Court may appoint additional members with knowledge and experience of tikanga Māori or whakapapa to sit with Court**

- (1) This rule applies to all proceedings in the Court that relate to Māori land, except proceedings in respect of which the Court has jurisdiction under sections 26A to 32 and 33 of the Act.
- (2) A Judge or the Chief Judge, if a Judge has not been assigned to the proceedings, may appoint 1 or 2 additional members with knowledge and experience of tikanga Māori or whakapapa that is relevant to the proceedings to sit with the Court.

- (3) *See* section 32A of the Act for requirements relating to an appointment.

Rule 6.1A: inserted, on 30 April 2026, by rule 31 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## **6.2 Conduct of hearing**

- (1) The Judge, or the presiding Judge, at a hearing of the Māori Land Court, may, subject to section 66 of the Act, determine how the hearing is conducted and the order in which the parties are heard.
- (2) The Māori Land Court must hear any of the following persons who appear and wish to be heard:
- (a) the parties:
  - (b) any other person materially affected:
  - (c) any other person who has an interest in, or may be affected by, an application, including a person who has an interest or may be affected as a matter of tikanga Māori.
- (3) Rules relating to the conduct of the Māori Appellate Court are contained in Part 8.

Compare: SR 1994/35 r 42

## **6.3 Court staff**

The Registrar of the Court must ensure that the following persons attend every sitting of the Court:

- (a) a clerk of the Court; and
- (b) a person or persons who can explain the procedure of the Court to the parties and otherwise assist the Court to function effectively; and
- (c) if necessary or directed by a Judge, a competent interpreter.

## **6.4 Court may sit without formal notice**

- (1) Despite anything in these rules, the Court may sit at any time and place appointed by a Judge without notice being given in a Pānui or without the Registrar giving formal notice of the hearing.
- (2) However, the Court must not hear or decide an application without formal notice, unless—
- (a) the parties have, in the circumstances, been given adequate notice of the hearing; or
  - (b) the application is one which, in accordance with the Act or these rules, may heard and determined without notice.

Rule 6.4(1): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**6.5 When Court may determine application for which no appearance is required**

- (1) If no appearance is required, the Court may determine an application at any time before the date of the hearing shown in the Pānui.
- (2) As soon as possible after the Court has determined the application, the Registrar must give notice of any order made by the Court to the following:
  - (a) the applicant or the applicant’s solicitor:
  - (b) if a party consented to the application, that party or that party’s solicitor:
  - (c) any other person as the Court directs.

Rule 6.5(1): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**6.6 Notification in Pānui of application made without notice**

- (1) This rule applies to an application that under rule 4.14, 4.19, 6.4, or 12.8 may be made without notice.
- (2) The Registrar must, unless directed otherwise by a Judge, ensure that an application to which this rule applies is notified, in accordance with rule 6.7, in the first available Pānui.
- (3) A Judge may, in considering a particular application, direct that it be heard on such notice as the Judge thinks fit.
- (4) Rule 6.5 applies to any application that may be determined without notice under this rule.

Rule 6.6 heading: amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 6.6(1): amended, on 30 April 2026, by rule 32 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 6.6(2): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**6.7 Form of notification in Pānui**

- (1) This rule applies to any application that is to be determined without notice under rule 6.6.
- (2) Notification in the Pānui must—
  - (a) appear under the following heading and explanation:

**“Applications to be decided without notice**

Under rule 6.6 of the Māori Land Court Rules 2011, the following applications may be decided without notice and without formal hearing. If you are interested in, or affected by, one of these applications and wish to make representations concerning the application, you must notify the Court in writing by 4 pm on the *[specify the first working day of the month following the date of issue of the Pānui]* providing your name and

address, telephone number, and email address (if any), and setting out your connection with the application and brief details of your concerns.

The Court may, on considering your notification, arrange for the application to be set down for a formal hearing if the application has yet to be determined or for a rehearing if the application has already been determined.”; and

- (b) provide the details of the application that would normally be included in the Pānui.

Rule 6.7 heading: amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 6.7(2): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 6.7(2)(a): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 6.7(2)(b): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## **6.8 Directions following notification of application made without notice**

- (1) This rule applies where, in response to the notification under rule 6.7 of an application made without notice, a person notifies the Court of that person’s concerns.
- (2) The Registrar must without delay refer the person’s response to a Judge who may give directions necessary to address those concerns, including—
  - (a) directing contact with that person to clarify his or her concerns or to see if they may be resolved or both; or
  - (b) if the application has not yet been determined, setting it down for hearing; or
  - (c) if the application has been determined, setting it down for rehearing.

### *Adjournments*

## **6.9 Court may adjourn hearing**

- (1) The Court may, on the application of a party or on its own initiative, either before or during a hearing, adjourn an application—
  - (a) to another ordinary sitting of the Court; or
  - (b) to a special sitting; or
  - (c) if the circumstances require, to a date and place to be fixed.
- (2) A party seeking an adjournment must, if possible, notify the other parties of the intention to seek an adjournment and must attempt to obtain the consent of the other parties to the adjournment.
- (3) An application that has been adjourned to a date and place to be fixed may be brought on for hearing on the application of any party or on the direction of the



Court, and may be heard at the time and place and on the notice that the Court may direct.

#### **6.10 Notification of adjournment in Pānui and notice of hearing**

The provisions of these rules relating to the notification of an application in a Pānui and notice of a hearing apply with any necessary modifications to a hearing that has been adjourned under rule 6.9 except to the extent that a Judge directs that further notification in a Pānui is unnecessary.

Rule 6.10 heading: amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 6.10: amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **6.11 Adjournment to another district**

- (1) The Court may, on the application of a party or on its own initiative, either before or during a hearing, adjourn an application to another district if the circumstances require and the application can conveniently be heard in that district.
- (2) The application may be considered and determined without notice in the Pānui (except to the extent that it must be notified under rule 6.6), without notice to any party, and without any appearance by the applicant.
- (3) Where an application is adjourned to another district, the Registrar must forward the Court file and relevant documents to the Court of hearing.
- (4) The Registrar of the Court of hearing must—
  - (a) enter the application in the records of that Court; and
  - (b) notify the application in the next available Pānui in accordance with rule 5.4; and
  - (c) undertake the administrative steps necessary for the application to progress to a hearing.

Rule 6.11(2): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 6.11(4)(b): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### *Registrar's jurisdiction and powers*

#### **6.12 Specified classes of case in which designated Registrar may exercise jurisdiction and powers of Court**

- (1) The specified classes of case in which a Registrar designated under section 39 of the Act may, subject to the determination of the Chief Judge, exercise the jurisdiction and powers of the Court are the following:
  - (a) an application for an order under section 18(1)(a) of the Act recording—

- (i) the determination of a life or other limited estate in Māori freehold land; or
    - (ii) the fact of survivorship on the death of a person holding a freehold estate in Māori freehold land:
  - (b) an application for the discharge under section 82(4) of the Act of a charging order:
  - (c) an application under section 111(1) of the Act for an order vesting in the administrator of a deceased Māori a freehold interest in General land held by the deceased:
  - (d) an application under section 112(1) of the Act for an order vesting in the administrator of an estate to which Part 4 of the Act applies a beneficial interest in Māori freehold land held by that estate:
  - (e) an application under section 128 of the Act for a declaratory consolidated order in a case where the only changes of ownership have occurred through succession or vesting orders by the Court:
  - (f) an application under section 239 of the Act for an order removing a trustee on his or her death where suitable evidence of death is provided with the application.
- (2) If, during the hearing of an application by a Registrar, a contest arises between the parties, the Registrar must adjourn the application to the Court.
- (3) A Registrar may exercise the jurisdiction of the Court under this rule on an application by a Registrar.

### **6.13 Registrar's ancillary powers**

In exercising the jurisdiction of the Court, a Registrar may exercise as ancillary to that jurisdiction the powers that a Judge could have exercised in dealing with the same matter.

### *Parties*

### **6.14 Court may strike out or add parties to application**

- (1) At any time before or during a hearing, the Court may, either on the application of any party or on its own initiative, and on any terms that it thinks just,—
- (a) strike out the name of a party improperly or mistakenly joined in the application; or
  - (b) join or, with the consent of the party substituted, substitute as a party any person or class of persons that the Court considers necessary for the Court to hear and determine all the questions involved in the application.
- (2) A person must not be added as an applicant without that person's consent.

## **6.15 Court may make directions for representation of person or class of persons**

If the Court considers that a person or a class of persons, whether or not joined as a party, should be heard or represented at a hearing, then the Court may issue any directions or exercise any of its powers that it considers necessary for that purpose including, where section 70(3)(b) of the Act applies, appointing a barrister or solicitor to represent that person or class of persons.

## **6.16 Litigation guardian**

- (1) The Court may at any time appoint a suitable person to act as a litigation guardian for any minor or an incapacitated person whose interests are affected by an application.
- (2) A litigation guardian is not personally liable for costs unless those costs have been occasioned by his or her personal negligence or misconduct.
- (2A) If a person becomes an incapacitated person during a proceeding, a party must not take any step in the proceeding without the permission of the Court until the Court has determined if a litigation guardian should be appointed.
- (3) Nothing in this rule limits the power of the Court under section 217 of the Act to constitute a kai tiaki trust for any person.
- (4) In this rule and rules 6.16A and 6.16B,—

**incapacitated person** means a person who by reason of physical, intellectual, or mental impairment, whether temporary or permanent, is not capable of understanding the issues on which their decision would be required as a litigant conducting proceedings, or is unable to give sufficient instructions to issue, defend, or compromise proceedings

**litigation guardian** means—

- (a) a person who is authorised by or under an enactment to conduct proceedings in the name of, or on behalf of, an incapacitated person or a minor (but only in a proceeding to which the authority extends); or
- (b) a person who is appointed under this rule to conduct a proceeding

**minor** means a person under the age of 18 years.

Rule 6.16 heading: replaced, on 30 April 2026, by rule 33(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 6.16(1): amended, on 30 April 2026, by rule 33(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 6.16(1): amended, on 30 April 2026, by rule 33(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 6.16(2): amended, on 30 April 2026, by rule 33(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 6.16(2A): inserted, on 30 April 2026, by rule 33(5) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 6.16(4): inserted, on 30 April 2026, by rule 33(6) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **6.16A Procedure when person ceases to be incapacitated person**

- (1) The Court must make an order terminating the appointment of a litigation guardian if it is satisfied that the person the litigation guardian represents is no longer an incapacitated person.
- (2) The Court may make an order at any time—
  - (a) on its own initiative; or
  - (b) on the application of—
    - (i) the incapacitated person; or
    - (ii) their litigation guardian; or
    - (iii) a party.
- (3) From the date of the order,—
  - (a) all subsequent steps in the proceeding must be carried out by the person who was formerly represented by the litigation guardian; and
  - (b) the person formerly represented by the litigation guardian is liable for all the costs of the proceeding (including solicitor and client costs) in the same manner as if they had commenced the proceeding, or had become a party to the proceeding, when they were not an incapacitated person.

Rule 6.16A: inserted, on 30 April 2026, by rule 34 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **6.16B Procedure when minor attains full age**

Unless the Court otherwise orders, from the date the minor reaches the age of 18 years,—

- (a) the appointment of their litigation guardian ends; and
- (b) all subsequent steps in the proceeding must be carried out by the person who was formerly a minor; and
- (c) the person who was formerly a minor is liable for all the costs of the proceeding (including solicitor and client costs) in the same manner as if they had commenced the proceeding, or had become a party to the proceeding, when they were not a minor.

Rule 6.16B: inserted, on 30 April 2026, by rule 34 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

*Change of parties by death, bankruptcy, or devolution*

Heading: inserted, on 30 April 2026, by rule 34 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**6.16C Proceeding not to come to end**

- (1) A proceeding does not come to an end on the death or bankruptcy of a party if a cause of action survives or continues.
- (2) A proceeding does not become defective because of the assignment, creation, or devolution of an estate or a title when the proceeding is pending.

Rule 6.16C: inserted, on 30 April 2026, by rule 34 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**6.16D Procedure on death, bankruptcy, and devolution**

In the case of death, bankruptcy, or devolution of an estate of a party to a proceeding by operation of law in circumstances where the complete settlement of all the questions involved in the proceeding is necessary, the Court—

- (a) must order that a personal representative, trustee, or other successor to the interest (if any) of that party be made a party to the proceeding, or be served with notice of the proceeding, in the prescribed manner and form on terms it thinks just; and
- (b) may make orders it thinks just for the disposal of the proceeding.

Rule 6.16D: inserted, on 30 April 2026, by rule 34 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**6.16E New parties order**

- (1) Rule 6.16E(2) applies if, after a proceeding has commenced, there is an event causing a change or transmission of interest or liability (including death or bankruptcy), or an interested person comes into existence, making it necessary or desirable that—
  - (a) a person be made a new party; or
  - (b) an existing party be made a party in another capacity.
- (2) An application without notice may be made for an order that the proceeding be carried on between the continuing parties and a party described in rule 6.16E(1)(a) or (b) (a **new parties order**).
- (3) The new parties order must, unless the Court directs otherwise, be served on—
  - (a) the continuing parties to the proceeding; and
  - (b) each new party, unless the person making the application is the only new party.
- (4) The new parties order is binding on a person served from the time of service.
- (5) A person may apply to the Court to discharge or vary a new parties order within 10 working days after the service of the order.

Rule 6.16E: inserted, on 30 April 2026, by rule 34 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### *Evidence*

#### **6.17 Form of evidence**

- (1) The evidence of a witness—
  - (a) at a contested hearing must be given orally on oath or affirmation, unless the Court directs otherwise;
  - (b) at any other hearing must be given orally on oath or affirmation if the Court requires it.
- (2) Subject to these rules and any other enactment, the Court may in its discretion accept evidence by affidavit, declaration, or other documentary form and in that case may require the witness to attend the hearing for the purpose of cross-examination.
- (3) Where an affidavit, declaration, or other document is filed by electronic communication,—
  - (a) a Judge may direct that the original must be filed or produced to the Court; and
  - (b) the party filing the document must produce the original if directed unless the Court is satisfied that there is good reason why the document cannot be produced.

Rule 6.17(3): amended, on 30 April 2026, by rule 35 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **6.18 Further evidence**

- (1) The Court may, on the application of any party to an application or on its own initiative, if it considers that further evidence is reasonably necessary for the proper exercise of its jurisdiction, make orders or give directions requiring—
  - (a) the giving of additional evidence;
  - (b) the production of any document for inspection;
  - (c) the production of copies of entries in any ledgers or books of account.
- (2) The Court may, if it considers that it is reasonably necessary for the proper exercise of its jurisdiction, order any of the following agencies (or their successors) or an official of those agencies to appear and produce any reports, historical or other records, or any departmental files held by the agency in question:
  - (a) Archives New Zealand;
  - (b) Land Information New Zealand;
  - (c) the Māori Trustee;
  - (d) Te Puni Kōkiri;

- (e) any other government department.
- (3) The parties must be given an opportunity to examine any document required to be produced under this rule and to make submissions in respect of it.
- (4) Nothing in this rule prevents a Minister of the Crown, any government agency, or any official of a government agency from claiming privilege for any report, record, or file required to be produced under this rule and in the event that privilege is claimed, rule 6.20(5) applies.
- (5) The Court may accept the production in electronic form or by electronic means of any document required to be produced under this rule but may require evidence of the authenticity of the document.

**6.19 Who may take affidavit, declaration, or affirmation**

- (1) An affidavit, declaration, or affirmation required to be sworn or made for the purpose of an application under these rules may be sworn or made in New Zealand before any of the following persons:
  - (a) a Judge or Registrar of any court, including the District Court or any senior court;
  - (b) a Justice of the Peace;
  - (c) a Community Magistrate;
  - (d) subject to rule 6.19(2), a solicitor of the High Court.
- (2) An affidavit, declaration, or affirmation sworn or made before a solicitor who was at the time engaged in, or the member of a firm that was engaged in, the proceedings must not be admitted in the proceedings, except in the case of an application made without notice that is uncontested.
- (3) An affidavit, declaration, or affirmation required to be sworn or made for the purposes of an application under these rules may be sworn or made outside New Zealand before any of the following persons:
  - (a) a notary public;
  - (b) a commissioner of oaths;
  - (c) a Commonwealth representative;
  - (d) a solicitor of the High Court of New Zealand;
  - (e) a person admitted to practise as a solicitor in a state of Australia;
  - (f) a Justice of the Peace of Australia;
  - (g) a practising solicitor, lawyer, or attorney in the country where it is sworn or made.
- (4) A person listed in rule 6.19(1) or (3) before whom an affidavit, declaration, or affirmation is sworn or made must print beneath his or her signature his or her full name, occupation or qualification, and address, and affix his or her seal or stamp of office (if any).

Rule 6.19(1)(a): amended, on 1 March 2017, by section 183(b) of the Senior Courts Act 2016 (2016 No 48).

## **6.20 Discovery**

- (1) On the application of any party to a proceeding, the Court may order any other party to the proceeding to give discovery of the documents, whether in hard-copy or electronic form, that are or have been in that other party's possession or power and that are relevant to any matter in question in the proceeding.
- (2) The order must be in form 6 and signed by the Registrar.
- (3) The order must be served by the applicant or, at his or her discretion, by the Registrar on the party against whom it is issued.
- (4) A party who has been ordered to give discovery must,—
  - (a) within 10 working days after being served with a copy of the order, file in the Court an affidavit of documents in form 7 and serve a copy of the affidavit on the party who obtained the order; and
  - (b) allow the party who obtained the order to inspect any document except a document for which privilege is claimed.
- (5) If privilege is claimed for any document, the Court may inspect the document for the purpose of deciding whether the claim of privilege is valid and may rule on the claim.

Compare: SR 1994/35 r 54

## **6.21 Exhibit notes**

- (1) The presiding Judge or the Registrar must ensure that an exhibit note that complies with rule 6.21(2) is placed on every document, plan, or other paper produced in evidence in any proceedings.
- (2) The exhibit note must contain the following:
  - (a) the appropriate application number:
  - (b) the date of production of the document, plan, or other paper:
  - (c) a numerical or alphabetical reference identifying the document, plan, or other paper.

Compare: SR 1994/35 r 52

## **6.22 Summons to witness**

- (1) On the request of a party to an application or of a Judge, the Registrar must issue a witness summons in form 8 requiring the person named in the summons to attend the hearing of the application to give oral evidence or to produce any document in that person's possession or control.
- (2) The summons must contain in reasonable detail the following information that must be provided to the Registrar by the party or person requesting the summons:



- (a) the reason for requiring the witness to appear; and
  - (b) the nature of the evidence that is required to be given; and
  - (c) details of the documents that are required to be produced.
- (3) A summons may be served on a person in 1 of the following ways:
  - (a) by delivery to that person or, if delivery of the summons is refused, by being brought to his or her attention; or
  - (b) by being left at that person's usual place of residence with a member of his or her family living with the person and who appears to be over the age of 18 years; or
  - (c) by registered letter sent to that person at his or her usual place of residence or usual place of business.
- (4) There must be paid or tendered to the person summoned the sum estimated to be payable to that person for allowances and travelling expenses (but not fees) incurred in attending the hearing under the Witnesses and Interpreters Fees, Allowances, and Expenses Regulations 2023.
- (5) The Court (or a Judge), in directing the Registrar to issue a witness summons, and despite rule 6.22(3) and (4),—
  - (a) may specify how the summons may be served; and
  - (b) may—
    - (i) specify that no allowances and travelling expenses are payable; or
    - (ii) fix the sum of allowances and travelling expenses that are payable; or
    - (iii) direct that the allowances and travelling expenses be payable in accordance with rule 6.22(4).

Rule 6.22(4): amended, on 1 May 2023, by regulation 16(1) of the Witnesses and Interpreters Fees, Allowances, and Expenses Regulations 2023 (SL 2023/18).

### **6.23 Witness summoned must comply with summons**

- (1) A person who has been properly summoned in accordance with rule 6.22 must comply with the summons.
- (2) Service of the summons may be proved by an affidavit in the form endorsed on form 8 or by evidence on oath or affirmation given at the hearing.
- (3) If the witness claims privilege in respect of any evidence or document, the Court must rule on the claim and may inspect the document for the purpose of deciding whether the claim is valid.
- (4) The Court or a Judge may set aside a witness summons issued under rule 6.22 if the Court or the Judge is satisfied that the evidence to be given or the documents to be produced have no bearing on the case before the Court.

**6.24 Taking evidence in another district**

- (1) A party to an application (the **substantive application**) may apply to the Court for taking in another district the evidence of a party or witness who is not resident in the district in which the substantive application has been filed.
- (2) The application for taking evidence in another district may be made in writing or orally in court.
- (3) The Court may, after notification of the substantive application in the Pānui, adjourn the substantive application to the other district for the purpose of taking the evidence in question.
- (4) The Registrar of the Court must ensure that the file of the substantive application and all documents relating to it are sent to the Court in the other district.
- (5) The Registrar of the Court in the other district must—
  - (a) refer the substantive application to a Judge for directions as to a hearing for taking the evidence; and
  - (b) give notice of the hearing in accordance with rule 5.8 but need not notify the hearing in a Pānui; and
  - (c) after the hearing, return the file of the substantive application and all documents relating to it to the Court of origin.
- (6) The evidence taken at the hearing in the other Court forms part of the record of the hearing of the substantive application.

Compare: SR 1994/35 r 58

Rule 6.24(3): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 6.24(5)(b): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**6.25 Power of Registrar to take evidence**

- (1) A Judge may direct a Registrar to take the evidence of a witness who is unable to attend the Court because of illness, work commitment, distance from the Court, or any other sufficient reason.
- (2) In taking the evidence of a witness, a Registrar has all the powers that a Judge would have in the same circumstances except that a Registrar has no power of committal.
- (3) The evidence must be set out in a deposition and certified by the Registrar.
- (4) Evidence taken by the Registrar that complies with rule 6.25(3) forms part of the record of the hearing.

Compare: SR 1994/35 r 51

*Reference to Registrar for inquiry and report*

**6.26 Judge may make reference to Registrar**

- (1) A Judge may make a reference under section 40 of the Act to a Registrar—
  - (a) on the application of any party to an application or on the Judge’s own initiative;
  - (b) before the hearing or at any stage of the hearing.
- (2) The reference must be in form 9, modified as required by the Judge.

**6.27 Conduct of Registrar’s inquiry**

- (1) Subject to any direction by the Judge making a reference under section 40 of the Act, the Registrar—
  - (a) must, if a formal hearing is required, fix a date, time, and place for holding the inquiry and must give notice to all the parties entitled to attend; and
  - (b) may inspect any land or property where inspection of the land or property is relevant to the inquiry; and
  - (c) may enforce, by a summons issued in accordance with rule 6.22, the attendance of a witness; and
  - (d) must conduct the inquiry so far as possible as if the inquiry were held by a Judge; and
  - (e) may reserve any question that arises in the course of the inquiry for determination by a Judge.
- (2) The Registrar must make a report of the inquiry and file the report in the Court in hard-copy or electronic form.

*Judicial settlement conference*

Heading: inserted, on 30 April 2026, by rule 36 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**6.27A Judicial settlement conference before hearing of proceeding**

- (1) A Judge may, at any time before the hearing of a proceeding, convene a judicial settlement conference of the parties in chambers for the purpose of negotiating a settlement of the proceeding or of an issue raised in a proceeding, and the Judge may assist in those negotiations.
- (2) All parties must file and serve on the other parties, at least 10 working days before the date set for a conference,—
  - (a) a statement of their position; and
  - (b) a memorandum identifying the issues in dispute and details of any previous settlement negotiations.

- (3) Any document filed under rule 6.27A(2), or information produced or provided in writing or orally only for the purpose of the conference, is not admissible in any proceeding without the permission of all parties.
- (4) A Judge who presides at a conference may not preside at the hearing of the proceeding unless—
  - (a) all parties taking part in the conference consent; or
  - (b) the only matter for resolution at the conference is a matter of law.
- (5) If the Judge assisting the parties at a conference is satisfied that the parties are unable to settle the proceeding or an issue raised in a proceeding, the Judge must, as soon as practicable,—
  - (a) indicate that they have formed that view; and
  - (b) refer the proceeding to the Registrar to be set down for hearing.
- (6) A proceeding is treated as having been discontinued 30 working days after the date on which the Judge endorses the proceeding as having been settled, unless—
  - (a) the parties, by notice to the Judge given before the close of that 30-day period, consent to an extension of that period, and in that case the Judge must direct that that period is extended and the discontinuance takes effect on the close of that extended period; or
  - (b) the Judge is satisfied that it is in the interests of justice to direct that the proceeding be discontinued with effect on and after some other date stated by the Judge.
- (7) The Court may order any proceeding treated as having been discontinued under rule 6.27A(6) to be reinstated on good cause shown by either party and on any terms it thinks just.
- (8) Nothing in this rule affects or is affected by Part 4A relating to the provision of mediation.

Rule 6.27A: inserted, on 30 April 2026, by rule 36 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **6.27B Judicial settlement conference during hearing of proceeding**

- (1) A Judge may, at any time during the hearing of a proceeding, with the consent of the parties, adjourn the proceeding and refer the proceeding to the Registrar to set down a conference of the parties in chambers for the purpose of negotiating a settlement of the proceeding or of an issue raised in a proceeding, and the Judge may assist in those negotiations.
- (2) All parties must file and serve on the other parties, at least 10 working days before the date set for any conference or as directed by a Judge,—
  - (a) a statement of their position; and
  - (b) a memorandum identifying the issues in dispute and details of any previous settlement negotiations.

- (3) Any document filed under rule 6.27B(2), or information produced or provided in writing or orally only for the purpose of the conference, is not admissible in any proceeding without the consent of all parties to the conference.
- (4) Any Judge who presides over the hearing of a proceeding may not assist at a conference unless—
  - (a) all parties taking part in the conference consent; or
  - (b) the only matter for resolution at the conference is a matter of law.
- (5) If the Judge assisting the parties at a conference is satisfied that the parties are unable to resolve the proceeding or an issue raised in a proceeding, the Judge must, as soon as practicable,—
  - (a) indicate that they have formed that view; and
  - (b) refer the proceeding to the Registrar to be set down for further hearing.
- (6) A proceeding is treated as having been discontinued 30 working days after the date on which the Judge endorses the proceeding as having been settled, unless—
  - (a) the parties, by notice to the Judge given before the close of that 30-day period, consent to an extension of that period, and in that case the Judge must direct that that period is extended and the discontinuance takes effect on the close of that extended period; or
  - (b) the Judge is satisfied that it is in the interests of justice to direct that the proceeding be discontinued with effect on and after some other date stated by the Judge.
- (7) The Court may order any proceeding treated as having been discontinued under rule 6.27B(6) to be reinstated on good cause shown by either party and on any terms it thinks just.
- (8) Nothing in this rule affects or is affected by Part 4A relating to the provision of mediation.

Rule 6.27B: inserted, on 30 April 2026, by rule 36 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### *Withdrawal of application*

Heading: inserted, on 30 April 2026, by rule 36 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **6.27C Withdrawal of application**

- (1) An applicant may seek the leave of the Court to withdraw any application they have filed—
  - (a) by serving on all other parties and filing in Court a notice of withdrawal at any time before the hearing of the application;
  - (b) at the hearing of the application.
- (2) However, if the Court makes an order dismissing the application,—

- (a) the filing fee remains payable; and
  - (b) the Court may make an order as it thinks just for—
    - (i) the payment of any costs relating to the application; and
    - (ii) the disbursement of any sum that has been lodged as security for costs.
  - (3) The application ends upon the making of the order dismissing the application.
- Rule 6.27C: inserted, on 30 April 2026, by rule 36 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### *Dismissal*

#### **6.28 Court may dismiss application**

- (1) Without limiting the power of the Court to deal with an application, the Court may dismiss an application if the applicant fails to—
  - (a) appear at a hearing; or
  - (b) properly advance the application; or
  - (c) comply with an order or direction of the Court.
- (2) Dismissal may be considered and determined without notification in the Pānui, without notice to any party, and without any appearance by the applicant.
- (3) If the Court dismisses an application under this rule,—
  - (a) the Court may reinstate the application and may make the reinstatement subject to payment of a further fee by the applicant; or
  - (b) the applicant may file a new application in respect of the same matter.
- (4) The Court must not reinstate an application under rule 6.28(3)(a) more than 1 year after the application is dismissed unless there are good grounds for reinstatement.
- (5) If an application has been dismissed without notification in the Pānui, it must be notified in the Pānui in accordance with rule 6.6.

Compare: SR 1994/35 r 70

Rule 6.28(2): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 6.28(5): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### *Strike out or stay of proceeding*

Heading: inserted, on 30 April 2026, by rule 37 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **6.28A Striking out or staying all or part of proceeding**

- (1) The Court may strike out all or part of a pleading if it—

- (a) discloses no reasonably arguable cause of action, defence, or case appropriate to the nature of the pleading; or
  - (b) is likely to cause prejudice or delay; or
  - (c) is frivolous or vexatious; or
  - (d) is otherwise an abuse of the process of the Court.
- (2) If the Court strikes out a statement of claim or a counterclaim under rule 6.28A(1), it may dismiss the proceeding or the counterclaim in the same or a subsequent order.
- (3) Instead of striking out all or part of a pleading under rule 6.28A(1), the Court may stay all or part of the proceeding on such conditions it considers just.
- (4) This rule does not affect the Court's inherent powers.

Rule 6.28A: inserted, on 30 April 2026, by rule 37 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### *Costs*

#### **6.29 Security for costs**

- (1) A party required by the Court under section 79(4) of the Act to deposit a sum of money as security for costs must pay the requisite sum to an office of the Court.
- (2) Money deposited as security for costs—
  - (a) must be held by the Registrar in a trust account established for the purpose by the Chief Registrar; and
  - (b) may only be disbursed by order of the Court.

Compare: SR 1994/35 r 72

#### **6.30 Form of bill of items for taxation of costs**

A bill of items that is required under section 80 of the Act for a taxation of costs must—

- (a) include full details of all fees, charges, expenses, and disbursements; and
- (b) show solicitors' charges and counsels' fees separately; and
- (c) be supported by original time records and vouchers or receipts for disbursements.

#### **6.31 Procedure for taxation of costs**

- (1) The Registrar must fix a date, time, and place for carrying out a taxation of costs.
- (2) Notice of the date, time, and place for carrying out a taxation of costs, accompanied by a copy of the bill of items, (if any), must be given to every person directed by the Court or the Registrar to be served.

- (3) Subject to service as directed under rule 6.31(2), a taxation of costs may proceed on and at the appointed date, time, and place whether any or all or none of the parties attend.
- (4) Despite rule 6.31(1) to (3), the Court or the Registrar may agree with the parties the procedure to be followed in a taxation of costs, including dispensing with a formal hearing and the filing of written submissions.

### **6.32 Taxation of costs**

- (1) In a taxation of costs, the Court, the Registrar, or other officer of the Court appointed to tax the costs must—
  - (a) fix the amount or amounts that, in the opinion of the Court, the Registrar, or other officer are proper in the circumstances for the costs, charges, or expenses in question; and
  - (b) fix the amount of witnesses' and interpreters' fees, allowances, and travelling expenses in accordance with the Witnesses and Interpreters Fees, Allowances, and Expenses Regulations 2023 or as allowed by the Court under rule 6.22(5); and
  - (c) fix the amount of all other disbursements, agency charges, and fees; and
  - (d) issue a certificate for the amounts in rule 6.32(1)(a) to (c).
- (2) No charges, whether between party and party or between solicitor and client, may be claimed for the preparation or service of a bill of items for taxation.
- (3) If extra expenses that do not appear connected with the application are claimed, a statement must be filed in the Court and served on all the parties showing that the extra expenses were proper and necessary in the circumstances.

Compare: SR 1994/35 r 73

Rule 6.32(1)(b): amended, on 1 May 2023, by regulation 16(1) of the Witnesses and Interpreters Fees, Allowances, and Expenses Regulations 2023 (SL 2023/18).

### **6.33 Review of taxation of costs**

- (1) This rule applies where it appears to the Court, on the application of a person dissatisfied with a taxation of costs, that the amount fixed under rule 6.32 is erroneous as to amount or in principle.
- (2) The Court may—
  - (a) refer the taxation back to the Registrar or other officer appointed by the Court with directions to review the taxation and make the necessary alterations; or
  - (b) itself review the taxation and fix the amount of costs.



## **Part 7**

### **Orders and records of Court**

#### *Orders*

#### **7.1 Order must be documented in certain cases**

An order made by the Court, the Chief Judge, or a Registrar must be evidenced by a document that complies with rule 7.2 where—

- (a) the order affects a legal or equitable interest in any land; or
- (b) any party requests that the order be documented; or
- (c) a Judge directs that the order must be documented; or
- (d) a Registrar determines that the order must be documented; or
- (e) the order is an order granting an injunction.

#### **7.2 Form of order**

- (1) An order to which this rule applies must—
  - (a) be in the form prescribed by these rules or, if no form is prescribed, be in form 10, unless a Judge or a Registrar otherwise directs; and
  - (b) clearly and concisely set out the nature and effect of the order; and
  - (c) be dated with the date of the minute recording the order; and
  - (d) be signed and sealed in accordance with rule 7.6; and
  - (e) be produced in hard-copy form for the permanent record but may be distributed electronically.
- (2) The Court or the Registrar may require a party to submit a draft of the order for the purpose of documenting it, but the final form of the order must be settled by the Court or the Registrar.
- (3) Where land in more than 1 Court district is the subject of an order, the land in each district must be listed separately in the order under the heading of the district in which it is situated.

Compare: SR 1994/35 r 59(1), (2)

Rule 7.2(1)(e): amended, on 30 April 2026, by rule 38 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **7.3 Orders in electronic form**

- (1) An order that has been created in hard-copy form in accordance with rule 7.2 may be imaged or copied and stored in electronic form on an information system that complies with rule 7.23(3).
- (1A) However, an order may be provided in electronic form to the parties to the proceeding.

- (2) An order in electronic form is as valid, and has the same effect, as an order in hard-copy form and may be used as if it were an original order.

Rule 7.3(1A): inserted, on 30 April 2026, by rule 39 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **7.4 Order must be completed as soon as practicable after it is made**

- (1) An order must be completed as soon as practicable after completion is permitted under rule 7.5.
- (2) An order is completed by being documented, signed, and sealed.

#### **7.5 Time for completion of order**

- (1) An order must not be completed until—
- (a) the period of 2 months for an appeal to be filed has elapsed (or, if the Court has granted a longer period for filing an appeal, that longer period has elapsed); and
  - (b) any appeal against the order has been finally disposed of; and
  - (c) any conditions under section 73 of the Act or otherwise to which the order is subject have been satisfied; and
  - (d) any requirements as to a plan under rule 7.7 have been complied with; and
  - (e) all Court fees and other charges relating to the order have been paid.
- (1A) A determination or an order by a Registrar must not be completed until the following have occurred or can no longer be done:
- (a) the time to apply for a review of the order has passed (*see* rule 8.1AAA):
  - (b) a decision has been made on an application for review (*see* rule 8.1AAB):
  - (c) 20 working days after a decision on the application for a review have passed (*see* section 43 of the Act, which relates to applications for rehearings):
  - (d) a decision has been made on a rehearing of a review decision.
- (2) Despite rule 7.5(1) and (1A), the following orders may be completed without delay:
- (a) an order granting an injunction:
  - (b) with the leave of the Court, any other order.

Compare: SR 1994/35 r 66(3), (4)

Rule 7.5(1A): inserted, on 30 April 2026, by rule 40(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 7.5(2): amended, on 30 April 2026, by rule 40(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## **7.6 How order must be signed and sealed**

- (1) An order must be signed and sealed as follows:
  - (a) an order made by the Court must be signed by the presiding Judge, or any other Judge, or a Registrar acting with the authority of the presiding Judge:
  - (b) an order made by the Chief Judge under section 44 of the Act must be signed by the Chief Judge unless signature by another person is authorised by the Act:
  - (c) an order made by a Registrar must be signed by that Registrar or a Judge.
- (2) An authority given to a Registrar for the purposes of rule 7.6(1)(a) may—
  - (a) be limited to a specific order; or
  - (b) be limited to orders of a specific kind or class; or
  - (c) apply to any order made by the Judge in question.
- (3) The Registrar's signature on an order is sufficient evidence of the Registrar's authority to sign the order.
- (4) There must not be signed more than 1 copy of the order.

Compare: SR 1994/35 r 60

## **7.7 Certain orders must include plans**

- (1) The following orders must include a plan of the land that is the subject of the order:
  - (a) an amalgamation order:
  - (b) an order creating freehold title:
  - (c) a partition order:
  - (d) an order creating an easement or a right of way:
  - (e) an order laying out a roadway:
  - (f) an occupation order:
  - (g) any other order that allocates or defines an area of land or that requires a plan for the order to be effective.
- (2) The plan must provide sufficient details of the land that is the subject of the order to enable it to be clearly identified.
- (3) In the following cases, but subject to rule 7.7(4), the plan of land that is required must at least be a survey plan of a standard that will produce a land transfer title or titles of the same status as the existing land transfer title for the land subject to the order (but nothing prevents the Court from requiring a higher standard of survey plan):
  - (a) an order creating freehold title:

- (b) a partition order;
  - (c) an order creating an easement or a right of way;
  - (d) an order laying out a roadway.
- (4) An order listed in rule 7.7(3) is subject to the condition that the applicant must provide a survey plan to the Court within 12 months of the order being made as if the condition were a condition imposed under section 73 of the Act and the provisions of section 73(3) apply, except where—
- (a) the Court specifies the requirements for the plan and the order is conditional upon the applicant satisfying those conditions; or
  - (b) the Court under rule 7.8 modifies or dispenses with the requirement of a survey plan.
- (5) In the case of an occupation order, the plan must comply with rule 13.15 and be of sufficient standard to allow registration in the provisional register under the Land Transfer Act 2017.
- (6) An order to which this rule applies must not be signed and sealed unless the requisite plan duly approved by a Judge is annexed to it.

Rule 7.7(5): amended, on 30 April 2026, by rule 41 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **7.8 When Court may modify or dispense with requirement of survey plan**

In making an order creating an easement or a right of way or an order laying out a roadway, the Court may modify or dispense with the requirement of a survey plan if—

- (a) the parties do not require a plan to that standard; or
- (b) the order is limited in duration by reference to time or an event; or
- (c) the benefits of the order apply person to person and do not run with the land.

#### **7.9 Area of land provisional until definition by full survey**

- (1) The area of land expressed in any order—
- (a) is provisional only until the land has been defined by a full survey acceptable to the Registrar-General of Land; and
  - (b) may be corrected or amended by a Judge at any time without notice after definition by that survey.
- (2) However, a Judge correcting or amending the area of land expressed in an order may direct that notice must first be given to any person affected by the order and to the appropriate local authority if the variation in area is significant or has occurred through erosion or accretion.

### **7.10 Amendment of orders, warrants, etc**

- (1) An amendment made by the Court or a Judge under section 86 of the Act must be made by an order of the Court and duly recorded in the minute book of the Court.
- (2) The amendment must, where practicable, be endorsed on the order, warrant, record, or other document amended with “Amended under 86/93” and a reference to the amending order, and the endorsement must be signed by the Registrar.
- (3) In the case of an order that has not been documented in accordance with the relevant minute book entry and has been amended under section 86 of the Act and this rule, the order—
  - (a) may be documented in accordance with the amendment; and
  - (b) must in that case—
    - (i) recite that it has been documented in accordance with both the original order and the amending order; and
    - (ii) refer to the relevant minute book entries for both orders.
- (4) If any order proposed to be amended has been transmitted to the Registrar-General of Land or filed in the High Court or the District Court, the Registrar must transmit a sealed duplicate of the amending order to the Registrar General of Land or the Registrar of the High Court or the District Court, as the case may be.
- (5) The amendment may be considered and determined without notice in the Pānui, without notice to any party, and without any appearance by the applicant.

Compare: SR 1994/35 r 68

Rule 7.10(5): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **7.11 Retention of original order**

- (1) Each original order must be retained at all times in the office of the Court in the District in which the order was made, except where its removal is authorised under rule 7.20(2).
- (2) Rule 7.11(1) is complied with if—
  - (a) the original order is retained; or
  - (b) an electronic image of the original order is retained in an information system at the office of the Court in question; or
  - (c) an electronic image of the original order is retained in a central information system under the control of the Ministry of Justice that complies with the requirements of rule 7.23(2).

Compare: SR 1994/35 r 66(1)

**7.12 Duplicate orders**

- (1) The Court may issue a duplicate of an order after the order has been completed.
- (2) A duplicate order—
  - (a) is evidence of the original order; and
  - (b) may be produced in compliance with any requirement in an enactment to produce the order, including a requirement to produce the order for registration under the Land Transfer Act 2017; and
  - (c) regardless of the original form of the order, may be issued in hard-copy or electronic form; and
  - (d) may be electronically transmitted by the Registrar under rule 7.15.
- (3) A duplicate order must be—
  - (a) a copy of the original order; and
  - (b) clearly marked “Duplicate”; and
  - (c) endorsed by the Registrar with an endorsement that is signed by the Registrar (electronically if required) and that is in the following form:

“This is a duplicate of an original order of the Māori Land Court and has been issued by me as a Registrar of the Māori Land Court at [*place*] on [*date*] under rule 7.12 of the Māori Land Court Rules 2011.”
- (4) Where a duplicate order creating title is registered under the Land Transfer Act 2017, the Registrar must note the fact of that registration on the original order together with the date of registration and the description of title.

Compare: SR 1994/35 rr 60(2), (3), 66(1), (2)

Rule 7.12(2)(b): amended, on 30 April 2026, by rule 42 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 7.12(4): amended, on 30 April 2026, by rule 42 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**7.13 Verification of duplicate order**

- (1) Any person may request verification from the Court of the content or current status of a duplicate order.
- (2) If the Court verifies a duplicate order on the request of a person, the Court must issue a further duplicate order to that person.

**7.14 Duplicate copy of order for payment of money for transmission to District Court**

- (1) Where a copy of an order of the Court for the payment of money is to be transmitted to the District Court in accordance with section 81 of the Act, the Court must issue a duplicate copy under rule 7.12.
- (2) The duplicate order must—
  - (a) have a cover sheet in accordance with the District Court Rules 2014; and

- (b) be transmitted by the Registrar to the appropriate District Court with a memorandum in form 11 signed by a Judge.
- (3) A certificate given by a Judge under section 81(3) of the Act must be addressed to the Registrar of the District Court.

Compare: SR 1994/35 r 95

Rule 7.14(2)(a): amended, on 30 April 2026, by rule 43 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **7.14A Duplicate copy of order for recovery of land for transmission to High Court or District Court**

- (1) Where a copy of an order of the Court for the recovery of land is to be transmitted to the High Court or District Court in accordance with section 81A of the Act, the Court must issue a duplicate copy under rule 7.12.
- (2) The duplicate order must—
  - (a) have a cover sheet in accordance with the High Court Rules 2016 or District Court Rules 2014; and
  - (b) be transmitted by the Registrar to the appropriate court registry with a memorandum in form 11A signed by a Judge.
- (3) A certificate given by a Judge under section 81A(3) of the Act must be addressed to the Registrar of the High Court or District Court.

Rule 7.14A: inserted, on 30 April 2026, by rule 44 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **7.15 Electronic transmission of orders**

- (1) A Registrar may by arrangement with the recipient transmit electronically an order required to be filed with or sent to any office of the Court, any other court, or the Registrar-General of Land.
- (2) A Registrar may transmit electronically an order to any other person or party who has provided an electronic address for the purpose of service or communication.

### *Records of Court*

#### **7.16 Sound recording of proceeding**

The Registrar must ensure that—

- (a) an electronic sound recording is made of every proceeding in the Court; and
- (b) if the sound recording is not transcribed to form part of the permanent record, the sound recording is retained for 10 years after being made in a way that ensures both its safety and its ready accessibility.

**7.17 Minutes of proceeding**

- (1) The Registrar must, after consultation with the relevant Judge, ensure that minutes are made of every hearing of the Court, including all rulings, decisions, and orders made by a Judge or Registrar in the course of the hearing.
- (2) The minutes must—
  - (a) comply with rule 7.18; and
  - (b) be in hard-copy form for the permanent record but may be distributed electronically.
- (3) The Registrar must ensure that, as soon as practicable after a sitting of the Court, the minutes are submitted to the Judge for approval.
- (4) Minutes must be—
  - (a) printed on good-quality paper, authenticated by the Judge's signature on each page, and inserted into a suitable binder; and
  - (b) referenced by reference to volumes and folios, with a maximum of 300 folios per volume; and
  - (c) indexed in an index listing the block, deceased, or other subject of the application and the appropriate minute book reference.
- (5) Minutes, once completed in accordance with rule 7.17(4), must—
  - (a) be imaged or copied and stored in electronic form on an information system that complies with rule 7.23(3); and
  - (b) be available in that form for normal office use and for searching by the public (*see also* rule 7.21(2A)).
- (6) Minutes of a hearing by a Registrar must be approved and signed on each page by the Registrar.

Compare: SR 1994/35 r 164

Rule 7.17(2)(b): amended, on 30 April 2026, by rule 45(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 7.17(5)(b): amended, on 30 April 2026, by rule 45(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**7.18 Content of minutes**

- (1) The minutes must include the following:
  - (a) a full transcript of the hearing taken from the electronic sound recording made under rule 7.16 if—
    - (i) the application is opposed; or
    - (ii) the application affects the beneficial estate in title to land (other than an unopposed application for succession or for a vesting order); and



- (b) a summary of the relevant facts, issues, evidence, and submissions in the case of any other application, unless a Judge directs that the minutes include a full transcript; and
  - (c) a full transcript of any decision, determination, or order of the Court.
- (2) Despite rule 7.18(1), a Judge may, in the case of an application of a civil nature to which rule 9.1 applies, direct that—
  - (a) a full transcript of the hearing is not required (which direction must be recorded in the minutes); and
  - (b) the minutes include a summary of the relevant facts, issues, evidence, and submissions.
- (3) In any case in which briefs of evidence are produced and taken as read, or submissions are filed, the minutes—
  - (a) need not, unless a Judge directs otherwise, include the briefs or submissions; but
  - (b) must record the production of the briefs or the filing of the submissions; and
  - (c) must record that the briefs or submissions are held on the Court file.
- (4) A Judge may require that the minutes include the minutes of a judicial conference held under section 67 of the Act.

#### **7.19 Permanent record**

The permanent record of the Court comprises—

- (a) the minute books, that is, the books or binders containing the hard-copy record of the proceedings of the Court; and
- (b) the files of the Court containing the hard-copy applications and other documents or materials compiled by the Court in respect of each proceeding; and
- (c) original orders and recommendations issued by the Court or a Registrar; and
- (d) instruments of alienation, statements of account, block order files, or other documents or plans, or copies of any of them relevant to the Court title record and deposited with or held by the Court; and
- (da) any reports provided to the Court by a mediator under Part 4A; and
- (e) any other documents, plans, materials, or records that—
  - (i) a Judge or Registrar considers necessary to preserve the Court's historical record of title and ownership; or
  - (ii) a Judge or Registrar considers necessary for the Court to function as a court of record; or
  - (iii) are required to be kept or maintained under the Act; and

- (f) any copy or image of any of the material in rule 7.19(1)(a) to (e) that is kept in electronic form in accordance with rule 7.23; and
- (g) any other record of the Court kept in electronic form in accordance with rule 7.23.

Compare: SR 1994/35 r 165

Rule 7.19(da): inserted, on 30 April 2026, by rule 46 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## **7.20 Custody of permanent record**

- (1) Subject to rule 7.20(2), the permanent record must be kept in safe custody at the office of the Court in the district to which the information contained in the record relates or in an information system held by the Court (*see* rule 7.23).
- (2) The permanent record may be moved from the office of the Court in which it is kept if—
  - (a) its removal is necessary for its preservation or safe keeping; and
  - (b) the Chief Judge and the Chief Registrar have consented; and
  - (c) the Court continues to have reasonable access to it.

Compare: SR 1994/35 r 166

Rule 7.20(1): amended, on 30 April 2026, by rule 47 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## **7.21 Access to permanent record**

- (1) The Registrar must provide reasonable access without charge to the permanent record.
- (2) In the case of a part of the permanent record that is in electronic form, the Registrar provides reasonable access if access to the electronic form is available at an office of the Court during working hours.
- (2A) The minute books must also be available on an Internet site maintained by the Court.
- (3) The Registrar may on request and on payment of the prescribed fee (if any) supply to any person a copy of any order bearing the endorsement “Copy issued” and the date and the stamp of the Court.
- (4) The Registrar may on request and on payment of the prescribed fee (if any) supply to any person a copy of any other document that is part of the permanent record.
- (5) The Registrar may in his or her discretion provide access to any item of the permanent record in hard-copy form (including any part put into storage under rule 7.25) having regard to—
  - (a) the purpose for which access is sought; and
  - (b) the availability and condition of the same item in electronic form; and
  - (c) the condition of the hard copy and the need for its preservation.

- (6) A person who is dissatisfied with the decision of a Registrar in respect of access by that person to the permanent record may request that the Registrar's decision be reviewed by a Judge, who must then either uphold the Registrar's decision or direct that access be given.

Rule 7.21(2A): inserted, on 30 April 2026, by rule 48 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## 7.22 Maintenance of permanent record

- (1) The Chief Registrar is responsible for the overall maintenance and safe custody of the permanent record.
- (2) The Registrar of the Court in each district is responsible for the—
- (a) maintenance and safe custody of the parts of the permanent record held in the registry of that district or under the Registrar's power and control; and
  - (b) maintenance and safe custody of the current Māori Land Court title record for that district.
- (3) If the permanent record is kept in electronic form on an information system in accordance with rule 7.23, the Registrar of any district is not responsible for any entry in the title records for land within that district made by another Registry unless full particulars for the entry, including the time and date of the entry, are provided to that Registrar by the Registry making the entry.

## 7.23 Electronic form of permanent record

- (1) This rule and rules 7.24 and 7.25 address and recognise—
- (a) the intent of the Court to convert and capture the existing permanent record of the Court (the **hard-copy record**) and the current and future permanent record of the Court (the **continuing record**) in electronic form on an information system held by the Court:
  - (b) that a large proportion of the hard-copy record has, for reasons of protection and preservation, been copied and is held and accessed in electronic form on an information system held by the Court:
  - (c) that the continuing record, although produced in hard-copy form, is being copied, captured, and accessed in electronic form on an information system held by the Court:
  - (d) that although the Court is required under these rules to make orders and produce minutes in hard-copy form, provision is made for these documents to be converted to an electronic form and used or accessed in that form:
  - (e) that the intent of the Court is eventually to hold, store, and manage the whole of the permanent record in electronic form on an information system held by the Court.

- (2) The permanent record comprising the hard-copy record and the continuing record, or a part of it, may be kept in electronic form on an information system at an office of the Court or on a central information system under the control of the Ministry of Justice if the information system complies with rule 7.23(3).
- (3) The information system must—
  - (a) reliably preserve the integrity of the information contained in the permanent record (the **information**); and
  - (b) allow ready access to the information for subsequent reference; and
  - (c) allow access to the information in a form and by a means that preserves the integrity of the information; and
  - (d) reproduce, in reasonable quality having regard to the originals, records of documents or other images stored in it; and
  - (e) allow access to the information in any office of the Court and, if these rules require or allow, access to the information on an Internet site maintained by the Court; and
  - (f) provide for the comprehensive indexation of the information to facilitate searching the information; and
  - (g) include and be administered with such security and back-up systems as will absolutely preserve and protect the content of the permanent record.

Rule 7.23(3)(e): amended, on 30 April 2026, by rule 49 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **7.24 Status of electronic form of permanent record**

- (1) Any part of the permanent record held in electronic form under rule 7.23 constitutes the official record of the Court of that part.
- (2) An amendment that is made under section 44 or 86 of the Act to a part of the permanent record that is in electronic form must be made to—
  - (a) the electronic record; and
  - (b) also to any original hard-copy record that is held in the Court system or has been retired and stored under rule 7.25.
- (3) The electronic form of the permanent record is to be used as the working record of the Court but—
  - (a) the hard-copy record may be used to resolve any question as to the accuracy of the electronic record; and
  - (b) a Judge, if satisfied that an error or omission has occurred in the process of converting the permanent record to electronic form, may direct that the error or omission be corrected.
- (4) A direction under rule 7.24(3)(b) must be given in a minute of the Court entered in the appropriate minute book and the Registrar making the correction

must note on the entry that it has been made under rule 7.24(3)(b) and must include in the note the date and reference of the minute.

#### **7.25 Storage of permanent record in hard-copy form**

- (1) On the replacement of a part of the permanent record in hard-copy form with the corresponding part in electronic form, the Chief Registrar, with the consent of the Chief Judge, may remove the hard-copy form for storage that meets the requirements of rule 7.25(2).
- (2) The storage of the permanent record in hard-copy form must—
  - (a) be secure; and
  - (b) be appropriate for the storage and preservation of records of the kind in question; and
  - (c) allow ready access for inspecting and searching the permanent record.
- (3) The Registrar must, in accordance with rule 7.21(5) and (6), permit reasonable access without charge to the permanent record in storage under this rule.

### **Part 8**

#### **Reconsideration of decision**

##### *Review of determination of Registrar under section 113A or 235A of Act*

Heading: inserted, on 30 April 2026, by rule 50 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **8.1AAA Review of determination by Registrar**

- (1) Any person affected by a determination of a Registrar under section 113A or 235A of the Act may apply to the Court for a review of that determination within the time provided in section 113A(6) or 235A(7) of the Act.
- (2) A review application must be made in form 11B.
- (3) The Registrar must refer the application to a Judge, who must consider whether a review of the determination will be decided by a Judge on the papers or set down for hearing under Part 5 (*see* section 113A(6)(b) or 235A(7)(b) of the Act).

Rule 8.1AAA: inserted, on 30 April 2026, by rule 50 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **8.1AAB Decision on review by Judge on papers**

- (1) If the review of a Registrar's determination is dealt with on the papers by a Judge, the Judge may—
  - (a) affirm, vary, or annul the determination or otherwise exercise the Court's jurisdiction in the matter; or
  - (b) direct that the application that was the subject of the determination be set down for hearing under Part 5.

- (2) Following a Judge's decision under rule 8.1AAB(1), a person affected by that decision may do either or both of the following:
- (a) apply for leave to apply under section 43 of the Act for a rehearing of the Judge's review decision (*see* section 113A(7) or 235A(8) of the Act);
  - (b) appeal against any final order to the Māori Appellate Court.

Rule 8.1AAB: inserted, on 30 April 2026, by rule 50 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### *Rehearing*

#### **8.1 Rehearing**

- (1) An application for a rehearing under section 43 of the Act may be made—
- (a) during the sitting in which the decision in the matter to be reheard was given, in which case the application may be made in open court or in writing to the clerk of the Court; and
  - (b) at any other time, in writing to the Registrar.
- (2) The application must set out the grounds relied upon.
- (3) The application may be considered and determined without notice in the Pānui (except to the extent that it must be notified under rule 6.6), without notice to any party, and without any appearance by the applicant if the Court is satisfied that, on the face of the application, there has been a breach of procedure or natural justice so serious that an order of rehearing is clearly warranted.
- (4) A matter may be reheard by the same Judge who first heard it or by any other Judge, and may be reheard at the same sitting or at any other sitting of the Court.
- (5) Where the rehearing takes place at any other sitting of the Court, the original application must be notified and processed in accordance with these rules.

Compare: SR 1994/35 r 71

Rule 8.1(3): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### *Application to Chief Judge to correct mistake or omission*

#### **8.2 Application to Chief Judge under section 45 of Act**

- (1) An application under section 45 of the Act must be in form 12.
- (1A) The application may be filed in any office of the Court and rule 4.1(2) applies.
- (2) The following matters must be set out in the application:
- (a) in respect of the order or certificate of confirmation that is the subject of the application,—
    - (i) the date of the order or certificate; and
    - (ii) a description of the land affected; and

- (iii) the names of the owners affected or, in the case of succession, the name of the deceased:
  - (b) in respect of the mistake or omission sought to be corrected,—
    - (i) a statement of the nature of the mistake or omission, who made it, and how; or
    - (ii) if the mistake is an error of law, the nature of that error:
  - (c) in any case where whakapapa is alleged to be incorrect, the applicant's version of the correct whakapapa:
  - (d) details as to how the applicant or the person on whose behalf the application is made has been adversely affected by the order or certificate in question:
  - (e) the names and, where obtainable, the addresses of those persons who might be affected if the application is granted.
- (3) The application must be notified in the Pānui under rule 5.3 and continue to be notified until either it is determined or set down for inquiry and report under section 46 of the Act.

Compare: SR 1994/35 rr 85, 86

Rule 8.2(1): amended, on 30 April 2026, by rule 51(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 8.2(1A): inserted, on 30 April 2026, by rule 51(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 8.2(3): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **8.3 Chief Registrar or Registrar must make preliminary report**

- (1) On receiving an application made under section 45 of the Act, the Chief Registrar must without delay—
- (a) forward a copy of the application to the Chief Judge; and
  - (b) either—
    - (i) obtain all relevant files and records of the Court relating to the application and prepare a preliminary report that complies with rule 8.4; or
    - (ii) direct a Registrar to do so.
- (2) The report must be signed by the Chief Registrar or the Registrar, as the case may be.
- (3) The Chief Registrar must forward the report, the application file, and all other relevant files and materials to the Chief Judge.
- (4) The Chief Judge may at any time specify that a report be prepared by a Registrar or that a further report be made by the Chief Registrar or a Registrar.

Compare: SR 1994/35 r 87

#### **8.4 Content of preliminary report**

The preliminary report must contain the following:

- (a) a concise history of the order or certificate sought to be corrected:
- (b) details of the mistake or omission alleged by the applicant:
- (c) details of any evidence or findings by the Court in which the mistake or error is alleged to have occurred:
- (d) details of any other evidence or findings by the Court that might be material to the application:
- (e) details of subsequent orders of the Court affecting land to which the application relates:
- (f) details of any payments made as a result of the order or certificate sought to be corrected, whether by the Māori Trustee or by any other person:
- (g) particulars of any moneys currently held in trust that might be affected by an order made as a result of the application:
- (h) consideration as to whether the matter should go to a full hearing or whether the mistake or omission alleged is clearly apparent from the Court's own record:
- (i) a recommendation as to the course of action to be taken, including whether an injunction should be issued to protect moneys currently held in trust.

#### **8.5 Notice to persons affected**

The Chief Judge or any Court to which an application has been referred under section 46 of the Act may—

- (a) require the applicant to give notice of the application to the persons affected by it, or as many of them as can be located; or
- (b) direct the Registrar to give that notice.

Compare: SR 1994/35 r 88

#### **8.6 Registrar must give notice of decision**

The Registrar must give notice without delay of a decision made under section 44 of the Act to—

- (a) the applicant; and
- (b) any other persons affected whose address is known; and
- (c) the solicitor or agents for the applicant and any other person affected.

Compare: SR 1994/35 r 89



### **8.7 Procedure on cancellation or amendment of order**

- (1) The Registrar must enter details of an order made under section 44 of the Act against the electronic form (if any) of the following records of the Court that are affected by the order:
  - (a) the original order or certificate of confirmation;
  - (b) the minute recording the making of that order or certificate;
  - (c) the memorial schedule for the title to any land to which the order applies.
- (2) The entry must also be made against of any of the records referred to rule 8.7(1) that are held in hard-copy form either in the Court record system or retired and held in storage under rule 7.25.
- (3) The endorsement must state that the order or certificate is cancelled or amended, as the case may be, and include the reference and date of the order under section 44 of the Act.
- (4) The Registrar must similarly endorse any order, record, or document made, issued, or kept by the Court that is consequentially amended under section 47(4) of the Act.

Compare: SR 1994/35 rr 90, 91

## *Appeal*

### **8.8 Notice of appeal**

A notice of appeal must—

- (a) be in form 13; and
- (b) set out full details of the grounds of appeal and the relief sought, or have attached to it a statement that sets out the basis of the appeal in sufficient detail to inform the Court and any other party what the basis of the appeal is; and
- (c) be signed by the appellant or the appellant's solicitor; and
- (d) be filed—
  - (i) within 2 months after the date of the minute of the order that is appealed from; or
  - (ii) if leave has been granted to appeal out of time under rule 8.14, within the extended time allowed.

Compare: SR 1994/35 r 170

### **8.9 Filing of notice of appeal**

- (1) A notice of appeal may be filed in any office of the Court and rule 4.1(2) applies.

- (2) With any necessary modifications, the following rules apply to filing a notice of appeal:
- (a) rules 4.7 to 4.9;
  - (b) rule 4.10, except that the reference in rule 4.10(3) to a Judge must be read as a reference to the Chief Judge;
  - (c) rule 4.22.
- (3) On receipt of a notice of appeal, the Chief Registrar must without delay notify the Registrar of the Court whose order is appealed against and that Registrar must as soon as practicable forward to the Chief Registrar the files and other documents that are necessary for the preparation of the record on appeal.
- (4) The Chief Registrar must ensure that the appeal is notified in the Pānui under rule 5.3 and continues to be notified until it is determined or set down for hearing.
- Rule 8.9(1): replaced, on 30 April 2026, by rule 52 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).
- Rule 8.9(4): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **8.10 Notification of appeal**

- (1) Within 15 working days after a notice of appeal is filed, the Chief Registrar must—
- (a) serve a copy of the notice of appeal and every accompanying document on the following persons:
    - (i) every person identified in the notice of appeal as a respondent;
    - (ii) every other person who was a party to the proceeding that is the subject of the appeal;
    - (iii) any barrister, solicitor, or agent representing any of the persons in rule 8.10(1)(a)(i) or (ii); and
  - (b) give notice, to any person whose attendance is recorded at the proceeding that is the subject of the appeal or who appears from the record of that proceeding to be a person who should be notified, stating—
    - (i) that a notice of appeal has been filed; and
    - (ii) briefly the grounds of appeal; and
    - (iii) that any person who wishes to be notified of further details of the appeal (including the time, date, and place of hearing) should advise the Court within 10 working days after the date of the notice; and
    - (iv) that any person who wishes to appear in support of the appeal or in opposition to it must file a notice of intention to appear within 10 working days after the date of the notice.

- (2) The Chief Registrar must then without delay forward the notice of appeal and the file of the order or decision that is the subject of the appeal to the Chief Judge and include with the file a summary of the notification given under this rule.
- (3) The Chief Registrar must provide the parties, any person who has filed a notice of intention to appear, and any person who has advised the Court under rule 8.10(1)(b)(iii) with—
  - (a) copies of all directions, rulings, and decisions of the Māori Appellate Court in respect of the appeal; and
  - (b) notice of at least 15 working days of time, date, and place of hearing of the appeal.

Compare: SR 1994/35 r 171

#### **8.11 Chief Judge must take steps for hearing of appeal**

- (1) The Chief Judge, on receiving a notice of appeal, must—
  - (a) fix the date, time, and place of hearing of the appeal, which must be held in the district of the Court whose order is the subject of the appeal or at some other venue as agreed by the Chief Judge and the parties; and
  - (b) fix security for costs (if any) and the date for payment of the security; and
  - (c) appoint an appeal panel comprising a presiding Judge and at least 2 other Judges to act as the Māori Appellate Court to hear the appeal.
- (2) However, the Chief Judge may defer taking any of the steps in rule 8.11(1) in order to deal with interlocutory or preliminary matters under rule 8.17.
- (3) The date of the hearing of the appeal must be at least 2 months after the date of the order that is the subject of the appeal unless—
  - (a) the Court has given leave for the issue of a duplicate order under rule 7.5(2)(b); or
  - (b) the Chief Judge is satisfied that there is special reason to hear the appeal promptly and that it is in the interests of justice to do so.
- (4) The sum of money fixed by the Chief Judge as security for costs must be deposited with the Chief Registrar within the time fixed for payment or any extension of that time.
- (5) The money deposited as security for costs—
  - (a) must be held by the Chief Registrar in an account established for that purpose by the Chief Registrar; and
  - (b) may not be disbursed except by order of the Court.

Rule 8.11(3): amended, on 30 April 2026, by rule 53(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 8.11(3)(b): amended, on 30 April 2026, by rule 53(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**8.12 Powers and duties of Deputy Chief Judge in relation to appeals**

The Deputy Chief Judge may, with the authority of the Chief Judge, exercise any of the powers or perform any of the duties of the Chief Judge under rules 8.11, 8.14, and 8.17.

**8.13 Leave to appeal from provisional or preliminary determination**

- (1) An application for leave to appeal under section 59 of the Act from a provisional or preliminary determination of the Court may be made—
  - (a) orally in court during the sitting at which the provisional or preliminary determination was made; or
  - (b) in writing lodged with the clerk of the Court during that sitting; or
  - (c) in writing lodged with the Registrar.
- (2) The application must—
  - (a) be in form 14; and
  - (b) be lodged within 1 month after the date on which the determination was made or within any later time allowed by a Judge; and
  - (c) specify the grounds for making the application.
- (3) Unless the Court otherwise directs, the application may be considered and determined without notice in the Pānui (except to the extent that it must be notified under rule 6.6), without notice to any party, and without any appearance by the applicant.
- (4) Notice of the appeal must be filed within 2 months after the date on which the Court grants leave to appeal or within any shorter time prescribed by the Court.

Compare: SR 1994/35 r 169

Rule 8.13(1)(a): amended, on 30 April 2026, by rule 54 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 8.13(3): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**8.14 Leave to appeal out of time**

- (1) An appellant who seeks leave to appeal out of time under section 58(3) of the Act must—
  - (a) file an application that complies with rule 8.14(2); and
  - (b) file a notice of appeal in accordance with rule 8.8.
- (2) The application must—
  - (a) be in form 12A and seek an extension of time for filing a notice of appeal; and
  - (b) set out the reasons for the delay in filing a notice of appeal; and
  - (c) set out the grounds on which the extension is sought.
- (2A) The application may be filed in any office of the Court, and rule 4.1(2) applies.

- (3) The Chief Registrar must refer the application to the Chief Judge, who must constitute the Māori Appellate Court to deal with the application.
- (4) The Māori Appellate Court may hear the application in a formal hearing, in which case the application must be set down for a fixture and notified, or it may deal with the application in accordance with the procedure set out in rule 8.20.
- (5) If the application is heard in a formal hearing, the appeal may be set down to be heard in the same hearing.

Rule 8.14(1)(a): amended, on 30 April 2026, by rule 55(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 8.14(2)(a): amended, on 30 April 2026, by rule 55(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 8.14(2A): inserted, on 30 April 2026, by rule 55(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **8.15 Notification in Pānui**

- (1) The Chief Registrar, on being advised by the Chief Judge as to the date, time, and place of the hearing of an appeal, must notify it in the next available Pānui.
- (2) If notification in the next available Pānui is too late for a particular appeal, it must be notified in a special Pānui under rule 3.16.

Rule 8.15 heading: amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 8.15(1): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 8.15(2): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **8.16 Record on appeal**

- (1) The Chief Registrar must, on being directed to do so by the Chief Judge or the Deputy Chief Judge, without delay compile a record on appeal and—
  - (a) provide a copy to each member of the Māori Appellate Court that will hear the appeal in question; and
  - (b) not later than 15 working days before the hearing of the appeal, provide a copy to each party to the appeal.
- (2) The record on appeal must contain as much of the following material as is relevant to the grounds of appeal:
  - (a) the Court file containing the application in question and other documents received or compiled by the Court in respect of the application, including any report made under rule 5.6(3);
  - (b) the Court's notes and transcription of the hearing of the application;
  - (c) the order or determination appealed against;

- (d) instruments of alienation, statements of account, and other documents or plans deposited in the Court that relate to the subject of the application;
  - (e) the Court file containing the notice of appeal and other documents received or compiled by the Court in respect of the appeal;
  - (f) any other material directed by the Māori Appellate Court to be included.
- (3) The record on appeal must—
- (a) be numbered consecutively and indexed; and
  - (b) include a full transcript of the hearing that is the subject of the appeal, unless the presiding Judge rules otherwise.

### **8.17 Preliminary and interlocutory matters**

- (1) Interlocutory and preliminary matters to be determined before the hearing of the appeal may be determined by—
- (a) the Chief Judge, before the appointment of the appeal panel; or
  - (b) the presiding Judge of the Māori Appellate Court, after the appointment of the appeal panel.
- (2) The Chief Judge, or the presiding Judge following consultation with other members of the Māori Appellate Court, as the case may be, may do any of the following:
- (a) canvass with the parties alternative procedures for the disposal of the appeal, including a reference to mediation or a hearing by remote conference procedures;
  - (b) hold a judicial conference under section 67 of the Act;
  - (c) determine an application filed before the hearing for leave to amend the grounds of appeal;
  - (d) determine any issue of costs or security for costs arising under rule 8.23 where the appeal is withdrawn before the hearing.
- (3) The presiding Judge may, on an application by the appellant,—
- (a) extend the time for lodging security for costs in the appeal; and
  - (b) with the approval of the Chief Judge, reduce or waive the amount ordered to be paid as security for costs in the appeal.

### **8.18 Hearing of further evidence**

- (1) The parties to an appeal may not adduce further evidence at the hearing of the appeal but are restricted to the evidence recorded as adduced before the Court that made the order or determination appealed from.
- (2) However, the Māori Appellate Court may grant leave to a party to adduce further evidence if it is satisfied that the further evidence may be necessary for it to reach a just decision.
- (3) An application for leave to adduce further evidence must—

- (a) be filed and notified to the other parties to the appeal not less than 1 month before the hearing of the appeal; and
- (b) clearly disclose the nature and the form of the evidence to be adduced.

Compare: SR 1994/35 r 173(3)–(7)

#### **8.19 When Māori Appellate Court may dismiss appeal without hearing**

- (1) The Māori Appellate Court may dismiss or otherwise dispose of an appeal without a formal hearing where—
  - (a) the appeal is withdrawn before the hearing;
  - (b) the appellant has failed to comply with an interlocutory order or direction;
  - (c) the appellant has failed to pay security for costs by the date fixed for payment or, if an extension has been granted, the extended date;
  - (d) it is clear on the face of the appeal that the Māori Appellate Court does not have jurisdiction to hear the appeal.
- (2) The Māori Appellate Court may, without a formal hearing, allow the appeal and order that the matter be reheard if—
  - (a) it is clear on the face of the appeal that the matter should be reheard; and
  - (b) the parties consent.

Compare: SR 1994/35 r 174

#### **8.20 Māori Appellate Court may convene without formal hearing to determine certain matters**

- (1) The Māori Appellate Court may convene without a formal hearing for the purpose of dealing with any of the following matters:
  - (a) any interlocutory or preliminary matter referred to it by a presiding Judge, including a matter referred to in rule 8.17;
  - (b) a settlement conference or the making of an order by agreement;
  - (c) dismissal of an appeal under rule 8.19 for non-compliance with an interlocutory order or other direction or for non-payment of security for costs;
  - (d) with the consent of the parties, the hearing of the appeal or any issue or argument arising out of the appeal;
  - (e) the withdrawal of the appeal.
- (2) In a matter referred to in rule 8.20(1), the Māori Appellate Court may, after considering representations made to it, direct that the parties file written submissions and determine the matter on the basis of those submissions.
- (3) An order or a determination made by the Māori Appellate Court under this rule must be signed by the presiding Judge and endorsed with a note that it is made under this rule.

Rule 8.20(1): amended, on 30 April 2026, by rule 56 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **8.21 Conduct of appeal hearing**

- (1) The following persons may be heard in support of the appeal or may put forward a claim contrary to the order of determination appealed from:
  - (a) the appellant;
  - (b) any other party to the appeal;
  - (c) a person who has filed a notice of intention to appear;
  - (d) any other person with the leave of the Māori Appellate Court.
- (2) The appellant may not, except with the leave of the Māori Appellate Court, rely on a ground of appeal unless it is set out in the notice of appeal or amended notice of appeal that has been notified to the other parties.

Compare: SR 1994/35 r 173(2), (10)

### **8.22 Reinstatement of appeal**

- (1) The Chief Judge may at any time make an order reinstating an appeal that has been dismissed under rule 8.19 upon the terms that the Chief Judge thinks fit.
- (2) The Chief Registrar must give notice of an order made under this rule to the parties to the appeal and to any person who has filed a notice of intention to appear.

Compare: SR 1994/35 r 174(4)

### **8.23 Withdrawal of appeal**

- (1) The appellant may withdraw the appeal—
  - (a) by notice in writing to the Chief Registrar, at any time before the hearing of the appeal;
  - (b) at the hearing.
- (2) Where the appellant withdraws the appeal, the Māori Appellate Court may make an order as it thinks just for—
  - (a) the payment of any costs relating to the appeal; and
  - (b) the disbursement of any sum that has been lodged as security for costs.

Compare: SR 1994/35 r 175(3)

### *Case stated*

### **8.24 Procedure for stating case**

- (1) Where a case is stated under section 60 or 72 of the Act, the procedure set out in rules 8.25 to 8.27 applies unless—
  - (a) the Court of hearing directs otherwise; or
  - (b) the Court of hearing itself prepares the case stated.



- (2) Where the Court of hearing itself prepares the case stated, the Court must forward a draft to the parties for approval before finally settling the case stated.

#### **8.25 Responsibility for preparing case stated**

- (1) Where a case is stated on the application of 1 only of the parties, that party must prepare the case stated and submit it—
  - (a) first, to the other parties for their approval; and
  - (b) after approval by all the parties, to the Court of hearing for its approval.
- (2) Where a case is stated on the initiative of the Court of hearing or with the consent of all the parties, the applicant or the appellant, as the case may be, must prepare the case stated and submit it—
  - (a) first, to the other parties for their approval; and
  - (b) after approval by all the parties, to the Court of hearing for its approval.
- (3) If the parties cannot agree on the matters to be set out in the case stated or the questions of law to be determined, the dispute must be determined by the Judge or presiding Judge, as the case may be.
- (4) In each case, the Court of hearing must finally settle the question of law to be determined.

#### **8.26 Form of case stated**

A case stated must—

- (a) be in form 15 if it is to the High Court or in a similar form to form 15 if it is to the Māori Appellate Court; and
- (b) state clearly and concisely in consecutively numbered paragraphs the facts and any reference to documents giving rise to the question of law to be determined.

#### **8.27 Case stated for High Court**

- (1) Where the Court seeks the leave of the Chief Judge to state a case for determination by the High Court under section 72 of the Act, the Court must submit the case stated to the Chief Judge for approval together with a statement of the facts that in the Court's opinion are relevant to determining whether leave should be given.
- (2) The case stated, after leave is given by the Chief Judge, must be finally settled under rule 8.25 and transmitted by the Registrar to the Registrar of the High Court nearest to which the subject matter of the application or appeal is situated.
- (3) A case stated by the Māori Appellate Court for determination by the High Court must be filed in the Māori Appellate Court in triplicate and 1 copy of the case stated must be transmitted by the Registrar to the Registrar of the High Court nearest to which the subject matter of the appeal is situated.

- (4) The party responsible under rule 8.25 for preparing the case stated must pay the fee (if any) payable on the case stated being sent to the High Court.

## **Part 9**

### **Civil applications, injunctions, and other applications**

#### *Civil applications*

#### **9.1 Types of civil application**

- (1) Rules 9.2 to 9.4 apply to the following applications, which are civil in nature:
- (a) an application for damages for trespass or other injury to Māori freehold land (section 18(1)(c) of the Act);
  - (b) an application founded on contract or tort where the debt, demand, or damage relates to Māori freehold land (section 18(1)(d) of the Act);
  - (c) an application for the recovery of Māori freehold land (section 20 of the Act);
  - (d) an application for relief against the cancellation of a lease of Māori freehold land (section 21 of the Act);
  - (e) an application for relief against the refusal of the lessor of Māori freehold land to extend or renew the lease, etc (section 22 of the Act);
  - (f) an application for the specific performance of a lease of Māori freehold land or of General land owned by Māori that ceased to be Māori land under Part 1 of the Maori Affairs Amendment Act 1967 (section 22A of the Act);
  - (g) an application for entry on to neighbouring Māori freehold land (section 23 of the Act);
  - (h) an application for relief for a wrongly placed structure on Māori freehold land (section 24 of the Act);
  - (i) an application to determine a claim, dispute, or question arising under the Fencing Act 1978 in respect of Māori freehold land or General land owned by Māori (section 26 of the Act).
- (2) The Court may adapt or amend the procedure set out in rules 9.2 to 9.4 to fit the circumstances of a particular case, whether on its own initiative or at the request of a party.
- (3) Rules 9.2 to 9.4 apply to an application listed in rule 9.1(1) notwithstanding that the application also claims an injunction as a remedy.

#### **9.2 Form of civil application**

An application to which this rule applies must—

- (a) be in form 1; and

- (b) be filed in duplicate; and
- (c) comply with rule 4.2; and
- (d) state the following matters (in an accompanying statement, if they cannot be conveniently included in form 1):
  - (i) the general nature of the applicant's claim; and
  - (ii) relevant particulars of time, place, amounts, names of persons, dates of documents or other records, and other circumstances in sufficient detail to fully and fairly inform the Court and the other parties of the nature and grounds of the applicant's claim; and
  - (iii) in a separate paragraph for each ground for making the application or for each issue in dispute, a statement of that ground or issue and, if separate amounts are claimed in respect of separate grounds or issues, the amount claimed in respect of that ground or issue; and
  - (iv) the nature and particulars of any damages that are claimed, and their amounts; and
  - (v) the nature of any other relief or remedy that is claimed.

### **9.3 Notification and service of civil application**

- (1) The following rules apply to notification and service of a civil application:
  - (a) rules 9.2 and 9.3 to the exclusion of rule 4.13;
  - (b) rule 4.22 applies to the method of service.
- (2) However, a Judge may direct further notification or service (including method of service) as he or she thinks fit.
- (3) When an application to which this rule applies is filed, the Registrar must without delay—
  - (a) allocate a provisional fixture for hearing the application on a date that is not less than 1 month after the application is filed; and
  - (b) refer the application to a Judge for directions; and
  - (c) subject to any directions from the Judge,—
    - (i) complete a notice in form 16; and
    - (ii) attach that notice to the duplicate of the application; and
    - (iii) forward the duplicate and the form 16 notice to the applicant.
- (4) The applicant must—
  - (a) serve a copy of the duplicate and the form 16 notice on the respondent named in the application not less than 10 working days before the date of the provisional fixture allocated by the Registrar under rule 9.3(3)(a); and

- (b) either file an affidavit of service of the documents on the defendant or produce other evidence of that service at the hearing.
- (5) In giving directions under rule 9.3(3)(b), a Judge may direct that the provisional fixture be confirmed, in which case the Registrar must amend form 16 to refer to the confirmed fixture.

#### **9.4 Respondent may file notice of intention to appear**

- (1) A respondent who intends to defend the application must, within 10 working days after service of the application and the form 16 notice,—
  - (a) file in the Court a notice of intention to appear in accordance with rule 5.9; and
  - (b) serve a copy of the notice of intention to appear on the applicant.
- (2) If, within the time for filing a notice of intention to appear (including any extension of time granted by a Judge), the respondent fails to do so, then the Court—
  - (a) may proceed to hear the application on the provisional date (or such other date as is fixed by the Court) in the absence of the respondent, and without further notice to the respondent; and
  - (b) on the production by the applicant of sufficient evidence in support of the application, may give judgment for the applicant.

### *Injunctions*

#### **9.5 Application for injunction**

- (1) An application for an injunction under section 19 of the Act must be in form 16A unless the Court gives leave for the application to be made in the course of a proceeding.
- (2) On receipt of an application for an injunction, the Registrar must without delay refer it to a Judge for directions.
- (3) The Court may give directions as to who must arrange for the service of the application, and how it must be served.
- (4) Unless the Court directs otherwise, the applicant must arrange for the application to be served by way of personal service.
- (5) Except where the application is urgent, the Court may hear the application after reasonable notice of the application has been given to the parties.

Compare: SR 1994/35 r 81(1)–(5)

Rule 9.5(1): amended, on 30 April 2026, by rule 57 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## **9.6 Urgent application for injunction**

- (1) An urgent application must be accompanied by an affidavit or statutory declaration verifying the facts stated in the application and setting out the reasons for urgency.
- (2) The applicant must, on the same day as the application is filed, send to the respondent by ordinary post—
  - (a) a copy of the application and the supporting documents; and
  - (b) notice stating that the application has on that day been filed, the Court in which it has been filed, and that it has been made as an urgent application.
- (3) An urgent application for an interim injunction may be considered and determined without notice in the Pānui (except to the extent that it must be notified under rule 6.6), without notice to any party, and without any appearance by the applicant.
- (4) Where the Court grants an injunction on an urgent application made without notification under rule 4.13 or in the Pānui, the substantive application must, unless the Court otherwise directs, be set down and heard in the first available sitting in accordance with rule 5.4.

Rule 9.6(3): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 9.6(4): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## **9.7 Order of injunction**

- (1) Unless the Court directs otherwise, the applicant must arrange for the service of the order, and service must be by way of personal service.
- (2) The Court may order that the injunction binds not only the respondent but also the respondent's agents, employees, contractors, or invitees, even although only the respondent is named in the application.
- (3) Unless the order states otherwise, the order takes effect on the date on which it is made and may be issued from the Court immediately.

## **9.8 Enforcement of injunction**

- (1) The Chief Judge must not, under section 85 of the Act, send a copy of the order to a Registrar of the High Court unless either—
  - (a) an affidavit of service of the order has been filed in the Court; or
  - (b) a Judge has directed that service of the order is not required.
- (2) The copy of the order sent to a Registrar of the High Court must be accompanied by a memorandum in form 17.

- (3) A certificate given by a Judge under section 85(3) of the Act must be addressed to a Registrar of the High Court.

Compare: SR 1994/35 rr 81(8), 82

### **9.9 Cancellation of injunction**

- (1) The following persons may apply for the cancellation of an injunction:
- (a) the person against whom the order was made; or
  - (b) a Registrar; or
  - (c) any interested person.
- (2) The application may be considered and determined without notice in the Pānui (except to the extent that it must be notified under rule 6.6), without notice to any party, and without any appearance by the applicant if it is clear that the injunction is spent or has been overtaken by other events.
- (3) In all other cases, the application must be—
- (a) served on all the parties in accordance with rule 4.22; and
  - (b) notified under rule 4.13; and
  - (c) set down for a hearing.
- (4) If a copy of the injunction has been sent to the High Court under section 85 of the Act, the Registrar must send to the High Court a copy of the order cancelling the injunction.

Compare: SR 1994/35 r 83

Rule 9.9(2): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### *Other applications*

### **9.10 Application to restore effect of lost instrument of alienation**

- (1) An application under section 25 of the Act (an application to restore the effect of a lost instrument of alienation) must be accompanied by an affidavit—
- (a) setting out the circumstances in which the instrument of alienation was lost or destroyed; and
  - (b) annexing a copy of the instrument of alienation, if a copy exists; and
  - (c) containing all other information that is necessary for the Court to exercise its powers under section 25 of the Act.
- (2) On receipt of the application, the Registrar must—
- (a) attach to it a report on the relevant transaction, including any reference to the transaction that appears in the Court records; and
  - (b) refer the application to the Court for directions.
- (3) The Registrar must not allocate a fixture until the reference for directions has been dealt with by a Judge.

- (4) The application may be considered and determined without notice in the Pānui (except to the extent that it must be notified under rule 6.6), without notice to any party, and without any appearance by the applicant if the Court is satisfied that the alienation has been transacted in accordance with all legal requirements and has been given effect by the parties to it.

Compare: SR 1994/35 r 84

Rule 9.10(4): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**9.11 Request for advice on, or application for determination of, representation of Māori groups**

- (1) A request or an application under section 30 of the Act for advice on or the determination of representation of a class or group of Māori must be in form 18.
- (2) An application for the determination of representation must be accompanied by a statement setting out—
- (a) the name or identity of the class or group that is the subject of the application; and
  - (b) the names and addresses of any persons or bodies who it is claimed should be the representatives of the class or group or from whom those representatives should be drawn; and
  - (c) the names and addresses of any persons or bodies that currently represent or purport to represent the class or group on any matter; and
  - (d) the purpose for which the determination is sought; and
  - (e) any other information that is necessary for the Chief Judge to exercise his or her powers under section 30C of the Act.
- (3) An application for advice as to representation must be accompanied by a statement setting out—
- (a) as much of the information in rule 9.11(2)(a) to (c) as is relevant when regard is had to the nature of the application; and
  - (b) the purpose for which the advice is sought; and
  - (c) any other information that is necessary for the Chief Judge to exercise his or her powers under section 30B of the Act.
- (4) The application may be filed in any office of the Court, and—
- (a) rule 4.1(2) applies; and
  - (b) the Chief Registrar must refer the application without delay to the Chief Judge for directions.
- (5) The application must be notified in accordance with the directions of a Judge and is not required to be notified under rule 4.13.

Rule 9.11(4): replaced, on 30 April 2026, by rule 58 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**9.12 Application to appoint receiver**

- (1) An application for the appointment of a receiver under section 83 of the Act—
  - (a) must be in form 1; and
  - (b) must be accompanied by the proposed receiver's written consent to appointment; and
  - (c) may, in a case of urgency, be heard by the Court at any time on such notice as a Judge directs.
- (2) The Court may require a person (other than the Māori Trustee) who is appointed as a receiver under section 83 of the Act to give security for the proper exercise of that person's duties as receiver.
- (3) A receiver appointed under section 83 of the Act must—
  - (a) keep proper accounts of the receivership; and
  - (b) lodge with the Court from time to time or as the Court directs statements of account of the receivership; and
  - (c) pay into Court any surplus remaining after payment by the receiver of amounts authorised by the Court to be paid.

Compare: SR 1994/35 r 97

## **Part 9A**

### **Determination of succession and trust applications by Registrar without hearing**

Part 9A: inserted, on 30 April 2026, by rule 59 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**9A.1 Application of Part**

- (1) This Part applies to applications that—
  - (a) may be determined by a Registrar under section 113A (succession to interests in Māori freehold land) or 235A (trust matters) of the Act (an **application**); and
  - (b) are simple and uncontested.
- (2) In this Part,—**simple**—
  - (a) includes the examples given in section 113A(8)(a) or 235A(9)(a) of the Act (as relevant);
  - (b) includes an application under section 235A of the Act to remove a trustee who is deceased;
  - (c) includes an application under section 222 of the Act for the appointment of a trustee, and an application under section 239 of the Act for the addition, reduction, or replacement of a trustee;



- (d) includes the types of applications to be treated as simple identified in practice notes issued under rule 9A.2(a);
- (e) does not include an application under section 113A of the Act if 1 or more successors are whāngai children;
- (f) does not include an application under section 235A of the Act to constitute a trust under section 212, 215, or 216 of the Act;
- (g) does not include the types of applications to be treated as not simple identified in practice notes issued under rule 9A.2(a)

**uncontested** has the meaning given in section 113A(8)(b) or 235A(9)(b) of the Act (as relevant).

Rule 9A.1: inserted, on 30 April 2026, by rule 59 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **9A.2 Practice notes**

The Court may issue practice notes for the purposes of this Part—

- (a) identifying types of applications that are to be treated as simple or not simple;
- (b) setting out factors to consider when assessing whether an application of a type not listed in rule 9A.1(2) is simple or not simple.

Rule 9A.2: inserted, on 30 April 2026, by rule 59 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **9A.3 Who assesses and determines application**

The assessment and determination of an application under rule 9A.4 must be made by the Registrar of the Court in the district in which there is situated some or all of the land that is the subject of the application, unless rule 5.2 applies.

Rule 9A.3: inserted, on 30 April 2026, by rule 59 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **9A.4 Assessment of whether application is simple and uncontested**

- (1) If a Registrar considers that an application may be simple and it appears to be uncontested, they must make a formal assessment of both of these matters after—
  - (a) taking the relevant steps in rule 9A.4(2) and (3); and
  - (b) undertaking any notification or consultation requirements under any Act or these rules; and
  - (c) notifying the application in the Pānui (in accordance with any relevant requirements); and
  - (d) considering the information provided with the application; and
  - (e) considering any other information provided by the applicant or another person.

- (2) The Registrar may—
- (a) seek comment from the applicant on any information provided by another person;
  - (b) accept the information given to them by the applicant or another person as being factually correct;
  - (c) take steps to check the information received from either the applicant or another person if they have any doubts about the accuracy of the information.
- (3) Before making the assessment under rule 9A.4(1), the Registrar must advise the applicant that—
- (a) they consider the application may be simple, and that it appears to be uncontested, and they intend to determine the application without a hearing; and
  - (b) (if relevant) before determining the application, they are required to undertake the steps in rule 9A.4(4) (and give details of any notification or consultation requirements that apply in the case); and
  - (c) (if relevant) when determining the application, they are also able to determine certain related applications (and give details of any that apply in the case) and make orders; and
  - (d) the applicant may request that the application not be determined by a Registrar without a hearing and instead be dealt with by the Court.
- (4) Applications notified in the Pānui under rule 9A.4(1) must—
- (a) provide any person who objects to the application with the opportunity to advise the Registrar of that objection; and
  - (b) give a date by which objections must be received; and
  - (c) be listed under the heading “Succession and trust applications to be determined by Registrar”.

Rule 9A.4: inserted, on 30 April 2026, by rule 59 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **9A.5 Determination of application by Registrar**

- (1) A determination and any order made by the Registrar must be recorded in a minute that—
- (a) clearly states it is a determination or an order by the Registrar and not a minute of a Court proceeding;
  - (b) contains a summary of the information considered by the Registrar and the reasons for the determination or order;
  - (c) complies with rule 7.17(4) to (6).
- (2) A determination or an order may be reviewed by a Judge or the Court under rule 8.1AAA.

- (3) *See* rule 7.5 for the time for completion of an order.

Rule 9A.5: inserted, on 30 April 2026, by rule 59 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**9A.6 Referral of application to Judge if application no longer simple or uncontested**

- (1) If, for any reason during the process of assessing or determining an application, the Registrar no longer considers it to be simple or uncontested, they must refer it to a Judge.
- (2) The Judge must consider whether the application is simple and uncontested and—
- (a) if the Judge considers it is, the Registrar must determine the application:
- (b) if the Judge considers it is not, the Registrar must set the application down for hearing under Part 5.

Rule 9A.6: inserted, on 30 April 2026, by rule 59 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**Part 10**  
**Succession and related applications**

*Succession*

**10.1 Application for search of beneficial interest in Māori freehold land**

- (1) An application for the search by the Registrar of the beneficial interests of a deceased person in Māori freehold land must be in form 19.
- (2) On receipt of an application in form 19 or any application for succession, the Registrar must—
- (a) search all relevant records of the Court; and
- (b) complete a schedule that—
- (i) lists all beneficial interests in Māori freehold land that are known to have been owned by the deceased person at the date of his or her death; and
- (ii) includes the following details in relation to each beneficial interest listed:
- (A) the name of the block; and
- (B) the share held by the deceased in the block; and
- (C) the total shares in the block; and
- (D) the area of the block; and
- (E) details of alienations of, and encumbrances over, the interest; and

- (F) the derivation of the interest; and
  - (G) the value of the interest, if known.
- (3) For the purposes of these rules, the schedule referred to in rule 10.1(2)(b) is called the **Part 4 search**.  
Compare: SR 1994/35 r 100

## 10.2 Application for succession under section 113, 117, or 118

- (1) An application under section 113 of the Act to determine beneficial entitlements to Māori freehold land—
  - (a) must be in form 21 if administration of the estate has been granted or in form 22 if administration has not been granted; and
  - (b) may be made separately or as part of an application under section 117 or 118 of the Act.
- (2) An application for succession—
  - (a) under section 117 of the Act must be in form 21;
  - (b) under section 118 of the Act must be in form 22.
- (3) Where the application is made by the administrator of an estate, the administrator may—
  - (a) file a certificate in form 20 certifying—
    - (i) that the persons named in the certificate are entitled to succeed to the interest or interests to which the application relates; and
    - (ii) the basis of their entitlement to succeed; or
  - (b) elect to leave the matter to be determined by the Court on the evidence before it.

Compare: SR 1994/35 r 102

## 10.3 Application for succession: steps to be taken by Registrar on filing

On the filing of an application for succession under section 117 or 118 of the Act, the Registrar must—

- (a) make a search under rule 10.1 and place the resulting Part 4 search on the Court file in respect of the application; and
- (b) prepare and place before the Court a report containing—
  - (i) a summary of facts based on the Part 4 search, the Court records, and the information contained in the application; and
  - (ii) details of the next of kin of the deceased person; and
  - (iii) a list of the persons who are legally entitled to succeed to the deceased's interests and of their various entitlements; and
- (c) provide a copy of the report to the applicant or the applicant's solicitor; and

- (d) except where the application is not required to be made on notice, arrange a pre-hearing conference between the applicant and a Court officer to verify the information contained in the report.

#### **10.4 Notice of application for succession**

- (1) An application for succession under section 113, 117, or 118 of the Act is not required to be notified under rule 4.13.
- (2) However,—
  - (a) an applicant should, where practicable, advise other family members of the application and consult with them with regard to it; and
  - (b) the Court may adjourn an application for advice and consultation to occur if it considers that the failure to advise and consult may be prejudicial to any person who may be entitled to succeed.
- (3) A Judge may direct that notice of the application be given to any person who the Judge considers may be affected by the application.

#### **10.5 Registration of succession order**

- (1) This rule applies where a person seeks to register an order under section 113, 117, or 118 of the Act against the land transfer title for 1 or some only of several blocks named in a succession order.
- (2) The Registrar may, in issuing a duplicate order under rule 7.12, name only the block or the blocks against which the duplicate order is to be registered.
- (3) The original order must be noted as required by rule 7.12(4) and the date of registration and title reference entered on the memorial schedule for the land affected.
- (4) For the issue of further duplicate orders, the Registrar must follow the procedure set out in rule 10.5(2) and (3).

Compare: SR 1994/35 r 103

#### **10.6 Application to vest interest of deceased Māori in General land**

- (1) An application under section 111 of the Act—
  - (a) must be in form 1 or may be determined as a part of an application under section 113, 117, or 118 of the Act; and
  - (b) must be accompanied by a current land transfer search of the title to all the land that is the subject of the application.
- (2) The applicant may—
  - (a) file a certificate in form 20 certifying—
    - (i) that the person named in the certificate is entitled to succeed to the interest to which the application relates; and
    - (ii) the basis of the person's entitlement to succeed; or

- (b) elect to produce evidence to the Court to establish the persons entitled to succeed.
- (3) If the deceased person died intestate and is survived by a spouse, the applicant must also file a statement stating—
  - (a) the assets and liabilities of the deceased person and their value at the date of death; and
  - (b) particulars of any distributions that have been made from the estate.
- (4) Subject to any direction that a Judge may give as to notice, the application may be considered and determined without notice in the Pānui (except to the extent that it must be notified under rule 6.6), without notice to any party, and without any appearance by the applicant.

Compare: SR 1994/35 r 104

Rule 10.6(4): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **10.7 Procedure in cases excluded from Part 4 of Act**

An application in respect of a matter that is excluded from Part 4 of the Act under section 100(2) of the Act may be made in a form prescribed under these rules if the form is consistent with the law that applies to the application.

Compare: SR 1994/35 r 107

#### **10.8 When succession order or determination as to entitlement may be made without notice**

- (1) An application to which this rule applies may be considered and determined without notice in the Pānui (except to the extent that it must be notified under rule 6.6), without notice to any party, and without any appearance by the applicant, if—
  - (a) a grant of administration has been obtained; and
  - (b) the form of the application is fully and properly completed; and
  - (c) the application is accompanied by an affidavit or a statutory declaration verifying the facts set out in the application and that the persons named in the application are entitled to succeed.
- (2) This rule applies to an application for a determination under section 113 of the Act as to the persons entitled to succeed if—
  - (a) a grant of administration has been obtained; and
  - (b) a certificate in form 20 has been filed.
- (3) This rule applies to an application for succession under section 117 of the Act if—
  - (a) a grant of administration has been obtained; and
  - (b) the form of the application is fully and properly completed; and

- (c) the applicant has requested a hearing without notice and has completed the declaration at the foot of the application; and
  - (d) the Court is satisfied that the persons named in the application are entitled to succeed and that there are no outstanding issues or interests in relation to the deceased estate to be settled.
- (4) A Judge may in any case direct that notice be given or that further information or evidence be produced.

Rule 10.8(1): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### *Related applications*

#### **10.9 Order in respect of additional land interests**

- (1) This rule applies where a succession order has been made and subsequently additional interests of the deceased person in Māori freehold land are located.
- (2) The Court file for the original application may be referred to a Judge without any further formal application and the Judge may—
  - (a) make a further succession order in respect of the additional interests in Māori freehold land, if the Judge is satisfied from the evidence in support of the original order that the entitlement to succeed to those interests is clearly established; or
  - (b) direct that the matter be set down for a formal hearing and that notice of the hearing be given to interested parties.
- (3) If an application under this rule is made in writing, that application must be in form 22A.

Rule 10.9 heading: amended, on 30 April 2026, by rule 60(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 10.9(1): amended, on 30 April 2026, by rule 60(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 10.9(2)(a): amended, on 30 April 2026, by rule 60(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 10.9(3): inserted, on 30 April 2026, by rule 60(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **10.10 Transmission of Māori land to administrator**

- (1) An application under section 112 of the Act for an order vesting in the administrator of an estate a beneficial interest in Māori freehold land must be—
  - (a) in form 1; and
  - (b) accompanied by details of the land to be vested and—
    - (i) a certificate of administration; or

- (ii) the original grant of probate or letters of administration or a certified copy of the grant or letters, and a further copy for noting by the Registrar.
- (2) If a certified copy of a document is produced, a Judge may require that the original document be produced for inspection.
- (3) The application may be considered and determined without notice in the Pānui (except to the extent that it must be notified under rule 6.6), without notice to any party, and without any appearance by the applicant.

Compare: SR 1994/35 r 101

Rule 10.10(3): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **10.11 Application for transmission of joint tenancy by survivorship or for termination of life interest**

- (1) An application under section 18(1)(a) of the Act for the transmission of a joint tenancy in Māori freehold land by survivorship or under section 18(1)(a) or 127(2) of the Act for the termination of a life interest in Māori freehold land must—
  - (a) be in form 24 with all necessary modifications; and
  - (b) if the application arises out of the death of a person, be accompanied by a copy of the death certificate for that person.
- (2) The application may be considered and determined without notice in the Pānui (except to the extent that it must be notified under rule 6.6), without notice to any party, and without any appearance by the applicant.

Rule 10.11(1): amended, on 30 April 2026, by rule 61 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 10.11(2): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **Part 11**

#### **Applications relating to land: status, alienation, assembled owners, exchange, and representation**

##### *Status*

#### **11.1 Application for change of status from General land to Māori freehold land**

- (1) An application under section 133 of the Act for an order changing the status of General land or General land owned by Māori to Māori freehold land must be—
  - (a) in form 1; and
  - (b) include or be accompanied by—



- (i) an up-to-date search of the title to the land under the Land Transfer Act 2017; and
  - (ii) the names and addresses of the owners of the land; and
  - (iii) the names and addresses of the persons who hold a mortgage, charge, or other encumbrance over the land; and
  - (iv) a signed consent, witnessed in accordance with rule 11.1(2)(b), to the proposed order by each of the persons referred to in rule 11.1(1)(b)(ii) and (iii) where obtainable; and
  - (v) a statement by the applicant—
    - (A) that the applicant is not aware that any proceedings in respect of the land have been filed in any court or are pending; or
    - (B) if the applicant is aware of such a proceeding, giving details of the proceeding.
- (2) The application may be considered and determined without notice in the Pānui (except to the extent that it must be notified under rule 6.6), without notice to any party, and without any appearance by the applicant if—
  - (a) the applicant's statement required by rule 11.1(1)(b)(v) does not disclose a proceeding in respect of the land; and
  - (b) the applicant files signed consents to the proposed order by each of the persons referred to in rule 11.1(1)(b)(ii) and (iii) that has been witnessed by an independent witness who has printed beneath his or her signature his or her full name, occupation, and residential address; and
  - (c) the applicant files a brief statement sufficient to satisfy the Court that it is desirable that the status of the land be changed having regard to the history of the land and the personal association of the owners with the land.

Compare: SR 1994/35 r 109

Rule 11.1(1)(b)(i): amended, on 30 April 2026, by rule 62 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 11.1(2): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## **11.2 Application for change of status from Māori land to General land**

- (1) An application under section 135 of the Act for an order changing the status of Māori freehold land or Māori customary land to General land must be—
  - (a) in form 1; and
  - (b) include or be accompanied by a statement by the applicant—
    - (i) providing details of any trust to which the land or any interest in the land is subject; or

- (ii) stating that neither the land nor any interest in the land is subject to a trust.
- (2) On receipt of the application, the Registrar must refer it to a Judge for directions.
- (3) An applicant must—
  - (a) give public notice that complies with rule 11.2(5); and
  - (b) following publication, without delay, file a copy of the notice with the Registrar; and
  - (c) comply with any directions that the Court has made in relation to notice; and
  - (d) following publication, without delay send a copy of the notice to all current owners.
- (4) It is sufficient for the purposes of rule 11.2(3)(d) for a notice to be sent to the owners for whom the applicant has a physical or an electronic address after they have made reasonable efforts to determine the addresses of all of them.
- (5) The notice required under rule 11.2(3) must—
  - (a) be in form 24A; and
  - (b) be published in a newspaper circulating in the district and on an Internet site that is regularly used to communicate with the owners and to which the owners have access free of charge, or as otherwise directed by a Judge; and
  - (c) state a date for filing and serving a notice of intention to oppose the application that is not less than 15 working days after the date of publication of the notice.
- (6) On receipt of a copy of the notice, the Registrar must—
  - (a) arrange for the application to be notified in the next available Pānui; and
  - (b) display a copy of the notice on an Internet site maintained by the Court for not less than 3 months or until the application is heard if that occurs within 3 months.
- (7) An owner who wishes to oppose the application must file in the Court and serve on the applicant, within the time fixed by the notice, a notice of intention to appear stating—
  - (a) that they intend to oppose the application; and
  - (b) their full name and contact details.

Rule 11.2(3): inserted, on 30 April 2026, by rule 63 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 11.2(4): inserted, on 30 April 2026, by rule 63 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 11.2(5): inserted, on 30 April 2026, by rule 63 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 11.2(6): inserted, on 30 April 2026, by rule 63 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 11.2(7): inserted, on 30 April 2026, by rule 63 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### 11.2A Application for change in status from Crown land to Māori customary land

- (1) An application under section 131A of the Act for an order changing the status of Crown land to Māori customary land must be—
  - (a) in form 1; and
  - (b) accompanied by all of the following:
    - (i) evidence that the land is Crown land;
    - (ii) evidence that the land was Māori customary land immediately before it became Crown land;
    - (iii) information identifying the owners who held the land in accordance with tikanga Māori immediately before it became Crown land (the **previous owners**) (*see* section 131A(3)(a) of the Act);
    - (iv) information identifying the class of persons comprising the previous owners and all of their descendants (the **new owners**) (*see* section 131A(3)(b) of the Act);
    - (v) information about—
      - (A) the notice given to the new owners about the proposed change in status of the land; and
      - (B) the opportunity those persons have had to discuss and consider the proposed change in status of the land;
    - (vi) information about the degree of support among the new owners for the proposed change in status of the land.
- (2) An application may also include a brief statement setting out the reasons why the applicant believes that the notice, opportunity, and support referred to in rule 11.2A(1)(b)(v) and (vi) are sufficient for the Court to make the order.
- (3) It is sufficient for the purposes of rule 11.2A(1)(b)(v)(A) for a notice to be sent to the new owners for whom the applicant has a physical or electronic address after they have made reasonable efforts to determine the addresses of all of them unless the Court requires further efforts to be made to give the notice and opportunity referred to in rule 11.2A(1)(b)(v).
- (4) On receipt of the application, the Registrar must—
  - (a) refer it to a Judge for directions; and
  - (b) notify it in the Pānui.

Rule 11.2A: inserted, on 30 April 2026, by rule 64 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**11.2B Application for change in status from Māori customary land to Māori freehold land**

- (1) An application under section 132 of the Act for a vesting order changing the status of Māori customary land to Māori freehold land must be—
  - (a) in form 1; and
  - (b) accompanied by the following:
    - (i) information identifying the class of persons who it is claimed are the current owners of the land (the **current owners**), which must include all descendants of the members of the class (*see* section 132(5) of the Act):
    - (ii) if the current owners are a hapū or an iwi, the name of that hapū or iwi:
    - (iii) details of any trust, restrictions, or conditions to which it is proposed the land will be subject:
    - (iv) information about whether the application seeks an order vesting the land in the trustees of—
      - (A) an ahu whenua trust; or
      - (B) a whenua topu trust:
    - (v) information about—
      - (A) the notice given to the current owners about the proposed change in status of the land; and
      - (B) the opportunity those persons have had to discuss and consider the proposed change in status of the land:
    - (vi) information about the degree of support among the current owners for the proposed change in status of the land.
- (2) An application may also include a brief statement setting out the reasons why the applicant believes that the notice, opportunity, and support referred to in rule 11.2B(1)(b)(v) and (vi) are sufficient for the Court to make the vesting order.
- (3) *See* the following if the application includes an application to constitute a trust:
  - (a) in the case of an ahu whenua trust, section 132(6)(a) of the Act and rule 12.4:
  - (b) in the case of a whenua topu trust, section 132(6)(b) of the Act and rule 12.5.
- (4) It is sufficient for the purposes of rule 11.2B(1)(b)(v)(A) for a notice to be sent to the current owners for whom the applicant has a physical or an electronic address after they have made reasonable efforts to determine the addresses of all of them unless the Court requires further efforts to be made to give the notice and opportunity referred to in rule 11.2B(1)(b)(v).

- (5) On receipt of the application, the Registrar must—
- (a) refer it to a Judge for directions; and
  - (b) notify it in the Pānui.

Rule 11.2B: inserted, on 30 April 2026, by rule 64 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### *Alienation of Māori land*

#### **11.3 Application for confirmation of instrument of alienation**

- (1) An application under section 151(1)(a) of the Act must be—
- (a) in form 25; and
  - (b) accompanied by the following:
    - (i) evidence of compliance with the right of first refusal under section 147A of the Act, if applicable; and
    - (ii) a signed statement by each alienee who is a preferred alienee setting out how he or she qualifies as a preferred alienee, including any necessary whakapapa details to establish that qualification; and
    - (iii) the original instrument of alienation duly executed, dated, and attested as required by rule 11.10; and
    - (iv) 2 copies of the original instrument of alienation, 1 for use by the trustee or agent appointed under section 159 of the Act and 1 for retention as part of the permanent record of the Court; and
    - (v) a special valuation of the land and any improvements on it or of the interest alienated (including, in the case of lease, the fair market rental), unless an application for an exemption from the requirement of a special valuation is made under rule 11.4; and
    - (vi) in the case of an alienation of Māori freehold land that is, or is part of, an overseas investment in sensitive land within the meaning of the Overseas Investment Act 2005, the consent under that Act to that investment or the exemption under that Act from the requirement of consent.
- (2) The Court must not, if an exemption from the requirement of a special valuation has been declined, make a final order of confirmation unless the application is supported by a special valuation.

Compare: SR 1994/35 r 110

#### **11.4 Application for exemption from providing special valuation**

- (1) An application for an exemption from the requirement under section 158 of the Act of providing a special valuation must be—
- (a) in form 26; and

- (b) accompanied by a current roll valuation in respect of the land or interest alienated or other evidence of the current value of the land or interest alienated that is acceptable to the Court.
- (2) The application may be considered and determined without notice in the Pānui (except to the extent that it must be notified under rule 6.6), without notice to any party, and without any appearance by the applicant.

Compare: SR 1994/35 r 111

Rule 11.4(2): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **11.5 Procedure for notifying preferred classes of alienees as to right of first refusal**

- (1) Where a right of first refusal must be given under section 147A of the Act, an application for confirmation of alienation under rule 11.3 must be referred to a Judge for directions as to—
  - (a) a hearing date that will allow sufficient time for notice of the right of first refusal to be given to the preferred classes of alienees; and
  - (b) any other matter that is relevant, including directions as to notice.
- (2) For determining whether any preferred alienees wish to exercise their right of first refusal, an applicant for confirmation of alienation under rule 11.3 must—
  - (a) give public notice that complies with rule 11.5(3); and
  - (b) following publication, without delay file a copy of the notice with the Registrar; and
  - (c) comply with any directions that the Court has made in relation to notice; and
  - (d) send a copy of the notice to every preferred alienee.
- (2A) It is sufficient for the purposes of rule 11.5(2)(d) for a notice to be sent to the preferred alienees for whom the seller or donor has a physical or an electronic address after they have made reasonable efforts to determine the addresses of all of them (*see* section 147A(4)(a) of the Act).
- (3) The notice required under rule 11.5(2) must—
  - (a) be in form 27; and
  - (b) be published in a newspaper and on an Internet site as required by section 147A(4)(b) of the Act; and
  - (c) stipulate a date before which tenders or expressions of interest must be received that is reasonable and no less than 20 working days after the date on which the notice is first published.
- (4) On receipt of the notice, the Registrar must—
  - (a) arrange for the alienation to be notified in the next available Pānui; and

- (b) display a copy of the notice on an Internet site maintained by the Court for not less than 3 months, or until the application for confirmation is heard, if that occurs before 3 months.
- (5) A preferred alienee who wishes to exercise a right of first refusal must file in the Court and serve on the applicant, within the time fixed by the notice given under this rule, a notice in writing stating—
  - (a) that he or she intends to exercise the right of first refusal; and
  - (b) his or her full name and contact address.
- (6) The Registrar must give notice of the time, date, and place of the hearing of the application for confirmation to each person who files a notice of intention to exercise the right of first refusal.
- (7) *See* Part 3 of Schedule 1AA of the Act in relation to any notice published under section 147A on or before 28 November 2022.

Compare: SR 1994/35 r 112

Rule 11.5(2)(d): inserted, on 30 April 2026, by rule 65(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 11.5(2A): inserted, on 30 April 2026, by rule 65(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 11.5(3)(b): replaced, on 30 April 2026, by rule 65(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 11.5(3)(c): replaced, on 30 April 2026, by rule 65(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 11.5(4)(a): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 11.5(4)(b): amended, on 30 April 2026, by rule 65(5) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 11.5(7): inserted, on 30 April 2026, by rule 65(6) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **11.6 Requirement of right of first refusal: when Court may confirm alienation**

- (1) In a case where a right of first refusal must be given under section 147A of the Act, the Court may—
  - (a) confirm the alienation that is the subject of the application if the applicant establishes to the satisfaction of the Court that—
    - (i) no preferred alienee has given notice of his or her intention to exercise the right of first refusal; or
    - (ii) that the following applies:
      - (A) 1 or more alienees have given notice of their intention to exercise the right of first refusal; and
      - (B) the provisions of rule 11.7 have been complied with in relation to the exercise of the right of first refusal; and
      - (C) no alienee has in fact exercised the right of first refusal; or

- (b) confirm the alienation to a preferred alienee who has exercised the right of first refusal in accordance with rule 11.7.
- (2) The Court may confirm the alienation subject to such terms as it thinks fit for the completion of the alienation.

### **11.7 Exercise of right of first refusal**

- (1) An alienor must give a preferred alienee who has given notice of his or her intention to exercise the right of first refusal a reasonable opportunity to exercise that right.
- (2) If more than 1 preferred alienee has given notice of his or her intention to exercise the right of first refusal, the alienor may select the alienee to whom the opportunity of exercising the right of first refusal must be given.
- (3) The right of first refusal must—
  - (a) be on terms that are at least equivalent to the terms of the alienation that is the subject of the application for confirmation; and
  - (b) allow the preferred alienees a reasonable time, having regard to the nature of the alienation, to exercise the right of first refusal.
- (4) If the Court is not satisfied that the preferred alienee has been given a reasonable opportunity to exercise the right of first refusal, the Court may—
  - (a) extend the time for exercise of the right of first refusal;
  - (b) adjourn the application for confirmation to allow negotiation between alienor and preferred alienee to occur.
- (5) If the preferred alienee who exercises the right of first refusal is not the alienee named in the original application, the Court may amend the application and confirm the alienation without the necessity for a new application.
- (6) If a preferred alienee who is selected under rule 11.7(2) fails to complete the alienation, the alienor must then offer the opportunity of exercising the right of first refusal to any of the other preferred alienees who were involved in the selection process under rule 11.7(2) and the provisions of this rule continue to apply until—
  - (a) the right of first refusal has been exercised; or
  - (b) all preferred alienees who have given notice have been given the opportunity to exercise the right of first refusal.

### **11.8 Confirmation on default by preferred alienee**

- (1) This rule applies where the Court has confirmed an alienation to a preferred alienee in substitution for the alienee named in the original application, and on the default of the preferred alienee the Court cancels the order or the alienor cancels the alienation to the preferred alienee.
- (2) The Court may confirm the alienation to the alienee named in the original application if the Court is satisfied that all preferred alienees have been given



the opportunity to exercise the right of first refusal and that none intends to do so.

### 11.9 Application for approval of alienation by long-term lease

- (1) An application for the approval of the Court of the alienation of Māori freehold land by long-term lease under section 150A(1)(b), 150B(1)(b), or 150C(1)(b) of the Act must—
  - (a) be in form 1; and
  - (b) include or be accompanied by—
    - (i) a statement by the applicants as to the following matters:
      - (A) the reasons for entering into a long-term lease; and
      - (B) the benefits of a long-term lease to the owners of the land or the shareholders of the Māori incorporation in which the land is vested, as the case may be; and
      - (C) the method of calculation of the rental or other consideration for the lease, and how it compares with the market rental for the land; and
    - (ii) the written consents to the application of owners or shareholders holding not less than 50% of the total shareholding or sufficient other evidence (for example, a resolution passed by poll vote according to shareholding at a meeting of owners) that those consents have been obtained.
- (2) For the definition of **long-term lease**, see section 4 of the Act which defines it as a lease for a term of more than 52 years or for a term that would be more than 52 years if 1 or more rights of renewal were exercised.

### 11.10 How instrument of alienation of interest in Māori freehold land must be signed and witnessed

- (1) An instrument of alienation of an interest in Māori freehold land must—
  - (a) be signed by each of the parties to be bound by it; and
  - (b) state the date on which each of the parties signed it.
- (2) If the instrument is signed on different dates by several alienors, the date of execution for the purposes of section 151(2)(a) of the Act is the date on which the instrument was first signed by an alienor.
- (3) The signature of an alienor signing the instrument in New Zealand must be witnessed by a person 20 years old or more who is not a member of the alienor's immediate family and not an owner of the land alienated.
- (4) The witness must sign his or her signature and print beneath it his or her full name, occupation, and residential address.

- (5) The signature of an alienor signing the instrument outside New Zealand must be witnessed by any of the following persons by the witness signing his or her signature, printing beneath it his or her full name, occupation or qualification, and address, and affixing his or her stamp or seal of office (if any):
- (a) a notary public;
  - (b) a commissioner of oaths;
  - (c) a solicitor of the High Court of New Zealand;
  - (d) a person admitted to practise as a solicitor in a state of Australia;
  - (e) a person appointed as a Justice of the Peace in Australia;
  - (f) a Commonwealth representative;
  - (g) a person admitted to practise as a solicitor, lawyer, or attorney in the country in which the instrument is signed.
- (6) The Court may confirm an alienation that has not been witnessed in accordance with this rule if—
- (a) the alienor appears before the Court and confirms that he or she has signed the instrument of alienation; or
  - (b) suitable evidence is adduced in the Court that establishes that the alienor has signed the instrument of alienation; or
  - (c) in a case where the requirement of rule 11.10(5) has not been satisfied because of a technicality, the Court is satisfied that the signature of the alienor has in fact been witnessed by a witness listed in that sub-rule or has been witnessed before a public official of standing in the country in question.
- (7) For the purposes of this rule,—
- Commonwealth country** means a country that is a member of the Commonwealth; and includes—
- (a) a territory for the international relations of which the member is responsible;
  - (b) the Republic of Ireland as if it were a member of the Commonwealth
- Commonwealth representative** means any Ambassador, High Commissioner, Commissioner, Minister, Counsellor, Chargé d’Affaires, Head of Mission, Consular Officer, Pro-consul, Trade Commissioner, or Tourist Commissioner of a Commonwealth country (including New Zealand); and includes any person lawfully acting for any such officer; and also includes any diplomatic secretary on the staff of any such Ambassador, High Commissioner, Commissioner, Minister, Counsellor, Chargé d’Affaires, or Head of Mission.

Compare: SR 1994/35 r 113

### **11.11 Registrar's certificate of confirmation**

- (1) For the issue of a certificate of confirmation by the Registrar under section 160 of the Act, a person must file—
  - (a) the original instrument of alienation; and
  - (b) a copy of the instrument of alienation for retention by the Court; and
  - (c) a certificate by the alienor that the land is not subject to any trust or alternatively that the alienation is not in breach of any trust to which the land is subject.
- (2) On production of the documents listed in rule 11.11(1) and on being satisfied as to the provisions of section 160(3) of the Act, the Registrar must issue and seal a certificate of confirmation as to the instrument of alienation.

Compare: SR 1994/35 r 114

### **11.12 Form of certificate of confirmation by Court or Registrar**

- (1) A certificate of confirmation given by the Court under section 155(1)(a) of the Act must be in form 28.
- (2) A certificate of confirmation given by the Registrar under section 160(3) of the Act must be in form 29.

Compare: SR 1994/35 r 114(1)

### **11.13 Application for vesting order**

- (1) An application for a vesting order under section 164 of the Act must—
  - (a) be in form 30; and
  - (b) state the relationship of the transferor and the transferee; and
  - (c) be accompanied by—
    - (i) whakapapa or other documentary evidence establishing that the transferee belongs to a preferred class of alienee; and
    - (ii) the original of any written contract or other agreement that is the basis for the application; and
    - (iii) the valuation required by rule 11.14.
- (2) An agreement in form 31 duly completed may be used as the basis for the application.
- (3) A Judge may direct that a copy of the current roll valuation for any land that is, or an interest in which is, the subject of the application be filed or produced.
- (4) Where money is to be paid for the transfer of the land or interest in the land, a certificate that the money has been paid and signed by any of the following persons is sufficient evidence for the purposes of section 164(5) of the Act:
  - (a) the Māori Trustee;
  - (b) an agent appointed by the Court;

- (c) a trustee appointed under the Act and authorised to give the certificate:
- (d) the alienor.
- (5) Where the application is to vest by gift land or an interest in land having a value greater than \$2,000, evidence by the alienor in support of the application may be—
  - (a) given in person; or
  - (b) given by affidavit or declaration; or
  - (c) taken by the Registrar under rule 6.25; or
  - (d) with the approval of a Judge, given in an audio-visual recording; or
  - (e) given in a remote conference procedure.

Compare: SR 1994/35 r 115

#### **11.14 Valuation in support of application for vesting order**

- (1) An application for a vesting order under rule 11.13 must be accompanied by a special valuation of the land or the interest in land that is the subject of the application unless—
  - (a) the transfer is by gift; or
  - (b) an application for an exemption from the requirement of a special valuation has been made under rule 11.4.
- (2) The Court must not, if an exemption from the requirement of a special valuation has been declined, make a final vesting order unless the application is supported by a special valuation.
- (3) If an exemption from the requirement of a special valuation has been granted under rule 11.4 and the transfer is by way of sale, the application must be accompanied by a copy of the current roll valuation for each block of land that is, or an interest in which is, the subject of the application.

Compare: SR 1994/35 r 115(3)

#### **11.15 Notice of application for vesting order**

- (1) An application for a vesting order is not required to be notified under rule 4.13.
- (2) However, the applicant must give notice of the time, date, and place of the hearing to the other parties to the alienation.
- (3) An applicant should where practicable consult with and advise members of his or her immediate whanau in regard to the application, and the Court may adjourn the application and give directions as to notice if it considers that prejudice may arise where this process has not occurred.
- (4) A person who is not the alienor must not be required to attend the hearing unless his or her presence is necessary to satisfy the Court as to any of the matters set out in section 152 of the Act.

**11.16 Alienation of Māori freehold land must be entered in Māori Land Court title record or entered against memorial schedule**

The Registrar must ensure that all completed alienations of Māori freehold land or interests in Māori freehold land within his or her district that are effected by an order of the Court, given effect by a certificate of confirmation issued under the Act, or approved by the Court under section 150A, 150B, or 150C of the Act are properly entered in the Māori Land Court title record or noted against the memorial schedule, whichever is appropriate.

*Assembled owners*

**11.17 Application to call meeting of owners**

- (1) An application under section 173(1) of the Act for a meeting of owners to be called must—
  - (a) be in form 32; and
  - (b) include or be accompanied by—
    - (i) a list of owners and their residential addresses where obtainable through reasonable inquiry, including the residential addresses of the trustees of those interests subject to a trust; and
    - (ii) a special valuation of any land and any improvements on it or of the interest in the land proposed to be alienated (including, in the case of a lease, the fair market rental) unless an application for an exemption from the requirement for a special valuation is made under rule 11.4; and
    - (iii) if it is proposed that any land be alienated by sale or gift to a preferred alienee, details of whakapapa establishing that status; and
    - (iv) any other information that is necessary to explain the full nature and effect of the proposal put forward in the resolution to be considered by the meeting.
- (2) Details of the valuation required by rule 11.17(1)(b)(ii) must be included in the notice of meeting, unless a Judge directs otherwise.
- (3) The application may be considered and determined without notice in the Pānui (except to the extent that it must be notified under rule 6.6), without notice to any party, and without any appearance by the applicant.

Compare: SR 1994/35 r 116

Rule 11.17(3): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**11.18 Direction to summon meeting and notice to preferred classes of alienees**

- (1) The Registrar must refer an application filed under section 173 of the Act to a Judge.

- (2) The Judge must—
- (a) direct that the meeting be called, if the Judge is satisfied, without calling upon the applicant or the owners to appear, that the meeting should be called; or
  - (b) give the applicant an opportunity to make submissions in support of calling the meeting without a hearing; or
  - (c) set the application down for a hearing.
- (3) The Judge may make any directions that are appropriate, including a direction that—
- (a) any report or document that the Judge considers relevant to owners' interests must be sent with the notice of meeting or must be available and read at the meeting;
  - (b) an explanatory memorandum prepared by the Court must be sent with the notice of meeting or must otherwise be brought to the attention of the owners.
- (4) If the proposed resolution is for the alienation of land and the right of first refusal under section 147A of the Act applies,—
- (a) the Judge must make a direction as to notice; and
  - (b) the applicant must, after being advised by the Registrar of the time, date, and place of the meeting, give notice of the meeting in form 27 in accordance with the Judge's directions; and
  - (c) the Registrar must without delay notify the right of first refusal—
    - (i) in the next available Pānui; and
    - (ii) until the meeting is held, on an Internet site maintained by the Court.

Compare: SR 1994/35 r 117

Rule 11.18(4)(c)(i): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 11.18(4)(c)(ii): amended, on 30 April 2026, by rule 67 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### 11.19 Notice of meeting and procedure

Subject to any direction made by a Judge as to notice under rule 11.18, the notice of the meeting, the provisions for proxies, the procedure and conduct of the meeting, and the powers and duties of Recording Officers must be in accordance with the Maori Assembled Owners Regulations 1995 or regulations made in substitution.

Compare: SR 1994/35 r 118

### **11.20 Application for confirmation of resolution of assembled owners**

- (1) An application for confirmation of a resolution of assembled owners under section 151(1)(b) of the Act must be—
  - (a) in form 33; and
  - (b) accompanied by—
    - (i) the written consent of a person who is to be appointed as agent under section 172(c) of the Act; and
    - (ii) if the resolution is for the alienation of Māori freehold land that is, or is part of, an overseas investment in sensitive land within the meaning of the Overseas Investment Act 2005, the consent under that Act to that investment or the exemption under that Act from the requirement of consent.
- (2) The Registrar must give reasonable notice of time, date, and place of the hearing of the application to any person who has signed a memorial of dissent from the resolution.

Compare: SR 1994/35 r 119

### **11.21 Application for confirmation of resolution passed at family gathering**

- (1) An application for confirmation of a resolution passed under section 176(1) of the Act must be—
  - (a) in form 34; and
  - (b) if the resolution is for the alienation of Māori freehold land, accompanied by—
    - (i) evidence of compliance with the right of first refusal under section 147A of the Act, if that right applies; and
    - (ii) a statement by each proposed alienee who is a preferred alienee setting out how he or she qualifies as a preferred alienee, including any necessary whakapapa details; and
    - (iii) a special valuation of the land and any improvements on it or of the interest alienated (including, in the case of lease, the fair market rental), unless an application for an exemption from the requirement of a special valuation is made under rule 11.4; and
    - (iv) if the resolution is for the alienation of Māori freehold land that is, or is part of, an overseas investment in sensitive land within the meaning of the Overseas Investment Act 2005, the consent under that Act to that investment or the exemption under that Act from the requirement of consent; and
    - (v) a true copy of the minutes of the family gathering or, if no minutes were kept, a statement of the relevant issues discussed at the gathering that—

- (A) records the matters set out in rule 11.22; and
  - (B) is signed by 2 persons who were present at the meeting; and
- (vi) the contact address of each owner of the land where reasonably obtainable or, if that owner is under a disability, the address of his or her trustee.
- (2) If the resolution is for the alienation of Māori freehold land to which the right of first refusal under section 147A of the Act applies, the applicant must give notice in accordance with rule 11.5(2) and (3).
- (3) The Court may adjourn the hearing of the application for the purpose of allowing the alienors and any preferred alienee to negotiate any issue relating to the right of first refusal under section 147A of the Act.
- (4) The Court may waive strict compliance with rule 11.21(1)(v) if it is satisfied that the meeting has been conducted fairly and that the majority of owners necessary to pass the resolution has voted in favour of it.
- (5) The applicant must give reasonable notice of the time, date, and place of the hearing of the application to—
  - (a) any owner who was not present at the family gathering; and
  - (b) any owner who voted against the resolution to be confirmed.

Compare: SR 1994/35 r 120

### **11.22 Minutes of informal family gathering**

The minutes of an informal gathering must record—

- (a) the names of the persons present; and
- (b) each proposal that is put to the meeting; and
- (c) how the voting was conducted; and
- (d) the result of voting on each resolution; and
- (e) for each resolution, the names of those owners who voted for it and those owners who voted against it.

Compare: SR 1994/35 r 121

### **11.23 Court may cancel order confirming resolution**

The Court may cancel an order confirming a resolution passed at a meeting of assembled owners if—

- (a) the alienee does not comply with any terms and conditions specified in the resolution or the order; or
- (b) cancellation may be made under section 162 of the Act.



*Exchange orders*

**11.24 Application for exchange order**

- (1) An application for an exchange order under section 310 of the Act must—
  - (a) be in form 35; and
  - (b) include or be accompanied by the following:
    - (i) details of the lands, and of any shares or interests in those lands, that are to be exchanged;
    - (ii) a title search under the Land Transfer Act 2017 of any general land included in the application;
    - (iii) any agreement between the parties confirming the exchange;
    - (iv) for each block of land to be exchanged, a special valuation or a current roll valuation;
    - (v) where land is to be exchanged that is part only of the land comprised in the title, a plan defining the land to be exchanged;
    - (vi) where the assembled owners have consented to the exchange by a resolution passed under Part 9 of the Act, a copy of that resolution;
    - (vii) where any land to be exchanged is Māori land, whakapapa or other evidence establishing that the alienee of the land is a preferred alienee;
    - (viii) evidence that the Māori owners of the land to be exchanged have had sufficient notice of the application and sufficient opportunity to discuss and consider it, and that there is a sufficient degree of support for the application among the owners.
- (2) An exchange order must be drawn up in 2 parts, each 1 of the parts vesting 1 piece of land subject to the exchange order.
- (3) The application is not required to be notified under rule 4.13 but the applicant must give notice of the time, date, and place of the hearing to any owner of land or an interest in land that is the subject of the application who voted against a resolution for the exchange or who objected during the process of consultation.
- (4) A Judge may make any other direction as to notice.

Compare: SR 1994/35 r 149

Rule 11.24(1)(b)(ii): amended, on 30 April 2026, by rule 68 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

*Representation of owners of Māori land***11.25 Application for certificate under section 181(2) or 183(2) of Act**

An application for a certificate under section 181(2) or 183(2) of the Act must—

- (a) set out the grounds on which the application is made; and
- (b) be accompanied by evidence to establish those grounds.

Compare: SR 1994/35 r 123

**11.26 Form of notice under section 181(3) of Act**

A notice served on the Registrar under section 181(3) of the Act must—

- (a) specify the Act, bylaw, or enactment under which it is given; and
- (b) comply with that Act, bylaw, or enactment; and
- (c) describe the area of Māori land in question by reference to block name and any other description so that it is readily identifiable in the Māori Land Court title record; and
- (d) if the notice does not relate to all of the land contained in the title, be accompanied by a plan or diagram showing the part of the land to which the notice relates; and
- (e) be addressed to either—
  - (i) the owners of the land to which the notice relates; or
  - (ii) the Registrar of the Court in the district in which that land is situated; and
- (f) be served on the Registrar personally, by post, or by email.

Compare: SR 1994/35 r 122

Rule 11.26(f): amended, on 30 April 2026, by rule 69 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**11.27 Notice under section 181(3) of Act must be dealt with as application**

- (1) A notice served on the Registrar under section 181(3) of the Act—
  - (a) must be dealt with as if it were an application to the Court; and
  - (b) is not required to be notified under rule 4.13 or notified in the Pānui unless the Court directs otherwise.
- (2) In deciding whether to direct that the notice must be notified or advertised, the Court must have regard to—
  - (a) the matters set out in section 182(3) of the Act; and
  - (b) the importance of keeping owners informed of any dealing with their land.

Compare: SR 1994/35 r 124

Rule 11.27(1)(b): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## **Part 12**

### **Trusts and incorporations**

#### *Trusts*

#### **12.1 Application to constitute trust**

- (1) An application to constitute a trust under Part 12 of the Act must—
  - (a) be in form 1, unless these rules prescribe the use of another form; and
  - (b) state the grounds on which the application is made; and
  - (c) state the names of the proposed trustees and describe the process for their selection; and
  - (d) include or be accompanied by the following:
    - (i) a schedule of the following interests to be vested in the trust:
      - (A) an interest in Māori land or General land owned by Māori;
      - (B) shares in a Māori incorporation; and
    - (ii) the written consent of each proposed trustee to act as trustee; and
    - (iii) a statement describing how notice was given of each meeting at which the proposal for the formation of the trust has been discussed; and
    - (iv) a list of the persons who voted against the proposal at those meetings or who dissented from or objected to the proposal in the course of consultation about the proposal; and
    - (v) a copy of the minutes of any meeting approving the proposal, including a list of the persons who attended the meeting; and
    - (vi) a current search of the registered title of any General land to be vested in the trust.
- (2) Notice of the application is not required to be made under rule 4.13 except that,—
  - (a) in the case of an application to constitute a putea trust, an ahu whenua trust, or a whenua topu trust, the applicant must give notice of the time, date, and place of hearing of the application to the persons listed in rule 12.1(1)(d)(iv); and
  - (b) a Judge may issue directions as to notice.

#### **12.2 Application to constitute putea trust**

An application under section 212 of the Act to constitute a putea trust must—

- (a) comply with rule 12.1; and

- (b) also include or be accompanied by the following:
  - (i) if, under section 212(6) of the Act, it is intended not to include as objects of the trust all Māori community purposes listed in section 218 of the Act, a list of those Māori community purposes that are to be included; and
  - (ii) a statement describing the searches or inquiries made to locate any person whose interest or shares are to be vested in the trust and whose whereabouts are unknown; and
  - (iii) where all the persons whose interests or shares are to be vested in the trust agree to the constitution of the trust, the written agreement of those persons; and
  - (iv) where the application is made by or on behalf of the trustees of the land or a Māori incorporation, a statement by the applicant setting out—
    - (A) the steps taken by the applicant to inform the beneficial owners of the interests to be vested in the trust of the application; and
    - (B) the opportunity given to the beneficial owners to consider the matter; and
    - (C) the outcome of the consideration of the matter by the beneficial owners.

Compare: SR 1994/35 r 126

### 12.3 Application to constitute whānau trust

An application under section 214 of the Act must—

- (a) be in form 36 (unless the application is made in conjunction with an application for succession, in which case form 23 may be used); and
- (b) comply with rule 12.1; and
- (c) also include or be accompanied by the following:
  - (i) the written consents to the constitution of the trust given by the beneficial owners of the interests or shares to be vested in the trust; and
  - (ii) evidence that the proposed trustees are supported by the beneficial owners of the interests or shares to be vested in the trust; and
  - (iii) an indication as to whether it is intended to include under section 214(4) of the Act any Māori community purposes that are an object of the trust and, if some only of those purposes are to be included, a list of those purposes that are to be included; and
  - (iv) where the application is made by the administrator of an estate to give effect to a testamentary disposition,—

- (A) a certified copy of probate of the will; or
- (B) if probate has not been obtained, a certified copy of the will.

Compare: SR 1994/35 r 127

#### **12.4 Application to constitute ahu whenua trust**

An application under section 215 of the Act to constitute an ahu whenua trust must—

- (a) be in form 37; and
- (b) comply with rule 12.1; and
- (c) also include or be accompanied by the following:
  - (i) a statement by the applicant setting out—
    - (A) the steps taken by the applicant to inform the owners of the land to be vested in the trust of the application; and
    - (B) the opportunity given to the owners to consider the matter; and
    - (C) the outcome of the consideration of the matter by the owners; and
  - (ii) an indication as to whether it is intended to include under section 215(6) of the Act any Māori community purposes that are an object of the trust and, if some only of those purposes are to be included, a list of those purposes that are to be included.

Compare: SR 1994/35 r 128

#### **12.5 Application to constitute whenua topu trust**

An application under section 216 of the Act to constitute a whenua topu trust must—

- (a) comply with rule 12.1; and
- (b) also include or be accompanied by the following:
  - (i) if, under section 216(5) of the Act, it is intended not to include as an object of the trust all the Māori community purposes listed in section 218 of the Act, a list of the Māori community purposes that are to be included as an object of the trust; and
  - (ii) a statement by the applicant setting out—
    - (A) the steps taken by the applicant to inform the owners of the land to be vested in the trust of the application; and
    - (B) the opportunity given to the owners to consider the matter; and

- (C) the outcome of the consideration of the matter by the owners.

Compare: SR 1994/35 r 129

## **12.6 Application to constitute kai tiaki trust**

An application under section 217 of the Act to constitute a kai tiaki trust must—

- (a) comply with rule 12.1; and
- (b) also include or be accompanied by a statement—
  - (i) giving particulars of the disability of the person beneficially entitled to the property to be vested in the trust and, if that person is under 20 years of age, his or her date of birth; and
  - (ii) detailing any particular powers that the trustee or trustees may seek to exercise in respect of the trust property; and
  - (iii) confirming that no order is in force under the Protection of Personal and Property Rights Act 1988 in respect of the trust property; and
  - (iv) listing any land or other property that is to be vested in the trust; and
- (c) include or be accompanied by a schedule of any interests in General land and personal property to be vested in the trust.

Compare: SR 1994/35 r 130

## **12.7 Remuneration of trustees**

An application under section 224(h)(iii) of the Act for an order determining the remuneration or commission payable to trustees must be—

- (a) in form 1; and
- (b) accompanied by the latest financial statements of the trust or other evidence that will enable the Court to determine whether the trust has the means to pay the proposed remuneration.

Compare: SR 1994/35 r 131

## **12.8 Application to appoint, remove, or replace trustees, or change number of trustees**

- (1) An application to appoint, remove, or replace trustees, or add to or reduce the number of trustees, must include,—
  - (a) in the case of the appointment of trustees, the written consent of each proposed trustee to the appointment; and
  - (b) the minutes of any meeting confirming the appointment, removal, or replacement of trustees; and
  - (c) a statement setting out—

- (i) details of the persons who attended the meeting referred to in rule 12.8(1)(b) and of how notice of the meeting was given; and
  - (ii) details of any notice given to a trustee who is to be removed or replaced (except where the vacancy has occurred through death, resignation, or retirement).
- (2) An application to appoint or replace trustees, or add to or reduce the number of trustees, or to remove a trustee due to death, resignation, or retirement, must be in form 38.
- (3) An application to remove a trustee for any reason other than death, resignation, or retirement must be in form 38A.
- (4) An application to replace a trustee may be considered and determined without notice in the Pānui (except to the extent that it must be notified under rule 6.6), without notice to any party, and without any appearance by the applicant if the vacancy has occurred through death, resignation, or retirement.

Rule 12.8: replaced, on 30 April 2026, by rule 70 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **12.9 Application for payment of monies held on trust**

- (1) An application under section 242 of the Act for payment of money held in trust must—
  - (a) be in form 1; and
  - (b) include or be accompanied by a statement specifying—
    - (i) who holds the money; and
    - (ii) the nature of the trust; and
    - (iii) the names of the persons beneficially entitled to the trust assets and their respective shares.
- (2) The application may be considered and determined without notice in the Pānui (except to the extent that it must be notified under rule 6.6), without notice to any party, and without any appearance by the applicant if the beneficiaries are clearly defined and there is no apparent dispute.

Compare: SR 1994/35 r 132

Rule 12.9(2): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## *Incorporations*

### **12.10 Application for incorporation**

- (1) An application for an order under section 247 of the Act incorporating the owners of Māori freehold land as a Māori incorporation must—
  - (a) be in form 1; and
  - (b) include or be accompanied by the following:

- (i) a schedule setting out a full description of the Māori freehold land, or the several areas of Māori freehold land, to which the application relates; and
  - (ii) a roll valuation of each area of Māori freehold land and any improvements on that land; and
  - (iii) details of any other assets that are to be vested in the incorporation and a current valuation of those assets by a properly qualified valuer; and
  - (iv) a list of the proposed initial shareholders that—
    - (A) lists the full name and address (if known) of each proposed initial shareholder; and
    - (B) in the case of a proposed initial shareholder whose freehold interest in the land to which the application relates is a life interest only, lists also the full names of the persons entitled in remainder; and
    - (C) in the case of a proposed initial shareholder who is a person under disability, states that he or she is a person under disability, records any trustee of a kai tiaki trust constituted in respect of that person, and, if the person is a minor, states the date on which he or she will attain the age of 20 years; and
  - (v) if the application is made under section 247(2)(b) of the Act, a schedule listing the full names of the owners who consent to the order together with their signatures and a statement of the shares that each of those owners holds in each of the areas of the Māori freehold land to which the application relates; and
  - (vi) the full names and addresses of any persons proposed as members of an interim committee of management.
- (2) A Judge may at any time direct that further valuation evidence be produced or a special valuation obtained.

Compare: SR 1994/35 r 134

### **12.11 Application for inclusion of owners of additional Māori freehold land in incorporation**

An application for an order under section 251 of the Act including in a Māori incorporation the owners of additional Māori freehold land must be—

- (a) in form 1; and
- (b) accompanied by the following:
  - (i) a schedule setting out a full description of the Māori freehold land, or the several areas of Māori freehold land, and any other property, to which the application relates; and



- (ii) a valuation by a registered valuer of each area of Māori freehold land and any improvements on that land; and
- (iii) an up-to-date certificate from a share valuer setting out the equity value of the incorporation.

Compare: SR 1994/35 r 135

#### **12.12 Application for amalgamation of incorporations**

An application for an order under section 252 of the Act amalgamating 2 or more Māori incorporations must be—

- (a) in form 1; and
- (b) accompanied by the following:
  - (i) consent in writing given under seal by each incorporation to the amalgamation; and
  - (ii) an up-to-date certificate from a share valuer setting out the equity value of each incorporation; and
  - (iii) a proposal as to how the new incorporation is to be managed until a new committee of management is elected.

Compare: SR 1994/35 r 136

#### **12.13 Application for removal from office of member of committee of management**

- (1) An application under section 269(4) of the Act for the removal from office of a member of the committee of management of a Māori incorporation must—
  - (a) be in form 1; and
  - (b) set out full particulars of the grounds on which the application is made.
- (2) The applicant must, if the address is known, serve on the person sought to be removed a copy of the application and details of the time, date, and place of hearing of the application.

Compare: SR 1994/35 r 137

#### **12.14 Application for winding up**

An application for an order under section 282 of the Act winding up a Māori incorporation must be in form 1.

### **Part 13**

### **Applications that create or affect title to land**

#### *Partition*

#### **13.1 Application for partition order**

- (1) An application for a partition order under section 289 or 298 of the Act must—

- (a) be in form 39; and
- (b) state the reasons why partition is sought; and
- (c) include or be accompanied by the following:
  - (i) the following details of the land that is the subject of the application:
    - (A) the block name and number or other description of any Māori freehold land according to the Māori Land Court title record; and
    - (B) the legal description according to the land transfer record of any General land owned by Māori; and
  - (ii) a current land transfer search of the title to any General land owned by Māori; and
  - (iii) a valuation by a registered valuer of—
    - (A) the land before partition; and
    - (B) each separate area of land to be created by the partition; and
  - (iv) a description of any improvements effected by the applicant on the land that the applicant proposes the Court should take into account in making the order of partition; and
  - (v) a plan or diagram showing, in sufficient detail to satisfy the Court,—
    - (A) the area or size of the land to be partitioned out; and
    - (B) the position of any easement or roadway required for access to the land to be partitioned out; and
    - (C) the position or locality of the land to be partitioned out relative to the whole block; and
    - (D) any river, lake, or seashore boundaries of the whole block; and
  - (vi) a list of the owners of the whole block including their addresses if obtainable by reasonable inquiry; and
  - (vii) a statement by the applicant setting out—
    - (A) the steps taken by the applicant to inform the owners of the whole block of the application; and
    - (B) the opportunity given to the owners to consider the matter; and
    - (C) the outcome of the consideration of the matter by the owners; and
  - (viii) a description of how the land is to be apportioned after the proposed partition.

- (2) The Court may require the applicant to provide a completed survey plan of any former partition before proceeding with the application.

Compare: SR 1994/35 r 140

Rule 13.1(1)(c)(v): amended, on 30 April 2026, by rule 71 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **13.2 Application for partition order: directions and notice**

- (1) The Registrar must refer an application for a partition order to a Judge for directions.
- (2) Subject to any directions by the Judge, the Registrar must notify the time, date, and place of the first hearing of the application to all owners of the land that is the subject of the application whose address is known.
- (3) The Court may at any time direct the Registrar to call a meeting of the owners and the notice of that meeting must, unless the Court directs otherwise, include brief details of the application and a copy of the plan or diagram referred to in rule 13.1(1)(c)(v).

Compare: SR 1994/35 rr 141, 142

Rule 13.2(3): amended, on 30 April 2026, by rule 72 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **13.3 Preliminary hearing**

- (1) A Judge may direct a preliminary hearing of an application for a partition order to consider—
  - (a) the requirements for making the order set out in sections 286(1) and 288(2) and (4) of the Act; and
  - (b) any other issues.
- (2) The Court may dispense with the filing of a valuation required by rule 13.1(1)(c)(iii) or any subdivision consent required by section 303(1) of the Act until after it has determined the issues considered in the preliminary hearing.
- (3) The Court may, at the conclusion of a preliminary hearing, issue a preliminary determination.
- (4) This rule does not preclude an applicant from seeking the determination of the application without a preliminary hearing.

Compare: SR 1994/35 r 143

### **13.4 Court may direct applicant for partition order to obtain subdivision consent**

- (1) The Court may at any time direct an applicant for a partition order that requires a subdivision consent under section 303 of the Act to obtain that subdivision consent.
- (2) If the Court makes a direction under rule 13.4(1), the Registrar must forward to the territorial authority in question—

- (a) a copy of the minutes of any hearing by the Court in relation to the application; and
- (b) a list of the names and addresses of any owners who may wish to be heard at any hearing held by the territorial authority in relation to the grant of the subdivision consent.

Compare: SR 1994/35 r 144(1), (2)

### **13.5 Documents that applicant must file on grant of subdivision consent**

On the grant by a territorial authority of a subdivision consent that is required for making a partition order, the applicant must file—

- (a) a letter from the territorial authority stating that it has granted the subdivision consent; and
- (b) the approved preliminary plan; and
- (c) such valuation or valuations as the Court may direct.

Compare: SR 1994/35 r 144(3)

### *Amalgamation and aggregation*

### **13.6 Application for amalgamation order**

- (1) An application for an amalgamation order under section 307 of the Act must—
  - (a) be in form 1; and
  - (b) include or be accompanied by the following:
    - (i) the following details of the land that is the subject of the application:
      - (A) the block name and number or other description of any Māori freehold land according to the Māori Land Court title record; and
      - (B) the legal description according to the land transfer record of any General land owned by Māori; and
    - (ii) a current search of the land transfer title of any General land owned by Māori; and
    - (iii) a special valuation or a roll valuation for each area of land; and
    - (iv) a description of the improvements that the owners have effected on their respective areas of land; and
    - (v) a statement setting out the ownership in the proposed new title and the basis for determining that ownership; and
    - (vi) a statement setting out—
      - (A) details of any lease, licence, mortgage, charge, or other encumbrance over any of the areas of land; and

- (B) how the lease, licence, mortgage, charge, or other encumbrance is to be apportioned or adjusted; and
  - (vii) the written consent given by each lessee, licensee, mortgagee, chargee, or other encumbrance holder consenting to—
    - (A) the amalgamation order; and
    - (B) the proposed method for apportioning or adjusting that person's rights; and
  - (viii) a statement by the applicant setting out—
    - (A) the steps taken by the applicant to inform the owners of the various areas of land of the application; and
    - (B) the opportunity given to the owners to consider the matter; and
    - (C) the outcome of the consideration of the matter by the owners.
- (2) A Judge may at any time direct that further valuation evidence or a special valuation be obtained.
- (3) In determining ownership in the proposed new title, no account must be taken of any house occupied by an owner under an occupation licence or order unless the Court determines otherwise.
- (4) The Court—
  - (a) may at any time direct the Registrar to call a meeting of the owners under rule 4.21; and
  - (b) may make the amalgamation order conditional on the production of a plan so that the order may be registered under the Land Transfer Act 2017.

Compare: SR 1994/35 r 147

Rule 13.6(4)(b): amended, on 30 April 2026, by rule 73 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **13.7 Application for aggregation order**

- (1) An application for an aggregation order under section 308 of the Act must—
  - (a) be in form 1; and
  - (b) include or be accompanied by the following:
    - (i) the following details of the land that is the subject of the application:
      - (A) the block name and number or other description of any Māori freehold land according to the Māori Land Court title record; and
      - (B) the legal description according to the land transfer record of any General land owned by Māori; and

- (ii) a current search of the land transfer title for any General land owned by Māori; and
  - (iii) a special valuation or a roll valuation for each area of land; and
  - (iv) a description of the improvements that the owners have effected on their respective areas of land; and
  - (v) a statement setting out the ownership in the proposed new title and the basis for determining that ownership; and
  - (vi) a statement by the applicant setting out—
    - (A) the steps taken by the applicant to inform the owners of the various areas of land of the application; and
    - (B) the opportunity given to the owners to consider the matter; and
    - (C) the outcome of the consideration of the matter by the owners.
- (2) A Judge may at any time direct that further valuation evidence or a special valuation be obtained.
- (3) In determining ownership in the proposed new title, no account must be taken of any house occupied by an owner under an occupation licence or order unless the Court determines otherwise.
- (4) The Court—
- (a) may at any time direct the Registrar to call a meeting of the owners under rule 4.21; and
  - (b) may make the aggregation order conditional on the production of a plan so that the order may be registered under the Land Transfer Act 2017.

Compare: SR 1994/35 r 148

Rule 13.7(4)(b): amended, on 30 April 2026, by rule 74 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### *Easements and roadways*

#### **13.8 Application for easement**

- (1) An application for the creation of an easement under section 315 of the Act must—
- (a) be in form 1; and
  - (b) state clearly—
    - (i) what type of easement is applied for; and
    - (ii) the reason why the easement is required; and
  - (c) include or be accompanied by the following:
    - (i) a plan of the land over which the easement is to be held showing the location, line, and dimensions of the easement and, where

- appropriate, the position of the land that the easement is to serve; and
- (ii) any consents or agreements signed by persons affected by the easement; and
  - (iii) the block name and title description of the areas of land affected by the easement; and
  - (iv) a current land transfer title search of any General land affected by the easement; and
  - (v) details of any terms or conditions proposed for the easement; and
  - (vi) if the easement is to provide access to any land, the information required under rule 13.9.
- (2) On receipt of the application, the Registrar must prepare a schedule of all the areas of land affected by the easement that contains the legal description and status of each area of land.

Compare: SR 1994/35 r 150

### **13.9 Application for order laying out roadway**

An application under section 316 of the Act for an order laying out a roadway must—

- (a) be in form 1; and
- (b) describe the roadway in sufficient detail to enable the boundaries of the roadway to be determined; and
- (c) include or be accompanied by the following:
  - (i) the block name and title description of each of—
    - (A) the areas of land served by the roadway; and
    - (B) the areas of land over which the roadway is to pass; and
  - (ii) a current land transfer title search of any General land included in the land referred to in rule 13.9(c)(i); and
  - (iii) if the persons or classes of persons entitled to use the roadway will be restricted, a statement of those restrictions; and
  - (iv) details of proposals, if any, for the payment of compensation; and
  - (v) a plan of the roadway showing—
    - (A) each area of land over which it is proposed to lay out the roadway; and
    - (B) the route of the roadway, including the approximate dimensions of the roadway; and
  - (vi) if the roadway is to be laid out over Māori land, a statement by the applicant setting out—

- (A) the names of the owners and, if obtainable by reasonable inquiry, their addresses; and
  - (B) the steps taken by the applicant to inform the owners of the application; and
  - (C) the opportunity given to the owners to consider the matter; and
  - (D) the outcome of the consideration of the matter by the owners; and
- (vii) the consents required under section 317 of the Act before the order can be made.

Compare: SR 1994/35 r 151

### **13.10 Application for easement or roadway: directions and notice**

- (1) On receipt of an application for an easement or an application for an order laying out a roadway, the Registrar must refer it to a Judge for directions.
- (2) Subject to any directions by the Judge, the Registrar must notify the time, date, and place of the first hearing of the application to all owners of the land subject to the proposed easement or roadway whose address is known.
- (3) The Court may at any time direct the Registrar to call a meeting of the owners under rule 4.21.

Compare: SR 1994/35 r 152

### **13.11 Applicant may be required to submit draft order**

If the Court so directs, the applicant for an order creating an easement or laying out a roadway must submit—

- (a) a draft order for the approval of the Court; and
- (b) attached to the draft order 2 copies of a plan showing the easement or roadway that complies with the requirements of rule 7.7.

Compare: SR 1994/35 r 154

### **13.12 Application for order vesting closed road in adjoining owner**

An application under section 325 of the Act for an order vesting all or part of a closed road in the owner of land adjoining the closed road must be—

- (a) in form 1; and
- (b) accompanied by a current search of the title of the adjoining land.

Compare: SR 1994/35 r 155

### *Access to landlocked Māori land*

### **13.13 Application for access to landlocked Māori land**

An application under section 326B of the Act must—



- (a) be in form 1; and
- (b) name the owner of any adjoining land that may be affected by the application as a party to the proceeding; and
- (c) include or be accompanied by the following:
  - (i) the block name and title description of—
    - (A) the landlocked land; and
    - (B) the land over which access is sought; and
  - (ii) a current land transfer title search of any General land that may be affected by the application; and
  - (iii) the names and, if obtainable by reasonable inquiry, addresses of the owners of the land over which access is sought; and
  - (iv) details of the type of relief sought under section 326B(5) of the Act, that is, the vesting of an area of land or the creation of an easement or a right of way to provide access; and
  - (v) proposals, if any, for compensation of the owners of the land over which access is sought; and
  - (vi) the names and, if obtainable by reasonable inquiry, the addresses of persons—
    - (A) holding an estate or interest in the landlocked land or any other land that will or may be affected if the application is granted; or
    - (B) claiming to be a party to or entitled to any benefit under any mortgage, lease, easement, contract, or other instrument affecting or relating to the landlocked land or any other land that may be affected if the application is granted; and
  - (vii) any other material or information that the applicant considers relevant to the application having regard to the provisions of sections 326B and 326C of the Act.

#### **13.14 Registrar must refer application to Judge for directions**

- (1) On receipt of an application for access to landlocked Māori land, the Registrar must without delay complete a search of the lands affected and refer the application to a Judge for directions.
- (2) The Judge may make directions as he or she sees fit, including a direction that the application be dealt with in accordance with rules 9.2 to 9.4.
- (3) The Court may at any time in respect of any Māori land that may be affected by an application for access—
  - (a) direct the Registrar to call a meeting of the owners to—
    - (i) ascertain the attitude of the owners towards the application; or

- (ii) determine any questions of representation; or
  - (iii) address, resolve, or discuss any other matter relevant to the application; or
- (b) arrange representation for the owners under section 70 of the Act; or
- (c) direct that notice of the application be given to a local authority; or
- (d) if the access will adjoin a state highway, direct that the consent of NZ Transport Agency be obtained.

### *Occupation orders*

#### **13.15 Application for occupation order**

- (1) An application under section 328 of the Act for an occupation order must—
  - (a) be in form 40; and
  - (b) comply with the requirements of the Maori Occupation Orders Regulations 1994; and
  - (c) include or be accompanied by the following:
    - (i) a plan indicating—
      - (A) the location of the proposed occupation site, its proposed area, the position and length of its boundaries, and its position within the block marked by reference to boundaries, fences, areas of other occupation, or other landmarks and the approximate distances from them; and
      - (B) the position of any access track or road to the occupation site marked by the same references as in rule 13.15(1)(c)(i)(A); and
    - (ii) a statement of the term for which the order is sought; and
    - (iii) evidence to satisfy the Court that—
      - (A) there is a sufficient degree of support for the application among the owners of the land; and
      - (B) the owners understand that an occupation order may pass by succession or may be made for a specified term or until the occurrence of a specified event.
- (2) The application is not required to be notified under rule 4.13 but the applicant must notify the time, date, and place of the hearing of the application—
  - (a) to any person who voted against the proposal or dissented or objected to it during the course of consultation; and
  - (b) otherwise as directed by a Judge.

- (3) If an occupation order is made, the Registrar must forward a copy of it to the relevant local authority.

Compare: SR 1994/35 r 156

Rule 13.15(1)(c)(i): amended, on 30 April 2026, by rule 75(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 13.15(3): inserted, on 30 April 2026, by rule 75(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **13.15A Application to amend or cancel occupation order**

- (1) An application under section 330 of the Act to amend or cancel an occupation order must—
- (a) be in form 1; and
  - (b) be accompanied by the following:
    - (i) if the land to which the application relates is land in respect of which a trust is constituted under Part 12 of the Act or land vested in a Māori incorporation, the written consent of the trustees or the management committee of the Māori incorporation; and
    - (ii) evidence to satisfy the Court that—
      - (A) there is a sufficient degree of support for the application among the owners of the land; and
      - (B) in the case of an application to amend an occupation order, the owners understand that the order may pass by succession or may be made for a specified term or until the occurrence of a specified event.
- (2) The application is not required to be notified under rule 4.13 but the applicant must notify the time, date, and place of the hearing of the application—
- (a) to any person who voted against the proposal or dissented or objected to it during the course of consultation; and
  - (b) otherwise as directed by a Judge.
- (3) If an occupation order is amended or cancelled, the Registrar must forward to the relevant local authority—
- (a) a copy of the amended order or cancelled order; and
  - (b) in the case of a cancelled order, notice that it has been cancelled and the date on which that was done.

Rule 13.15A: inserted, on 30 April 2026, by rule 76 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### *Survey of Māori land*

### **13.16 Application for survey of Māori land**

- (1) This rule applies to an application for the survey of Māori land under section 332(2) of the Act.

- (2) An application by an owner must—
- (a) be in form 1; and
  - (b) be accompanied by—
    - (i) information about—
      - (A) the notice given to the owners of the land about the proposed survey; and
      - (B) the opportunity those owners have had to discuss and consider the proposed survey; and
    - (ii) information about the degree of support among the owners for the proposed survey; and
  - (c) contain a statement setting out the arrangements that have been made to pay for the survey or secure payment of that cost (*see* section 332(3) of the Act).
- (3) An application may also include a brief statement setting out the reasons why the applicant believes that the notice, opportunity, and support referred to in rule 13.16(2)(b)(i) and (ii) are sufficient for the Court to make the order.
- (4) In this rule, **owner** includes a surveyor who makes an application on behalf of an owner.

Rule 13.16: replaced, on 30 April 2026, by rule 77 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### 13.17 Order for survey of Māori land

An order requiring the survey of Māori land under section 332 of the Act that is transmitted by the Court or a Registrar must be—

- (a) in form 41;
- (b) accompanied by a certificate in form 42 for completion by the surveyor.

Rule 13.17: replaced, on 30 April 2026, by rule 78 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### 13.18 Charging order for costs of survey

*[Revoked]*

Rule 13.18: revoked, on 30 April 2026, by rule 79 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## Part 14

### Title registration and improvement

#### 14.1 Maintenance of ownership list

- (1) In maintaining the ownership list under section 127 of the Act, the Registrar may—

- (a) correct any errors in or omissions from the list that have occurred in compiling the list or that are apparent on the face of the record; and
  - (b) eliminate any duplication or apparent duplication of owners' names; and
  - (c) consolidate interests where it is apparent from the record that they are owned by the same person.
- (2) The Registrar must, where he or she makes a change to the ownership list that is permitted under rule 14.1(1),—
  - (a) make a minute in the appropriate minute book of the change and the reasons for it; and
  - (b) make a note of the change in the memorial schedule for the land affected and include a reference in the note to the minute made under rule 14.1(2)(a).

#### **14.2 Registrar may apply to Court for order to determine status of land**

- (1) The Registrar may, for the purpose of identifying any land as Māori land, apply for an order under section 131 of the Act determining the status of the land.
- (2) The application may be considered and determined without notice in the Pānui (except to the extent that it must be notified under rule 6.6), without notice to any party, and without any appearance by the applicant if the status of the land appears to be clear on the face of the record.
- (3) If it becomes apparent in the course of an application made without notice that the status of the land is not clear, the Court must require the application to be notified under rule 4.13 and set down for a hearing.

Rule 14.2(2): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **14.3 Application for declaratory consolidated order**

- (1) An application for a declaratory consolidated order under section 128 of the Act must be in form 1.
- (2) The application may be considered and determined without notice in the Pānui (except to the extent that it must be notified under rule 6.6), without notice to any party, and without any appearance by the applicant if—
  - (a) the only changes in the ownership of the land in question have occurred through succession orders or vesting orders made by the Court; or
  - (b) the ownership of the land is clear and no questions of fact or law arise.
- (3) An application to which rule 14.3(2)(a) or (b) does not apply must be notified in the Pānui and set down for hearing.

Rule 14.3(2): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 14.3(3): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## **Part 15**

### **Jurisdiction under miscellaneous Acts**

#### *Protected Objects Act 1975*

##### **15.1 Proceeding under Protected Objects Act 1975**

- (1) An application to the Court under Part 2 of the Protected Objects Act 1975 must be—
  - (a) in form 1; and
  - (b) dealt with under these rules.
- (2) On receipt of the application, the Registrar must refer it to a Judge for directions.

Compare: SR 1994/35 r 163

#### *Fencing Act 1978*

##### **15.2 Claim, dispute, or question arising under Fencing Act 1978**

- (1) An application to the Court under the Fencing Act 1978 must be in form 1.
- (2) The forms prescribed by the Fencing Act 1978 and any regulations made under that Act apply with all necessary modifications to an application under section 26 of the Act for the exercise of the Court's jurisdiction under the Fencing Act 1978.

Compare: SR 1994/35 r 162

#### *Local Government (Rating) Act 2002*

##### **15.3 Application for charging order for unpaid rates**

- (1) An application by a local authority under section 99 of the Local Government (Rating) Act 2002 for an order charging unpaid rates against Māori freehold land must—
  - (a) be in form 1; and
  - (b) include full details of the rates in respect of which the charging order is sought, including—
    - (i) the rate roll number; and
    - (ii) the year or years for which the rates were levied; and
    - (iii) the final date on which the rates became due and payable; and
    - (iv) how the amount claimed was calculated; and
  - (c) be accompanied by an affidavit or a declaration addressing each of the matters that must be taken into account by the Court under section 100 of the Local Government (Rating) Act 2002.
- (2) On receipt of the application, the Registrar must without delay—

- (a) obtain the following information and place it on the application file for the land in question:
  - (i) a schedule of ownership information; and
  - (ii) a schedule of title information; and
  - (iii) an up-to-date search of the title issued under the Land Transfer Act 2017; and
- (b) refer the application and the information obtained to a Judge for directions.

Compare: SR 1994/35 r 158

Rule 15.3(2)(a)(iii): amended, on 30 April 2026, by rule 80 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **15.3A Application for determination by Registrar that rating units derive from same original block of Māori freehold land**

- (1) This rule applies to an application made by a local authority under section 20A(4) of the Local Government (Rating) Act 2002 to the Registrar for a determination under section 128A of Te Ture Whenua Maori Act 1993.
- (2) An application must—
  - (a) be in form 1;
  - (b) give information about the title and ownership of the rating units.

Rule 15.3A: inserted, on 30 April 2026, by rule 81 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### *Maori Commercial Aquaculture Claims Settlement Act 2004*

### **15.4 Request for advice or non-binding ruling in relation to aquaculture dispute**

- (1) A request under section 26P of the Act for advice or a non-binding ruling in relation to an aquaculture dispute must—
  - (a) be in form 46; and
  - (b) contain the names and addresses of the parties to the dispute; and
  - (c) give details as to the nature of the dispute and specify under which of the matters listed in section 52 of the Maori Commercial Aquaculture Claims Settlement Act 2004 the dispute falls; and
  - (d) be accompanied by a statement of the steps taken to resolve the dispute and to agree to a process for resolution.
  - (e) *[Revoked]*
- (1A) The application may be filed in any office of the Court, and rule 4.1(2) applies.
- (1B) On receiving the application, the Chief Registrar must, without delay, forward a copy of the application to the Chief Judge.

- (2) The request is not required to be notified under rule 4.13 but the party making the request must serve a copy of the application on all the other parties to the dispute.

- (3) A Judge may at any time give directions as to notice.

Rule 15.4(1)(e): revoked, on 30 April 2026, by rule 82(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 15.4(1A): inserted, on 30 April 2026, by rule 82(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 15.4(1B): inserted, on 30 April 2026, by rule 82(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **15.5 Application for determination of aquaculture dispute**

- (1) An application for the determination under section 26Q of the Act of a dispute under the Maori Commercial Aquaculture Claims Settlement Act 2004 must be—

- (a) in form 47; and
- (b) accompanied by a statement of the steps taken to resolve the dispute and to agree to a process for resolution.
- (c) *[Revoked]*

- (1A) The application may be filed in any office of the Court, and rule 4.1(2) applies.

- (1B) On receiving the application, the Chief Registrar must, without delay, forward a copy of the application to the Chief Judge.

- (2) The application is not required to be notified under rule 4.13 but the applicant must serve a copy of the application on all the other parties to the dispute.

- (3) A Judge may at any time give directions as to notice.

Rule 15.5(1)(c): revoked, on 30 April 2026, by rule 83(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 15.5(1A): inserted, on 30 April 2026, by rule 83(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 15.5(1B): inserted, on 30 April 2026, by rule 83(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### *Maori Fisheries Act 2004*

### **15.6 Request for advice or non-binding ruling in relation to fisheries dispute**

- (1) A request under section 26B of the Act for advice or a non-binding ruling in relation to a fisheries dispute must—

- (a) be in form 48; and
- (b) contain the names and addresses of the parties to the dispute; and
- (c) give details as to the nature of the dispute and specify under which of the matters listed in section 52 of the Maori Commercial Aquaculture Claims Settlement Act 2004 the dispute falls; and



- (d) be accompanied by a statement of the steps taken to resolve the dispute and to agree to a process for resolution.
- (e) *[Revoked]*
- (1A) The application may be filed in any office of the Court, and rule 4.1(2) applies.
- (1B) On receiving the application, the Chief Registrar must, without delay, forward a copy of the application to the Chief Judge.
- (2) The request is not required to be notified under rule 4.13 but the party making the request must serve a copy of the request on all the other parties to the dispute.
- (3) A Judge may at any time give directions as to notice.

Rule 15.6(1)(e): revoked, on 30 April 2026, by rule 84(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 15.6(1A): inserted, on 30 April 2026, by rule 84(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 15.6(1B): inserted, on 30 April 2026, by rule 84(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **15.7 Application for determination of fisheries dispute**

- (1) An application for the determination under section 26C of the Act of a dispute under the Maori Fisheries Act 2004 must—
  - (a) be in form 49 or, if Te Ohu Kai Moana Trustee Limited is the applicant under section 182(4) of the Maori Fisheries Act 2004, in form 50; and
  - (b) include or be accompanied by a statement of the steps taken to resolve the dispute and to agree to a process for resolution.
  - (c) *[Revoked]*
- (1A) The application may be filed in any office of the Court, and rule 4.1(2) applies.
- (1B) On receiving the application, the Chief Registrar must, without delay, forward a copy of the application to the Chief Judge.
- (2) The application is not required to be notified under rule 4.13 but the applicant must serve a copy of the application on all the other parties to the dispute.
- (3) A Judge may at any time give directions as to notice.

Rule 15.7(1)(c): revoked, on 30 April 2026, by rule 85(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 15.7(1A): inserted, on 30 April 2026, by rule 85(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 15.7(1B): inserted, on 30 April 2026, by rule 85(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**15.8 Application by Te Ohu Kai Moana Trustee Limited to deny or suspend recognition of mandated iwi organisation**

- (1) An application by Te Ohu Kai Moana Trustee Limited under section 185(1) of the Maori Fisheries Act 2004 to deny or suspend recognition of a mandated iwi organisation must—
  - (a) be in form 51; and
  - (b) *[Revoked]*
  - (c) set out fully, with reference to section 14 or 130 of the Maori Fisheries Act 2004, the grounds on which the application is brought; and
  - (d) explain fully why the mandated iwi organisation has failed to meet any of the criteria or requirements under section 14 or 130 of the Maori Fisheries Act 2004.
- (1A) The application may be filed in any office of the Court, and rule 4.1(2) applies.
- (1B) On receiving the application, the Chief Registrar must, without delay, forward a copy of the application to the Chief Judge.
- (2) The application is not required to be notified under rule 4.13 but the applicant must serve a copy of the application on all the other parties to the dispute.
- (3) A Judge may at any time give directions as to notice.

Rule 15.8(1)(b): revoked, on 30 April 2026, by rule 86(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 15.8(1A): inserted, on 30 April 2026, by rule 86(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 15.8(1B): inserted, on 30 April 2026, by rule 86(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

*Maori Vested Lands Administration Act 1954 and Maori Reserved Land Act 1955*

**15.9 Memorial of assignment by way of security over vested land or reserved land**

- (1) A memorial of assignment by way of security under section 4B of the Maori Vested Lands Administration Act 1954 or under section 10A of the Maori Reserved Land Act 1955 of an equitable and beneficial freehold interest in Māori vested land or Māori reserved land must be in form 52.
- (2) The Registrar must, on receipt of a memorial of assignment and the appropriate fee (if any), enter details of the assignment in the memorial schedule of the title to any land that is subject to the assignment.

Compare: SR 1994/35 r 161(1)

*Property Law Act 2007*

Heading: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**15.10 Applications relating to Māori freehold land**

- (1) This rule applies to the following applications under the Property Law Act 2007:
  - (a) an application made under Part 3 of that Act that relates to a mortgage over Māori freehold land only (as defined in section 4 of Te Ture Whenua Maori Act 1993) (*see* section 20A(1)(a) of Te Ture Whenua Maori Act 1993);
  - (b) an application that relates to easements or covenants over Māori freehold land (even if it also relates to other land) made under the sections specified in section 22B(1) of Te Ture Whenua Maori Act 1993.
- (2) An application must be in form 1.
- (3) The Registrar must, on receipt of an application, refer it to a Judge for directions.
- (4) The applicant must notify the application under rule 4.13.

Rule 15.10: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**15.11 Referral of proceedings or question to High Court or District Court by Court**

- (1) For an application referred to in rule 15.10(1)(a), the Court may refer any proceedings resulting from the application, or a question relating to the proceedings, to the High Court or the District Court.
- (2) For an application referred to in rule 15.10(1)(b), the Court may refer any proceedings resulting from the application, or a question relating to the proceedings, to the District Court.
- (3) *See* section 20A or 22B of the Act (as relevant) for requirements for making a referral.
- (4) An application or a question may be referred on application by a party or on the Court's own initiative.
- (5) An application referred to the High Court or the District Court must be treated as having been filed in that court.
- (6) If the Court has a further question related to the response it receives from the relevant court to its first question, it may refer that further question to that court and rule 15.11(3) and (4) applies.

Rule 15.11: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**15.12 Referral of proceedings or question to Court by High Court or District Court**

- (1) For an application referred to in rule 15.10(1)(a) or (b), the High Court or the District Court may refer any proceedings resulting from the application, or a question relating to the proceedings, to the Court.
- (2) *See* section 20A or 22B of the Act (as relevant) for requirements for making a referral.
- (3) An application or a question may be referred on application by a party or on the referring court's own initiative.
- (4) An application referred to the Court must be treated as having been filed in the Court.
- (5) If a question is referred to the Court, it must transmit a certificate of its opinion on the question to the referring court.
- (6) If the referring court has a further question related to that opinion, it may refer that further question to the Court and rule 15.12(2), (3), and (5) applies.

Rule 15.12: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

***Family Protection Act 1955***

Heading: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**15.13 Application relating to Māori freehold land**

- (1) This rule applies to an application under the Family Protection Act 1955 that relates to Māori freehold land only (as defined in section 4 of Te Ture Whenua Maori Act 1993).
- (2) An application must be in form 1.
- (3) The Registrar must, on receipt of an application, refer it to a Judge for directions.
- (4) The applicant must notify the application under rule 4.13.
- (5) An application under this rule must be accompanied by form 52A.

Rule 15.13: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**15.14 Referral of proceedings or question to High Court or Family Court by Court**

- (1) For an application referred to in rule 15.13, the Court may refer any proceedings resulting from the application, or a question relating to the proceedings, to the High Court or the Family Court.
- (2) *See* section 3A of the Family Protection Act 1955 for requirements for making a referral.

- (3) An application or a question may be referred on application by a party or on the Court's own initiative.
- (4) An application referred to the High Court or the Family Court must be treated as having been filed in that court.
- (5) If the Court has a further question related to the response it receives from the relevant court to its first question, it may refer that further question to that court and rule 15.14(2) and (3) applies.

Rule 15.14: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **15.15 Referral of proceedings or question to Court by High Court or Family Court**

- (1) For an application referred to in rule 15.13, the High Court or Family Court may refer any proceedings resulting from the application, or a question relating to the proceedings, to the Court.
- (2) *See* section 3A of the Family Protection Act 1955 for requirements for making a referral.
- (3) An application or a question may be referred on application by a party or on the referring court's own initiative.
- (4) An application referred to the Court must be treated as having been filed in the Court.
- (5) If a question is referred to the Court, it must transmit a certificate of its opinion on the question to the referring court.
- (6) If the referring court has a further question related to that opinion, it may refer that further question to the Court and rule 15.15(2), (3), and (5) applies.

Rule 15.15: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### *Government Roding Powers Act 1989*

Heading: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **15.16 Applications relating to Māori land**

- (1) This rule applies to an application, appeal, or matter (an **application**) under section 48, 50, 55, 61, 74, or 76 of the Government Roding Powers Act 1989 that relates to Māori land only (as defined in section 4 of Te Ture Whenua Maori Act 1993).
- (2) An application must be in form 1.
- (3) On receipt of an application, the Registrar must—
  - (a) refer it to a Judge for directions; and

- (b) display a notice on an Internet site maintained by the Court for not less than 3 months or until the application is heard (if that occurs within 3 months).
- (4) The notice required under rule 15.16(3)(b) must include the following information:
  - (a) a description of the land the application relates to:
  - (b) the nature of the matter for which the application has been brought:
  - (c) the date for filing and serving a notice of intention to oppose the application that is at least 15 working days after the date of publication of the notice.
- (5) The applicant must notify the application under rule 4.13.

Rule 15.16: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **15.17 Referral of proceedings or question to District Court by Court**

- (1) For an application referred to in rule 15.16, the Court may refer any proceedings resulting from the application, or a question relating to the proceedings, to the District Court.
- (2) *See* the sections listed in rule 15.16(1) for requirements for making a referral.
- (3) An application or a question may be referred on application by a party or on the Court's own initiative.
- (4) An application referred to the District Court must be treated as having been filed in that court.
- (5) If the Court has a further question related to the response it receives from the District Court to its first question, it may refer that further question to that court and rule 15.17(2) and (3) applies.

Rule 15.17: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **15.18 Referral of proceedings or question to Court by District Court**

- (1) For an application referred to in rule 15.16, the District Court may refer any proceedings resulting from the application, or a question relating to the proceedings, to the Court.
- (2) An application or a question may be referred on application by a party or on the District Court's own initiative.
- (3) An application referred to the Court must be treated as if it had been filed in the Court.
- (4) If a question is referred to the Court, it must transmit a certificate of its opinion on the question to the District Court.
- (5) If the District Court has a further question related to that opinion, it may refer that further question to the Court and rule 15.18(2) and (4) applies.

Rule 15.18: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

*Law Reform (Testamentary Promises) Act 1949*

Heading: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**15.19 Application relating to Māori freehold land**

- (1) This rule applies to an application under the Law Reform (Testamentary Promises) Act 1949 that relates to Māori freehold land only (as defined in section 4 of Te Ture Whenua Maori Act 1993).
- (2) An application must be in form 1.
- (3) The Registrar must, on receipt of an application, refer it to a Judge for directions.
- (4) The applicant must notify the application under rule 4.13.
- (5) An application under this rule must be accompanied by form 52A.

Rule 15.19: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**15.20 Referral of proceedings or question to High Court or Family Court by Court**

- (1) For an application referred to in rule 15.19, the Court may refer any proceedings resulting from the application, or a question relating to the proceedings, to the High Court or the Family Court.
- (2) See section 5 of the Law Reform (Testamentary Promises) Act 1949 for requirements for making a referral.
- (3) An application or a question may be referred on application by a party or on the Court's own initiative.
- (4) An application referred to the High Court or the Family Court must be treated as having been filed in that court.
- (5) If the Court has a further question related to the response it receives from the relevant court to its first question, it may refer that further question to that court and rule 15.20(2) and (3) applies.

Rule 15.20: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**15.21 Referral of proceedings or question to Court by High Court or Family Court**

- (1) For an application referred to in rule 15.19, the High Court or the Family Court may refer any proceedings resulting from the application, or a question relating to the proceedings, to the Court.
- (2) See section 5 of the Law Reform (Testamentary Promises) Act 1949 for requirements for making a referral.

- (3) An application or a question may be referred on application by a party or on the referring court's own initiative.
- (4) An application referred to the Court must be treated as having been filed in the Court.
- (5) If a question is referred to the Court, it must transmit a certificate of its opinion on the question to the referring court.
- (6) If the referring court has a further question related to that opinion, it may refer that further question to the Court and rule 15.21(2), (3), and (5) applies.

Rule 15.21: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### *Local Government Act 1974*

Heading: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **15.22 Application relating to Māori land**

- (1) This rule applies to an application under section 446 of the Local Government Act 1974 that relates to Māori land only (as defined in section 4 of Te Ture Whenua Maori Act 1993).
- (2) An application must be in form 1.
- (3) The Registrar must, on receipt of an application, refer it to a Judge for directions.
- (4) The applicant must notify the application under rule 4.13.

Rule 15.22: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **15.23 Referral of proceedings or question to District Court by Court**

- (1) For an application referred to in rule 15.22, the Court may refer any proceedings resulting from the application, or a question relating to the proceedings, to the District Court.
- (2) See section 446(8A) and (8B) of the Local Government Act 1974 for requirements for making a referral.
- (3) An application or a question may be referred on application by a party or on the Court's own initiative.
- (4) An application referred to the District Court must be treated as having been filed in that court.
- (5) If the Court has a further question related to the response it receives from the District Court to its first question, it may refer that further question to that court and rule 15.23(2) and (3) applies.

Rule 15.23: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).



#### 15.24 Referral of proceedings or question to Court by District Court

- (1) For an application referred to in rule 15.22, the District Court may refer any proceedings resulting from the application, or a question relating to the proceedings, to the Court.
- (2) *See* section 446(8A) and (8B) of the Local Government Act 1974 for requirements for making a referral.
- (3) An application or a question may be referred on application by a party or on the District Court's own initiative.
- (4) An application referred to the Court must be treated as if it had been filed in the Court.
- (5) If a question is referred to the Court, it must transmit a certificate of its opinion on the question to the District Court.
- (6) If the District Court has a further question related to that opinion, it may refer that further question to the Court and rule 15.24(2), (3), and (5) applies.

Rule 15.24: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### *Plant Variety Rights Act 2022*

Heading: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### 15.25 Interpretation

In rules 15.26 to 15.38, unless the context otherwise requires,—

**appeal** means an appeal against an MPV Committee decision

**MPV Committee** means the Māori Plant Varieties Committee established under section 57 of the Plant Variety Rights Act 2022

**notice of appeal** means a notice of an appeal against an MPV Committee decision.

Rule 15.25: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### 15.26 Notice of appeal

A notice of appeal must—

- (a) be in form 52B; and
- (b) set out, in sufficient detail to inform the Court and any other party, the basis of the appeal by stating the grounds of appeal and the relief sought; and
- (c) be signed by the appellant or the appellant's solicitor; and
- (d) be filed—
  - (i) within 28 days after the MPV Committee gives notice of its decision; or

- (ii) if the Māori Appellate Court has granted leave to appeal out of time under rule 15.30, within the extended time allowed.

Rule 15.26: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **15.27 Filing of notice of appeal**

- (1) A notice of appeal may be filed in any office of the Court, and rule 4.1(2) applies.
- (2) With any necessary modifications, the following rules apply to filing a notice of appeal:
  - (a) rules 4.7 to 4.9;
  - (b) rule 4.10, except that the reference in rule 4.10(3) to a Judge must be read as a reference to the Chief Judge;
  - (c) rule 4.22.

Rule 15.27: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **15.28 Duties of Chief Registrar on receipt of notice of appeal**

- (1) Within 15 working days of receiving a notice of appeal, the Chief Registrar must—
  - (a) serve a copy of the notice of appeal and any application for leave to appeal out of time on the following persons:
    - (i) every person who was an applicant or who opposed the application before the MPV Committee;
    - (ii) every iwi, hapū, individual of Māori descent, or Māori entity that asserted before the MPV Committee that they have a kaitiaki relationship with the plant species that is the subject of the MPV Committee decision;
    - (iii) every barrister, solicitor, or agent of any of the persons identified in rule 15.28(1)(a)(i) or (ii); and
  - (b) notify any person who may have an interest in the subject of the appeal, or who appears from the MPV Committee decision to be a person who should be notified, of the following:
    - (i) that a notice of appeal has been filed;
    - (ii) the grounds of appeal;
    - (iii) that any person who wishes to be notified of further details of the appeal (including the time, date, and place of hearing) should advise the Court within 10 working days after the date of receipt of the notice:

- (iv) that any person who wishes to appear in support of the appeal or in opposition to it must file a notice of intention to appear within 10 working days after the date of receipt of the notice.
- (2) The Chief Registrar must then, without delay, forward the file containing the notice of appeal and the MPV Committee decision that is the subject of the appeal to the Chief Judge and include with the file a summary of the notification given under this rule.
- (3) The Chief Registrar must provide to the parties, any person who has filed a notice of intention to appear, and any person who has advised the Court under rule 15.28(1)(b)(iii)—
  - (a) copies of all directions, rulings, and decisions of the Māori Appellate Court in respect of the appeal; and
  - (b) notice of at least 15 working days of the time, date, and place of hearing of the appeal.
- (4) On receipt of a notice of appeal, the Chief Registrar must, without delay, notify the MPV Committee of the appeal.
- (5) After receiving that notification, the MPV Committee must, as soon as practicable, forward to the Chief Registrar the files and other documents that are necessary for the preparation of the record on appeal.

Rule 15.28: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **15.29 Chief Judge must take steps for hearing of appeal**

- (1) The Chief Judge, on receiving a notice of appeal, must—
  - (a) fix the date, time, and place of hearing of the appeal; and
  - (b) fix security for costs (if any) and the date for payment of the security; and
  - (c) appoint an appeal panel comprising a presiding Judge and at least 2 other Judges to act as the Māori Appellate Court to hear the appeal.
- (2) However, the Chief Judge may defer taking any of the steps in rule 15.29(1) in order to deal with interlocutory or preliminary matters under rule 15.32.
- (3) The date of the hearing of the appeal must be at least 2 months after the date the MPV Committee gives notice of its decision.
- (4) However, the date of the hearing of the appeal may be less than 2 months after the date on which the MPV Committee gives notice of its decision if the Chief Judge is satisfied that—
  - (a) special reason exists to hear the appeal earlier; and
  - (b) it is in the interests of justice to hear the appeal earlier.

- (5) A person directed to pay security for costs under rule 15.29(1)(b) must deposit the sum with the Chief Registrar within the time fixed for payment or any extension of that time (*see* rule 15.32(3)(a)).
- (6) The Chief Registrar must hold any security for costs in an account established for that purpose and must not disburse the security except by order of the Court.

Rule 15.29: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **15.30 Leave to appeal against Māori Plant Varieties Committee decision out of time**

- (1) An appellant who seeks leave to appeal out of time under section 71(2) of the Plant Variety Rights Act 2022 must—
  - (a) file an application that complies with rule 15.30(2) in any office of the Court, and rule 4.1(2) applies; and
  - (b) file a notice of appeal in accordance with rule 15.27.
- (2) The application must—
  - (a) be in form 52C and seek an extension of time for filing a notice of appeal; and
  - (b) set out the reasons for the delay in filing a notice of appeal; and
  - (c) set out the grounds on which the extension is sought.
- (3) The Chief Registrar must refer the application to the Chief Judge, who must constitute the Māori Appellate Court to deal with the application.
- (4) The Māori Appellate Court may—
  - (a) hear the application in a formal hearing, in which case the application must be set down for a fixture and notified; or
  - (b) deal with the application in accordance with the procedure set out in rule 15.33.
- (5) If the application is heard in a formal hearing, the appeal may be set down to be heard in the same hearing.

Rule 15.30: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **15.31 Record on appeal**

- (1) The Chief Registrar must, on being directed to do so by the Chief Judge and without delay, compile a record on appeal and—
  - (a) provide a copy to each member of the Māori Appellate Court that is to hear the appeal; and
  - (b) not later than 15 working days before the hearing of the appeal, provide a copy to each party to the appeal.

- (2) The record on appeal must contain—
  - (a) the MPV Committee file provided to the Court under rule 15.28(5), the application, and any other documents received by the Court or compiled by the MPV Committee in respect of the application; and
  - (b) the MPV Committee decision appealed against; and
  - (c) any other material directed by the Māori Appellate Court to be included.
- (3) The record on appeal must be numbered consecutively and indexed.

Rule 15.31: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **15.32 Preliminary and interlocutory matters**

- (1) Preliminary and interlocutory matters to be determined before the hearing of the appeal may be determined by—
  - (a) the Chief Judge, before the appointment of the appeal panel; or
  - (b) the presiding Judge of the Māori Appellate Court, after the appointment of the appeal panel.
- (2) The Chief Judge, or the presiding Judge following consultation with other members of the Māori Appellate Court, may do any of the following:
  - (a) canvass with the parties alternative procedures for the disposal of the appeal, including a reference to mediation or a hearing by remote conference procedures;
  - (b) hold, or request another Judge hold, a judicial conference under section 67 of the Act;
  - (c) determine an application filed before the hearing for leave to amend the grounds of appeal;
  - (d) determine any issue of costs or security for costs arising under rule 15.29(1)(b) if the appeal is withdrawn before the hearing.
- (3) The presiding Judge may, on an application by the appellant,—
  - (a) extend the time for lodging security for costs in the appeal;
  - (b) with the approval of the Chief Judge, reduce or waive the amount ordered to be paid as security for costs in the appeal.

Rule 15.32: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **15.33 When Māori Appellate Court may dismiss or allow appeal without hearing**

- (1) The Māori Appellate Court may dismiss or otherwise dispose of an appeal without a formal hearing if—
  - (a) the appeal is withdrawn before the hearing;

- (b) the appellant has failed to comply with an interlocutory order or direction;
  - (c) the appellant has failed to pay security for costs by the date fixed for payment or, if an extension has been granted, the extended date;
  - (d) the Māori Appellate Court does not have jurisdiction to hear the appeal.
- (2) The Māori Appellate Court may, without a formal hearing, allow the appeal and make any order under section 73 of the Plant Variety Rights Act 2022 if—
- (a) it is clear on the face of the appeal that an order under that section should be made; and
  - (b) the parties consent.

Rule 15.33: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

**15.34 Māori Appellate Court may convene without formal hearing to determine certain matters**

- (1) The Māori Appellate Court may convene, without a formal hearing, for the purpose of dealing with any of the following matters:
- (a) any interlocutory or preliminary matter referred to it by a presiding Judge, including a matter referred to in rule 15.32;
  - (b) the making of an order by agreement;
  - (c) dismissal of an appeal for non-compliance with an interlocutory order or other direction, or for non-payment of security for costs;
  - (d) with the consent of the parties, the determination of the appeal or any issue or argument arising out of the appeal;
  - (e) the withdrawal of the appeal.
- (2) The Māori Appellate Court may, without a formal hearing,—
- (a) convene a settlement conference; or
  - (b) refer the appeal to any other Judge for the purpose of that Judge convening a settlement conference.
- (3) In a matter referred to in rule 15.34(1) or (2), the Māori Appellate Court may, after considering representations made to it, direct the parties to file written submissions and determine the matter on the basis of those submissions.
- (4) The presiding judge must sign an order or a determination made by the Māori Appellate Court under this rule, and endorse that order or determination with a note that it is made under this rule.

Rule 15.34: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **15.35 Conduct of appeal hearing**

- (1) The following persons may be heard in support of the appeal or may put forward a claim contrary to the MPV Committee decision appealed against:
  - (a) the appellant;
  - (b) any other party to the appeal;
  - (c) a person who has filed a notice of intention to appear;
  - (d) any other person with the leave of the Māori Appellate Court.
- (2) The appellant may rely on a ground of appeal only—
  - (a) if the ground of appeal has been notified to the other parties in a notice of appeal or an amended notice of appeal; or
  - (b) with the leave of the Māori Appellate Court.

Rule 15.35: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **15.36 Reinstatement of appeal**

- (1) The Chief Judge may make an order reinstating an appeal that has been dismissed under rule 15.33 upon the terms that the Chief Judge thinks fit.
- (2) The Chief Registrar must give notice of an order made under this rule to the parties to the appeal and to any person who has filed a notice of intention to appear.

Rule 15.36: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **15.37 Withdrawal of appeal**

- (1) The appellant may withdraw the appeal—
  - (a) by notice in writing to the Chief Registrar, at any time before the hearing of the appeal;
  - (b) at the hearing.
- (2) If the appellant withdraws the appeal, the Māori Appellate Court, or the Chief Judge if the appeal panel has not been appointed, may make an order as it or they think just for—
  - (a) the payment of any costs relating to the appeal; and
  - (b) the disbursement of any sum that has been lodged as security for costs.

Rule 15.37: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### **15.38 Powers and duties of Deputy Chief Judge in relation to appeals**

The Deputy Chief Judge may, with the authority of the Chief Judge, exercise any of the powers or perform any of the duties of the Chief Judge under rules 15.29, 15.30, and 15.32.

Rule 15.38: inserted, on 30 April 2026, by rule 87 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## **Part 16**

### **Special Aid Fund**

#### **16.1 Appointment, etc, of persons to be paid from Special Aid Fund**

- (1) This rule applies to the appointment of, engagement of, reference to, or calling of (the **appointment**) a person specified in section 98(9) of the Act.
- (2) A party may apply for the appointment—
  - (a) by formal application using form 1:
  - (b) orally:
  - (c) at any stage of the proceeding.
- (3) A Judge may—
  - (a) require the application to be made by formal application using form 1 or 53:
  - (b) except in the case of a person appointed as an examining officer under section 280 of the Act, make the appointment on his or her own initiative.
- (4) If an application for appointment is made after any work has been undertaken by the appointee, a Judge may, in fixing the terms of appointment, decline to include that work as part of the appointment.
- (5) The provisions in these rules relating to notice and notice in the Pānui do not apply to any order or appointment made under this Part.

Rule 16.1(5): amended, on 30 April 2026, by rule 91 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **16.2 Court appointment of barrister or solicitor**

The Court may decline to appoint a barrister or solicitor under section 70(3) of the Act unless the Court—

- (a) is satisfied as to the precise nature and extent of the work to be undertaken by the appointee; and
- (b) approves the rate of payment to be made for the work; and
- (c) has been provided with an estimate of—
  - (i) the time that the work will or is likely to take; and
  - (ii) the total amount for which payment from the Special Aid Fund will be sought.



### **16.3 Court appointment of other persons**

The Court may decline to make an appointment referred to in rule 16.1 unless the terms of the appointment including the rate of remuneration have been agreed to by the Court and the appointee.

### **16.4 Provisional appointment**

Nothing in rules 16.2 and 16.3 prevents the Court from making a provisional appointment that is conditional upon finalisation of the terms of the appointment and the rate of payment.

### **16.5 Role of Registrar in finalising appointment**

The Court, in making an appointment referred to in rule 16.1, may direct the Registrar to do any of the following:

- (a) negotiate the terms of an appointment and rate of payment;
- (b) obtain competitive tenders for appointments;
- (c) obtain estimates of costs.

### **16.6 Application for order for payment from Special Aid Fund**

- (1) An application for an order under section 98 of the Act for a payment from the Special Aid Fund may be made—
  - (a) by formal application using form 53 or orally in court;
  - (b) before the proceeding begins, during the course of the proceeding, or after the proceeding has concluded.
- (2) The Court may make an order under section 98 of the Act on its own initiative.
- (3) The Court may request the applicant to provide details as to—
  - (a) the precise nature and extent of the work that has been or is to be undertaken and for which payment is sought; and
  - (b) the rate of payment for the work; and
  - (c) any work done and the time taken; and
  - (d) the estimated time that any further work will or is likely to take; and
  - (e) the total amount for which payment from the Special Aid Fund is or will be sought.
- (4) If an application is made after any work has been undertaken, the Court may decline to include that work in assessing the amount of payment (if any).
- (5) An order under section 98 of the Act must—
  - (a) specify the amount of the payment; or
  - (b) identify an invoice or account for the amount to be paid.
- (6) In any case where an application is made in advance of a hearing or completion of the work to which the application relates, the Court may give a provisional

indication that it will make an order and set out the basis on which the order will be made.

- (7) An order under section 98 of the Act must be recorded in a minute that complies with rule 7.17, and need only be documented in a form that complies with rules 7.2 and 7.6 if directed by a Judge.

Rule 16.6(1): amended, on 30 April 2026, by rule 88(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 16.6(1)(a): amended, on 30 April 2026, by rule 88(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 16.6(2): amended, on 30 April 2026, by rule 88(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 16.6(5): amended, on 30 April 2026, by rule 88(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 16.6(7): inserted, on 30 April 2026, by rule 88(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **16.7 Request under section 98 for payment from Special Aid Fund**

- (1) A request under section 98 of the Act for payment from the Special Aid Fund must—
- (a) be made in writing to the Registrar; and
  - (b) certify that the work required to be done or the services required to be performed have been completed; and
  - (c) if the amount of the payment has not been specified in the order of appointment, be accompanied by a detailed invoice itemising—
    - (i) the time spent; and
    - (ii) the rate of payment; and
    - (iii) the amount and nature of expenses incurred.
- (2) If the amount requested varies from the amount specified, or from the invoice or account identified, in the order of appointment, the Chief Registrar may do either or both of the following:
- (a) take up the matter with the appointee and attempt to settle it;
  - (b) refer the matter to a Judge for a ruling or directions.

Rule 16.7 heading: amended, on 30 April 2026, by rule 89(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rule 16.7(1): amended, on 30 April 2026, by rule 89(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **16.8 Court may issue practice note as guide to reasonable fees and expenses**

- (1) The Court may issue practice notes indicating the range of the reasonable fees, costs, or expenses that may be paid from the Special Aid Fund under section 98 of the Act.

- (2) A practice note issued under this rule is a guide only and does not bind a Judge in the exercise of his or her discretion in making an order as to payment of reasonable fees, costs, and expenses from the Special Aid Fund.

**16.9 Registrar must forward orders and applications for payment to Chief Registrar**

- (1) The Registrar must without delay—
- (a) forward to the Chief Registrar—
    - (i) a copy of any order made under section 98(3) of the Act with all relevant supporting documents; and
    - (ii) any request for payment made by a person specified in section 98(9) of the Act with all supporting documents; and
  - (b) forward to the Legal Services Commissioner a copy of any order made under section 98(3) of the Act.
- (2) The Chief Registrar must pay from the Special Aid Fund—
- (a) the amount ordered to be paid under an order made under section 98(3) of the Act;
  - (b) the reasonable fees, costs, or out-of-pocket expenses that are payable under section 98(9) of the Act.

**Part 17**

**Revocation and transitional provisions**

**17.1 Maori Land Court Rules 1994 revoked**

The Maori Land Court Rules 1994 (SR 1994/35) are revoked.

**17.2 Transitional provisions**

- (1) Subject to rule 17.2(2) and (3),—
- (a) the revocation of the Maori Land Court Rules 1994 (the **1994 Rules**) does not affect any document or thing done under those rules or under any corresponding rules; and
  - (b) every such document or thing, in so far as it is subsisting or in force immediately before revocation of the 1994 Rules and could have been made or done under these rules, continues to have effect as if it had been made or done under the corresponding provision of these rules and as if that provision had been in force when the document was made or the thing was done.
- (2) All proceedings in the Māori Land Court or the Māori Appellate Court commenced before and pending or in progress on the commencement of these rules may be continued, completed, and enforced under these rules, and accordingly these rules, so far as practicable, apply to those proceedings. In so far as it is

not practicable for any provision of these rules to be applied to any of those proceedings, the 1994 Rules continue to apply to those proceedings to the extent necessary.

- (3) If, in any proceeding to which rule 17.2(2) applies, any question arises as to the application of any provision of these rules or of the 1994 Rules, the Court or the Registrar may, either on the application of any party to the proceedings or of the Court's or Registrar's own motion, determine the question and make the order or orders that the Court or the Registrar thinks fit.

## Schedule 1AA

### Transitional, savings, and related provisions

r 2.6

Schedule 1AA: inserted, on 30 April 2026, by rule 90 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

### Part 1

#### Provisions relating to these Māori Land Court Amendment Rules 2026

Schedule 1AA Part 1: inserted, on 30 April 2026, by rule 90 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

#### **1 Application of rules amended by Māori Land Court Amendment Rules 2026 to proceedings filed before commencement date**

- (1) For any proceeding filed before the commencement date, these rules apply as if the amendment rules had not come into force, except as provided in subclause (2).
- (2) The Court may direct that 1 or more, or all, of the amendment rules apply in a particular proceeding commenced before the commencement date.
- (3) Before making a direction under subclause (2), the Court must consider what will best achieve the objectives in rule 2.2.
- (4) In this clause,—

**amendment rules** means the Māori Land Court Amendment Rules 2026

**commencement date** means the date on which the amendment rules come into force.

Schedule 1AA clause 1: inserted, on 30 April 2026, by rule 90 of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## Schedule 1

### Forms

r 2.5(1)

### Contents

|     |                                                                                  | Page |
|-----|----------------------------------------------------------------------------------|------|
| 1   | General form of application                                                      | 177  |
| 2   | Undertaking by next friend of minor                                              | 179  |
| 3   | Notice to accompany service of application                                       | 181  |
| 4   | Notice of application                                                            | 183  |
| 4A  | Application for mediation                                                        | 185  |
| 5   | Notice of intention to appear upon application                                   | 187  |
| 6   | Order for discovery of documents                                                 | 189  |
| 7   | Affidavit of documents                                                           | 191  |
| 8   | Summons to witness and affidavit of service                                      | 193  |
| 9   | Order of reference for inquiry and report                                        | 196  |
| 10  | General form of order<br>Order [ <i>specify nature of the order</i> ]            | 198  |
| 11  | Memorandum transmitting order to District Court                                  | 199  |
| 11A | Memorandum transmitting order to High Court or District Court                    | 200  |
| 11B | Application for review of Registrar's determination or order                     | 201  |
| 12  | Application to Chief Judge                                                       | 203  |
| 12A | Application for leave to appeal out of time                                      | 205  |
| 13  | Notice of appeal                                                                 | 207  |
| 14  | Application for leave to appeal from preliminary determination                   | 209  |
| 15  | Case stated for opinion of High Court                                            | 211  |
| 16  | Notice of proceedings                                                            | 212  |
| 16A | Application for injunction                                                       | 214  |
| 17  | Memorandum transmitting order by way of injunction to High Court for enforcement | 216  |
| 18  | Application to hear and determine representation of class or group of Māori      | 217  |
| 19  | Application for search                                                           | 219  |
| 20  | Certificate by administrator                                                     | 221  |
| 21  | Application for succession when grant of administration held                     | 223  |
| 22  | Application for succession when no grant of administration held                  | 232  |

|     |                                                                                                  |     |
|-----|--------------------------------------------------------------------------------------------------|-----|
| 22A | Succession to additional land interests                                                          | 239 |
| 23  | Application to form whānau trust                                                                 | 241 |
| 24  | Application for transmission by survivorship or for determination of life interest               | 243 |
| 24A | Notice of application for change of status from Māori land to General land                       | 245 |
| 25  | Application for confirmation of alienation                                                       | 246 |
| 26  | Application for exemption from providing special valuation                                       | 249 |
| 27  | [ <i>Name of block of Māori freehold land</i> ] notice of right of first refusal                 | 251 |
| 28  | Certificate of confirmation of alienation of Maori freehold land                                 | 254 |
| 29  | Certificate of confirmation by Registrar of alienation of Māori freehold land                    | 256 |
| 30  | Application for vesting order                                                                    | 258 |
| 31  | Agreement to sell or gift interest in Māori freehold land                                        | 262 |
| 32  | Application to call meeting of owners                                                            | 264 |
| 33  | Application for confirmation of resolution of assembled owners                                   | 266 |
| 34  | Application for confirmation of resolution passed at family gathering                            | 268 |
| 35  | Application for exchange order                                                                   | 270 |
| 36  | Application to constitute whānau trust                                                           | 274 |
| 37  | Application to constitute ahu whenua trust                                                       | 277 |
| 38  | Application to appoint, remove, or replace trustee or change the number of trustees              | 280 |
| 38A | Application to remove trustee for reason other than resignation, retirement, or death of trustee | 283 |
| 39  | Application for partition                                                                        | 285 |
| 40  | Application for occupation order                                                                 | 290 |
| 41  | Requisition for survey                                                                           | 294 |
| 42  | Certificate of completion of survey                                                              | 296 |
| 43  | Application for charging order for cost of survey [ <i>Revoked</i> ]                             | 297 |
| 44  | Charging order for cost of survey [ <i>Revoked</i> ]                                             | 297 |
| 45  | Order varying charging order [ <i>Revoked</i> ]                                                  | 297 |
| 46  | Request for advice on aquaculture dispute                                                        | 298 |
| 47  | Application to hear and determine aquaculture dispute                                            | 301 |

|     |                                                                                                                                               |     |
|-----|-----------------------------------------------------------------------------------------------------------------------------------------------|-----|
| 48  | Request for advice or non-binding ruling on Māori fisheries dispute                                                                           | 303 |
| 49  | Application to hear and determine Māori fisheries dispute                                                                                     | 306 |
| 50  | Application by Te Ohu Kai Moana Trustee Limited for reference of Māori fisheries dispute                                                      | 310 |
| 51  | Application by Te Ohu Kai Moana Trustee Limited to deny or suspend recognition of mandated iwi organisation                                   | 312 |
| 52  | Memorial of assignment of equitable and beneficial interest in Māori vested land/Māori reserved land*                                         | 314 |
| 52A | Notice of application to respondent (under Family Protection Act 1955 or Law Reform (Testamentary Promises) Act 1949)                         | 316 |
| 52B | Notice of appeal against decision of Māori Plant Varieties Committee under Plant Variety Rights Act 2022                                      | 318 |
| 52C | Notice of application for leave to appeal out of time against decision of Māori Plant Varieties Committee under Plant Variety Rights Act 2022 | 320 |
| 53  | Application seeking special aid                                                                                                               | 322 |



Form 1  
General form of application

rr 4.2, 16.1

*Section 95(3)(a), Te Ture Whenua Māori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

**Subject of application**

*[Name and block number of land, Māori incorporation, person, estate, or other matter in respect of which the application is made]*

**Application**

I/We\*, [full name(s)], apply for an order *[specify nature of the order sought, and if the application is not under Te Ture Whenua Māori Act 1993, specify details of the Act and section that apply]*.

\*Select one.

**Reasons for application**

*[State grounds or reasons and any facts relied on so as to fully inform the Court of the true nature of the application.]*

**Affected parties**

For each person, group, or authority who you think has an interest that might be affected by this application, specify the following details:

| Name | Postal address | Telephone No | Email address |
|------|----------------|--------------|---------------|
|------|----------------|--------------|---------------|

**Preferred place of hearing**

Preferred place of hearing:

Date:

Signature(s) of applicant(s):

**Consent to provide contact details to trustee or other administrator**

I/We\* agree to contact details in this application being provided to any trustee or other administrator of any land to which this application relates†.

\*Select one.

†You may strike out the above. However, if a trustee or other administrator does not hold up-to-date contact details, all or some of their services may not be able to be received.

**\*Contact details**

Contact address: [*address to which documents or correspondence in connection with the application may be posted or delivered*]

Telephone: [*home, work, mobile*]

Email:

\*If given, an email address may be used as a means of notice and service.

**Fee**

\$(*amount*)

**Notes**

- 1 If any paragraph in this form does not provide sufficient room for your response or you wish to provide further particulars, continue on a separate sheet of paper (unless this application is made by email or online).
- 2 Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

Schedule 1 form 1: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 1: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 1: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 1: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 2  
Undertaking by next friend of minor

r 4.11(5)

*Section 95(3)(a), Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

**Details of application**

Applicant: [name of minor on whose behalf the application is made]

Nature of application: [specify]

**Undertaking**

- 1 I, [full name], am the next friend of the applicant, who has not attained the age of 18 years.
- 2 I undertake to be responsible for the costs of any party to these proceedings if the applicant is ordered to pay those costs and fails to pay. I will immediately, after notice of default, pay the costs that have not been paid to the Registrar of the Court.
- 3 I confirm that I am not under any legal disability and that my interests are not adverse to those of the minor.

Date:

Signature of next friend:

**\*Next friend contact details**

Contact address: [address to which documents or correspondence in connection with the application may be posted or delivered]

Telephone: [home, work, mobile]

Email:

\*If given, an email address may be used as a means of notice and service.

**Fee**

\$(amount)

**Note**

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

**Checklist of documents required**

- **Proof of identification of next friend of applicant**
  - Schedule 1 form 2: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).
  - Schedule 1 form 2: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).
  - Schedule 1 form 2: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).
  - Schedule 1 form 2: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 3  
Notice to accompany service of application

r 4.15(1)

*Section 95(3)(a), Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

**Subject of application**

[Name and block number of land, Māori incorporation, person, estate, or other matter in respect of which the application is made]

**Notice of application**

On [date of filing], I/we\*, [full name(s)], filed an application affecting the above land in the Māori Land Court at—

\*Select one.

Physical address:

PO Box/Private Bag:

Telephone:

A copy of the application and any supporting documents are attached.

**Hearing of application**

The application is set down for hearing/expected to be heard\* at the Court sitting at [address, date, time].

\*Select one.

You are entitled to appear at the hearing.

If you wish to appear, you should contact the Court and file a notice of intention to appear and serve a copy on the applicant. This will assist the Court to deal with the hearing and enable it to contact you about the hearing if the need arises.

Date:

Signature(s) of applicant(s):

**\*Contact details**

Contact address: [*address to which documents or correspondence in connection with the application may be posted or delivered*]

Telephone: [*home, work, mobile*]

Email:

\*If given, an email address may be used as a means of notice and service.

Schedule 1 form 3: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 3: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 3: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 4  
Notice of application

r 4.15(2)

*Section 95(3)(a), Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [*Rohe*]

The Māori Land Court of New Zealand

[*Name of district*] District

Name and block number of land:

**Notice to owners**

I/We\*, [*full name(s)*], have applied to the Māori Land Court at—

\*Select one.

Physical address:

PO Box/Private Bag:

Telephone:

for an order [*specify nature of the order sought*].

This order is sought under section [*number of section*] of Te Ture Whenua Maori Act 1993/section [*number of section*] of [*name of Act*]\*.

\*Select one.

A full copy of the application may be obtained from the Court office.

**Hearing of application**

The application is set down for hearing at the Court sitting at [*address, date, time*].

You are entitled to appear at the hearing.

If you wish to appear, you should contact the Court and file a notice of intention to appear and serve a copy on the applicant. This will assist the Court to deal with the hearing and enable it to contact you about the hearing if the need arises.

Date:

Signature(s) of applicant(s):

**\*Contact details**

Contact address: [*address to which documents or correspondence in connection with the application may be posted or delivered*]

Telephone: [*home, work, mobile*]

Email:

\*If given, an email address may be used as a means of notice and service.

Schedule 1 form 4: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 4: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 4: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).



Form 4A  
Application for mediation

r 4A.3

*Section 98L(1)(b), Te Ture Whenua Māori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

**Subject of application**

*[Name and block number of land, Māori incorporation, person, or other matter in respect of which the application is made]*

**Details of proceedings**

*[Details of Court proceedings (if any)]*

**Application**

I/We\*, [full name(s)], apply for an order referring a dispute to mediation.

\*Select one.

**Details of dispute**

*[Describe in detail the matter you wish to have mediated.]*

**Affected parties**

Parties to dispute: *[list all parties]*

Names and contact details of those I/we\* think will need to attend the mediation:

\*Select one.

| Name | Postal address | Phone No | Email address |
|------|----------------|----------|---------------|
|------|----------------|----------|---------------|

**Efforts made to resolve dispute**

*[State the efforts made to resolve the dispute so far. Include dates and descriptions of activities, events, or hui that have taken place and attach any supporting documentation.]*

*[State whether the other party or parties agree to attend mediation.]*

**Preferred place of mediation hui**

Preferred place of mediation hui:

*A mediation hui does not need to be convened in court. Please provide the address if this is not a Māori Land Court location.*

Date:

Signature(s) of applicant(s):

**Contact details\***

Contact address: [*address to which documents or correspondence in connection with the application may be posted or delivered*]

Phone: [*home, work, mobile*]

Email:

\*This information only needs to be provided if the dispute does not relate to proceedings currently before the Court. If given, an email address may be used as a means to communicate with you.

**Note**

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

**Checklist of documents required**

- Evidence that the parties involved with the dispute agree to mediation (if available)
- Any other supporting documentation

**Lawyer's details (if any)\***

Name:

Contact address:

Phone:

Email:

\*This information only needs to be provided if the dispute does not relate to proceedings currently before the Court.

Schedule 1 form 4A: inserted, on 30 April 2026, by rule 92(5) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 5  
Notice of intention to appear upon application

r 5.9

*Section 95(3)(a), Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

**Details of application**

An application by [full name] under section [number] of Te Ture Whenua Maori Act 1993/[name of other Act]\* for [specify purpose of application].

\*Select one.

Application No:

**Notice of intention to appear**

I, [full name], am interested in or affected by this application and I give notice that I intend to appear at the hearing to—

*Select the statement that applies.*

- support the application.
- oppose the application.
- listen to the application and see how I might be affected.

The grounds on which I support/oppose\* the application, or the reasons why I wish to appear, are as follows: [attach extra pages if necessary].

\*Select one.

Date:

Signature:

**\*Contact details**

Contact address: [address to which documents or correspondence in connection with the application may be posted or delivered]

Telephone: [home, work, mobile]

Email:

\*If given, an email address may be used as a means of notice and service.

**Note**

As well as filing this notice in the Court, you must also send a copy to the applicant.

Schedule 1 form 5: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 5: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 5: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 6  
Order for discovery of documents

r 6.20(2)

*Section 95(3)(a), Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

To [full name of person against whom order is issued] (the applicant/respondent/  
interested party\*)

\*Select one.

**Details of application**

An application by [full name] under section [number] of Te Ture Whenua Maori Act 1993/[name of other Act]\* for [specify purpose of application].

\*Select one.

Application No:

**Order**

- 1 You are ordered to file an affidavit stating what documents, either in paper or electronic form, are or have been in your possession or power that relate to any matter relevant to the application.
- 2 You must file the affidavit in the Court within 15 working days of being served with this order.
- 3 You must deliver a copy of the affidavit to [full name], the applicant/respondent\*.

\*Select one.

**Costs**

The costs of and incidental to this order are reserved.

Date:

Signature:

(Deputy Registrar)

**Note**

Failure to comply with this order may result in the dismissal of the application or the setting aside of a defence to the application.

Schedule 1 form 6: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 7  
Affidavit of documents

r 6.20(4)

*Section 95(3)(a), Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

**Details of application**

An application by [full name] under section [number] of Te Ture Whenua Maori Act 1993/[name of other Act]\* for [specify purpose of application].

\*Select one.

Application No:

**Affidavit**

I, [full name, address, occupation], swear/solemnly and sincerely affirm\*—

\*Select one.

*Omit any of paragraphs 1 to 6 that do not apply.*

- 1 I have in my possession or power the documents, either in paper or electronic form, that are listed in Schedules 1 and 2 of this affidavit. Those documents relate to matters relevant to these proceedings.
- 2 I object to producing the documents, either in paper or electronic form, listed in Schedule 2.
- 3 I object to producing the documents listed in Schedule 2 because [specify reasons for objecting and verify the facts as far as possible].
- 4 I have had, but do not now have, in my possession or power, either in paper or electronic form, the documents listed in Schedule 3 of this affidavit.
- 5 The documents listed in Schedule 3 were last in my possession or power on [date].
- 6 The documents listed in Schedule 3 are now [specify what has happened to the documents listed in Schedule 3, and who has those documents at the present time].
- 7 According to the best of my knowledge, information, and belief, I have not now and never have had in my possession or power, or in the possession or power of my solicitor or agent or of any other person on my behalf, any deed, account, book of account, voucher, receipt, letter, memorandum, paper, or writing, either in paper or electronic form, or any copy of or extract from any such document, or any other document whatsoever relating to any matter

relevant to these proceedings, except the documents listed in Schedules 1, 2, and 3 of this affidavit.

***Schedule 1***

***Documents in my possession or power that I do not object to producing***

*[List all documents in your possession or power that you do not object to producing. If none, write “nil”.]*

***Schedule 2***

***Documents in my possession or power that I object to producing***

*[List the documents in your possession or power that you object to producing. If none, write “nil”.]*

***Schedule 3***

***Documents no longer in my possession or power***

*[List the documents that were once in your possession or power, but that you no longer have. If none, write “nil”.]*

Signature of deponent:

Sworn/Affirmed\* at: *[place, date]*

\*Select one.

Before me: *[name, signature]*

\*(Registrar/Deputy Registrar/Justice of the Peace/solicitor of the High Court of New Zealand/*[specify occupation of other qualified witness]*)<sup>†</sup>

\*Witness must be a Judge or Registrar of any court, including a District Court or any senior court, or a Justice of the Peace or a Community Magistrate, or a solicitor of the High Court other than a solicitor or member of a firm of solicitors engaged in the proceedings. See rule 6.19.

<sup>†</sup>Select one.

Schedule 1 form 7: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 7: amended, on 1 March 2017, by section 183(b) of the Senior Courts Act 2016 (2016 No 48).



Form 8  
Summons to witness and affidavit of service

r 6.22

*Section 95(3)(h), Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [*Rohe*]

The Māori Land Court of New Zealand

[*Name of district*] District

**Details of application**

An application by [*full name*] under section [*number*] of Te Ture Whenua Maori Act 1993/[*name of other Act*]\* for [*specify purpose of application*].

\*Select one.

Application No:

**Summons to witness**

To [*full name of person receiving summons*]

1 You are summoned to attend the Māori Land Court at [*place, date, time*] and from day to day as required, to give evidence concerning [*specify nature of evidence required*].

2 *Omit this paragraph if no documents are required to be produced.*

You are required to bring with you and to produce to the Court [*specify documents required*], and all other books, deeds, statements of account, papers, and writings that are in your possession or under your control and that relate to these proceedings. If you have such documents in electronic form, you are required to bring paper copies of those documents with you and produce them to the Court.

**Notes**

1 *\*Allowances and travelling expenses*

You are entitled to have paid to you, at the time you are served with this summons or at some other reasonable time before the hearing, a sum in respect of your allowances and travelling expenses as fixed under rule 6.22 of the Māori Land Court Rules 2011.

\*Omit this heading and paragraph if a Judge has directed under rule 6.22(5) that no allowances or travelling expenses are payable.

**2** *Failure to appear*

If you fail to obey this summons, *and have been paid allowances and travelling expenses at the appropriate rate,\** you will be liable to a fine not exceeding \$300.

\*Omit the words in italics if a Judge has directed under rule 6.22(5) that no allowances or travelling expenses are payable.

This summons is issued on behalf of *[full name]*.

Date:

Signature:

(Registrar/Deputy Registrar\*)

\*Select one.

Sealed:

**Affidavit of service**

I, *[full name, place of residence, occupation]*, swear/solemnly and sincerely affirm\*—

\*Select one.

- 1 I served *[full name of person summoned]* with a witness summons, a copy of which is attached, on *[day, date]*.
- 2 Service was effected by *[describe how witness summons was delivered]*.
- 3 *Select the statement that applies.*
  - No witness allowances and travelling expenses are payable.
  - The sum of \$*[amount]*, being witness allowances and travelling expenses in accordance with the Witnesses and Interpreters Fees, Allowances, and Expenses Regulations 2023, has been paid to the person.

Signature of deponent:

Sworn/Affirmed\* at: *[place, date]*

\*Select one.

Before me: *[name, signature]*

\*(Registrar/Deputy Registrar/Justice of the Peace/solicitor of the High Court of New Zealand/*[specify occupation of other qualified witness†]*)

\*Witness must be a Judge or Registrar of any court, including a District Court or any senior court, or a Justice of the Peace or a Community Magistrate, or a solicitor of the High Court other than a solicitor or member of a firm of solicitors engaged in the proceedings. See rule 6.19.

†Select one.

Schedule 1 form 8: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 8: amended, on 1 May 2023, by regulation 16(1) of the Witnesses and Interpreters Fees, Allowances, and Expenses Regulations 2023 (SL 2023/18).

Schedule 1 form 8: amended, on 1 March 2017, by section 183(b) of the Senior Courts Act 2016 (2016 No 48).

Form 9  
Order of reference for inquiry and report

r 6.26

*Section 40, Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [*Rohe*]

The Māori Land Court of New Zealand

[*Name of district*] District**Details of application**

An application by [*full name*] under section [*number*] of Te Ture Whenua Maori Act 1993/[*name of other Act*]\* for [*specify purpose of application*].

\*Select one.

Application No:

**Order**

1 This order is made at a sitting of the Court held at [*place, date*] before [*name*], Judge.

2 The Court orders, pursuant to section 40 of Te Ture Whenua Maori Act 1993, that the proceedings/question/matter\* specified below be referred to the Registrar of this court/to the Registrar of this court and [*name, place*]\* for inquiry and report.

\*Select one.

[*Specify the proceedings, question, or matter to be referred.*]

3 *Omit this paragraph if it does not apply.*

This order is made with the consent of the parties to the proceedings.

4 *Omit this paragraph if it does not apply.*

The Court directs that the inquiry be completed and the report filed not later than [*date*].

5 *Omit this paragraph if no directions are given.*

The Court directs that the inquiry be conducted as follows: [*specify*].

Date:

Signature:

(Judge)

Sealed:

(Registrar/Deputy Registrar)\*

\*Select one.

Schedule 1 form 9: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 10  
General form of order  
Order *[specify nature of the order]*

r 7.2

*Section [number], Te Ture Whenua Maori Act 1993 [or other Act under which order made]*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o *[Rohe]*

The Māori Land Court of New Zealand

*[Name of district]* District

**Details of application**

An application by *[full name]* under section *[number]* of Te Ture Whenua Maori Act 1993/*[name of other Act]*\* for *[specify purpose of application]*.

\*Select one.

Application No:

**Order**

This order is made at a sitting of the Court held at *[place, date]* before *[name]*, Judge.

Having considered the above application and all related evidence and submissions, the Court orders—

- *[Set out the terms of the order following the wording of the Act or rule under which the order is made.]*
- *[If, in the course of the proceedings on the application, the Court, pursuant to section 37(3) of the Act, has proceeded to exercise any other part of its jurisdiction, state the fact and circumstance with reference to that enactment.]*
- *[If the Court has exercised jurisdiction under rule 7.5(2)(b) of the Māori Land Court Rules 2011, state accordingly, giving precisely the words used, eg, immediately, forthwith, or the precise period of time.]*

Date:

Signature:

Name:

(Judge/Registrar/Deputy Registrar\*)

\*Select one.

Sealed:

Schedule 1 form 10: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 11  
Memorandum transmitting order to District Court

r 7.14

*Section 81, Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [*Rohe*]

The Māori Land Court of New Zealand

[*Name of district*] District

In the matter of section 81 of Te Ture Whenua Maori Act 1993

And

In the matter of an order of the Māori Land Court for the payment of money

**To** the Registrar of the District Court at [*place*]

Pursuant to section 81 of Te Ture Whenua Maori Act 1993, I transmit to you, for filing as of record in the District Court, a copy of an order that was made by the Māori Land Court on [*date*] ordering [*specify*] to pay the sum of \$[*amount*] to [*specify*].

**Solicitors acting**

Name(s):

Address:

Phone:

Email:

Date:

Signature:

Name:

(Judge/Registrar/Deputy Registrar\*)

\*Select one.

Sealed: [*date*]

Schedule 1 form 11: replaced, on 30 April 2026, by rule 92(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## Form 11A

## Memorandum transmitting order to High Court or District Court

r 7.14A

*Section 81A, Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [*Rohe*]

The Māori Land Court of New Zealand

[*Name of district*] District

In the matter of section 81A of Te Ture Whenua Maori Act 1993

And

In the matter of an order of the Māori Land Court for the recovery of land

**To** the Registrar of the High Court/District Court\* at [*place*]

Pursuant to section 81A of Te Ture Whenua Maori Act 1993, I transmit to you, for filing as of record in the High Court/District Court\*, a copy of an order that was made by the Māori Land Court on [*date*] ordering the recovery of land.

\*Select one.

**Solicitors acting**

Name(s):

Address:

Phone:

Email:

Date:

Signature:

Name:

(Judge/Registrar/Deputy Registrar\*)

\*Select one.

Sealed: [*date*]

Schedule 1 form 11A: inserted, on 30 April 2026, by rule 92(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).



Form 11B  
Application for review of Registrar's determination or order

r 8.1AAA(2)

*Section 113A or 235A, Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

**Application for review**

I/We\*, [full name(s)], seek a review of the determination/order\* of the Court made at [place, date] by [Registrar's name], Registrar.

\*Select one.

**Nature of determination/order\***

[State the nature of the determination or order, including details of any land affected.]

\*Select one.

**Grounds for review**

[State the grounds for review or indicate that a statement of grounds is attached to this form.]

Date:

Signature(s) of applicant(s):

**Contact details\***

Contact address: [address to which documents or correspondence in connection with the review application may be posted or delivered]

Phone: [home, work, mobile]

Email:

\*If given, an email address may be used as a means of notice and service.

**Fee**

\$(amount)

**Note**

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

**Checklist of documents required**

- The determination or order you seek to be reviewed  
Schedule 1 form 11B: inserted, on 30 April 2026, by rule 92(5) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 12  
Application to Chief Judge

r 8.2

*Section 45, Te Ture Whenua Māori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

**Subject of application**

[Name and block number of land, person, or other matter in respect of which the application is made]

**Application**

I/We\*, [full name(s)], apply to amend/cancel\*—

\*Select one.

*Select the statement that applies.*

- an order(s) of the Court dated [specify date and minute book reference for each order].
- a certificate of confirmation issued by a Registrar on [date].

Nature of order(s)/certificate of confirmation\*: [briefly describe the nature of each order or certificate].

\*Select one.

**Grounds of application**

**Note:** If this application relates to more than 1 order or certificate of confirmation, specify the grounds of application for each order or certificate of confirmation to which the application relates.

1 The order/certificate\* is incorrect because of—

\*Select one.

*Select the statement that applies.*

- a mistake, error, or omission of the Court.
- a mistake, error, or omission in the presentation of the facts of the case to the Court.

2 The mistake, error, or omission is [specify nature of mistake, error, or omission and state why the order or certificate is wrong. Where whakapapa is alleged to be incorrect, provide details of the error and your version of the correct whakapapa.].

3 I am/We are\* adversely affected by the order/certificate\* because [*state how you have been affected*].

\*Select one.

### Affected parties

For each person whose interests in land might be affected if the application is granted, specify the following details:

| Name | Postal address | Telephone No | Email address |
|------|----------------|--------------|---------------|
|------|----------------|--------------|---------------|

### Preferred place of hearing

Preferred place of hearing:

Date:

Signature(s) of applicant(s):

### \*Contact details

Contact address: [*address to which documents or correspondence in connection with the application may be posted or delivered*]

Telephone: [*home, work, mobile*]

Email:

\*If given, an email address may be used as a means of notice and service.

### Fee

[\$*amount*]

### Note

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

Schedule 1 form 12: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 12: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 12: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 12: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 12A  
Application for leave to appeal out of time

r 8.14(2)

*Section 58(3), Te Ture Whenua Maori Act 1993*

I Te Kooti Pira Māori o Aotearoa

I Te Rohe o [Rohe]

Māori Appellate Court

[Name of district] District

**Application for leave to appeal out of time**

I/We\*, [full name(s)], seek leave to file out of time the attached notice of appeal, which relates to [provide details of the proceedings].

\*Select one.

I/We\* seek to appeal against [state whether the appellants wish to appeal against all or part of the decision; if just part, identify that part].

\*Select one.

**Reasons for delay in filing**

[State the reasons for the delay in filing notice of appeal.]

**Grounds for extension of time**

[State grounds for the application for leave to appeal out of time or indicate that a statement of grounds is attached to this document.]

Date:

Signature(s):

(appellant(s)/counsel/solicitor for appellant(s)\*)

\*Select one.

**Contact details**

Contact address: [address to which documents or correspondence in connection with the application may be posted or delivered]

Phone: [home, work, mobile]

Email:

**Fee**

\$(amount)

**Checklist of documents**

- Statement of grounds attached to this document (if not included in the application)
- Notice of appeal

Schedule 1 form 12A: inserted, on 30 April 2026, by rule 92(5) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 13  
Notice of appeal

r 8.8

*Section 58, Te Ture Whenua Maori Act 1993*

I Te Kooti Pīra Māori o Aotearoa

I Te Rohe o [*Rohe*]

Māori Appellate Court

[*Name of district*] District

**Notice**

I/We\*, [*full names*], appeal from a decision/determination\* of the Court made at [*place, date*] being a final order/refusal to make an order/a provisional or preliminary determination\*.

\*Select one.

**Nature of order**

[*Specify nature of the order or determination, including details of any land affected.*]

**Grounds of appeal**

[*State grounds of the appeal or indicate that a statement of grounds is attached to this document.*]

Date:

Signature:

(appellant/counsel/solicitor for appellant\*)

\*Select one.

**\*Contact details**

Contact address: [*address to which documents or correspondence in connection with the appeal may be posted or delivered*]

Telephone: [*home, work, mobile*]

Email:

\*If given, an email address may be used as a means of notice and service.

**Fee**

\$(*amount*)

**Note**

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

Schedule 1 form 13: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 13: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 13: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).



Form 14

Application for leave to appeal from preliminary determination

r 8.13

*Section 59, Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

**Application for leave to appeal**

I/We\*, [full name(s)], seek leave to appeal from the provisional/preliminary\* determination of the Court made at [place where determination occurred] on [day, date], in respect of an application made under section [number] of Te Ture Whenua Maori Act 1993 for [specify what the application is about].

\*Select one.

**Grounds of appeal**

[State grounds of the appeal or indicate that a statement of grounds is attached to this document.]

*Include the following heading and paragraphs only if also applying for leave to appeal out of time.*

**Application for leave to appeal out of time**

I/We\*, [full name(s)], seek leave to appeal out of time.

\*Select one.

The reasons for the delay in filing this appeal are: [state reasons].

The grounds on which an extension of time to file the appeal is sought are: [state grounds].

Date:

Signature(s) of applicant(s):

**\*Contact details**

Contact address: [address to which documents or correspondence in connection with the appeal application may be posted or delivered]

Telephone: [home, work, mobile]

Email:

\*If given, an email address may be used as a means of notice and service.

**Fee**

[\$*amount*]

**Note**

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

Schedule 1 form 14: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 14: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 14: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 14: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 15  
Case stated for opinion of High Court

r 8.26

*Section 72, Te Ture Whenua Maori Act 1993*

I Te Kooti Matua o Aotearoa

I Te Rohe o [*Rohe*]

In the High Court of New Zealand

[*Name of registry*] Registry

In the matter of section [*number*] of Te Ture Whenua Maori Act 1993

And

In the matter of [*specify matter to which these proceedings relate*]

**Case stated**

Case stated by the Māori Land Court with the leave of the Chief Judge of that court/by the Māori Appellate Court\* for the opinion of the High Court on a question of law arising from the following facts: [*set out in numbered paragraphs facts upon which the question of law arises*].

\*Select one.

The question for the opinion of the Court is: [*specify question of law*].

Date:

Signature:

(Judge)

I, [*full name*], Chief Judge of the Māori Land Court, pursuant to section 72 of Te Ture Whenua Maori Act 1993, grant leave for the Māori Land Court to state the case given in this document for the opinion of the High Court.

Date:

Signature:

(Chief Judge of the Māori Land Court)

Sealed:

Schedule 1 form 15: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 16  
Notice of proceedings

r 9.3

*Section 95(3)(a), Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

To [full name, address]

**Notice**

A claim has been made against you in the attached application that has been filed in the Māori Land Court at [postal address and telephone number of court].

**Hearing**

- 1 The application has been tentatively set down for hearing by the Māori Land Court sitting at [venue address] on [day, date] at [time].
- 2 If you wish to oppose or take part in these proceedings, you must complete a notice of intention to appear (2 forms of notice are attached). You must file your notice of intention to appear in the Court, and also serve it on the applicant at the address for service given in the attached application, within 14 days after the date on which you are served with this notice.
- 3 To assist the Court to process and deal with these proceedings, attach to your notice of intention to appear a statement setting out your response to each of the claims made by the applicant.
- 4 The allocated hearing given in this document is tentative only. If you file a notice of intention to appear, you do not need to appear on that day. The case will be adjourned to a later and more suitable date for hearing.
- 5 If you do not file a notice of intention to appear, you will not be sent any further notice of these proceedings. If there is sufficient evidence produced to satisfy the Court of the case against you, judgment against you may be given in your absence.

Date:

Signature:

(Deputy Registrar)

**Note**

The following documents are attached to this document:

- a copy of the application
- 2 forms of notice of intention to appear.

Schedule 1 form 16: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## Form 16A

### Application for injunction

r 9.5(1)

*Section 19, Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

#### Application for injunction

I/We\*, [full name(s)], seek an injunction against [full name(s) of person(s) against whom the injunction is sought].

\*Select one.

#### Nature of injunction sought

[State:

- *the name and block number of the land, Māori incorporation, person, or other matter in respect of which an injunction is sought:*
- *the type of injunction sought under section 19(1):*
- *the desired effect or outcome of the injunction:*
- *whether the injunction is interim or final and, if interim, the time frame:*
- *whether a without notice injunction is sought:*
- *whether this application is made on an urgent basis.]*

#### Grounds for injunction

[State:

- *the grounds for seeking the injunction (or indicate that a statement of grounds is attached to this form):*
- *if applicable, any factors relevant to the urgency of the application (and a supporting affidavit relating to those factors):*
- *if applicable, why a without notice injunction is sought (and a supporting affidavit relating to that reason).]*

#### Affected parties

For each person who might be affected if the application is granted, specify the following details:

| Name | Postal address | Phone No | Email address |
|------|----------------|----------|---------------|
|------|----------------|----------|---------------|

Date:

Signature(s) of applicant(s):

**Contact details**

Contact address: [*address to which documents or correspondence in connection with the application may be posted or delivered*]

Phone: [*home, work, mobile*]

Email:

\*If given, an email address may be used as a means of notice and service.

**Fee**

[\$*amount*]

**Note**

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

**Checklist of documents**

- Statement of grounds attached to this document (if not included in the application)
- Affidavit verifying the facts stated in this application and supporting any grounds for the application being made without notice or on an urgent basis

Schedule 1 form 16A: inserted, on 30 April 2026, by rule 92(5) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## Form 17

Memorandum transmitting order by way of injunction to High Court for  
enforcement

r 9.8

*Section 85, Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [*Rohe*]

The Māori Land Court of New Zealand

[*Name of district*] District

In the matter of section 85 of Te Ture Whenua Maori Act 1993

And

In the matter of an order of the Māori Land Court by way of injunction in respect of  
[*specify*].To the Registrar of the High Court at [*place*]**Transmission of order**Pursuant to section 85 of Te Ture Whenua Maori Act 1993, I transmit to you, for  
filing as of record in the High Court, a copy of an order by way of injunction made by  
the Māori Land Court on [*day, date*].**Solicitors acting**

Name(s):

Address:

Telephone:

Email:

Date:

Signature:

Name:

(Chief Judge)

Sealed:

Schedule 1 form 17: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment  
Rules 2026 (SL 2026/61).Schedule 1 form 17: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment  
Rules 2026 (SL 2026/61).



Form 18

Application to hear and determine representation of class or group of Māori

r 9.11

*Section 30, Te Ture Whenua Maori Act 1993*

**Ki** te Kaiwhakawā Matua o te Kooti Whenua Māori o Aotearoa

**To** the Chief Judge of the Māori Land Court of New Zealand

**Application**

I/We\*, [full name(s)], apply under section 30(1)(b) of Te Ture Whenua Maori Act 1993 on behalf of [specify class or group of Māori that you represent].

\*Select one.

I/We\* request the Court to determine who are the most appropriate representatives of my/our\* iwi/hapū/group\* for the purposes of [specify proceedings, negotiations, consultations, allocations of property, or other matters for which representation is an issue].

\*Select one.

**Affected parties**

- 1 The names of and contact details for each person, group, or authority who has an interest that might be affected by this application are set out below:

| Name | Postal address | Telephone no | Email address |
|------|----------------|--------------|---------------|
|------|----------------|--------------|---------------|

- 2 All affected parties have/have not\* been notified of this application.

\*Select one.

- 3 Some/None\* of the affected parties oppose this application.

\*Select one.

**Lawyer's details**

- 4 I/We\* do/do not\* have a lawyer to assist with this application.

\*Select one.

- 5 Omit this paragraph if you do not have a lawyer.

My/Our\* lawyer's contact details are: [specify].

\*Select one.

**Preferred place of hearing**

Preferred place of hearing:

Date:

Signature(s) of applicant(s):

\*(signed on behalf of group)

\*Omit this line if the application is not made on behalf of a group.

**\*Contact details**

Contact address: [*address to which documents or correspondence in connection with the application may be posted or delivered*]

Telephone: [*home, work, mobile*]

Email:

\*If given, an email address may be used as a means of notice and service.

**Fee**

\$\_[*amount*]

**Note**

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

**Checklist of documents required (if applicable)**

- Copies of any available reports, minutes, or other correspondence that support your claim to represent the relevant class or group of Māori
- A list of the names and contact details of all affected parties to the dispute
- Copies of letters sent to all affected parties notifying them of your application and copies of notices placed through the news media
- Copies of any letters of opposition

Schedule 1 form 18: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 18: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 18: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 19  
Application for search

r 10.1

*Section 95(3)(a), Te Ture Whenua Māori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

**Details of deceased owner**

Name: *[specify all names that the deceased owner may have been known by, including any aliases]*

Date of death (if known):

Last known address:

Possible land interests:

Person(s) from whom land interests may have been acquired:

**Deceased owner's parents, brothers, and sisters**

The deceased owner's parents, brothers, and sisters are—

- (a) mother: *[full name]*
- (b) father: *[full name]*
- (c) brothers and sisters: *[full names of all]*.

**Other information**

*[State any other information that may assist the Court to find land interests owned by the deceased (for example, the names of the deceased owner's grandparents and of the grandparents' brothers and sisters may assist the Court).]*

Date:

Signature of applicant:

**\*Applicant's contact details**

Contact address: *[address to which documents or correspondence in connection with the application may be posted or delivered]*

Telephone: *[home, work, mobile]*

Email:

*\*If given, an email address may be used as a means of notice and service.*

**Notes**

- 1 Please forward a copy of the deceased's death certificate, if available, and any other documents, such as searches and minutes, that might assist in locating land interests.
- 2 Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

Schedule 1 form 19: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 19: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 19: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 19: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 20  
Certificate by administrator

r 10.2(3)

*Section 111 or 113, Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

**Name of deceased**

[Specify all names that the deceased may have been known by, including any aliases.]

**Certificate by executor(s)/administrator(s)**

1 I/We\*, [full name(s), place(s) of residence], am/are\* the executor(s)/administrator(s)\* of this estate.

\*Select one.

2 I/We\* certify that the person(s) named and described in the Schedule attached to this document are entitled to succeed to the beneficial interests in the land described in that Schedule, and that each person is to receive the shares or proportion of shares set out opposite the name of that person.

\*Select one.

3 Those person(s) are entitled to succeed—

*Select the statement that applies.*

- by virtue of a will.
- on intestacy pursuant to section 108(5) or 109 of Te Ture Whenua Maori Act 1993.
- on intestacy under the Administration Act 1969.

Date:

Signature of executor/administrator\*:

\*Select one.

Signature of witness:

Capacity of witness:

Address of witness:

Date:

Signature of executor/administrator\*:

\*Select one.

Signature of witness:

Capacity of witness:

Address of witness:

### *Schedule*

#### **Beneficial interests in Māori freehold land**

| <b>Land</b> | <b>Shares held to be vested</b> | <b>Full name of beneficiary</b> | <b>Address</b> | <b>Proportion of shares to be vested</b> | <b>Relationship to deceased</b> |
|-------------|---------------------------------|---------------------------------|----------------|------------------------------------------|---------------------------------|
|-------------|---------------------------------|---------------------------------|----------------|------------------------------------------|---------------------------------|

#### **Beneficial interests in General land**

| <b>Land</b> | <b>Shares held to be vested</b> | <b>Full name of beneficiary</b> | <b>Address</b> | <b>Proportion of shares to be vested</b> | <b>Relationship to deceased</b> |
|-------------|---------------------------------|---------------------------------|----------------|------------------------------------------|---------------------------------|
|-------------|---------------------------------|---------------------------------|----------------|------------------------------------------|---------------------------------|

#### **Checklist of documents required (if applicable and available)**

- Whakapapa
- Certified copy of death certificate
- Certified copy of Letters of Administration or Probate
- Certified copy of will

Schedule 1 form 20: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 20: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 21

Application for succession when grant of administration held

r 10.2(1), (2)

*Sections 112 and 117, Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

**Name of deceased**

[Specify all names that the deceased may have been known by, including any aliases.]

**How to complete this application**

To complete this application,—

- replace text within [square brackets] with the relevant text:
- where alternative word choices are indicated, for example, spouse/partner\*, select the word or phrase that applies:
- where alternative statements are indicated, select the statement that applies.

If there is not enough room on the form to provide all the required information, the application may be continued on a separate sheet of paper (unless this application is made by email or online).

**Application**

I/We\*, [full name(s)], make application to vest the Māori land interests of the deceased in the persons beneficially entitled.

\*Select one.

Your application may be determined by a Registrar if it is simple and uncontested, as described in section 113A of Te Ture Whenua Maori Act 1993. If your application is determined by a Registrar, you will not need to attend court. If you would prefer your application to be heard in court by a Judge, please indicate here.

1 The deceased died at [place] on [date].

1A The deceased was born on [date].

2 Details of administration are:

Name(s) and address(es) of administrators not named above: [specify names and addresses of any administrators not named above]

Probate No [specify] dated [date]

Letters of administration No [specify] dated [date]

Election to administer No [specify] dated [date]

- 3 Are any Māori interests held by the administrator(s) pursuant to an order of the Court made under section 112 of Te Ture Whenua Maori Act 1993? Yes/No\*

\*Select one.

If **yes**, go to question 4. If **no**, go to question 5.

- 4 Date of order(s) and minute book reference: *[specify]*
- 5 The full legal names of the deceased's immediate family members are (*see* note 1):

Father:

Mother:

Brothers and sisters:

- 6 Was the deceased at the time of death legally married or in a civil union or in a de facto relationship? Yes/No\*

\*Select one.

If **yes**, go to question 7. If **no**, go to question 9.

- 7 Name and address of the spouse or civil union partner or de facto partner: *[full legal name, address]*

- 8 *Select whichever statements apply.*

- The spouse/partner\* desires to exercise their right to receive any income or discretionary grants from the interest.
- The spouse/partner\* wishes to give up in writing their entitlement to a life interest (written consent to giving up of right attached).
- The spouse/partner\* desires to give up in writing their right to receive any income or discretionary grants from the interest (written consent to giving up of right attached).
- The spouse/partner\* desires to exercise their right to occupy the principal family home on *[name of block(s) on which dwelling is located]*.
- The spouse/partner\* desires to give up in writing their right to occupy the principal family home on the land (written consent to giving up of right attached).
- The spouse/partner\* has since died.
- The spouse/partner\* has since remarried or entered into a civil union or a de facto relationship.
- The spouse/partner\* was, at the date of death, separated from the deceased under a separation order or a written agreement.

\*Select one.



- 9 The full legal names of any former spouses, civil union partners, or de facto partners of the deceased, other than as stated in question 7, who are a parent of any of the deceased's children, are:

|                |                                                    |
|----------------|----------------------------------------------------|
| <b>Name(s)</b> | <b>Spouse/civil union partner/de facto partner</b> |
|----------------|----------------------------------------------------|

10 **Next of kin**

*Select the first statement that applies.*

- The deceased left children or their issue as next of kin and they are listed below.
- The deceased had no children but left brothers and sisters or their issue as next of kin and they are listed below.
- The deceased left no children or brothers and sisters as next of kin, but I/we\* list below/attach\* a whakapapa record showing the next of kin to the deceased, including, where possible, the names, sex, age, and postal address of those next of kin living at the date of death of the deceased.

\*Select one.

| No | Full legal name(s) | Sex (M/F/GD) | Age and date of birth (if known) | Postal address (if living) | Deceased (Y/N) | Date of death (if known) | Children of deceased (Y/N) |
|----|--------------------|--------------|----------------------------------|----------------------------|----------------|--------------------------|----------------------------|
|----|--------------------|--------------|----------------------------------|----------------------------|----------------|--------------------------|----------------------------|

**Notes**

- Under Sex indicate M for male, F for female, or GD for gender diverse.
- The age and date of birth (if known) need only be stated if under 20.
- Under Deceased, indicate Y if deceased, or N if living. If deceased, under Date of death (if known) write the date of death if you know it, and under Children of deceased indicate Y if the deceased had children and N if they had no children.
- Include any persons who have been legally adopted into the family.
- Give details of all next of kin even though some may not be beneficiaries under a will.

- 11 For each person who is a brother, sister, or child of the deceased, specify the following details:

|           |                                                                        |                                                                                 |
|-----------|------------------------------------------------------------------------|---------------------------------------------------------------------------------|
| <b>No</b> | <b>Full name of other parent (if persons are children of deceased)</b> | <b>Full name(s) of parents (if persons are brothers or sisters of deceased)</b> |
|-----------|------------------------------------------------------------------------|---------------------------------------------------------------------------------|

- 12 If any next of kin listed under question 11 is deceased with children, specify the following details for each child:

| No | Full name(s) of deceased | Full legal name(s) of children of deceased | Sex (M/F/GD) of children of deceased | Age of children of deceased | Postal address of children of deceased |
|----|--------------------------|--------------------------------------------|--------------------------------------|-----------------------------|----------------------------------------|
|----|--------------------------|--------------------------------------------|--------------------------------------|-----------------------------|----------------------------------------|

If any of the above children is deceased, list his or her children on a separate sheet using the same table as above.

- 13 Did the deceased legally adopt any children into his or her family or were any children adopted out of the family? Yes/No\*

\*Select one.

If **yes**, specify the details below.

Full names of children adopted in:

Full names of children adopted out:

- 14 Did the deceased have whāngai? Yes/No\*

\*Select one.

If **yes**, go to question 15. If **no**, go to question 16.

15 **Whāngai**

- (1) Names and addresses of whāngai: *[full legal names, addresses]*
- (2) Relationship of whāngai to the deceased:
- (3) Full names and gender of birth parents of whāngai (if known):
- (4) Birth parents' relationship to the deceased:
- (5) Has whāngai already received an interest in Māori land from either of their birth parents? Yes/No\*

\*Select one.

- (6) *The decision about whāngai succession ultimately falls to the Judge's assessment of what is necessary to avoid an injustice to the whāngai, but the preference of the whānau is that:*

- *[Name of whāngai] succeed as if a natural child of [name of deceased].*
- *[Name of whāngai] be recognised as a child of [name of deceased] and entitled to income or discretionary grants from the interests and occupation of the principal family home on [block name].*
- *[Name of whāngai] be recognised as a child of [name of deceased] but not entitled to succeed.*

- 16 Did the deceased leave a will? Yes/No\*

\*Select one.

If **yes**, go to question 17. If **no**, go to question 19.

- 17 *Select the statement that applies.*

- The beneficiaries in the will are all named in questions 10 and 12 as next of kin of the deceased.
- The beneficiaries in the will include: *[names, addresses, and relationship to deceased]*.

- 18 If any named beneficiary's right to succeed under section 108(2) of Te Ture Whenua Maori Act 1993 is not evident from his or her relationship to the deceased, explain how the beneficiary qualifies under that section: *[specify]*.

19 **Whānau trust**

*Select the statement that applies.*

- Those entitled to succeed do not wish to form a whānau trust.
- Those entitled to succeed have conferred and wish to vest the interests of the deceased into a whānau trust.

If those entitled to succeed do wish to vest the deceased's interests in a whānau trust, please complete and attach to this application form 23 of the Māori Land Court Rules 2011.

20 The deceased's land interests to which this application relates (including Māori incorporation interests) are: [*specify*].

20A The hapū associated with that land is: [*specify*].

21 Has there been a previous succession to the deceased? Yes/No\*

\*Select one.

If **yes**, specify the following details of that previous succession:

Place:

Date:

Minute book reference:

22 The persons I/we\* believe are entitled to succeed are—

\*Select one.

*Select the statement that applies.*

- the next of kin as listed in questions 10 and 12.
- the persons entitled under the will, being—
  - the next of kin as set out in questions 10 and 12; or
  - the persons set out in the certificate by administrator (form 20); or
  - the following persons: [*specify*].
- the following persons who are entitled in accordance with an agreed arrangement under section 117(3)(c) of Te Ture Whenua Maori Act 1993: [*specify*].

23 I am an administrator/We are administrators\* of this estate. Yes/No\*

\*Select one.

If **Yes**, go to question 24. If **No**, specify the following information:

I am/We are\* bringing this application instead of the administrator(s) because [*specify reasons*].

\*Select one.

*Select the statement that applies.*

- I/We\* have notified the administrator(s) of this application.
- I/We\* have not notified the administrator(s) of this application because [*specify reasons*].

\*Select one.

24 I/We\* seek an order based on this application without formal hearing. Yes/No\*

\*Select one.

If **Yes**, the declaration at the end of this application must be completed.

25 I/We\* have advised the immediate next of kin of this application. Yes/No\*

\*Select one.

### **Preferred place of hearing**

Preferred place of hearing:

Date:

Signature of applicant:

### **\*Contact details**

Contact address:

Telephone: [*home, work, mobile*]

Email:

\*If given, an email address may be used as a means of notice and service.

### **Fee**

[\$*amount*]

### **Note to all participants**

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

### ***Notes to assist applicants***

#### **1 Death certificate**

The original or a photocopy of the death certificate should be filed. If a death certificate is not readily available by reasonable inquiry, the Court may accept other evidence as to death. If death has been established at a previous hearing, a further death certificate may not be required.

**2 Names of immediate family members**

The information provided in question 5 helps the Court to search for land interests—any additional whakapapa could help the Court in its search.

**3 Next of kin**

Where there is no will, next of kin for the purposes of succession are children of the deceased. If there are no children, then next of kin are brothers and sisters. If there are neither children of the deceased nor brothers or sisters, then next of kin are the nearest relatives on the side of the family from whom the land originated. Generally speaking, where next of kin die before the person from whom succession is sought, the children of the next of kin are entitled to the share they would have received had they survived the deceased.

**4 Will**

The original will or a copy certified as a true copy by a solicitor or trustee company must be supplied. Where a copy is produced, the Court may still require production of the original.

**5 Notice of hearing**

While an applicant is not required to give formal notice of hearing to other beneficiaries, he or she is expected to consult with them and advise them of the application and when it is to be heard. If this is not done, the Court may direct that formal notice be given to the beneficiaries.

**6 Whāngai**

Where it is desired to include whāngai as successors, the Court will normally require evidence of their acceptance by the family, either by signed consents or orally at the hearing.

**7 Succession by will**

Where a testator died after 1 July 1994, the right to succeed under a will is limited by section 108 of Te Ture Whenua Māori Act 1993 to certain classes of people. If the successors named in a will are not children or their issue or do not qualify as next of kin of the testator, an applicant needs to satisfy the Court that he or she qualifies to succeed. The Court office can assist applicants as to what the qualifications are to succeed.

**Checklist of documents required (if applicable)**

- Original or certified copy of the election to administer, or certified copy of probate or letters of administration, or other grant of administration
- Copy or photocopy of death certificate (if available)
- Certificate by administrator (form 20—optional)
- Deed of arrangement

- Declaration or affidavit (if application being dealt with without notice pursuant to rule 10.8 or 10.10)
- Whakapapa
- Original or certified copy of the will
- If whāngai, any relevant documentation
- Proof of legal adoption
- Written confirmation giving up life interest
- Consents to succession by whāngai
- Completed whānau trust form and draft trust order
- Minutes of meeting agreeing to constitute a whānau trust
- Signed trustee consents

***Request for application to be dealt with without formal hearing and without notice***

**Note:** The Court may, under rule 10.8 or 10.10, deal with an application without requiring attendance by the applicant or any other person if it is satisfied as to the persons entitled to succeed. The Court's power is discretionary and it will generally require a hearing if there are issues to be settled such as rulings on whāngai or other matters that may not be straightforward. If you wish this application to be handled without appearance and formal hearing, you should indicate yes in question 24 and complete the following declaration.

**Declaration**

I/We\* the applicant(s) declare that—

- (a) the facts of the application as stated are true and correct; and
- (b) the persons entitled to succeed are correctly listed in this application; and
- (c) there are no disputes as to succession or issues to be settled before an order can be made; and
- (d) it is desired that an order be made without formal hearing and without notice.

\*Select one.

Signature of applicant:

Sworn/Affirmed\* at: [place, date]

Before me: [name, signature]

(Registrar/Deputy Registrar/Justice of the Peace/solicitor of the High Court of New Zealand\*)

\*Select one.

Schedule 1 form 21: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 21: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 21: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 21: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## Form 22

## Application for succession when no grant of administration held

r 10.2(1), (2)

*Sections 113 and 118, Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

**Name of deceased**

[Specify all names that the deceased may have been known by, including any aliases.]

**How to complete this application**

To complete this application,—

- replace text within [square brackets] with the relevant text:
- where alternative word choices are indicated, for example, male/female\*, select the word or phrase that applies:
- where alternative statements are indicated, select the statement that applies.

If there is not enough room on the form to provide all the required information, the application may be continued on a separate sheet of paper (unless this application is made by email or online).

**Application**

I/We\*, [full name(s)], make application to vest the Māori land interests of the deceased in the persons beneficially entitled.

\*Select one.

Your application may be determined by a Registrar if it is simple and uncontested, as described in section 113A of Te Ture Whenua Maori Act 1993. If your application is determined by a Registrar, you will not need to attend Court. If you would prefer your application to be heard in Court by a Judge, please indicate here.

1 Relationship to deceased: [specify relationship, ie, father, sister, etc, or not related]

Deceased's sex: [male/female/gender diverse\*]

Age and date of birth (if known):

Date of death:

Place of death:

A copy of the death certificate is/is not\* provided. (See note 1.)

\*Select one.



- 2 I/We\* attended/did not attend\* the tangi or funeral of the deceased.  
\*Select one.
- 3 *Select the statement that applies.*
- I/We\* have made reasonable inquiries as to a will, but have been unable to find a will and believe the deceased left no will.
  - The deceased left a will dated [date], and the original or a certified copy is provided. (See note 2.)
- \*Select one.
- 4 Has a grant of administration in the estate been granted or will a grant be applied for? Yes/No\*  
\*Select one.
- 5 Was the deceased at the time of death legally married or in a civil union or de facto relationship? Yes/No\*  
\*Select one.
- If **yes**, go to question 6. If **no**, go to question 8.
- 6 The full name and address of the spouse or civil union or de facto partner are:  
[full legal name, address]
- 7 *Select one of the following statements:*
- The spouse/partner\* desires to exercise their right to receive any income or discretionary grants from the interest.
  - The spouse/partner\* wishes to surrender his/her\* entitlement to a life interest (surrender attached).
  - The spouse/partner\* desires to give up in writing their right to receive any income or discretionary grants from the interest (written consent to giving up of right attached).
  - The spouse/partner\* desires to exercise their right to occupy the principal family home on [name of block(s) on which dwelling is located].
  - The spouse/partner\* desires to give up in writing their right to occupy the principal family home on the land (written consent to giving up of right attached).
  - The spouse/partner\* has since died.
  - The spouse/partner\* has since remarried or entered into a civil union or a de facto relationship.
  - The spouse/partner\* was, at the date of death, separated from the deceased under a separation order or a written agreement.
- \*Select one.

- 8 The full legal names of any former spouses, civil union partners, or de facto partners of the deceased other than as stated in question 6 who are a parent of any of the deceased's children are:

|                |                                                    |
|----------------|----------------------------------------------------|
| <b>Name(s)</b> | <b>Spouse/civil union partner/de facto partner</b> |
|----------------|----------------------------------------------------|

- 9 The full legal names of the deceased's immediate family members are (*see* note 3)—

Father:

Mother:

Brothers and sisters:

10 **Next of kin**

*Select the first statement that applies.*

- The deceased left children or their issue as next of kin and they are listed below.
- The deceased had no children but left brothers and sisters or their issue as next of kin and they are listed below.
- The deceased left no children or brothers and sisters as next of kin, but I/we\* list below or attach a whakapapa record showing the next of kin to the deceased, including, where possible, the names, sex, age, and postal address of those next of kin living at the date of death of the deceased.

\*Select one.

| No | Full legal name(s) | Sex (M/F/GD) | Age and date of birth (if known) | Postal address (if living) | Deceased (Y/N) | Date of death (if known) | Children of deceased (Y/N) |
|----|--------------------|--------------|----------------------------------|----------------------------|----------------|--------------------------|----------------------------|
|----|--------------------|--------------|----------------------------------|----------------------------|----------------|--------------------------|----------------------------|

**Notes**

- Under Sex indicate M for male, F for female, or GD for gender diverse:
- The age need only be stated if under 20:
- Under Deceased, indicate Y if deceased, or N if living. If deceased, under Date of death (if known) write the date of death if you know it, and under Children of deceased indicate Y if the deceased had children and N if they had no children.
- Include any persons who have been legally adopted into the family:
- Give details of all next of kin even though some may not be beneficiaries under a will.

- 11 For each person who is a brother, sister, or child of the deceased, specify the following details:

| No | Full name of other parent (if persons are children of deceased) | Full name(s) of parents (if persons are brothers or sisters of deceased) |
|----|-----------------------------------------------------------------|--------------------------------------------------------------------------|
|----|-----------------------------------------------------------------|--------------------------------------------------------------------------|

- 12 If any next of kin listed under question 10 is deceased with children, specify the following details for each child:

| No | Full name(s)<br>of deceased | Full legal<br>name(s) of<br>children of<br>deceased | Sex<br>(M/F/GD) of<br>children of<br>deceased | Age of<br>children of<br>deceased | Postal address of<br>children of deceased |
|----|-----------------------------|-----------------------------------------------------|-----------------------------------------------|-----------------------------------|-------------------------------------------|
|----|-----------------------------|-----------------------------------------------------|-----------------------------------------------|-----------------------------------|-------------------------------------------|

If any of the above children is deceased, list his or her children on a separate sheet using the same table as above.

- 13 Did the deceased legally adopt any children into his or her family or were any children adopted out of the family? Yes/No\*

\*Select one.

If **yes**, specify the details below.

Full legal names of children adopted in:

Full legal names of children adopted out:

- 14 Did the deceased have whāngai? Yes/No\*

\*Select one.

If **yes**, go to question 15. If **no**, go to question 16.

15 **Whāngai**

- (1) Names and addresses of whāngai: *[full legal names, addresses]*
- (2) Relationship of whāngai to the deceased:
- (3) Full names and gender of birth parents of whāngai (if known):
- (4) Birth parents' relationship to the deceased:
- (5) Has the whāngai already received an interest in Māori land from either of their birth parents? Yes/No\*

\*Select one.

- (6) *The decision about whāngai succession ultimately falls to the Judge's assessment of what is necessary to avoid an injustice to the whāngai, but the preference of the whānau is that:*

- *[Name of whāngai] succeed as if a natural child of [name of deceased].*
- *[Name of whāngai] be recognised as a child of [name of deceased] and entitled to income/discretionary grants from the interests and occupation of the principal family home on [block name].*
- *[Name of whāngai] be recognised as a child of [name of deceased] but not entitled to succeed.*

- 16 Did the deceased leave a will? Yes/No\*

\*Select one.

If **yes**, go to question 17. If **no**, go to question 19.

17 *Select the statement that applies.*

- The beneficiaries in the will are all named in questions 10 and 12 as next of kin of the deceased.
- The beneficiaries in the will include: [*names, addresses, and relationship to deceased*].

18 If any named beneficiary's right to succeed under section 108(2) of Te Ture Whenua Maori Act 1993 is not evident from his or her relationship to the deceased, explain how the beneficiary qualifies under that section: [*specify*].

19 **Whānau trust**

*Select the statement that applies.*

- Those entitled to succeed do not wish to form a whānau trust.
- Those entitled to succeed have conferred and wish to vest the interests of the deceased in a whānau trust.

If those entitled to succeed do wish to vest the deceased's interests in a whānau trust, please complete and attach to this application form 23 of the Māori Land Court Rules 2011.

20 The deceased's land interests to which this application relates (including Māori incorporation interests) are: [*specify*].

20A The hapū associated with that land is: [*specify*].

21 Has there been a previous succession to the deceased? Yes/No\*

\*Select one.

If **yes**, specify the following details:

Place:

Date:

Minute book reference:

22 Other comments: [*include any comments you wish to make on the succession, including any special arrangements as to succession*].

**Preferred place of hearing**

Preferred place of hearing:

Date:

Signature of applicant:

### **Consent to provide contact details to trustee or other administrator**

I agree to contact details in this application being provided to the trustee or other administrator of any land to which this application relates\*.

\*You may strike out the above. However, if the trustee or other administrator does not hold up-to-date contact details, all or some of their services may not be able to be received.

### **\*Contact details**

Contact address:

Telephone: [*home, work, mobile*]

Email:

\*If given, an email address may be used as a means of notice and service.

### **Fee**

\$(*amount*)

### **Note to all participants**

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

### ***Notes to assist applicants***

#### **1 Death certificate**

The original or a photocopy of the death certificate should be filed. If a death certificate is not readily available by reasonable inquiry, the Court may accept other evidence as to death. If death has been established at a previous hearing, a further death certificate may not be required.

#### **2 Will**

The original will or a copy certified as a true copy by a solicitor or trustee company must be supplied. Where a copy is produced, the Court may still require production of the original.

#### **3 Names of immediate family members**

The information provided in question 9 helps the Court to search for land interests—any additional whakapapa could help the Court in its search.

#### **4 Next of kin**

Where there is no will, next of kin for the purposes of succession are children of the deceased. If there are no children, then next of kin are brothers and sisters. If there are neither children of the deceased nor brothers or sisters, then next of kin are the nearest relatives on the side of the family from whom the land originated. Generally speaking, where next of kin die before the person

from whom succession is sought, the children of the next of kin are entitled to the share they would have received had they survived the deceased.

## **5 Notice of hearing**

While an applicant is not required to give formal notice of hearing to other beneficiaries, he or she is expected to consult with them and advise them of the application and when it is to be heard. If this is not done, the Court may direct that formal notice be given to the beneficiaries.

## **6 Whāngai**

Where it is desired to include whāngai as successors, the Court will normally require evidence of their acceptance by the family, either by signed consents or orally at the hearing.

## **7 Succession by will**

Where a testator died after 1 July 1994, the right to succeed under a will is limited by section 108 of the Te Ture Whenua Maori Act 1993 to certain classes of people. If the successors named in a will are not children or their issue or do not qualify as next of kin of the testator, an applicant needs to satisfy the Court that he or she qualifies to succeed. The Court office can assist applicants as to what the qualifications are to succeed.

### **Checklist of documents required**

- Death certificate or other evidence as to death (*see* note 1 above)
- Original or certified copy of the will
- Written confirmation to surrender life interest (if applicable)
- Consents to succession by whāngai (if applicable)
- Completed whānau trust form and draft trust order (if applicable)
- Minutes of meeting agreeing to constitute a whānau trust (if applicable)
- Signed trustee consents (if applicable)
- Whakapapa

Schedule 1 form 22: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 22: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 22: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 22: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 22A  
Succession to additional land interests

r 10.9(3)

*Section 118(6), Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [*Rohe*]

The Māori Land Court of New Zealand

[*Name of district*] District

**Application for succession to additional land interests**

I/We\*, [*full name(s)*], seek an order vesting beneficial interests in additional interests in Māori freehold land belonging to the estate of [*name of deceased*].

\*Select one.

*Select the statement that applies:*

I/We\* claim to be entitled to an interest under the will or on the intestacy of the deceased person.

\*Select one.

**or**

I/We\* apply for the order on behalf of [*full name(s)*] who claim(s) to be entitled to an interest under the will or on the intestacy of the deceased person.

\*Select one.

The Court has made a succession order and additional interests of the deceased person in Māori freehold land have been located.

**Details of deceased and interests**

Name and block number of the Māori freehold land in respect of which the order is sought:

Name of deceased: [*include all names that the deceased was known by if possible*]

The full names of the deceased's immediate family members are:

- father:
- mother:
- brothers and sisters:

Details of previous succession order: [*place, date, minute book reference*]

**Affected parties**

For each person who might be affected if the application is granted, specify the following details:

| Name | Postal address | Phone No | Email address |
|------|----------------|----------|---------------|
|------|----------------|----------|---------------|

Date:

Signature(s) of applicant(s):

**Contact details\***

Contact address: [*address to which documents or correspondence in connection with the application may be posted or delivered*]

Phone: [*home, work, mobile*]

Email:

\*If given, an email address may be used as a means of notice and service.

**Fee**

[\$*amount*]

**Note**

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

Schedule 1 form 22A: inserted, on 30 April 2026, by rule 92(5) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).



Form 23  
Application to form whānau trust

r 12.3

*Section 214(2), Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

In the Māori Land Court of New Zealand

[Name of district] District

**(To be used only with an application for succession)**

Name of deceased: [specify]

Common tupuna name: [specify]

Name of whānau trust to be formed: [specify]

Names of trustees to be appointed: [full legal names of trustees]

We, the undersigned, consent to the formation of the whānau trust and, where named above as trustees, consent to our appointment.

**Name**

**Address**

**Signature**

*Select the statement that applies.*

- The beneficiaries entitled to succeed have agreed to constitute a whānau trust and vest the interests of the deceased in the proposed trustees.
- The proposed trustees were elected by the beneficiaries entitled to succeed at a meeting held at [place, date].
- A copy of the minutes of the meeting held to constitute the whānau trust is attached.

Date:

Names of applicants:

Signatures of applicants:

**Consent to provide contact details to trustee or other administrator**

I/We\* agree to contact details in this application being provided to the trustee or other administrator of any land to which this application relates†.

\*Select one.

†You may strike out the above. However, if the trustee or other administrator does not hold up-to-date contact details, all or some of their services may not be able to be received.

**Notes**

- 1 Consents of all beneficiaries to an estate must be filed.
- 2 Consents of all trustees must be filed.
- 3 Consents must be evidenced by—
  - (a) completion of this form; or
  - (b) consent at a family meeting evidenced by minutes of that meeting; or
  - (c) completion and production of separate forms of consent.
- 4 Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

**Checklist of documents required (if applicable and available)**

- Whakapapa
- Minutes of meeting
- Draft trust order

Schedule 1 form 23: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 24

Application for transmission by survivorship or for determination of life interest

r 10.11

*Sections 18(1)(a) and 127(2), Te Ture Whenua Māori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

Name of life tenant:

Name of joint tenants: [specify all names that the joint tenants are known by]

**Origin of life interest**

*Select the statement that applies.*

- The origin of the life interest is an order made at [place, date], minute book folio [number].
- The origin of the life interest is [specify details].

**Application**

*Select the statement that applies.*

- I apply for the determination of a life tenancy in respect of all the lands held under that life tenancy.
- I apply for the determination of a life tenancy in respect of the lands described in the schedule.
- I apply for transmission by way of survivorship in the land described in the schedule.

**Grounds for application**

The grounds on which I make this application are that—

*Select the statement that applies.*

- life tenant/joint tenant\*, [name], died on [date].
- I wish/the life tenant wishes\* to give up the life interest on [date].
- on [date], the life tenant remarried/entered into a civil union/entered into a de facto relationship as defined by section 2D of the Property (Relationships) Act 1976\*.

\*Select one.

Date:

Signature of applicant:

Signed in the presence of:

Signature of witness:

Address of witness:

**\*Contact details**

Contact address: [*address to which documents or correspondence in connection with the application may be posted or delivered*]

Telephone: [*home, work, mobile*]

Email:

\*If given, an email address may be used as a means of notice and service.

**Fee**

\$[*amount*]

**Note**

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

***Schedule of lands***

**Shares**

**Block**

**Checklist of documents required**

- Copy of photograph of full death certificate (if the life tenant or joint tenant is deceased)
- Written confirmation of surrender of life interest (if the applicant is not the life tenant)
- Copy or photocopy of marriage certificate (if the life tenant has remarried)

Schedule 1 form 24: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 24: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 24: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 24: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 24A

Notice of application for change of status from Māori land to General land

r 11.2(5)(a)

*Section 135, Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [*Rohe*]

The Māori Land Court of New Zealand

[*Name of district*] District

**Subject of application**

[*Name and block number of land*]

**Notice**

I/We\*, [*full name(s)*], have applied to the Māori Land Court at [*name of district*] to change the status of the above Māori customary land/Māori freehold land\*.

\*Select one.

That change of status cannot proceed unless the owner/owners\* give notice to the preferred classes of alienees.

\*Select one.

That land or any interest in that land is/is not\* subject to a trust.

\*Select one.

*Omit this paragraph if no trust exists.*

The details of the trust over the land or any interest in the land are [*include details as to trustees (including their legal names) and nature of the trust*].

Any member of the preferred classes of alienees who wishes to support or oppose the application must give written notice of their intention. That written notice must be filed in the Māori Land Court not later than [*date*] and should include the grounds on which the member supports or opposes the application.

Further information about the application may be obtained from the Court at [*business address*].

Date:

Signature(s) of applicant(s):

Schedule 1 form 24A: inserted, on 30 April 2026, by rule 92(5) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 25  
Application for confirmation of alienation

r 11.3

*Section 151, Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [*Rohe*]

The Māori Land Court of New Zealand

[*Name of district*] District**Subject of application**

[*Name and block number of land, Māori incorporation, or other matter in respect of which the application is made*]

**Application**I/We\*, [*full name(s)*], apply for confirmation of an alienation by way of sale/gift\*.

\*Select one.

**Details of alienation**

1 Document to be confirmed: transfer/agreement\*

\*Select one.

2 Total shares of all owners:

3 Name and shareholding of each alienor:

4 Name and address of alienee:

5 Price (if any):

6 *Select the statement that applies.*

- The land is not subject to any trust.
- The land is subject to a trust and the alienation is not in breach of that trust.

7 *Select the statement that applies.*

- The alienee is not a member of the preferred classes of alienees, and a first right of refusal is to be given to the preferred classes of alienees in accordance with rule 11.5.
- The alienee is a member, or the alienees are members, of the preferred class of alienee, being—
  - a child or children, or remoter issue, of the alienor.
  - whanaunga who are associated with the land in accordance with tikanga Māori.

- another owner of the land who is a member of the hapū associated with the land.
- a trustee of any of the above 3 classes of person.
- a descendant of a former owner who is or was a member of the hapū associated with the land.

8 *Select the statement that applies.*

- The alienee(s) is or are New Zealand citizen(s).
- The alienee(s) is or are not New Zealand citizen(s).

### **Preferred place of hearing**

Preferred place of hearing:

Date:

Signature(s) of applicant(s):

### **\*Contact details**

Contact address: *[address to which documents or correspondence in connection with the application may be posted or delivered]*

Telephone: *[home, work, mobile]*

Email:

*\*If given, an email address may be used as a means of notice and service.*

### **Fee**

*[\$[amount]]*

### **Note**

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

### **Checklist of documents required**

- Statement signed by alienee setting out how he or she is a member of the preferred class (if applicable), including any necessary whakapapa details
- Original instrument of alienation, properly executed and attested, and 2 copies
- Special valuation of the land and any improvements to it, or interests in the land, by a registered valuer (or application for exemption from filing a special valuation under section 158 of Te Ture Whenua Maori Act 1993 and a current roll valuation (if applicable))

Schedule 1 form 25: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 25: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 25: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 25: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).



Form 26  
Application for exemption from providing special valuation

r 11.4

*Section 158, Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

**Subject of application**

[Name and block number of land, Māori incorporation, or other matter in respect of which the application is made]

**Application**

I/We\*, [full name(s)], apply for an exemption from the requirement under section 158 of Te Ture Whenua Maori Act 1993 to provide a special valuation.

\*Select one.

**Reason for application**

*Select the statement that applies.*

- The alienation is by way of gift.
- The alienee is a close relative, being my [state relationship].
- Other [add to reasons or specify other reasons].

**Preferred place of hearing**

Preferred place of hearing:

Date:

Signature(s) of applicant(s):

**\*Contact details**

Contact address: [address to which documents or correspondence in connection with the application may be posted or delivered]

Telephone: [home, work, mobile]

Email:

\*If given, an email address may be used as a means of notice and service.

**Note**

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

Schedule 1 form 26: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 26: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 26: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 26: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 27

[*Name of block of Māori freehold land*] notice of right of first refusal

r 11.5

*Sections 147A and 152, Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [*Rohe*]

The Māori Land Court of New Zealand

[*Name of district*] District

**Subject of application**

[*Name of land, block number(s), land area, street address (if applicable), and Māori Land Court district that the land is within*]

**Notice**

I/We\*, [*full name(s)*], have applied to the Māori Land Court at [*place*] for confirmation of a sale/gift\* of the above Māori freehold land.

\*Select one.

That sale/gift\* cannot proceed unless the owner gives/owners give\* to the preferred classes of alienees a right of first refusal.

\*Select one.

Any member of the preferred classes of alienees who wishes to be considered by the owner/owners\* as a prospective purchaser or donee of the land must submit a tender or an expression of interest in being gifted the land. That tender or expression of interest must be filed in the Māori Land Court and served on the owner/owners\* not later than [*date*].

\*Select one.

A tender or an expression of interest must be served on the owners at:

Address for service:

Email for service:

If no tender or expression of interest in being gifted the land is submitted by the date set out above, the Court may confirm the alienation of the land by way of sale/gift\*.

\*Select one.

**Terms of sale**

*Omit this paragraph if application is for gift of land.*

The terms of sale of the above Māori freehold land are—

*Select the statement that applies.*

- *[specify the terms of sale].*  
**or**
- specified in a document located at *[street address]*.  
**or**
- specified on *[Internet site address]*.

Date:

Signature(s) of owner(s):

Further information about the application may be obtained from the Court at *[business address]*.

***Alternative notice where meeting of owners is called***

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o *[Rohe]*

The Māori Land Court of New Zealand

*[Name of district]* District

**Subject of application**

*[Name of land, block number(s), land area, street address (if applicable), and Māori Land Court district that the land is within]*

**Notice**

A meeting of owners of the above Māori freehold land is to be held at *[address, date, time]* to consider a resolution to sell/gift\* the land.

\*Select one.

That sale/gift\* cannot proceed unless the owners give a right of first refusal to the preferred classes of alienees.

\*Select one.

Any member of the preferred classes of alienees who wishes to exercise the right of first refusal—

- (a) must give notice to the Court not later than 3 days before the date of the meeting; and
- (b) may attend the meeting and pursue the right of first refusal.

**Terms of sale**

*Omit this paragraph if application is for gift of land.*

The terms of sale of the above Māori freehold land are—

*Select the statement that applies.*

- *[specify the terms of sale].*  
***or***
- specified in a document located at *[street address]*.  
***or***
- specified on *[Internet site address]*.

Date:

Signature(s) of owner(s):

Further information about the application may be obtained from the Court at *[business address]*.

Schedule 1 form 27: replaced, on 30 April 2026, by rule 92(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## Form 28

## Certificate of confirmation of alienation of Maori freehold land

r 11.12(1)

*Section 155(1)(a), Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [*Rohe*]

The Māori Land Court of New Zealand

[*Name of district*] District**Details of application**

An application by [*name*] under section [*number*] of Te Ture Whenua Maori Act 1993 for confirmation of a sale/gift\* of [*specify name and block number of the land to which the order relates*].

\*Select one.

Application No:

**Confirmation of alienation**

- 1 This confirmation of alienation is made at a sitting of the Māori Land Court held at [*place, date*] before [*name*], Judge.
- 2 The Court is satisfied that the instrument of alienation on which this certificate is endorsed is an instrument of alienation to which section 151 of Te Ture Whenua Maori Act 1993 applies.
- 3 The Court is also satisfied that the alienation purporting to be effected by that instrument has been effected in all respects in accordance with the law in force at the time of its execution.
- 4 *Omit this paragraph if it does not apply.*  
The Court has, with the consent of the parties, varied that instrument of alienation in the manner set out in the schedule of this certificate.
- 5 The Court confirms the alienation effected by that instrument \*(as varied).

\*Omit these words if they do not apply.

Date:

Signature:

Name:

(Judge)

Sealed:

***\*Schedule***

**\*Variations to instrument of alienation**

\*Omit if there are no variations.

Schedule 1 form 28: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## Form 29

## Certificate of confirmation by Registrar of alienation of Māori freehold land

r 11.12(2)

*Section 160, Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [*Rohe*]

The Māori Land Court of New Zealand

[*Name of district*] District**Details of application**

An application by [*name*] under section 160 of Te Ture Whenua Maori Act 1993 for confirmation of [*specify type of alienation*] of [*name and block number of land*].

Application No:

**Certificate to be endorsed on instrument**

The Registrar of the Māori Land Court, [*name of district*] District, is satisfied that the instrument of alienation on which this certificate is endorsed is an instrument of alienation specified in section 150C(3)(b) of Te Ture Whenua Maori Act 1993.

The Registrar is satisfied of the matters referred to in section 160(3)(b) to (d) of Te Ture Whenua Maori Act 1993.

The Registrar confirms the instrument of alienation.

Date:

Signature:

Name:

Registrar/Deputy Registrar\*

\*Select one.

Sealed:

***Alternative certificate issued as a separate document***

[*Insert heading and subject details as per above certificate.*]

The Registrar of the Māori Land Court, [*name of district*] District, is satisfied that the instrument of alienation described below is an instrument of alienation specified in section 150C(3)(b) of Te Ture Whenua Maori Act 1993—

- Type of alienation:
- Parties:
- Description of land:



- Date of execution.

The Registrar is satisfied of the matters referred to in section 160(3)(b) to (d) of Te Ture Whenua Maori Act 1993.

The Registrar confirms the instrument of alienation.

*[Insert execution clause as per above certificate.]*

Schedule 1 form 29: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## Form 30

### Application for vesting order

r 11.13(1)

*Section 164, Te Ture Whenua Māori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

#### How to complete this application

To complete this application,—

- replace text within [square brackets] with the relevant text:
- if alternative word choices are indicated, for example, sale/gift\*, select the word or phrase that applies:
- if alternative statements are indicated, select the statement that applies.

#### Subject of application

**Block**

**Shares held**

**Shares to be vested**

#### Application

I, [full name], apply for a vesting order transferring the land interests—

*Select the statement that applies.*

- as set out in this application.
- according to the terms set out in the attached agreement.

The transferee(s) is/are\*:

\*Select one.

**Full name(s)**

**Address(es)**

**Note:** If further blocks or transferees are involved, continue on a separate sheet of paper (unless this application is made by email or online) or on Schedule 1, adapted as necessary.

#### 1 Type of transfer

*Select the statement that applies.*

- The transfer is to be by way of gift.
- The transfer is to be by way of sale for the price of \$[amount].

2 **Grounds for application**

*Select the statement that applies.*

- I am a party to the contract or arrangement relating to the proposed transfer.
- I am the transferor/donor\* of the land or interest.
- I am a trustee for a person entitled to the land or interest.

\*Select one.

3 **Consultation with whānau**

I have/have not\* consulted with my immediate whānau about this application.

There are some/no\* objections from my whānau.

\*Select one.

4 The reason for the sale/gift\* is: *[specify]*.

\*Select one.

5 The relationship of the transferee(s) to the transferor is: *[specify]*.

**Important note:** If an undivided interest in land, that is, shares in a block is being transferred, section 148 of Te Ture Whenua Maori Act 1993 requires the transferee to be a member of the preferred classes of alienees, which comprise—

- a child or remoter issue of the transferor:
- whanaunga who are associated in accordance with tikanga Māori with the land:
- an owner in the land who is a member of the hapū associated with the land:
- a trustee of a person belonging to any of the above:
- a descendant of any former owner who is or was a member of the hapū associated with the land.

Whakapapa details (Schedule 2) must be completed and must show how each transferee qualifies as a member of the preferred classes of alienees.

6 I seek exemption from the requirement in section 158 of Te Ture Whenua Maori Act 1993 to provide a special valuation because—

*Select the statement(s) that apply.*

- the alienation is by way of gift:
- the alienee is a close relative, being my *[specify relationship]*:
- *[add to reasons or specify other reason]*.

**Preferred place of hearing**

Preferred place of hearing:

Date:

Signature of applicant:

Signature of witness:

Full name of witness:

Occupation or qualification of witness:

Address of witness:

**\*Contact details of applicant**

Contact address: *[address to which documents or correspondence in connection with the application may be posted or delivered]*

Telephone: *[home, work, mobile]*

Email:

\*If given, an email address may be used as a means of notice and service.

**Name(s) and signature(s) of transferee(s)**

**Full name**

**Signature**

**Note:** If the transaction is a gift, the Court may dispense with the signature of the transferee(s) if it is satisfied that the transferee is aware of, and agrees with, the vesting.

**Fee**

\$*[amount]*

**Note**

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

***Schedule 1***

***Further particulars***

|          | Full legal name of transferor (shown on list of owners) | Full legal name of transferee | Number of shares to be transferred | Gift/sale (state amount if sale) | Relationship between transferor and transferee |
|----------|---------------------------------------------------------|-------------------------------|------------------------------------|----------------------------------|------------------------------------------------|
| Block(s) |                                                         |                               |                                    |                                  |                                                |

***Schedule 2***

***Whakapapa details***

1 Full name of donor or transferor:

2 Full legal name of donor's or transferor's children:

*Complete questions 3 to 10 only if the transfer is not to a child or children of the donor or transferor.*

- 3 Full name of donor's or transferor's mother:
- 4 Full name of donor's or transferor's father:
- 5 Full legal names of donor's or transferor's brothers and sisters (if any): [*specify whether full brother or sister, whether half brother or sister, whether any were adopted in or out of family, and whether legally or as a whāngai*]
- 6 Full name(s) of donee(s) or transferee(s):
- 7 Full name(s) of donee's or transferee's mother(s):
- 8 Full name(s) of donee's/transferee's father(s):
- 9 Blood relationship of donor or transferor and donee(s) or transferee(s):
- 10 Qualification: [*if not evident from above information, explain how the donee(s) or transferee(s) qualify as members of the preferred classes of alienees*].

#### Checklist of documents required

- In the case of a sale, a copy of the special valuation or current roll valuation
- Fully completed Whakapapa Schedule
- Completed application for exemption from requirement to provide a special valuation (if applicable)
- Original contract or agreement relating to the transfer

Schedule 1 form 30: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 30: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 30: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 30: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 31  
Agreement to sell or gift interest in Māori freehold land

r 11.13(2)

*Section 164, Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

**Agreement to sell or gift interest**

I, [full legal name of transferor], agree to transfer to [full legal name(s) of transferee(s)] the Māori freehold land interests listed below—

*Select the statement that applies.*

- for the price of \$[amount].
- by way of gift.

*[Specify any other terms and conditions of the agreement such as payment date or arrangements.]*

**Details of Māori freehold land****Block****Shares held****Shares to be vested**

I/We\*, the transferee(s), confirm and agree to the above terms.

\*Select one.

Date:

Signature of transferor:

Signature of witness:

Full name of witness:

Occupation or qualification of witness:

Address of witness:

Date:

Signature of transferee:

Signature of witness:

Full name of witness:

Occupation or qualification of witness:

Address of witness:

*[Repeat signature block for each transferee.]*

### ***Notes***

- 1 If the transfer is of shares in a block, the transferee must be a member of the preferred classes of alienees (*see* application form (form 30) for further details).
- 2 If the agreement is executed in New Zealand, the signature of the transferor must be witnessed by an independent person aged 20 years or more (not being a member of the transferor's immediate family or an owner in the land being alienated) who must print his or her full name, occupation, and residential address below his or her signature.
- 3 If the agreement is executed outside New Zealand, the signature of the transferor must be witnessed by—
  - (a) a notary public; or
  - (b) a Commissioner of Oaths; or
  - (c) a Commonwealth representative; or
  - (d) a solicitor of the High Court of New Zealand or Australia; or
  - (e) a Justice of the Peace of Australia; or
  - (f) a practising solicitor, lawyer, or attorney in the country where the agreement is signed.

Schedule 1 form 31: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 31: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 32  
Application to call meeting of owners

r 11.17

*Section 173, Te Ture Whenua Māori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

**Subject of application**

[Name and block number of land, Māori incorporation, or other matter in respect of which the application is made]

**Application**

I/We\* [full name(s)] apply for a direction that the Registrar call a meeting of assembled owners of the above land.

\*Select one.

The purpose of the meeting is to consider the following resolution(s): [set out details of the resolution(s). If the resolution is for a sale of the land, state whether the proposed alienee is a member of one of the preferred classes of alienees or not.]

Date:

Signature of applicant:

**\*Contact details**

Contact address: [address to which documents or correspondence in connection with the application may be posted or delivered]

Telephone: [home, work, mobile]

Email:

\*If given, an email address may be used as a means of notice and service.

**Fee**

\$[amount]

**Note**

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.



**Checklist of documents required**

- List of owners and trustees and their addresses
- Statement setting out how the alienee is a member of one of the preferred classes of alienees (if applicable), including any necessary whakapapa details
- Roll valuation or special valuation of the land and any improvements to it by a registered valuer (as applicable)

Schedule 1 form 32: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 32: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 32: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 32: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## Form 33

## Application for confirmation of resolution of assembled owners

r 11.20

*Sections 151 and 175, Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [*Rohe*]

The Māori Land Court of New Zealand

[*Name of district*] District**Subject of application***[Name and block number of land, Māori incorporation, or other matter in respect of which the application is made]***Application**I/We\*, [*full name(s)*], apply for confirmation of the resolution(s) passed at a meeting of assembled owners at [*place, date*] as follows: [*specify resolution(s) passed*].

\*Select one.

**Preferred place of hearing**

Preferred place of hearing:

Date:

Signature(s) of applicant(s):

**\*Contact details**Contact address: [*address to which documents or correspondence in connection with the application may be posted or delivered*]Telephone: [*home, work, mobile*]

Email:

\*If given, an email address may be used as a means of notice and service.

**Fee**[\$*amount*]**Note**

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

**Checklist of documents required (if applicable and available)**

- List of owners present at the gathering
- Statement setting out how the alienee is a member of one of the preferred classes of alienees, including any necessary whakapapa details
- Roll valuation or special valuation of the land and any improvements to it by a registered valuer
- Minutes of the meeting or, if no minutes were kept, a statement of the pertinent issues discussed at the meeting, including—
  - every proposal put to the meeting
  - how voting was conducted
  - the result of the vote on any resolution
  - a list of all owners present who voted for and against any resolution

**Note:** The minutes or statement must be signed as correct by a person present at the gathering and be countersigned by at least 1 other person who was present.

Schedule 1 form 33: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 33: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 33: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 33: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## Form 34

## Application for confirmation of resolution passed at family gathering

r 11.21

*Sections 151 and 176, Te Ture Whenua Māori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [*Rohe*]

The Māori Land Court of New Zealand

[*Name of district*] District**Subject of application***[Name and block number of land, Māori incorporation, or other matter in respect of which the application is made]***Application**I/We\*, [*full name(s)*], apply for confirmation of the resolution(s) passed by the owners at a family meeting at [*place, date*] as follows: [*specify resolution(s) passed*].

\*Select one.

**Preferred place of hearing**

Preferred place of hearing:

Date:

Signature(s) of applicant(s):

**\*Contact details**Contact address: [*address to which documents or correspondence in connection with the application may be posted or delivered*]Telephone: [*home, work, mobile*]

Email:

\*If given, an email address may be used as a means of notice and service.

**Fee**[\$*amount*]**Note**

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

### Checklist of documents required

- List of owners present at the gathering
- Statement setting out how the alienee is a member of one of the preferred classes of alienees (if applicable), including any necessary whakapapa details
- Roll valuation or special valuation of the land and any improvements to it by a registered valuer (as applicable)
- Minutes of the family meeting or, if no minutes were kept, a statement of the pertinent issues discussed at the meeting, including details of—
  - every proposal put to the meeting:
  - the manner in which voting was conducted:
  - the result of the vote on any resolution:
  - a list of all owners present who voted for and against any resolution

**Note:** The minutes or statement must be signed as correct by a person present at the meeting and be countersigned by at least 1 other person who was present.

Schedule 1 form 34: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 34: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 34: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 34: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## Form 35

### Application for exchange order

r 11.24

*Section 310, Te Ture Whenua Māori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

#### Application

I/We\*, [full name(s)], apply for an order of exchange—

\*Select one.

*Select the statement that applies.*

- as set out in this application.
- according to the terms set out in the attached agreement.

#### Details of exchange

1 Land to be exchanged:

| Full legal name(s) of owner(s) | Shares to be exchanged | Name of block | Value of shares |
|--------------------------------|------------------------|---------------|-----------------|
|--------------------------------|------------------------|---------------|-----------------|

is to be exchanged with:

| Full legal name(s) of owner(s) | Shares to be exchanged | Name of block | Value of shares |
|--------------------------------|------------------------|---------------|-----------------|
|--------------------------------|------------------------|---------------|-----------------|

2 *Select the statement that applies.*

- [name] is to pay \$[amount] to [name] to cover the difference in value between the blocks of land.
- It is agreed that no monetary payment should be made to either of the parties to the exchange.

3 *Select the statement that applies.*

- The parties to the exchange are not related.
- The relationship between the parties to the exchange is: [state and clearly explain any relationship between the parties]. (See requirements to complete Whakapapa Schedule in Notes and checklist of documents required.)

#### Preferred place of hearing

Preferred place of hearing:

Date:

Signature of applicant:

Signature of witness:

Full name of witness:

Address of witness:

Date:

Signature of other party:

Signature of witness:

Full name of witness:

Address of witness:

**\*Contact details**

*Applicant*

Contact address: *[address to which documents or correspondence in connection with the application may be posted or delivered]*

Telephone: *[home, work, mobile]*

Email:

*Other party*

Contact address: *[address to which documents or correspondence in connection with the application may be posted or delivered]*

Telephone: *[home, work, mobile]*

Email:

\*If given, an email address may be used as a means of notice and service.

**Fee**

\$*[amount]*

**Notes**

- 1 If undivided interests or shares in Māori land are to be exchanged, the Court has no power to make an order unless the person receiving the shares in a block is either—
  - (a) a child or remoter issue of the owner of the shares to be exchanged in that block; or
  - (b) whanaunga of the owner who are associated in accordance with tikanga Māori with that land; or

- (c) another owner in that land who is a member of the hapū associated with the land; or
  - (d) a trustee of any person who qualifies under any of the requirements in paragraphs (a) to (c); or
  - (e) a descendant of any former owner who is or was a member of the hapū associated with the land.
- 2 In completing the Whakapapa Schedule to accompany the application, a party to the exchange should clearly indicate how he or she qualifies to receive shares under the above provisions.
- 3 Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

### ***Schedule*** ***Whakapapa***

**Note:** This schedule needs to be completed only if a party to an exchange is receiving shares in Māori land. If the full title to land is being transferred, the schedule is not required.

- 1 Full legal name of party:
- 2 Full legal names of party's brothers and sisters (if any): [*specify whether full brother or sister, whether half brother or sister, whether any were adopted in or out of family, and whether legally or as a whāngai*]
- 3 Full legal name of mother:
- 4 Full legal name of father:
- 5 Full legal names of children:
- 6 Qualification: [*set out clearly how you qualify to acquire interests in the land to be transferred to you*] (*see notes to the application form*)

#### **Checklist of documents required**

- Current roll valuation or a valuation by a registered valuer for both blocks affected by the exchange
- If land other than Māori land is to be exchanged, a full description of that land so as to enable it to be clearly identified together with particulars of all encumbrances recorded against the land
- If any piece of land to be exchanged is only part of the land comprised in a title, a plan defining the piece to be exchanged
- If the consent to the exchange has been given by a resolution passed under Part 9 of Te Ture Whenua Maori Act 1993 by the assembled owners, a copy of the resolution passed



- Completed Whakapapa Schedule for each person receiving shares in Māori land

Schedule 1 form 35: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 35: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 35: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 35: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 36  
Application to constitute whānau trust

r 12.3

*Section 214, Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

**How to complete this application**

To complete this application,—

- replace text within [square brackets] with the relevant text:
- where alternative word choices are indicated, for example, my/our\*, select the word or phrase that applies:
- where alternative statements are indicated, select the statement that applies.

**Application**

I/We\*, [full name(s)], apply to the Court to constitute a whānau trust in respect of—

\*Select one.

*Select the statement that applies.*

- all my/our\* land interests.
- the land interests listed in the attached Schedule.

\*Select one.

Your application may be determined by a Registrar if it is simple and uncontested, as described in section 235A of Te Ture Whenua Maori Act 1993. If your application is determined by a Registrar, you will not need to attend court. If you would prefer your application to be heard in court by a Judge, please indicate here.

**Details of proposed whānau trust**

1 Proposed name of the whānau trust: [name]

2 Common tupuna name: [name]

**Note:** Care must be taken in selecting the tupuna as the beneficiaries of the trust are the descendants of that tupuna. If an applicant is forming a trust for his or her children, his or her name should be the tupuna name.

- 3 Section 218 of Te Ture Whenua Maori Act 1993 contains a list of Māori community purposes to which income from the whānau trust may be applied if provision is made in the trust order. Do you want discretionary power included in your trust order to allow income to be applied to Māori community purposes? Yes/No\*

\*Select one

- 4 The names of proposed trustees are:

| Legal name | Address |
|------------|---------|
|------------|---------|

- 5 Signed consents of the proposed trustees are attached to this application.

- \*6 A copy of the draft trust order is attached to this application.

*or*

- \*6 I/We<sup>†</sup> wish to adopt the standard draft trust order used by the Court.

\*Select the paragraph that applies.

<sup>†</sup>Select one.

### Preferred place of hearing

Preferred place of hearing:

Date:

Signature of applicant:

### \*Contact details

Contact address: *[address to which documents or correspondence in connection with the application may be posted or delivered]*

Telephone: *[home, work, mobile]*

Email:

\*If given, an email address may be used as a means of notice and service.

### Fee

\$(*amount*)

### Note

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

### *Schedule of land interests*

| Name of current owner | Name of land | Number of shares owned | Number of shares to vest in trust |
|-----------------------|--------------|------------------------|-----------------------------------|
|-----------------------|--------------|------------------------|-----------------------------------|

**Checklist of documents required (if applicable and available)**

- Signed consents of any owners who have not signed the application
- Signed consents of proposed trustees
- Draft trust order if the standard trust order is not to be used
- Whakapapa
- Minutes of meeting recording details of agreement to details of proposed whānau trust

**Note:** A draft trust order that may be amended to suit your purposes may be obtained from the Court office.

Schedule 1 form 36: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 36: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 36: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 36: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 37  
Application to constitute ahu whenua trust

r 12.4

*Section 215, Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

**Subject of application**

[Name and block number(s) of land]

**Application**

I/We\*, [full name(s)], apply to the Court to constitute an ahu whenua trust over the Māori land block(s) listed above on the grounds that there is sufficient agreement or consensus among the owners for the formation of a trust.

\*Select one.

**Details in support of application**

- 1 Name of trust: [specify]
- 2 Date(s) and place(s) of meetings of owners: [specify]
- 3 Minutes of the meeting(s) are enclosed? Yes/No\*  
\*Select one.
- 4 Notice of the meeting(s) was given to the owners as follows: [specify].
- 5 A copy of any notice placed in a newspapers is enclosed? Yes/No\*  
\*Select one.
- 6 The proposed trustees named in the schedule of trustees were elected at a meeting of owners held at [place] on [date].
- 7 A curriculum vitae (CV) and consent for each proposed trustee is enclosed? Yes/No\*  
\*Select one.
- 8 We produce our own draft order. Yes/No\*

**or**

We wish to use the Court's standard trust order. Yes/No\*

\*Select one. One answer should be "Yes" and the other should be "No".

- 9 Section 218 of Te Ture Whenua Maori Act 1993 contains a list of Māori community purposes to which income may be applied if provision is made in the trust order. Do you want discretionary power included in your trust order to allow income to be applied to Maori community purposes? Yes/No\*

\*Select one.

- 10 The following persons voted against the formation of a trust or objected to it:  
[specify names]

### Preferred place of hearing

Preferred place of hearing:

Date:

Signature(s) of applicant(s):

### \*Contact details

Contact address: [address to which documents or correspondence in connection with the application may be posted or delivered]

Telephone: [home, work, mobile]

Email:

\*If given, an email address may be used as a means of notice and service.

### Fee

\$(amount)

## Schedule of trustees

| Legal name | Address |
|------------|---------|
|------------|---------|

### Notes

- 1 The Act requires the owners to have had sufficient notice of the application and the opportunity to discuss and consider it. The applicant should be prepared to establish this at the hearing.
- 2 The rules require that proper notice must be given of the time, date, and place of the hearing to persons who voted against the formation of a trust or objected to it (*see* paragraph 10 under **Details in support of application**). The applicant should produce evidence of that notice at the hearing.
- 3 The CV for proposed trustees need not be comprehensive. A brief statement as to the candidate's strengths, qualifications, and experience showing his or her suitability for the position should be sufficient.
- 4 Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required,

information provided in this application will be included in resulting orders of the Court.

**Checklist of documents required (if applicable and available)**

- Notice of meeting given to owners (eg, written notification, public advertisement, etc)
- Minutes of meeting agreeing to constitute the ahu whenua trust
- List of owners present at meeting(s)
- Signed consents of owners
- CV for each proposed trustee (*see* note 3)
- Draft trust order (if standard order is not used)
- Proposed registered trust address and email address
- Minutes of any meeting of owners recording decisions on details of ahu whenua trust

Schedule 1 form 37: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 37: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 37: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 37: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## Form 38

Application to appoint, remove, or replace trustee or change the number of  
trustees

r 12.8(2)

*Sections 222 and 239, Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

**Subject of application**

[Name and block number(s) of land and name of trust]

**Application**

I/We\*, [full name(s)], apply to—

\*Select one.

*Select the statement(s) that apply.*

- appoint 1 or more new trustees:
- remove or replace 1 or more trustees who have resigned, retired, or are deceased:
- remove or replace a trustee who is sought to be removed for any other reason.

**Note:** If the applicant seeks to remove or replace a current trustee for any reason other than that trustee's resignation, retirement, or death, this form must be accompanied by an application in form 38A.

Your application may be determined by a Registrar if it is simple and uncontested, as described in section 235A of Te Ture Whenua Maori Act 1993. If your application is determined by a Registrar, you will not need to attend court. If you would prefer your application to be heard in court by a Judge, please indicate here.

**Details of changes to trustees**

- 1 The trustees to be removed or replaced as a result of resignation, retirement, or death are:

**Name****Reason for removal**

**Note:** If a trustee is to be removed or replaced because they are deceased, the Court will require reasonable evidence as to their death, for example, evidence of attendance at the tangi, a copy of the death certificate, or other reliable evidence.

- 2 The trustees to be added are:

**Legal name****Address**



3 Signed consents are attached of—

*Select the statement(s) that apply.*

- the retiring or resigning trustees:
- the proposed trustees.

**Note:** Signed consents of those trustees who are retiring by rotation according to the terms of the trust order, or who were present and accepted the election process, are not required.

4 The total number of trustees—

- at the time of the application is: *[state number]*;
- sought in the application is: *[state number]*.

**Details of meeting to confirm proposed trustees\***

*\*Omit this heading and paragraphs 5 to 7 if no meeting was held.*

5 The proposed trustees were elected at a meeting of beneficial owners held at *[place]* on *[date]*.

6 A copy of the notice of the meeting given to the beneficial owners is attached (including any newspaper advertisement).

7 A copy of the minutes of the meeting is attached.

**Preferred place of hearing**

Preferred place of hearing:

Date:

Signature(s) of applicant(s):

**Contact details\***

Contact address: *[address to which documents or correspondence in connection with the application may be posted or delivered]*

Phone: *[home, work, mobile]*

Email:

*\*If given, an email address may be used as a means of notice and service.*

**Fee**

*[\$[amount]*

**Note**

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

**Checklist of documents required**

- Signed consents of trustees
- CV for each proposed trustee
- Notice of meeting given to beneficiaries or owners (eg, written notification, public advertisement, etc)
- Minutes of meeting consenting to replacement, removal, or addition of trustees or change in number of trustees

Schedule 1 form 38: replaced, on 30 April 2026, by rule 92(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 38A

Application to remove trustee for reason other than resignation, retirement, or  
death of trustee

r 12.8(3)

*Section 240, Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [*Rohe*]

The Māori Land Court of New Zealand

[*Name of district*] District

**Subject of application**

[*Name and block number(s) of land and name of trust*]

**Application**

I/We\*, [*full name(s)*], apply to remove a trustee† for reasons other than their resignation, retirement, or death.

\*Select one.

†If more than 1 trustee is sought to be removed in relation to the same trust, only 1 form is required to apply for all those trustees to be removed.

**Details of change to trustees**

The trustee to be removed is:

**Name**

**Reason for removal**

*Select the statement that applies.*

The trustee to be removed has been notified of this application by [*specify details of the notice given*].

**or**

The trustee to be removed has not been notified of this application because [*state reason*].

**Note:** If a trustee is to be removed, the Court requires an applicant to notify the trustee of the application for removal unless good reason can be shown for not doing so.

I/We\* attach evidence (if available) of the reasons for removing the trustee.

\*Select one.

**Preferred place of hearing**

Preferred place of hearing:

Date:

Signature(s) of applicant(s):

**Contact details\***

Contact address: *[address to which documents or correspondence in connection with the application may be posted or delivered]*

Phone: *[home, work, mobile]*

Email:

\*If given, an email address may be used as a means of notice and service.

**Fee**

\$(*amount*)

**Note**

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

**Checklist of documents required**

- Notice of application to trustee of proposed removal
- Minutes of meeting consenting to proposed removal of trustee
- Key documents supporting reason for proposed removal (ie, evidence of a conviction or an example of reputational harm caused)

Schedule 1 form 38A: inserted, on 30 April 2026, by rule 92(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 39  
Application for partition

r 13.1

*Section 289 or 298, Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [*Rohe*]

The Māori Land Court of New Zealand

[*Name of district*] District

**Subject of application**

[*Name and block number(s) of land*]

**Application**

I/We\*, [*full name(s)*], apply for a partition order/combined partition order\* of the above land.

\*Select one.

**Reasons and consultation**

1 I/We\* would like a partition of the land because: [*specify reasons*].

\*Select one.

2 I/We\* believe that a partition will benefit this block of land because: [*specify reasons*].

\*Select one.

3 I/We\* have consulted with the owners and have given them adequate opportunity to consider the proposal by—

\*Select one.

*Select the statement(s) that apply.*

- personal contact:
- a meeting or meetings of owners:
- [*specify details*].

4 I/We\* attach the following evidence of consultation:

\*Select one.

*Select the statement(s) that apply.*

- written consents or objections of owners:
- minutes of meeting(s):
- [*specify details of other evidence of consultation*].

**Preferred place of hearing**

Preferred place of hearing:

Date:

Signature(s) of applicant(s):

**\*Contact details**

Contact address: *[address to which documents or correspondence in connection with the application may be posted or delivered]*

Telephone: *[home, work, mobile]*

Email:

\*If given, an email address may be used as a means of notice and service.

**Fee**

\$(*amount*)

**Note**

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

***Schedule 1******Information to accompany application for partition*****Subject of application**

Name and block number of land to be partitioned:

Area: *[size]* square metres/hectares\*

\*Select one.

Name(s) of applicant(s):

**Required information**

*Please provide the following information.*

- 1 Local authority in which land is situated:
- 2 The current title is held under *[name]* Order of the Māori Land Court dated *[date]*.
- 3 Is title completed by survey? Yes/No\*

\*Select one.

- 4 Is there a Land Transfer title? Yes/No\*  
\*Select one.  
If **yes**, specify the certificate of title:
- 5 Is this partition intended to be a hapū partition in terms of sections 301 to 304 of Te Ture Whenua Maori Act 1993? Yes/No\*  
\*Select one.
- 6 Is the land vested in a trust or body corporate, or subject to Part 2 of the Maori Affairs Restructuring Act 1989 (Māori land development)? Yes/No\*  
\*Select one.
- 7 Improvements claimed by the applicant:
- 8 Registered alienations, encumbrances, rights of way, easements, or *profits à prendre* affecting the title:
- 9 Unregistered alienations, encumbrances, rights of way, easements, or *profits à prendre* disclosed by court files, or known to the applicant:
- 10 Any alienation that is the subject of an application for confirmation not yet disposed of:
- 11 Names of present occupiers, and their tenure (if known):
- | Name | Postal address | Sex and, if minor, age | Tenure |
|------|----------------|------------------------|--------|
|------|----------------|------------------------|--------|
- 12 Names of present owners, their postal addresses (if known), and their shares (this information can be filed separately):
- | Name | Postal address | Sex and, if minor, age | Share |
|------|----------------|------------------------|-------|
|------|----------------|------------------------|-------|
- 13 Please attach a current roll valuation or valuation by a registered public valuer.

## ***Schedule 2***

### ***Consents of trustees/owners\* to partition (this information can be filed separately)***

We the undersigned, being trustees/owners\* in [*name of block*], agree to the partition of the land as shown on the attached plan.

\*Select one.

Date:

Signature of owner/trustee\*

\*Select one.

Full name:

Address:

*[Repeat signature block for each owner or trustee.]*

**Checklist of documents required (if applicable and available)**

- Schedule 1 (Information to accompany application for partition) fully completed with the required attachments
- A valuation of the land before partition and a valuation of each separate area created after partition

**Note:** An applicant may seek a preliminary hearing by the Court as to the merits of partition before obtaining a valuation.
- A sketch plan or diagram showing—
  - the area of the portion to be partitioned out; and
  - the position or locality of the partition relative to the whole block; and
  - any river, lake, or seashore boundaries of the whole block; and
  - the position of any easement or roadway required for access to the partitioned area
- Details of how ownership of the land is to be apportioned after partition
- Details of notice of the application or proposal to the owners, their opportunity to discuss it, the minutes of any meetings held for this purpose, and the amount of support for the proposal
- Current certificate of title search of any general land included in the partition
- Local authority approval
- Consent of owners
- Consents of trustees
- Consent of committee of management of Māori incorporation
- Consent of lessees
- Copy of current roll valuation or valuation by a registered valuer
- Draft survey plan with easement plan
- Certificate of title
- Mortgage consent transfer
- New Zealand Transport Agency approval (for roading consent)



Schedule 1 form 39: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 39: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 39: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 39: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 40  
Application for occupation order

r 13.15

*Section 328, Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [*Rohe*]

The Māori Land Court of New Zealand

[*Name of district*] District**Subject of application**

[*Name and block number of land in respect of which the application is made*] (the site)

**Application**

I/We\*, [*full name(s)*], apply for an occupation order over the Māori freehold land named above as the site for a house.

\*Select one.

I/We\* would like the term of the order to be for [*specify term by reference to number of years, life of applicant or other person, or event, or specify that the order is to be unlimited*].

\*Select one.

**Grounds for application**

1 *Select the statement that applies.*

- I am/We are\* the owner/owners\* of the block named above and hold [*number of shares*] shares out of a total of [*total number of shares*] shares in that block.
- I am/We are\* entitled to succeed to the beneficial interests of [*name of deceased*], being a deceased owner in the block named above, with [*number of shares*] shares out of a total of [*total number of shares*] shares in that block.

\*Select one.

- I am/We are\* the beneficiary/beneficiaries\* of a whānau trust, [*name of whānau trust*], which holds a beneficial interest in the block.

2 My/Our\* shareholding or entitlement equates to [*size*] hectares/square metres\*.

\*Select one.

**Note:** To calculate the area multiply the number of shares you hold or are entitled to by the area of the block and divide by the total number of shares in the block.

- 3 The house to which this application relates—  
*Select the statement that applies.*
- already exists on the site.
  - is proposed to be built on the site.
- 4 *Select the statement that applies.*
- I am/We are\* the occupier of the house to which this application relates.  
\*Select one.
  - The occupiers of the house to which this application relates are: [*name and address*].
  - I am/We are\* the proposed occupiers of the house to be erected.  
\*Select one.
  - The proposed occupiers of the house to be erected are: [*name and address*].
- 5 The owners have/have not\* been advised—
- (a) that an occupation order may pass by succession; and
  - (b) that an occupation order may be for a definite term or until a specified event; and
  - (c) of the term for which the order is sought.
- 6 The names and addresses of the occupiers of any other houses on the land are: [*specify*].
- 7 The names and addresses of any mortgagees or chargeholders of the land are: [*specify*].
- 8 The names and addresses of any lessees or other occupiers of the land are: [*specify*].
- 9 The following evidence of support for the application is attached:  
*Omit the statements that do not apply.*
- copy of trustees' consents:
  - copy of consent of committee of management of incorporation:
  - copy of the minutes of the meeting of owners where consent granted:
  - copy of consents from other owners:
  - written preliminary advice from the local authority that a dwelling will be permitted on the proposed site.
- 10 A sketch plan is enclosed, providing the following information:
- details of the parent block showing the boundaries of the existing title:
  - the location of the site:

- any existing or proposed access track or road to that site by reference to boundaries, fences, areas of other occupation or landmarks, and the approximate distances from them to the site:
- the metric area of the site and the position and length of each boundary.

**Preferred place of hearing**

Preferred place of hearing:

Date:

Signature(s) of applicant(s):

**\*Contact details**

Contact address: *[address to which documents or correspondence in connection with the application may be posted or delivered]*

Telephone: *[home, work, mobile]*

Email:

\*If given, an email address may be used as a means of notice and service.

**Fee**

\$*[amount]*

**Note**

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

**Checklist of documents required (if applicable and available)**

- Consents of trustees or committee of management where the land is administered by a trust or incorporation
- Copy of the minutes of meetings of owners where consent to occupation granted
- Copy of owner consents
- Sketch plan(s) as required above
- Consent of lessee
- Written preliminary advice from the local authority that a dwelling will be permitted on the proposed site
- Evidence that the applicant is a beneficiary of the whānau trust (if applicable)

Schedule 1 form 40: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 40: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 40: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 40: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 41  
Requisition for survey

r 13.17

*Section 332, Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [*Rohe*]

The Māori Land Court of New Zealand

[*Name of district*] District

In the matter of [*specify full description of land(s)*] (the land)

And

In the matter of [*specify nature and date of title order or other order*]

**Grounds of requisition**

The Court, on the application of [*full name*]/on its own motion\*, is of the opinion that a survey of the land is necessary or expedient for—

\*Select one.

*Select the statement that applies.*

- the completion of a [*specify nature of order*] order of the Court dated [*date*].
- the exercise of certain powers or jurisdiction of the Court in relation to the land, namely, [*specify precisely the power or jurisdiction and the facts and circumstances relied upon*].

**Requisition for survey**

The Court/Registrar\* requires a survey of the land in terms of Te Ture Whenua Maori Act 1993 and the Surveyor-General's rules for cadastral survey. Descriptions of boundaries are attached.

\*Select one.

\*[*Name*], authorised surveyors, are nominated to make the survey.

\*Omit if not applicable.

Date:

Signature:

Name:

(Judge/Registrar\*)

\*Select one.

Schedule 1 form 41: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 41: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 42  
Certificate of completion of survey

r 13.17(b)

*Sections 332(4) and 334(2), Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [*Rohe*]

The Māori Land Court of New Zealand

[*Name of district*] DistrictIn the matter of the survey/sub-divisional survey\* of [*specify full description of land(s)*] (the **land**)

\*Select one.

**Certificate**

I certify to the Māori Land Court that—

- (a) the survey of the land has been properly performed; and
- (b) the plan of the land numbered [*specify*] has been duly approved by me; and
- (c) the survey was completed on [*date*].

\*The only modifications required for the purposes of completing the survey, were as follows: [*specify*].

\*Omit this paragraph if it does not apply.

Date:

Signature:

Name:

District:

Schedule 1 form 42 heading: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 42: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 42: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).



Form 43  
Application for charging order for cost of survey  
*[Revoked]*

r 13.18(1)

Schedule 1 form 43: revoked, on 30 April 2026, by rule 92(6) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 44  
Charging order for cost of survey  
*[Revoked]*

r 13.18(2)

Schedule 1 form 44: revoked, on 30 April 2026, by rule 92(6) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 45  
Order varying charging order  
*[Revoked]*

r 13.18(3)

Schedule 1 form 45: revoked, on 30 April 2026, by rule 92(6) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 46  
Request for advice on aquaculture dispute

r 15.4

*Section 26P, Te Ture Whenua Maori Act 1993; Section 54, Maori Commercial Aquaculture Claims Settlement Act 2004*

**Ki** te Kaiwhakawā Matua o te Kooti Whenua Māori o Aotearoa  
**To** the Chief Judge of the Māori Land Court of New Zealand

**Application**

- 1 This application is made under section 26P of Te Ture Whenua Maori Act 1993.
- 2 I/We\*, [*full name(s)*], request the Court to—  
\*Select one.  
*Select the statement that applies.*
  - advise on an appropriate dispute resolution process for the purposes of section 53 of the Maori Commercial Aquaculture Claims Settlement Act 2004.
  - issue a non-binding ruling on a question of fact or law to assist in the conduct of the dispute resolution process. That question of fact or law is: [*specify*].
- 3 *Omit this paragraph if it does not apply.*  
This application is made on behalf of [*specify name of iwi organisation or group*].

**Details of dispute**

- 1 I am/We are\* a party to a dispute under section 52 of the Maori Commercial Aquaculture Claims Settlement Act 2004.  
\*Select one.
- 2 The dispute is with the parties listed in the schedule to this application.
- 3 The dispute is about [*specify*].
- 4 We have attempted to resolve the dispute through an alternative dispute resolution process.
- 5 *Select the statement that applies.*
  - Attached to this form is a description of the dispute resolution process that we have followed to try to resolve the dispute.
  - Attached to this form are copies of any available reports, minutes, or other correspondence that support our attempts to resolve the dispute.
- 6 The names and contact details of all affected parties to this dispute are set out in the schedule to this application.

7 I/We\* do/do not\* have a lawyer to assist with this application.

\*Select one.

8 *Omit this paragraph if you do not have a lawyer.*

My/our\* lawyer's contact details are: *[specify]*.

\*Select one.

### Preferred place of hearing

Preferred place of hearing:

Date:

Signature(s) of applicant(s):

\*(signed on behalf of group)

\*Omit this line if the application is not made on behalf of a group.

### \*Contact details

Contact address: *[address to which documents or correspondence in connection with the application may be posted or delivered]*

Telephone: *[home, work, mobile]*

Email:

\*If given, an email address may be used as a means of notice and service.

### Fee

\$(*amount*)

### Note

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

### *Schedule Parties*

| Name | Postal address | Telephone No | Email address |
|------|----------------|--------------|---------------|
|------|----------------|--------------|---------------|

### Checklist of documents required (if applicable)

- A description of the process you have followed to resolve the dispute
- Copies of any available reports, minutes, or other correspondence that support your attempts to resolve the dispute
- The schedule listing the names and contact details of all affected parties to the dispute

Schedule 1 form 46: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 46: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 46: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 47

Application to hear and determine aquaculture dispute

r 15.5

*Section 26Q, Te Ture Whenua Maori Act 1993; Section 54, Maori Commercial Aquaculture Claims Settlement Act 2004*

**Ki** te Kaiwhakawā Matua o te Kooti Whenua Māori o Aotearoa

**To** the Chief Judge of the Māori Land Court of New Zealand

**Application**

- 1 This application is made under section 26Q of Te Ture Whenua Maori Act 1993.
- 2 I/We\*, [full name(s)] apply to the Court to make a determination in respect of a dispute under the Maori Commercial Aquaculture Claims Settlement Act 2004.  
\*Select one.
- 3 *Omit this paragraph if it does not apply.*  
This application is made on behalf of [specify name of iwi organisation or group].

**Details of dispute**

- 4 The dispute is with the parties listed in the schedule to this application.
- 5 The dispute was referred under section 26 of Te Ture Whenua Maori Act 1993 to the Māori Land Court, which issued advice/a non-binding ruling\* on [date] recorded in [specify minute book reference].  
\*Select one.
- 6 The dispute is about [specify].
- 7 I/We\* have taken the following steps to try to resolve the dispute: [specify].  
\*Select one.
- 8 I/We\* do/do not\* have a lawyer to assist with this application.  
\*Select one.
- 9 *Omit this paragraph if you do not have a lawyer.*  
My/Our\* lawyer's contact details are: [specify].  
\*Select one.
- 10 A copy of this application has been served on any other party to this dispute.  
Yes/No\*  
\*Select one.

**Preferred place of hearing**

Preferred place of hearing:

Date:

Signature(s) of applicant(s):

\*(signed on behalf of group)

\*Omit this line if the application is not made on behalf of a group.

**\*Contact details**

Contact address: *[address to which documents or correspondence in connection with the application may be posted or delivered]*

Telephone: *[home, work, mobile]*

Email:

\*If given, an email address may be used as a means of notice and service.

**Fee**

\$\_[amount]

***Schedule***

**Parties**

| Name | Postal address | Telephone No | Email address |
|------|----------------|--------------|---------------|
|------|----------------|--------------|---------------|

**Checklist of documents required**

- A description of the process you have followed to resolve the dispute (if full details are not included under paragraph 6 under **Details of dispute**)
- Copies of any available reports, minutes, or other correspondence that support your attempts to resolve the dispute
- A copy of the advice or ruling of the Māori Land Court

**Notes**

- 1 The applicant must serve a copy of the application on all other parties to the dispute.
- 2 Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

Schedule 1 form 47: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 47: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 47: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 48

Request for advice or non-binding ruling on Māori fisheries dispute

r 15.6

*Section 26B, Te Ture Whenua Maori Act 1993; Section 181(1) or 182(2), Maori Fisheries Act 2004*

**Ki** te Kaiwhakawā Matua o te Kooti Whenua Māori o Aotearoa

**To** the Chief Judge of the Māori Land Court of New Zealand

**Application**

1 This application is made under section 26B of Te Ture Whenua Maori Act 1993.

2 I/We\*, [full name(s)], request—

\*Select one.

*Select the statement that applies.*

- the Court's advice on an appropriate dispute resolution process.
- a non-binding ruling on a question of fact or law to assist in the conduct of a dispute resolution process.
- the Court's advice, in accordance with a dispute resolution process, in resolving a dispute.

3 *Omit this paragraph if it does not apply.*

This application is made on behalf of [specify name of iwi organisation or group].

**Details of dispute**

4 I am/We are\* a party to a dispute under Part 5 of the Maori Fisheries Act 2004 (the Act).

\*Select one.

5 The dispute is with the parties listed in the schedule to this application.

6 The dispute is about [specify].

7 *Select the statement that applies.*

- The dispute is over a matter specified in section 180(1)(a) to (f) or (h) to (m) of the Act, and Te Ohu Kai Moana Trustee Limited is a party to the dispute.
- The dispute is over a matter specified in section 180(1)(a) to (f) or (h) to (m) of the Act, and resolution is not able to be reached under section 181 of the Act.
- The dispute is referred to the Court in accordance with a dispute resolution process agreed to under section 181(1) of the Act.

8 The names and contact details of all affected parties to this dispute are set out in the schedule to this application.

- 9 I/We\* do/do not\* have a lawyer to assist with this application.  
\*Select one.
- 10 *Omit this paragraph if you do not have a lawyer.*  
My/Our\* lawyer's contact details are: [*specify*].  
\*Select one.
- 11 A copy of this application has been served on any other party to this dispute.  
Yes/No\*  
\*Select one.

**Preferred place of hearing**

Preferred place of hearing:

Date:

Signature(s) of applicant(s):

\*(signed on behalf of group)

\*Omit this line if the application is not made on behalf of a group.

**\*Contact details**Contact address: [*address to which documents or correspondence in connection with the application may be posted or delivered*]Telephone: [*home, work, mobile*]

Email:

\*If given, an email address may be used as a means of notice and service.

**Fee**\$[*amount*]***Schedule*****Parties**

| Name | Postal address | Telephone No | Email address |
|------|----------------|--------------|---------------|
|------|----------------|--------------|---------------|

**Checklist of documents required**

- Written notification from the decision maker of the decision specified in section 180 of the Act that is disputed (if applicable and available)
- A description of the process you have followed to resolve the dispute
- Copies of any available reports, minutes, or other correspondence that support your attempts to resolve the dispute



- The schedule listing the names and contact details of all affected parties to the dispute

**Notes**

- 1 The applicant must serve a copy of the application on all other parties to the dispute.
- 2 Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

Schedule 1 form 48: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 48: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 48: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## Form 49

## Application to hear and determine Māori fisheries dispute

r 15.7

*Section 26C, Te Ture Whenua Maori Act 1993; Maori Fisheries Act 2004***Ki** te Kaiwhakawā Matua o te Kooti Whenua Māori o Aotearoa**To** the Chief Judge of the Māori Land Court of New Zealand**Application**

1 This application is made under section 26C of Te Ture Whenua Maori Act 1993.

2 I/We\*, [full name(s)], request the Court to hear and determine a dispute under Part 5 of the Maori Fisheries Act 2004, and to make orders accordingly.

\*Select one.

3 *Omit this paragraph if it does not apply.*

This application is made on behalf of [specify name of iwi organisation or group].

**Details of dispute**

4 I am/We are\* a party to a dispute under the Maori Fisheries Act 2004 (the Act).

\*Select one.

5 The dispute is with the parties listed in the schedule to this application.

6 The dispute is about [specify].

7 *Select the statement that applies.*

- The dispute is over a matter specified in section 180(1)(a) to (f) or (h) to (m) of the Act, and Te Ohu Kai Moana Trustee Limited is a party to the dispute.
- The dispute is over a matter specified in section 180(1)(a) to (f) or (h) to (m) of the Act, and resolution is not able to be reached under section 181 of the Act.
- The dispute has been referred to Te Ohu Kai Moana Trustee Limited, and the decision of Te Ohu Kai Moana Trustee Limited is referred to the Court.
- The dispute has been referred to Te Ohu Kai Moana Trustee Limited, and Te Ohu Kai Moana Trustee Limited has not made a determination within a reasonable time.
- The dispute is in relation to an action taken against a mandated iwi organisation by Te Ohu Kai Moana Trustee Limited in reliance on section 186 of the Act.

- The dispute relates to the withdrawal of a group from a joint mandated iwi organisation.
- 8 The parties to the dispute have been served with a copy of this application.  
Yes/No\*  
\*Select one.
- 9 The following documents (if applicable) are attached to this application:  
*Select the statements that apply.*
- written notification from the decision maker of the decision specified in section 180 of the Act that is disputed:
  - a description of the dispute resolution process that has been followed to try to resolve the dispute and an explanation of why that process was unsuccessful:
  - copies of any available reports, minutes, or other correspondence that support the attempts to resolve the dispute:
  - a copy of the decision of Te Ohu Kai Moana Trustee Limited in respect of the dispute:
  - a brief description of the alleged breach of the condition of assistance and a description of the action taken by Te Ohu Kai Moana Trustee Limited:
  - a copy of the constitutional documents of the joint mandated iwi organisation:
  - copies of all notification letters sent to affected parties notifying them of this application:
  - copies of all letters of opposition that have been received.
- 10 I/We\* do/do not\* have a lawyer to assist with this application.  
\*Select one.
- 11 *Omit this paragraph if you do not have a lawyer.*  
My/Our\* lawyer's contact details are: [*specify*].  
\*Select one.

**Preferred place of hearing**

Preferred place of hearing:

Date:

Signature(s) of applicant(s):

\*(signed on behalf of group)

\*Omit this line if the application is not made on behalf of a group.

**\*Contact details**

Contact address: [*address to which documents or correspondence in connection with the application may be posted or delivered*]

Telephone: [*home, work, mobile*]

Email:

\*If given, an email address may be used as a means of notice and service.

**Fee**

\$[*amount*]

***Schedule*****Parties**

| Name | Postal address | Telephone No | Email address |
|------|----------------|--------------|---------------|
|------|----------------|--------------|---------------|

**Checklist of documents required (if applicable)**

- Written notification from the decision maker of the decision specified in section 180 of the Act that is disputed
- A description of the process you have followed to resolve the dispute
- Copies of any available reports, minutes, or other correspondence that support your attempts to resolve the dispute
- The Schedule listing the names and contact details of all affected parties to the dispute
- Copies of letters sent to all affected parties notifying them of your application
- Any letters of opposition
- A copy of the decision from Te Ohu Kai Moana Trustee Limited determining a dispute
- A brief explanation as to why recognition of a mandated iwi organisation should be suspended or denied
- Copies of the constitutional documents of the joint mandated iwi organisation

**Notes**

- 1 The applicant must serve a copy of the application on all other parties to the dispute.
- 2 Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

Schedule 1 form 49: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 49: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Schedule 1 form 49: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## Form 50

Application by Te Ohu Kai Moana Trustee Limited for reference of Māori  
fisheries dispute

r 15.7

*Section 26C, Te Ture Whenua Maori Act 1993; Section 182(4), Maori Fisheries Act 2004***Ki** te Kaiwhakawā Matua o te Kooti Whenua Māori o Aotearoa**To** the Chief Judge of the Māori Land Court of New Zealand**Application**

- 1 This application is made under section 182(4) of the Maori Fisheries Act 2004 and section 26C of Te Ture Whenua Maori Act 1993.
- 2 Te Ohu Kai Moana Trustee Limited requests the Court to hear and determine a dispute under Part 5 of the Maori Fisheries Act 2004 and to make orders accordingly.

**Details of dispute**

- 3 The dispute is between the parties listed in the schedule to this application.
- 4 The dispute is about [*specify*].
- 5 The dispute has been referred to Te Ohu Kai Moana Trustee Limited, but it declines to determine the dispute.
- 6 A copy of this application has been served on the parties.

Date:

Signature:

(signed on behalf of Te Ohu Kai Moana Trustee Limited)

Name:

**Fee**[\$*amount*]***Schedule*****Parties**

| Name | Postal address | Telephone No | Email address |
|------|----------------|--------------|---------------|
|------|----------------|--------------|---------------|

**Notes**

- 1 The applicant must serve a copy of the application on all the other parties.
- 2 This form is only for use if a dispute has been referred to Te Ohu Kai Moana Ltd and Te Ohu Kai Moana Ltd has declined to determine the dispute.

- 3 Information provided in all applications forms part of the Court’s permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

Schedule 1 form 50: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## Form 51

Application by Te Ohu Kai Moana Trustee Limited to deny or suspend  
recognition of mandated iwi organisation

r 15.8

*Section 26C(b), Te Ture Whenua Maori Act 1993; Section 185(1), Maori Fisheries Act 2004***Ki** te Kaiwhakawā Matua o te Kooti Whenua Māori o Aotearoa**To** the Chief Judge of the Māori Land Court of New Zealand**Application**

1 This application is made under section 26C(b) of Te Ture Whenua Maori Act 1993.

2 Te Ohu Kai Moana Trustee Limited applies for an order denying/suspending\* recognition of *[name of organisation]* as a mandated iwi organisation.

\*Select one.

**Grounds of application**

3 *Select the statement that applies.*

- *[Name and address of organisation]* fails to meet the following criteria set out in section 14 of the Maori Fisheries Act 2004: *[specify]*.
- *[Name and address of organisation]* is not making reasonable efforts to meet the requirements to enable it to qualify to receive settlement assets under section 130 of the Maori Fisheries Act 2004.

4 Attached to this form is a full explanation as to why recognition of *[name of organisation]* should be denied/suspended\*.

\*Select one.

5 A copy of this application has been served on *[name of organisation]*.

**Preferred place of hearing**

Preferred place of hearing:

Date:

Signature:

(signed on behalf of Te Ohu Kai Moana Trustee Limited)

Name:



**\*Contact details**

Contact address: [*address to which documents or correspondence in connection with the application may be posted or delivered*]

Telephone: [*home, work, mobile*]

Email:

\*If given, an email address may be used as a means of notice and service.

**Fee**

\$[*amount*]

**Note**

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

**Checklist of documents required (if applicable)**

- A full explanation as to why recognition of a mandated iwi organisation should be denied or suspended
- Copies of the constitutional documents of the joint mandated iwi organisation
  - Schedule 1 form 51: amended, on 30 April 2026, by rule 93(1) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).
  - Schedule 1 form 51: amended, on 30 April 2026, by rule 93(2) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).
  - Schedule 1 form 51: amended, on 30 April 2026, by rule 93(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## Form 52

Memorial of assignment of equitable and beneficial interest in Māori vested  
land/Māori reserved land\*

r 15.9

*Maori Vested Lands Administration Act 1954/Maori Reserved Land Act 1955\**

\*Select one.

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [*Rohe*]

The Māori Land Court of New Zealand

[*Name of district*] District**Memorial of assignment**

- 1 I, [*full name*], (the assignor) am the owner of the equitable and beneficial freehold interest in the vested/reserved\* land referred to in the schedule (the land).

\*Select one.

- 2 [*Full name, address*] (the assignee) has lent and advanced to me the sum of \$[*amount*] (the principal sum).

- 3 In consideration of that loan, and pursuant to section 4B of the Maori Vested Lands Administration Act 1954/section 10A of the Maori Reserved Land Act 1955\*, I assign and transfer the equitable and beneficial freehold interest in the land to the assignee by way of security.

\*Select one.

- 4 *Select the statement that applies.*

- The obligation secured by this assignment is to repay the principal sum on [*date*] and to pay interest on the principal sum in the meantime for so long as the principal sum or any part of it remains unpaid. The interest must be paid at the rate of [*amount*] percent per annum, by half-yearly/yearly\* payments on the [*specify*] day of the month(s) of [*specify*] in each year. The first payment of interest is to be made on [*day, month*].

\*Select one.

- The obligation secured by this assignment is to repay the principal sum together with interest on it, or on so much of it as has not for the time being been repaid, at the rate of [*amount*] percent per annum by equal monthly/quarterly/half-yearly\* instalments of \$[*amount*] each, on account of principal and interest, on the [*specify*] day of the months of [*specify*] in every year until [*day, month*] and on that day to repay the balance of the principal sum and interest then remaining unpaid. The first instalment is to be paid on [*day, month*].

\*Select one.

Date:

Signature of assignor:

Signature of witness:

Full name of witness:

Occupation of witness:

Address of witness:

***Schedule***

*[Full description of the land interest assigned]*

Schedule 1 form 52: amended, on 30 April 2026, by rule 93(3) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## Form 52A

## Notice of application to respondent (under Family Protection Act 1955 or Law Reform (Testamentary Promises) Act 1949)

r 15.13(5), 15.19(5)

*Section 95(3)(a), Te Ture Whenua Maori Act 1993*

I Te Kooti Whenua Māori o Aotearoa

I Te Rohe o [Rohe]

The Māori Land Court of New Zealand

[Name of district] District

**\*To** [name of respondent]

\*Repeat if more than 1 respondent.

**Notification of written application for order**

[Full name], the applicant, has filed an application in this Court that relates to Māori freehold land.

A copy of the application is attached. The order or orders sought by the applicant are specified in the application.

**Notice of intention to appear**

If you wish to be heard on this application, you should notify the applicant and the Māori Land Court office in your district.

You may attend the Court when the application is heard so that you can be heard on the application.

**Address for service**

If you do not wish to be heard on the application but you do wish to know what is happening, you must file in the office of the Court that the application was filed or made in a notice giving the address of a place in New Zealand at which documents may be left for you.

**Advice**

If you need help, consult a lawyer or contact a Māori Land Court office immediately.

**Office hours**

Offices of the Māori Land Court are open from 10 am to 4 pm on Mondays to Fridays inclusive, excluding statutory holidays and the period of 24 December to 2 January.

Date:

Signature:

(Registrar)

Schedule 1 form 52A: inserted, on 30 April 2026, by rule 92(5) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## Form 52B

Notice of appeal against decision of Māori Plant Varieties Committee under  
Plant Variety Rights Act 2022

r 15.26

*Section 71(1), Plant Variety Rights Act 2022*

I Te Kooti Pīra Māori o Aotearoa

I Te Rohe o [*Rohe*]

Māori Appellate Court

[*Name of district*] District**Notice**

I/We\*, [*full name(s)*], appeal against a decision of the Māori Plant Varieties Committee made at [*place, date*], which is an appealable decision under Schedule 2 of the Plant Variety Rights Act 2022.

\*Select one.

**\*Applicant**

I am the applicant/We are the applicants† for a plant variety right that the decision relates to.

***or*****\*Person aggrieved by decision**

I am/We are† aggrieved by the decision.

\*Select the heading and statement that apply.

†Select one.

**Nature of decision**

[*Specify the nature of the committee decision.*]

**Grounds of appeal**

[*State the grounds of the appeal or indicate that a statement of grounds is attached to this document.*]

**Checklist of documents**

- Statement of grounds attached to this document (if not included in the application)

Date:

Signature:

(appellant(s)/counsel/solicitor for appellant(s)\*)

\*Select one.

**Contact details\***

Contact address: [*address to which documents or correspondence in connection with the application may be posted or delivered*]

Phone: [*home, work, mobile*]

Email:

\*If given, an email address may be used as a means of notice and service.

**Fee**

[\$*amount*]

**Note**

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

Schedule 1 form 52B: inserted, on 30 April 2026, by rule 92(5) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

## Form 52C

Notice of application for leave to appeal out of time against decision of Māori  
Plant Varieties Committee under Plant Variety Rights Act 2022

r 15.30(2)

*Section 71(2)(c)(ii), Plant Variety Rights Act 2022*

I Te Kooti Pīra Māori o Aotearoa

I Te Rohe o [Rohe]

Māori Appellate Court

[Name of district] District

**Notice**

I/We\*, [full name(s)], seek leave to appeal out of time against a decision of the Māori Plant Varieties Committee made at [place, date].

\*Select one.

**\*Applicant**

I am the applicant/We are the applicants† for a plant variety right that the appealed against decision relates to.

**or****\*Person aggrieved by decision**

I am/We are† aggrieved by the appealed against decision.

\*Select the heading and statement that apply.

†Select one.

**Reasons for delay in filing**

[State the reasons for the delay in filing the appeal.]

**Grounds of application for leave to appeal out of time**

[State the grounds of the application for leave to appeal out of time or indicate that a statement of grounds is attached to this document.]

**Checklist of documents**

- Statement of grounds attached to this document (if not included in the application)
- Notice of appeal against decision of Māori Plant Varieties Committee under Plant Variety Rights Act 2022



Date:

Signature:

(appellant(s)/counsel/solicitor for appellant(s)\*)

\*Select one.

**Contact details\***

Contact address: [*address to which documents or correspondence in connection with the application may be posted or delivered*]

Phone: [*home, work, mobile*]

Email:

\*If given, an email address may be used as a means of notice and service.

**Fee**

[\$*amount*]

Schedule 1 form 52C: inserted, on 30 April 2026, by rule 92(5) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Form 53  
Application seeking special aid

r 16.1(3)

*Section 98, Te Ture Whenua Maori Act 1993*

**Application**

- 1 I/We\*, [full name(s)], seek financial assistance from the Māori Land Court Special Aid Fund for the following purposes:

\*Select one.

*Select the statement(s) that apply.*

- proceedings under Te Ture Whenua Maori Act 1993:
- proceedings under the Maori Fisheries Act 2004:
- proceedings under the Maori Commercial Aquaculture Claims Settlement Act 2004.

- 2 Special aid funding is sought to cover—

*Select the statement(s) that apply.*

- my/our\* reasonable out-of-pocket expenses:  
\*Select one.
- the reasonable fees and expenses of my/our\* lawyer:  
\*Select one.
- the reasonable fees and expenses of a person (other than a lawyer) who is eligible to be funded from special aid.

**Lawyer's details**

- 3 I/We\* do/do not\* have a lawyer to assist with this application.

\*Select one.

- 4 *Omit this paragraph if you do not have a lawyer.*

My/Our\* lawyer's contact details are as follows:

Name:

Firm:

Address:

Phone:

Email:

\*Select one.

- 5 A lawyer has/has not\* already completed work on this matter.

\*Select one.

- 6 *Omit this paragraph if it does not apply.*  
Payment has/has not\* been made for the work that has already been completed.  
\*Select one.
- 7 *Omit this paragraph if it does not apply.*  
I/We\* would like the Court to appoint a lawyer on my/our\* behalf.  
\*Select one.

**Other person's details**

*Provide this information for each person eligible to be funded from special aid who is not a lawyer.*

- 8 Another person who is eligible to be funded from special aid has/has not\* already completed work on this matter.  
\*Select one.
- 9 *Omit this paragraph if it does not apply.*  
Nature of their work on this matter:  
Their contact details are as follows:  
Name:  
Firm:  
Address:  
Phone:  
Email:
- 10 *Omit this paragraph if it does not apply.*  
Payment has/has not\* been made for the work that has already been completed.  
\*Select one.

Date:

Signature(s) of applicant(s):

**Contact details\***

Contact address: *[address to which documents or correspondence in connection with the application may be posted or delivered]*

Phone: *[home, work, mobile]*

Email:

\*If given, an email address may be used as a means of notice and service.

**Lawyer or other person eligible to be funded from special aid to complete**

Date instructions received:

Estimated time frame to complete services (including services provided by any other person who is eligible to be funded by special aid):

Total likely cost of services for which special aid is sought (including GST) using agency standard rates is: \$[amount]

If no standard rate applies, complete the following estimate (including GST):

|                              |            |
|------------------------------|------------|
| Preparation                  | \$[amount] |
| Attendances                  | \$[amount] |
| Reading research and reports | \$[amount] |
| Documentation preparation    | \$[amount] |
| Phone attendances            | \$[amount] |
| Court attendances            | \$[amount] |
| Correspondence               | \$[amount] |

**Other activities**

|                                                                       |            |
|-----------------------------------------------------------------------|------------|
| [List activities not set out above and the estimated charge for each] | \$[amount] |
|-----------------------------------------------------------------------|------------|

**Disbursements**

|                                |            |
|--------------------------------|------------|
| [List estimated disbursements] | \$[amount] |
|--------------------------------|------------|

|                              |                   |
|------------------------------|-------------------|
| <b>Total (including GST)</b> | <b>\$[amount]</b> |
|------------------------------|-------------------|

Date:

Signature of provider:

Name:

**Acknowledgement and confirmation by applicant**

*Omit this paragraph if it does not apply.*

I/We\* have received a completed copy of this application form from my/our\* lawyer.

\*Select one.

Date:

Signature(s) of applicant(s):

**Note**

Information provided in all applications forms part of the Court's permanent record under rule 7.19 of the Māori Land Court Rules 2011. Where required, information provided in this application will be included in resulting orders of the Court.

**Checklist of documents required**

- If you have already paid a lawyer or other person for work on the matter, a copy of the account
- Memorandum addressing any matters required to be addressed by a practice note

Schedule 1 form 53: replaced, on 30 April 2026, by rule 92(4) of the Māori Land Court Amendment Rules 2026 (SL 2026/61).

Rebecca Kitteridge,  
Clerk of the Executive Council.

Issued under the authority of the Legislation Act 2019.  
Date of notification in *Gazette*: 13 October 2011.

**Notes****1     *General***

This is a consolidation of the Māori Land Court Rules 2011 that incorporates the amendments made to the legislation so that it shows the law as at its stated date.

**2     *Legal status***

A consolidation is taken to correctly state, as at its stated date, the law enacted or made by the legislation consolidated and by the amendments. This presumption applies unless the contrary is shown.

Section 78 of the Legislation Act 2019 provides that this consolidation, published as an electronic version, is an official version. A printed version of legislation that is produced directly from this official electronic version is also an official version.

**3     *Editorial and format changes***

The Parliamentary Counsel Office makes editorial and format changes to consolidations using the powers under subpart 2 of Part 3 of the Legislation Act 2019. See also PCO editorial conventions for consolidations.

**4     *Amendments incorporated in this consolidation***

Māori Land Court Amendment Rules 2026 (SL 2026/61)

Witnesses and Interpreters Fees, Allowances, and Expenses Regulations 2023 (SL 2023/18): regulation 16(1)

Senior Courts Act 2016 (2016 No 48): section 183(b)